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Residential Tenancies Branch

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Section 2	Tenancy Agreements
Sub-Section 2.2	Co-signers & Guarantors

Legislation

[s. 12, 28.1-28.15, The Residential Tenancies Act](#)

Definitions

Co-signer: a person who signs a tenancy agreement along with the tenant and agrees to be responsible for the obligations of the tenant. For example: the obligation to pay rent and to pay for damages, etc.

Guarantor: a person who signs an agreement stating that they will guarantee that a tenant will meet specific obligations set out in the guarantee itself. **For example: the obligation to pay rent and to pay for damages, etc.**

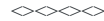
Tenancy agreement: a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied.

Policy

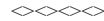
A landlord may ask a prospective tenant to have a co-signer or guarantor.

A landlord may want a co-signer or guarantor if a tenant doesn't:

- have adequate references; **For example: If a person has never been a tenant before, they won't have a rental history;** or
- have enough regular income to afford the rent.

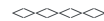


A landlord has the right to ask a co-signer or guarantor to complete a tenancy application. This gives the landlord information to help decide if a co-signer or guarantor has the ability to pay for the rent or damages. A landlord should get a co-signer's or guarantor's written consent before confirming this information.

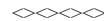


A landlord must give:

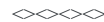
- a copy of the tenancy agreement to a co-signer; or
- a copy of any separate agreement or guarantee to a guarantor.



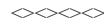
A co-signer agreement ends when the fixed-term tenancy agreement ends. A co-signer can't cancel their responsibility before the end of the agreement.



A landlord may ask for a co-signer on a tenancy agreement renewal if it was required for the previous agreement. **For example: If a student doesn't always earn enough money to cover the rent, the landlord can ask for a co-signer.**



A guarantee, because it's separate from the tenancy agreement, must identify the tenancy agreement. The form must include the names of the landlord and tenant, the address of the rental unit and the date the tenancy begins.



The guarantee should state either the maximum amount that the guarantor might be responsible for or that the guarantor's liability is unlimited. If the guarantee is for rent only, it should also show that the guarantor is responsible for rent arrears based on the present rent and on future rent increases as allowed by Part 9 of the *Act*.



A guarantee ends when a fixed term tenancy agreement ends, unless the guarantee specifically says that the obligations of the guarantor continue with any tenancy agreement renewals.



A guarantor is bound by the terms of the guarantee, as long as the terms are reasonable.

When making a claim for compensation against a guarantor, a landlord must show what they did to keep their loss to a minimum.

If the tenancy agreement says that the tenant must have a guarantor, and the previous guarantor withdraws as allowed under their agreement, the landlord may ask the tenant in writing to find another suitable guarantor. If the tenant can't do this, then the landlord may give the tenant notice of one rental payment period for a breach of a material term of the tenancy agreement. If a landlord and tenant can't agree on whether it's reasonable to ask for a guarantor, the Branch will help them try to reach an agreement. If the landlord and tenant can't agree, the Branch will make a decision about whether it's reasonable for the tenant to have a guarantor.



When a landlord has a claim for compensation against a tenant and their co-signer or guarantor, they should name both on the claim form. The landlord must try to give everyone named on the claim a copy of it. There can be a hearing if the landlord serves only one person, either the tenant, guarantor or co-signer, with a notice of the hearing. However, if the landlord wants to be able to have an Order for the payment of compensation that they can enforce against the tenant(s) and co-signer or guarantor, they should serve each of the tenant(s) and co-signer or guarantor and have only one hearing.

If the landlord does not serve all the involved parties for a hearing, the landlord may not be able to have another hearing in the future for the same claim. To have another hearing, the landlord would have to show why they could not serve the other involved party with the original claim for compensation.

If a landlord is having difficulty serving a tenant or co-signer or guarantor with a claim, they can ask the Branch for substitutional service or they can reschedule the hearing to allow more time for service.

When the Branch issues an Order, they send a copy to everyone named on the form. However, the landlord can only enforce the Order against the people they actually served with the notice of the hearing.

Procedure

Overview This policy is included as information for landlords, tenants, guarantors, co-signers and officers. If tenants, co-signers, guarantors and landlords aren't able to solve a problem with a tenancy agreement or guarantee on their own, they can ask the Branch for help.

- Steps ▼**
- 1.The officer encourages the landlord, tenant and co-signer or guarantor to share information, and to discuss the problem, to try to come to some agreement.
 - 2.When a landlord, tenant, guarantor or co-signer asks the Branch for help with a problem, the appropriate officer follows the procedures for:
 - mediation
 - claims for compensation/orders of possession
 - hearings

Forms & Form Letters

Standard Residential Tenancy Agreement
.....Form 1/Residential Tenancies Regulation

Renewal of Tenancy Agreement.
.....Form 4/Residential Tenancies Regulation

X-Referencing

For procedures on Mediation, see Section 1.
For details on Tenancy Applications, see Section 1.
For more information on Claims, see Section 9.

Policy Developed September, 1992*

Last Revision May, 2015

Other Resources None

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Residential Tenancies Branch

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Section 9	Claims for Compensation
Sub-Section 9.1	Claims

Legislation

[s. 55 \(2\), 59.1, 154, 155, *The Residential Tenancies Act*](#)
[s. 18, 25 \(1\), *Residential Tenancies Regulation*](#)
[Residential Tenancies Cost Regulation](#)

Definitions

Claim: a form filed with the Branch by a landlord or tenant, asking the Branch to decide if the person who filed the claim is entitled to money from the person they filed against.

Claimant: a landlord, tenant or co-signer who makes a claim against another.

Hearing: a meeting where a claimant and respondent present information about their case to an officer to have their claim, application or question decided.

Mediation: a confidential process that the Branch uses to encourage and help claimants and respondents discuss problems, think of possible solutions and reach their own agreements. Mediation can take place in meetings, conference calls or separate telephone conversations.

Mediated agreement: a written document a mediation officer prepares to outline an agreement between a claimant and respondent. Mediated agreements are confidential. They are not a matter of public record.

Order: an order for one person to pay another, generally for rent arrears, damage or cleaning costs.

Respondent: a landlord, tenant or co-signer against whom a claim is made.

Policy

A tenant or landlord can file a claim against the other for **compensation for financial loss**. They can also make a claim for costs and for interest on the compensation.

For a claim to succeed, a claimant must prove, at the very least:

- that they had a financial loss;
- that the loss took place during the tenancy;
- that the respondent is responsible for the loss; and
- the amount of the loss.

While a landlord or tenant may make a claim, they must be able to show what they did to keep their loss to a minimum. **For example: A landlord is claiming loss of rent. They must show what steps they took to re-rent the unit as soon as practicable. Or, a tenant is claiming compensation for damaged belongings because a landlord failed to repair a leaking roof. They must show when they told the landlord of the problem and how they tried to prevent further damage to their belongings.**



If a tenant removes fixtures from the rental unit or other items which belong to a landlord when they move, the landlord may file a claim for compensation against the tenant. While the landlord may also want to file a complaint with the police, they're not required to do so.



Compensation for Unreasonable Delay

A tenant who wants to make a claim for compensation for unreasonable delay may file a claim with the Branch. To file a claim, a tenant must pay the Branch a non-refundable filing fee.

Since a tenant may apply for compensation only if the landlord fails to act on a request to repair, the tenant must show that they asked the landlord to comply with the Act or that the landlord was aware that a repair was required. If a tenant makes more than one request for the repair, the tenant should record dates and any other relevant information. The best advice to tenants is to put the request in writing and give it to the landlord, not just the on-site caretaker. If request was made verbally, then the tenant might provide a statement from a witness to the request.

The tenant must also show that the repair is required and that they are not the cause of the problem. Tenants may take photos to show the condition of the rental unit.

A tenant must not contribute to the delay by refusing to allow the landlord reasonable access to the rental unit to complete the repairs.

The tenant must specify a dollar amount that they are seeking for compensation for the delay. The tenant can claim a lump sum or an amount to be set-off against the rent each month until the repair is made.

A tenant may claim compensation for loss of use of part of a rental unit or loss of use of a service or facility that the landlord provides (e.g. appliances, security system, parking, laundry facilities, air conditioning). A tenant may also claim compensation for any additional expenses incurred because of a delay in repairing an item (e.g. increased water bill because of a landlord's failure to repair a dripping tap or a running toilet).

The tenant must show that the landlord's failure to repair within a reasonable period of time interfered with their quiet enjoyment of the rental unit/residential complex by preventing them from using the property as it was intended to be used.

In determining the amount by which the value of the tenancy has been reduced, the Branch will consider:

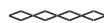
- the seriousness of the situation;
- any annoyance, discomfort and inconvenience caused by the delay; tenants will not usually be awarded compensation for temporary discomfort or inconvenience;
- the degree to which the tenant has been unable to use the premises as it was intended to be used;
- the length of time over which the situation has existed; a reasonable amount of time will vary depending on the severity of the problem; for example, if the landlord supplies heat and the heat goes off in the middle of winter, a "reasonable" amount of time may be a few hours, but if the cold water faucet is dripping, the "reasonable" time for repair might be considerably longer;
- whether the delay was caused by matters outside of the landlord's control; for example: if a repair can only be done on a seasonal basis or if there is a problem with contractor availability.

When the Branch awards compensation to a tenant for unreasonable delay, it may also award cost as allowed by the Residential Tenancies Cost Regulation.

When a tenant files a claim for compensation for unreasonable delay, the Branch will ask the tenant if the repairs have been completed. If repairs are still necessary, the Branch will explain its repair procedures to the tenant and open a repair file. The Branch will then follow the procedures set out in Landlord's Responsibility for Repairs in Section 4.



If a tenant's belongings are damaged because a landlord didn't do repairs, the tenant may file a claim for compensation against the landlord. However, a tenant must be able to show that the landlord knew about the necessary repairs or could have been expected to know there might be a problem.



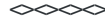
The Branch does not have the authority to award compensation for:

- personal injury or death;
- pain and suffering or mental anguish;
- or wages lost while attending a hearing;
- time required to collect rent; and
- legal fees.

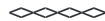


When filing a claim, a landlord or tenant must use a "Claim and Notice of Hearing" form the Branch provides. The Branch does not accept claims on any other forms.

To file a claim, a landlord or tenant needs to have an address for the respondent. If a claimant doesn't have an address and the Branch has a file between the claimant and respondent, the Branch will provide whatever address is on file. There is one exception. If there is a **restraining order** or a **non-molestation order** between the claimant and respondent, the Branch won't release the address.



The Branch generally holds a hearing before making a decision on a claim. A claimant must give a respondent the Claim and Notice of Hearing form *at least five days* before the hearing date.

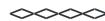


To file a claim, a claimant must pay the Branch a non-refundable filing fee. There are some exceptions:

- A landlord doesn't have to pay a filing fee if their claim is for the security deposit or less.
- A tenant doesn't have to pay a filing fee for a claim for moving expenses or additional moving expenses if they receive notice to move under Section 98 or 99 of the *Act*.
- A tenant generally doesn't have to pay a filing fee when they ask the Branch to decide on a claim against a security deposit. A tenant who wants the Branch to make a decision on a security deposit must contact the Branch *within two years* of the end of the tenancy. *After two years*, a tenant must file a claim for compensation and pay the required filing fee.
- A life lease tenant doesn't have to pay a filing fee when they ask the Branch to decide on a claim against a *rentance fee refund*.

If a tenant terminates a tenancy because a landlord hasn't met their obligations, the tenant may file a claim for compensation against the landlord for their **moving expenses**. In these cases, the tenant must pay a filing fee. A tenant may claim compensation for:

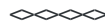
- renting a vehicle
- hiring professional movers;
- the cost of transferring utility or service connections;
- the cost of filing a change of address with Canada Post for mail redirection;
- other reasonable expenses. This may include the cost of gas or the cost of buying food for people who help the tenant move



A claimant may file a claim at the nearest Branch office. The Branch holds hearings in Winnipeg, Brandon and Thompson as well as in other judicial centres in the province. The Branch decides where the hearing will be held. This decision is based on the location of the rental unit and the address of the landlord and tenant. The Branch usually schedules a hearing in the judicial centre closest to the rental unit. A claimant may ask to have their hearing outside of the nearest judicial centre. The Branch will accommodate a request for a different location if it appears fair to both the claimant and the respondent.

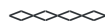


Even though a claim form is not completed correctly, the Branch might still make a decision on the claim. A landlord or tenant should not rely on an error or irregularity in the form as a defence to a claim.

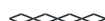


If a respondent wants to reply to a claim, they should attend the hearing or submit a written response to the claim. If a respondent has a claim against a claimant, they may also file a claim. To file a claim, a respondent must pay a non-refundable filing fee. If a respondent files a claim, the Branch usually tries to schedule the hearing on that claim for the same date and time as the original claim.

In some cases, the hearing calendar for the date and time of the original claim might be fully booked. In other cases, the respondent may not file their claim in time to give the claimant the required *five days'* notice of the hearing. As a result, the Branch might try to re-schedule the original hearing to a later date and decide both claims at that time. Or, the Branch might deal with the claimant's claim at one hearing and hold a second hearing to consider the respondent's claim.



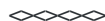
To prevent several hearings about one tenancy, the Branch encourages a claimant to file one claim for all the losses suffered during or after a tenancy. A claimant can make an estimated claim, as long as they provide specific details of the claim to the Branch and the respondent. **For example: A landlord can file a claim for an unpaid water bill and estimate the amount of the final bill. Or, a landlord can file a claim in January and say that they are claiming February's rent. In either case, the landlord would have to prove their loss at the hearing. If a claim is not specific enough to allow a respondent to prepare a response, the Branch might refuse to accept the claim.**



When filing a claim, a claimant must be as clear and specific as possible about the details of their claim. A claim needs to be clear to:

- give the respondent the opportunity to know what the claim is so they can respond;
- give the Branch an opportunity to help the claimant and respondent to settle the claim through mediation; and
- allow the Branch to proceed with a hearing.

If the Branch feels that a claim is not clear or that the claimant doesn't have most of the information or evidence necessary to file a claim, it won't accept the claim for filing.

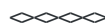


Sometimes a claimant may need or want to add items to a claim they filed with the Branch. If the claimant hasn't served the respondent, the claimant may file an amended claim and then serve the respondent. If the claimant has already served the respondent, the Branch may not allow the claimant to file a second claim. The Branch has the authority not to accept a second claim if it believes the items on the second claim could have been reasonably included in the first claim.



When making a decision on a claim for compensation, the Branch uses, where appropriate, the guidelines for decision set out in Section 10.

The Branch usually applies the security deposit, if any, to an Order issued after a tenancy ends. If the landlord files a claim 28 days or more after the end of a tenancy, the Branch will deal with the deposit at the claim hearing.



The Branch has the authority to deal with a claim filed by a **collection agent** on behalf of a landlord. While a **collection agent** may represent a landlord at a hearing, the Branch issues the Order in the name of the landlord. The Branch doesn't have the authority to deal with a claim filed by a **third party** who "purchased" a tenant's debt from a landlord. The Branch has the authority to deal with matters arising from the breach of a tenancy agreement between a landlord and tenant. The third party or assignee's claim is on their own behalf, not on behalf of a landlord. The assignee must file their claim in the Court of King's Bench.

Procedure

Overview When a landlord or tenant files a claim for compensation, the Branch schedules a hearing. A mediation officer will try to help the parties reach an agreement on the claim. If mediation isn't successful, the hearing goes ahead as scheduled. A hearing officer reviews all the information, makes a decision and issues an Order.

- Steps ▼**
1. A tenant or landlord files a claim for compensation and pays the filing fee.
 2. The Branch schedules a hearing and gives the claimant a copy of the claim form for their records and an original claim for each respondent. The form includes information on the date and time of the hearing. The claimant must give the respondent notice of the hearing *at least five days* before the hearing date.
 3. If the claimant can't give the notice of hearing to the respondent, they may apply in writing for substitutional service and/or a new hearing date.
 4. Before the hearing, a mediation officer may contact the claimant and respondent to see if they can reach an agreement on the claim.
 5. If mediation isn't successful, the hearing goes ahead as scheduled.

Forms & Form Letters

X-Referencing

For details on **mediation**, see Section 1.
For information on the Branch's **jurisdiction**, see Section 1.
For details about **Landlord's Responsibility for Repairs**, see Section 4.
For more information on **guidelines for decision**, see **Security Deposits – Guidelines for Decision** in Section 10.
For more information on **hearings and hearing orders**, see Section 11.
For information on **costs** and **interest**, see Section 12.

Policy Developed

September, 1992*

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Section 8	Order of Possession
Sub-Section 8.4	Order of Possession - Tenant <u>Not Meeting Obligation</u> (Other Than Non-payment of Rent)

Legislation

s. 154, *The Residential Tenancies Act*
s. 23, *Residential Tenancies Regulation*

Definitions

Application for an Order of Possession: an application a landlord completes, asking the Branch to enforce a Notice of Termination and order a tenant to move. On the application, the landlord may also claim unpaid rent or other compensation.

Hearing: a meeting where a landlord and tenant present information about their case to an officer to have their claim or application decided.

Mediation: a confidential process that the Branch uses to encourage and help tenants and landlords discuss problems, think of possible solutions and reach their own agreement. Mediation can take place in meetings, conference calls or separate telephone conversations.

Mediated agreement: a written document a mediation officer prepares to outline an agreement between a landlord and tenant. Mediated agreements are confidential. They are not a matter of public record.

Notice of termination: a written notice, by either the landlord or tenant, to end a tenancy.

Order of Possession: a written Order, issued by the Branch, that enforces a valid notice of termination. The tenant must move out of a rental unit on or before a set date.

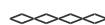
The **Residential Tenancies Commission**: a board that hears appeals on decisions or Orders the Branch issues.

Tenancy agreement: a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied.

Policy

A landlord may:

- give a tenant a notice to move on a certain date and then apply for an Order of Possession if the tenant doesn't move;
- give a tenant a Notice of Termination and the Application for an Order of Possession at the same time; or
- give a tenant notice to move on a certain date. If the tenant says they're not going to move, the landlord can apply for an Order of Possession before the date in the Notice of Termination.



When applying for an Order of Possession, a landlord must use the application form the Branch provides. The Branch does not accept applications on any other forms.



The landlord must include the following information with the Application for an Order of Possession:

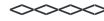
- a copy of the Notice of Termination, and
- copies of any letters asking the tenant to correct a problem.

The landlord may also make a claim for rent arrears, damage or other compensation.



A landlord may apply for an Order of Possession at the nearest Branch office. The Branch holds hearings in Winnipeg, Brandon and Thompson as well as in other judicial centres in the province. The Branch decides where the hearing will be held. This decision is based on the location of the rental unit and the addresses of the landlord and tenant. The Branch usually schedules a hearing in the judicial centre closest to the rental unit. A landlord may ask to have their hearing outside of the nearest judicial centre. The Branch will accommodate a request for a different location if it appears fair to both the landlord and the tenant.

When a landlord applies for an Order of Possession, they must pay the Branch a non-refundable filing fee.



The Branch may issue an Order of Possession if a tenant fails to meet their obligations under the *Act* or their tenancy agreement. Following are some possible breaches:

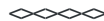
- failure to maintain the rental unit in a clean condition;
- failure to repair any damage they or their guests caused to the unit or complex;
- endangering the safety of others in the residential complex or the landlord;
- Effective August 1, 2014:

engages in unlawful activity in the residential complex that:

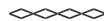
- causes damage to a rental unit or the residential complex
- interferes with the enjoyment of a rental unit or the complex by another tenant or the landlord (or a person either lets into the complex)
- adversely (badly) affects the security, safety, health or well-being of another tenant or occupant of the complex, the landlord or a person allowed in the complex by the tenant or landlord
- disturbance of others;
- failure to comply with reasonable terms and conditions of a tenancy agreement;
- giving false or fraudulent information on their tenancy application; or,
- failure to move out after giving the landlord notice.



The Branch will not grant an Order of Possession if a landlord's notice of termination is not valid.



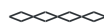
The Branch makes decisions on applications for Orders of Possession at a hearing. After the hearing, the Branch may issue two Orders. The Order of Possession orders the tenant to move out of the rental unit by a specific date. The tenant has *seven days* to appeal the Order of Possession to the Residential Tenancies Commission. If the landlord claimed compensation, the other Order orders the tenant to pay the landlord compensation for rent arrears or damage. The tenant has *14 days* to appeal the Order.



If the Branch grants an Order of Possession, it usually orders the tenant to move on or before a date *seven days* after the date it issues the Order of Possession. **For example: The Branch issues an Order of Possession on March 20. It orders the tenant to move on or before March 27.** A hearing officer has the discretion to allow more time if they consider it appropriate.



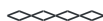
When a landlord files an Application for an Order of Possession, they won't know the final condition of the rental unit. A landlord may ask the Branch not to apply the security deposit to any Order for compensation. After the tenant moves, the landlord may have a claim for damage or cleaning costs. If the landlord needs to file another claim, they don't need to pay another filing fee.



When the Branch issues an Order of Possession, the Branch orders the tenant to move on or before a specific date. Depending on when the Branch orders the tenant to move, the Branch may also order the tenant to pay the landlord a daily rate for use and occupancy if the tenant doesn't move as ordered. **For example: The Branch issues an Order of Possession on June 23 ordering the tenant to move on June 30 for disturbing other tenants. The Branch also orders the tenant to pay the landlord \$16.44 per day starting July 1.**

When the Branch orders a tenant to pay a daily rate for use and occupancy of the rental unit, the Branch uses the following formula to calculate the rate:

If the Branch orders a tenant to move before the end of a rental payment period and the tenant paid the full rent, the landlord must return any unused rent to the tenant. **For example: The Branch orders a tenant to move on or before May 15 for disturbing other tenants. The tenant paid the full May rent of \$500.00. The tenant moves on May 15. The landlord must refund \$263.04 to the tenant (\$500.00 x 12, 365 = \$16.44 daily rate x 16 days).** If a landlord doesn't return the rent, the tenant may file a claim with the Branch.



When the Branch issues an Order of Possession, it sets a time limit for enforcing the Order. A landlord who receives an Order of Possession for any reason other than non-payment of rent, has 30 days from the date the tenant is to move to file the Order in the Court of King's Bench. **For example: The Branch grants a landlord an Order of Possession because the tenant disturbed other tenants in the complex. The Branch orders the tenant to move on or before June 30. The landlord may file the Order of Possession in the Court of King's Bench up to and including July 30.**

Procedure

Overview The landlord applies for an Order of Possession and the Branch schedules a hearing. Based on the information provided, the officer makes a decision and issues an Order.

- Steps ▼**
- 1.A landlord applies for an Order of Possession and pays the filing fee.
 - 2.The Branch schedules a hearing and gives the landlord a copy of the Application for Order of Possession for their records and a copy for each tenant. The application includes information on the date and time of the hearing. The landlord must give the tenant notice of the hearing at *least five days before the hearing date*.
 - 3.If a landlord can't give the notice of the hearing to the tenant, they may apply in writing for substitutional service and/or a new hearing date.
 - 4.Before the hearing, a mediation officer may contact the landlord and tenant to see if they can reach an agreement on extending or terminating the tenancy.
 - 5.If mediation is not successful, a hearing officer follows the steps for hearings. ([See Hearings in Section 11.](#))
 - 6.A tenant may receive notice of the hearing, but move out before the hearing date. In this case, the hearing officer may still issue an Order on any claim for compensation.
 - 7.The hearing officer generally issues a decision *within two working days* of the hearing. The decision is sent by courier or priority post to both the landlord and tenant.
- If either the landlord or tenant appeal the Branch's Order, the Order is stayed. This means the Branch's Order is no longer in effect and cannot be enforced in the Court of King's Bench.

Forms & Form Letters Notice of Termination by Landlord (for cause other than non-payment of rent) ([Form 10](#))

X-Referencing For details on **ending a tenancy**, go to [Notice of Termination](#) in Section 7.
For information on **late payment fees**, see Section 2.
[Enforcing an Order of Possession](#) is in this section.
For information on [amending an Order](#), see section 11.
[Hearings](#) are covered in Section 11.
For more information on [filing fees](#), [costs](#) and [interest](#), see Section 12.

Policy Developed September, 1992

Last Revision February, 2024

Other Resources None

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Residential Tenancies Branch

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[s. 154, *The Residential Tenancies Act*](#)
[s. 20, 23, Residential Tenancies Regulation](#)
[s. 3, Residential Tenancies Interest Regulation](#)

an application a landlord completes, asking the Branch to enforce a Notice of Termination and order a tenant to move. On the application, the landlord may also claim unpaid rent or other compensation.

_____ a written Order, issued by the Branch, that enforces a notice of termination if a tenant fails to meet a specific condition.

rent is paid *after the due date*, without valid or good reason, three or more times during a year or during the term of a fixed-term tenancy agreement.

a meeting where a landlord and tenant present information about their case to an officer to have their claim or application decided.

a confidential process that the Branch uses to encourage and help tenants and landlords discuss problems, think of possible solutions and reach their own agreement. Mediation can take place in meetings, conference calls or separate telephone conversations.

a written document a mediation officer prepares to outline an agreement between a landlord and tenant. Mediated agreements are confidential. They are not a matter of public record.

a written notice, by either the landlord or tenant, to end a tenancy.

a written Order, issued by the Branch, that enforces a valid Notice of Termination. The tenant must move out of a rental unit on or before a set date.

_____ a board that hears appeals on decisions or Orders the Branch issues.

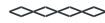
_____ for the purpose of this subsection, subsidized housing is a rental unit where the amount of the tenant's rent is based on their income.

a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied

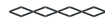
A landlord may:

- give a tenant a notice to move on a certain date and then apply for an Order of Possession if the tenant doesn't move;

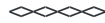
- give a tenant a Notice of Termination and the Application for an Order of Possession at the same time; or
- give a tenant notice to move on a certain date. If the tenant says they're not going to move, the landlord can apply for an Order of Possession before the date in the Notice of Termination.



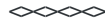
When applying for an Order of Possession, a landlord must use the application form the Branch provides. The Branch does not accept applications on any other forms.



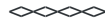
When a landlord applies for an Order of Possession, they must show which months' rent the tenant owes and the amount owing. The landlord must also give the Branch a copy of the notice of termination. If the landlord wants an Order of Possession because of habitual late payment, the landlord must also mention this on the application.



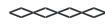
The landlord may also make a claim for rent arrears, damage or other compensation.



A landlord may apply for an Order of Possession at the nearest Branch office. The Branch holds hearings in Winnipeg, Brandon and Thompson as well as in other judicial centres in the province. The Branch decides where the hearing will be held. This decision is based on the location of the rental unit and the address of the landlord and tenant. The Branch usually schedules a hearing in the judicial centre closest to the rental unit. A landlord may ask to have their hearing outside of the nearest judicial centre. The Branch will accommodate a request for a different location if it appears fair to both the landlord and the tenant.

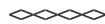


When a landlord applies for an Order of Possession, they must pay the Branch a non-refundable filing fee.



If a tenant offers to pay the rent and the filing fee after the landlord applies for the Order of Possession, the landlord can:

- take the rent and filing fee and allow the tenant to stay in the rental unit; the landlord should advise the Branch that they are withdrawing their application for the Order of Possession; or
- take the rent and filing fee and tell the tenant immediately, in writing, that they still have to move. The landlord can also ask the Branch to grant the Order of Possession since the tenant did not pay their rent on time. In this case, the Branch will only grant an Order of Possession if the tenant has been habitually late in paying the rent.



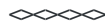
If a tenant pays the rent after the landlord applies for an Order of Possession, but doesn't pay the filing fee, the Branch may still grant the landlord an Order of Possession. However, the Branch will only grant the Order of Possession if the tenant has been habitually late in paying the rent.



The Branch may issue an Order of Possession because a tenant

- didn't pay rent;
- didn't pay rent on time.

The Branch will not grant an Order of Possession if a landlord's notice of termination is not valid.



Sometimes a tenant's rent is paid by their source of income and is sent directly to the landlord.

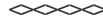
_____ If the rent is late, it may be beyond the tenant's control. In these cases, the Branch may issue a conditional Order of Possession. The Branch will only do this if:

- the tenant can show that they have contacted their source of income;
- the source of income confirms that they have sent or will soon send the rent to the landlord.

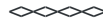


When deciding an application based on habitual late payment, the Branch may consider:

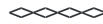
- the history of the past year of the tenancy or the current tenancy agreement;
- any oral or implied agreement for late payment;
- any oral or written warning given by the landlord; and
- the tenant's explanation for the late payment.



If a tenant lives in subsidized housing and doesn't pay rent, the landlord may give notice and apply to the Branch for an Order of Possession. The Branch has jurisdiction to deal with this kind of dispute. However, if there is a dispute over how the tenant's rent is calculated by the landlord of the subsidized housing, the Branch can't decide what income figures can be used to calculate rent. Either the landlord or tenant can apply to the Court of King's Bench for a declaratory order on determining the amount of rent.



A landlord may apply to the Branch for an Order of Possession if a former caretaker or employee doesn't move on a notice of termination. The Branch may grant an Order of Possession. But, if the landlord claims compensation for rent and the amount of rent the caretaker is to pay is unstated, the Branch won't issue an Order for the former caretaker/employee to pay rent.



The Branch makes decisions on applications for Orders of Possession at a hearing. After the hearing, the Branch may issue two Orders. The Order of Possession orders the tenant to move out of the rental unit by a specific date. The tenant has *seven days* to appeal the Order of Possession to the Residential Tenancies Commission. The other Order orders the tenant to pay the landlord compensation for rent arrears and/or damage. The tenant has *14 days* to appeal the Order.

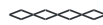
if a person does not take part in a hearing at the branch for an order of possession for non-payment of rent, that person will need to apply for leave to appeal if they want to appeal the branch's order.

This means that if either a landlord or a tenant doesn't take part in the hearing, they have to get "permission", or leave to appeal, from the Residential Tenancies Commission to appeal the order.

If someone wants to apply for leave to appeal, they must take their evidence, showing why they could not take part in the hearing, to the Commission within the appeal deadline, and pay a filing fee. Leave to appeal may be granted if:

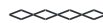
- the person can show why they were reasonably unable to take part in the hearing, or
- they can show that the order was based on false or misleading information.

If leave is granted, the person doesn't have to pay another filing fee to appeal the order.

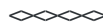


If the Branch grants an Order of Possession, it generally orders the tenant to move on or before a date *seven days* after the date it issues the Order of Possession.

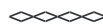
A hearing officer has the discretion to allow more time if they consider it appropriate.



Before a hearing, a tenant may pay some of the outstanding rent. They may also promise to pay the balance within a few days or weeks. In these cases, the Branch may issue a conditional Order of Possession.



When a landlord files an Application for an Order of Possession, they won't know the final condition of the rental unit. A landlord may ask the Branch not to apply the security deposit to the Order for compensation. After the tenant moves, the landlord may have a claim for damage or cleaning costs. If the landlord needs to file another claim, they don't need to pay another filing fee.



When the Branch grants an Order of Possession for rent arrears, they will also order the tenant to pay the rent. If the landlord claims a late payment fee, the Branch calculates the fee up to and including the date of the hearing, to a maximum of \$100.00.

◇◇◇◇◇◇◇◇◇◇

If a landlord claims interest on an application for an Order of Possession and the Branch awards it, the Branch generally awards interest on the rent at the pre-judgment rate from the date the rent first became due until the date of the order. The Branch may also award interest on the rent at the post-judgment rate from the date of the order until the date it's paid.

◇◇◇◇◇◇◇◇◇◇

When the Branch issues an Order of Possession, the Branch orders the tenant to move on or before a specific date. The Branch orders the tenant to pay any unpaid rent and may also order the tenant to pay a daily rate for use and occupancy until they move out of the rental unit.

When the Branch orders a tenant to pay a daily rate for use and occupancy of the rental unit, the Branch uses the following formula to calculate the rate:

$$\frac{\text{Monthly rent} \times 12}{365}$$

When the Branch issues an Order of Possession, it sets a time limit for enforcing the Order. A landlord who receives an Order of Possession for non-payment of rent has 90 days from the date the tenant is to move to file the Order in the Court of King's Bench.

The landlord applies for an Order of Possession and the Branch schedules a hearing. Based on the information provided at the hearing, an officer makes a decision and issues an Order.

▼ 1.A landlord applies for an Order of Possession and pays the filing fee.

2.The Branch schedules a hearing and gives the landlord a copy of the Application for Order of Possession for their records and a copy for each tenant. The application includes information on the date and time of the hearing. The landlord must give the tenant notice of the hearing at *least five days before the hearing date*.

3.If a landlord can't give the notice of the hearing to the tenant, they may apply in writing for substitutional service and/or a new hearing date.

4.Before the hearing, a mediation officer may contact the landlord and tenant to see if they can reach an agreement on extending or terminating the tenancy. When the tenant owes rent, the landlord may agree to continue the tenancy as long as the tenant pays the rent. The mediation officer may prepare a payment schedule.

5.If mediation is not successful, a hearing officer follows the steps for hearings. ([See Hearings in Section 11.](#))

6.A tenant may receive notice of the hearing, but move out before the hearing date. In this case, the hearing officer may still issue an Order on any claim for compensation.

7.The hearing officer generally issues a decision *within two working days* of the hearing. The decision is sent by courier or priority post to both the landlord and tenant.

If either the landlord or tenant appeal the Branch's Order, the Order is stayed. This means the Branch's Order is no longer in effect and cannot be enforced in the Court of King's Bench.

If a person does not take part in a hearing at the branch for an order of possession for non-payment of rent, that person will need to apply for leave to appeal if they want to appeal the branch's order.

This means that if either a landlord or a tenant doesn't take part in the hearing, they have to get "permission", or leave to appeal, from the Residential Tenancies Commission to appeal the order.

If someone wants to apply for leave to appeal, they must take their evidence, showing why they could not take part in the hearing, to the Commission within the appeal deadline, and pay a filing fee. Leave to appeal may be granted if:

- the person can show why they were reasonably unable to take part in the hearing, or
- they can show that the order was based on false or misleading information.

If leave is granted, the person doesn't have to pay another filing fee to appeal the order.

() - Notice of Termination by Landlord for Non-Payment of Rent.

() - Notice of Termination by Landlord for Non-Payment of Rent or d'Tenant Services Charge.

() - Notice of Termination for Non-Payment.

For details on _____, go to _____ in Section 7.

For information on _____, see Section 2.

_____ is in this section.

For information on _____, see section 11.

_____ are covered in Section 11.

For more information on _____, _____ and _____, see Section 12.

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[s. 157, *The Residential Tenancies Act*](#)
[Court of King's Bench Rules](#)
[The Reciprocal Enforcement of Judgments Act](#)

a statement that is written down and sworn to be true. An affidavit is usually made before a notary public or a commissioner of oaths.

a certification of a judgment or Order issued by Court of King's Bench; can be filed in Land Titles as a lien against property.

an Order certified with a seal. The Branch certifies all orders that landlords and tenants can file and enforce in the Court of King's Bench.

an Order of the Court of King's Bench used to seize wages or money from accounts in banks or other financial institutions.

a stamp that certifies an Order.

an Order of the Court of King's Bench telling the sheriff to enter and take possession of a rental unit.

an Order of the Court of King's Bench telling the sheriff to seize belongings to satisfy an Order.

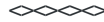
A landlord who wants to enforce an Order or an Order of Possession must file a certified copy of the Order in the Court of King's Bench. When the Branch issues an Order of Possession, it sets a deadline for filing a certified copy of the Order of Possession in the Court.

On an Order of Possession for non-payment of rent, a landlord has *90 days* from the date the Branch orders the tenant to move to file the Order of Possession in the Court.

On an Order of Possession for any other reason, the landlord has *30 days* from the date the Branch orders the tenant to move to file the Order of Possession in the Court.

Once the deadline has passed, the Branch will not certify the Order of Possession. If the landlord still wants the tenant to move, the landlord must reapply for an Order of Possession.

In some cases, the Branch issues an Order for the payment of money along with an Order of Possession. There is no time limit on filing the Order for payment in the Court.

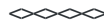


A landlord may file in Court to get:

- Notice of Garnishment;
- a Writ of Possession or Seizure;
- a Certificate of Judgment



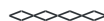
If a landlord their certified Order, they can ask the Branch to replace it. The landlord must complete a form about the missing Order. The Branch then certifies a copy of the Order from its file.



A landlord may file a certified copy of an Order of Possession in the Court of King's Bench:

- after the appeal period is over;
- if the tenant doesn't file an appeal with the Residential Tenancies Commission; and
- if the enforcement deadline date has not passed.

If a tenant files an assignment in bankruptcy after the Branch issues an Order and Order of Possession, the Branch can provide certified copies of both Orders. However, the landlord can only file the certified copy of the Order of Possession in the Court. The landlord should contact the Trustee in Bankruptcy to file a proof of claim for the compensation awarded in the other Order.



In rare cases, the Residential Tenancies Commission may allow an appeal after a landlord or a tenant has filed the Branch's certified Order in the Court of King's Bench. If this happens, the Branch's Order is stayed and can't be enforced. The Branch would notify the Court not to enforce the Order.



A landlord or tenant may enforce an Order against someone who lives outside Manitoba. To do this, they register the certified copy of the Order in Court of King's Bench in Manitoba. They ask for a certificate under *The Reciprocal Enforcement of Judgments Act*. This allows the landlord or tenant to enforce the Order out of province.

When the Branch issues an Order or Order of Possession, an officer certifies the Orders to allow for enforcement in the Court of King's Bench.

-
- ▼ 1. The officer issues an Order and places a seal on the successful party's copy of the Order. When sending the Order to the successful party, the officer also includes information on how to enforce the Order.

Notice of Garnishment.....
Writ of Possession.....
Writ of Seizure and Sale.....

For details on _____, see this section.
For information on _____, see Section 9.
For more details on _____, see Section 11.

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Residential Tenancies Branch

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Section 8	Order of Possession
Sub-Section 8.2	Order of Possession - Application by <u>Cooperative</u>

Legislation

[s. 3\(1\)\(c\), *The Residential Tenancies Act*](#)
[s. 23, *Residential Tenancies Regulation*](#)
[s. 244\(1\),\(2\),\(3\), 280\(2-5\), 280\(8\), 281, 282, *The Cooperatives Act*](#)

Definitions

Appeal tribunal: a panel of 3 or 5 people appointed by the Registrar of Cooperatives to hear an appeal on a notice of termination from a member.

Application for an Order of Possession: an application a cooperative completes asking the Branch to enforce a Notice of Termination and order a member to move.

Hearing: a meeting where an application is decided. The cooperative and the member present information to an officer.

Housing cooperative: a cooperative that provides residential housing to its members.

Mediation: a confidential process that the Branch uses to help people discuss problems, think of possible solutions and reach their own agreement. Mediation can take place in meetings, conference calls or separate telephone conversations.

Member: a person having the right to occupy a housing unit because of a membership interest in a housing cooperative.

Notice of Termination: a written notice, by the directors of a housing cooperative, to terminate membership in the cooperative.

Order of Possession: a written Order, issued by the Branch, that enforces a valid notice of termination. The member must move out of a rental unit on or before a set date.

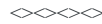
Registrar: the Registrar of Cooperatives

Special resolution: for the purpose of this policy, a special resolution is one passed by the directors of a housing cooperative to end a membership. The cooperative's articles may show the majority needed to pass a special resolution. If there isn't any information in the articles, then a two-thirds majority is required.

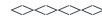
Policy

A cooperative may apply to the Branch for an Order of Possession if a member:

- doesn't move after receiving notice of an unconditional special resolution terminating their membership from the directors of the cooperative and doesn't appeal the notice to the Registrar; or
- doesn't move after an appeal tribunal confirms a notice of termination.

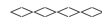


When applying for an Order of Possession, a cooperative must use the application form the Branch provides. The Branch does not accept applications on any other forms.



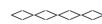
A cooperative may apply for an Order of Possession at the nearest Branch office. The Branch holds hearings in Winnipeg, Brandon and Thompson as well as in other judicial centres in the province. The Branch decides where the hearing will be held. This decision is based on the location of the rental unit and the addresses of the parties involved. The Branch usually schedules a hearing in the judicial centre closest to the rental unit. A cooperative may ask to have their hearing outside of the nearest judicial centre. The Branch will accommodate a request for a different location if it appears fair to both the cooperative and the member.

When a cooperative applies for an Order of Possession, they must pay the Branch a non-refundable filing fee.



When applying for an Order of Possession, a cooperative must give the Branch either:

- a copy of the appeal tribunal decision, if the member appealed to the Registrar; or
- a copy of the notice sent to the member telling them of the meeting on the special resolution and a copy of the unconditional special resolution terminating the membership.



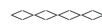
Some cooperatives issue special resolutions stating that a person's membership will be terminated if they don't meet certain conditions. **For example: If the member doesn't pay their outstanding rent by a specific date, their membership will be terminated.** *The Cooperatives Act* does not grant a cooperative a right to terminate a membership conditionally. The Branch will not grant an Order of Possession on a conditional special resolution.



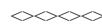
When a cooperative applies for an Order of Possession, the Branch considers whether the cooperative followed the requirements of *The Cooperatives Act* for terminating a membership.

However, the Branch does not have the authority to consider whether the directors had a valid reason or grounds under the cooperative's by-law for issuing the notice of termination.

The Branch also does not have the authority to offer mediation to the cooperative or the member.

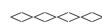


The Branch makes decisions on applications for Orders of Possession at a hearing. After the hearing, the Branch will issue a decision granting or denying the Order of Possession. If the cooperative or member want to appeal the Branch's decision, they may apply to the Court of Appeal for leave. They must file their application for leave within 14 days of receiving the Branch's decision.



The Branch has the authority to award compensation for a breach of *The Residential Tenancies Act*, *The Life Leases Act* or a tenancy agreement.

However, the Branch does not have the authority to order a member to pay compensation to a cooperative.



If a member or a cooperative has any questions about the appeal process under *The Cooperatives Act*, they should contact:

Financial Institutions Regulations Branch
207– 400 St Mary Avenue
Winnipeg, MB R3C 4K5
204-945-4466

Procedure

Overview A cooperative applies for an Order of Possession and the Branch schedules a hearing. Based on the information provided at the hearing, an officer makes a decision and issues an Order.

- Steps ▼
- 1.A cooperative applies for an Order of Possession and pays the filing fee.

2.The Branch schedules a hearing and gives the cooperative a copy of the application for their own records and a copy for the member. The application includes information on the date and time of the hearing. The cooperative must give the member notice of the hearing *at least five days* before the hearing date.

3.If the cooperative can’t give the notice of the hearing to the member, they may apply in writing for substitutional service and/or a new hearing date.

4.An officer follows the steps for hearings. (See [Hearings in Section 11](#)).

5.The hearing officer generally issues a decision *within two working days* of the hearing. Before issuing the decision, the officer may confirm that the member has not filed an appeal with the Registrar. The decision is sent by courier or priority post to the cooperative and the member.

6.If either the cooperative or the member appeals the Branch’s Order, the Order is stayed. This means the Branch’s Order is no longer in effect and cannot be enforced in the Court of King’s Bench.

Forms & Form Letters

[Notice of Appeal](#) Housing Cooperative

..... [Form 19, The Cooperatives Act](#)

X-Referencing

For information on [enforcing an Order of Possession](#), see this section.

For information on [amending an Order](#) see section 11.

For details on [hearings](#), see Section 11.

Policy Developed

March, 2004

Last Revision

February, 2024

Other Resources

None

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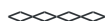
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.....	
.....	
.....	<u>s. 8, 13.1(7), <i>The Condominium Act</i></u> <u>s. 23, <i>Residential Tenancies Regulation</i></u>
.....	Application for an Order of Possession: an application a condominium corporation completes asking the Branch to enforce a Notice of Termination and order a tenant to move.
.....	a meeting where an application is decided. The condominium corporation, landlord/unit owner and tenant present information about their case to an officer.
.....	a confidential process that the Branch uses to encourage and help tenants, landlords and condominium corporations discuss problems, think of possible solutions and reach their own agreement. Mediation can take place in meetings, conference calls or separate telephone conversations.
.....	a written document a mediation officer prepares to outline an agreement between a landlord, tenant and condominium corporation. Mediated agreements are confidential. They are not a matter of public record.
.....	a written notice, by a condominium corporation, to end a tenancy.
.....	Order of Possession: a written Order, issued by the Branch, that enforces a valid notice of termination. The tenant must move out of a rental unit on or before a set date.
.....	a board that hears appeals on decisions or Orders the Branch issues.
.....	: for the purpose of this subsection, a unit owner is a person or company that owns and rents out one or more units in a condominium complex.

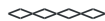
.....

When applying for an Order of Possession, a condominium corporation must use the application form the Branch provides. The Branch does not accept applications on any other forms.



The condominium corporation must include the following information with the Application for an Order of Possession:

- a copy of the Notice of Termination;
- copies of the letters asking the tenant and landlord/unit owner to correct a problem.



A condominium corporation may apply for an Order of Possession at the nearest Branch office. The Branch holds hearings in Winnipeg, Brandon and Thompson as well as in other judicial centres in the province. The Branch decides where the hearing will be held. This decision is based on the location of the rental unit and the addresses of the parties involved. The Branch usually schedules a hearing in the judicial centre closest to the rental unit. A condominium corporation may ask to have their hearing outside of the nearest judicial centre. The Branch will accommodate a request for a different location if it appears fair to all the parties.



When a condominium corporation applies for an Order of Possession, they must pay the Branch a non-refundable filing fee.

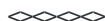


A condominium corporation must give both the tenant and the landlord/unit owner notice of their Application for an Order of Possession.

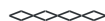


The Branch may issue an Order of Possession because a tenant contravenes or breaches a condominium corporation's declaration, by-laws or rules. This breach or contravention may include:

- failing to repair damage the tenant or their guests cause to the residential complex;
- endangering the safety of others in the residential complex; or
- disturbing other unit owners or occupants of the complex.



The Branch makes decisions on applications for Orders of Possession at a hearing. After the hearing, the Branch may issue an Order of Possession. The Order of Possession tells the tenant to move out of the rental unit by a specific date. The tenant has *seven days* to appeal the Order of Possession to the Residential Tenancies Commission.



The Order of Possession doesn't actually give the condominium corporation possession of the unit. But, it does give the corporation the right to apply to the Court of King's Bench for a Writ of Possession to have the tenant removed.



The Branch has the authority to award compensation for a breach of *The Residential Tenancies Act*, *The Life Leases Act* or a tenancy agreement.

However, the Branch does not have the authority to order a tenant to pay compensation to a condominium corporation for a breach of a corporation's bylaws.

.....

-
- A condominium corporation applies for an Order of Possession and the Branch schedules a hearing. Based on the information provided at the hearing, an officer makes a decision and issues an Order.
-

.....▼1.A condominium corporation applies for an Order of Possession and pays the filing fee.

2.The Branch schedules a hearing and gives the corporation a copy of the application for their records and copies for both the tenant and landlord/unit owner. The application includes information on the date and time of the hearing.

3.The condominium corporation must give the tenant and the landlord/unit owner notice of the hearing *at least five days* before the hearing date. If the condominium corporation can't give the notice of the hearing, they may apply in writing for substitutional service and/or a new hearing date.

4.Before the hearing, a mediation officer may contact the condominium corporation, landlord/unit owner and tenant to see if they can reach an agreement on terminating the tenancy.

5.If mediation is not successful, an officer follows the steps for hearings. ([See Hearings in Section 11.](#))

6.The hearing officer generally issues a decision *within two working days* of the hearing. The decision is sent by courier or priority post to the condominium corporation, the landlord/unit owner and the tenant

If anyone appeals the Branch's Order, the Order is stayed. This means the Branch's Order is no longer in effect and cannot be enforced in the Court of King's Bench.

.....

..... For information on; [see](#)in Section 1.
For details on; go toin Section 7.
For information on; [see](#) this section.
For information on; see section 11.
.....are covered in Section 11.

..... March, 2004

..... February, 2024

..... None

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s. 53, 95(1), 95(2), 95(3), 95(4), 95(5), 96, *The Residential Tenancies Act*

is a written notice by a landlord to end a tenancy. Landlords must use the prescribed form when giving a tenant a notice of termination (the form set out in the Residential Tenancies Regulation).

is a written Order, issued by the Branch, that enforces a Notice of Termination. The tenant must move out of a rental unit on or before a set date.

is money a tenant pays to a landlord before bringing a pet into a rental unit. A pet damage deposit collected between June 30, 2010 and July 31, 2014 can't be more than half of a month's rent. A pet damage deposit collected on or after August 1, 2014 can be up to one month's rent. Existing tenants who have already paid a pet damage deposit cannot be asked to pay the increased amount. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the pet damage deposit for damage or cleaning costs the landlord suffers because of the tenant's pet. Landlords

is money a tenant pays to a landlord before the start of a tenancy. A security deposit can't be more than half of the first month's rent. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the security deposit for unpaid rent, damage, extraordinary cleaning costs or other obligation of the tenant. Many people refer to this money as a damage deposit.

is money a tenant pays to a landlord before entering into a tenancy agreement in a building that provides tenant services. A tenant services security deposit can only be half of one month's tenant services charge. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim a tenant services security deposit for unpaid tenant services charges or other money owed that is related to a tenant service.

is a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied.

A landlord can end a tenancy when a tenant doesn't meet an obligation under the Act or a tenancy agreement. If a landlord has told a tenant that they must pay a security deposit, a pet damage deposit, or a tenant services security deposit and the tenant doesn't pay, or pays with an NSF cheque, the landlord may be able to terminate the tenancy.

If a tenant gives a landlord an NSF cheque before the tenant has taken possession of the unit, the landlord may cancel the tenancy agreement.

If a tenant moves into a unit and gives a landlord an NSF cheque for a security deposit, the landlord can give the tenant a notice of termination to be effective no earlier than five days after the notice is given. If the tenant pays the security deposit and any costs to the landlord within those five days, the notice is cancelled.

If a landlord requires a tenant to pay a pet damage deposit and the tenant doesn't pay the deposit or gives the landlord an NSF cheque for the deposit, the landlord can give the tenant a five-day notice to remove the pet from the rental unit. If the tenant pays the deposit and any costs within the five days, the notice to remove the pet is cancelled.

If the tenant doesn't remove the pet and doesn't pay the deposit and costs, the landlord can give the tenant a notice of termination effective five days from when the notice is given.

If a landlord requires a tenant to pay a tenant services security deposit and the tenant doesn't pay the deposit or gives the landlord an NSF cheque for the deposit, the landlord can give the tenant a five-day notice to move. If the tenant pays the deposit and any costs within the five days, the notice to move is cancelled.

Landlords who charge tenant services security deposits can require a tenant to pay an increase to this deposit if additional people move into the unit. It can't be more than half of the new charge. If the tenant fails to pay the increase, the landlord may give them a five day notice to move. If they pay the increase and any cost within the five days, the notice to move is cancelled.

A landlord can ask the Branch for information on how to end a tenancy, because of non-payment of a deposit. They can also ask the Branch to help them end a tenancy through mediation or by making a decision and issuing an Order.

-
- ▼ 1. The officer encourages the landlord and tenant to share information, and to discuss the problem, to try to come to an agreement.
2. When a landlord or tenant asks the Branch for help with a notice of termination problem, an appropriate officer follows the procedures for:

- mediation
- orders of possession
- hearings

Notice of Termination by Landlord (For cause other than non-payment of rent or tenant services charge)
.....[Form 10/Residential Tenancies Regulation](#)

For more information on _____, see Section 1.
For details on _____, go to Section 2.
_____ are covered in Section 8.
For details on _____, see Section 11.

November, 2011

October, 2014

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Section 7	Notice of Termination
Sub-Section 7.12	Notice by Mobile Home Park Owner For Non-Payment of Municipal License Fees or Municipal Taxes

Legislation [s.1\(1.6\)](#), [95.1](#), [The Residential Tenancies Act](#)

Definitions

Notice of termination: a written notice by a landlord to end a tenancy. Landlords must use the prescribed form when giving a tenant a notice of termination (the form set out in the Residential Tenancies Regulation).

Order of Possession: a written Order, issued by the Branch, that enforces a Notice of Termination. The tenant must move out of a rental unit on or before a set date.

A tenant must pay the municipal licence fees or municipal taxes on the due date.

If a tenant doesn't pay the licence fees or taxes, a landlord is entitled to give notice.

<><><><>

When a landlord gives a notice for non-payment, they can decide how much time they will give the tenant to move. The Act does not set any guidelines on how much time the landlord must give. A landlord may want to consider giving a tenant a reasonable amount of time to pack and move.

A landlord's notice of termination for non-payment of the municipal licence fees or municipal taxes must include all of the following information:

- the address of the rental unit that the notice applies to;
- the reason for giving notice;
- the amount of the unpaid licence fees or taxes;
- the date the tenant is to move out; and
- a statement that the tenant is entitled to disagree with or dispute the landlord's right to give notice.

<><><><>

If a landlord's notice is missing any of the above information, the Branch may not consider it valid and enforceable.

<><><><>

When giving a tenant notice, a landlord must deliver the notice to the tenant in person. The landlord can also hand it to an adult at the rental unit. If there is more than one tenant, the landlord must put all the names on the notice. However, generally the landlord doesn't need to give each tenant their own copy of the notice. If the landlord has difficulty serving the notice to any party, they can contact the Branch for permission to serve the notice in some other way.

<><><><>

A landlord can give notice to move for non-payment of municipal licence fees or taxes during the winter or during the school year.

<><><><>

When a tenancy is ending, the Branch encourages a landlord and tenant to discuss move-out arrangements ahead of time. A tenant doesn't have the right to stay in a rental unit beyond the last day of a notice period. If a tenant needs to stay in a rental unit until the first day of the next rental payment period, they must make special arrangements with the landlord.

<><><><>

If a tenant doesn't move after receiving a notice of termination, a landlord may apply to the Branch for an Order of Possession and file a claim for money that the tenant owes.

Procedure

Overview A landlord can ask the Branch for information on how to end a tenancy because of non-payment of municipal licence fees or taxes. They can also ask the Branch to help them end a tenancy through mediation or by making a decision and issuing an Order.

- Steps ▼
- 1.The officer encourages the landlord and tenant to share information, and to discuss the problem to try to come to an agreement.
 - 2.When a landlord or tenant asks the Branch for help with a notice of termination problem, an appropriate officer follows the procedures for:
 - mediation
 - orders of possession
 - hearings

Forms & Form Letters Notice of Termination by Landlord for Non-Payment (For tenancies of a mobile home, mobile home site or both)
[Form 9/ Residential Tenancies Regulation](#)

X-Referencing For more information on [Mediation](#), see Section 1.
 Orders of Possession are covered in [Section 8](#).
 For details on [Hearings](#), see Section 11.

Policy Developed October, 2004

Last Revision June, 2015

Other Resources None

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Section 7	Notice of Termination
Sub-Section 7.11	Notice by A Tenant — Month-to-Month Tenancy Agreement

Legislation [s. 87\(2\), 88\(1\), 89, *The Residential Tenancies Act*](#)
[s. 19, *The Interpretation Act*](#)

Definitions Month-to-month tenancy agreement: a tenancy agreement for a month at a time with no specific end date.
Notice of termination: a written or oral notice by a tenant to end a tenancy.
Tenancy agreement: a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit.
It can be written, oral or implied.

A tenant may give notice orally, but a landlord may ask a tenant to sign a notice to confirm that they plan to move. If the tenant won't sign the notice, they haven't given proper notice and the tenancy will continue.

<><><><>

A tenant on a month-to-month tenancy agreement, must give the landlord *at least one rental payment period notice* to end a tenancy. The tenant must give the landlord the notice on the last day of the rental payment period to move out on the last day of the following period. For example: If a tenant's rent is due on the first of the month, they have to give notice on or before March 31 to move out on April 30; or, if the tenant's rent is due on the 15th of the month, they have to give notice on or before March 14 to move out on April 14.

<><><><>

In some cases, a tenant may be able to give less than one rental payment period notice. A tenant can give *five days'* notice to move out if their health or safety is at risk. The day on which a notice is served or delivered can't be counted or included in the period of notice. For example: A five-day notice, given to a landlord on Monday, takes effect on Saturday, not Friday.

If the rental unit is in such bad condition that it is impossible for them to continue to live in it, they may be able to move out *immediately*. The Branch recommends that a tenant contact the appropriate inspection agency in these situations. If there's a dispute later over whether the tenant had the right to give a short notice, the inspector can give information on the condition of the unit.

<><><><>

If a tenant terminates a tenancy because a landlord hasn't met their obligations, the tenant may file a claim for compensation against the landlord for their moving expenses. A tenant may claim compensation for:

- renting a vehicle;
- hiring professional movers;
- the cost of transferring utility or service connections;
- the cost of filing a change of address with Canada Post for mail redirection;
- other reasonable expenses; this may include the cost of gas or the cost of buying food for people who help the tenant move.

When awarding compensation, if a tenant moves their own belongings, the Branch may consider:

- the size of the rental unit;
- the amount of furniture the tenant has;
- the distance moved;
- the complexity of the move.

When a tenancy is ending, the Branch encourages a landlord and tenant to discuss move-out arrangements ahead of time. For example: booking an elevator, if necessary; or setting up an appointment to complete a rental unit condition report. A tenant doesn't have the right to stay in a rental unit beyond the last day of a notice period. If a tenant needs to stay in a rental unit until the first day of the next rental payment period, they must make special arrangements with the landlord.

<><><><>

A tenant who, gives notice, but doesn't move or moves late, is responsible to compensate the landlord for any losses they cause. Depending on the circumstances, a tenant may be responsible to pay the landlord compensation for rent or use and occupancy of the rental unit. If the landlord has new tenants and has to find them alternate accommodation, the tenant may be responsible for those expenses too.

Procedure

Overview Either a landlord or tenant can ask the Branch for information on how to end a tenancy. They can also ask the Branch to help them end a tenancy through mediation or by making a decision and issuing an Order.

- Steps ▼
- 1.The officer encourages the landlord and tenant to share information, and to discuss the problem, to try to come to an agreement.
 - 2.When a tenant or landlord asks the Branch for help with a notice of termination problem, an appropriate officer follows the procedures set out for:
 - mediation
 - orders of possession
 - hearings

Forms & Form Letters	Notice of Termination by Tenant Form 7/Residential Tenancies Regulation
X-Referencing	Information on mediation is in Section 1. Orders of Possession are dealt with in Section 8 . Hearings are covered in Section 11.
Policy Developed	September, 1992
Last Revision	June, 2015
Other Resources	None

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s. 86-101, *The Residential Tenancies Act*,
s. 19, *The Interpretation Act*

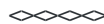
_____ a tenancy agreement for a specific period of time, usually one year.

a written or oral notice by a tenant to end a tenancy.

for the purpose of this subsection, a personal care home is a place where an individual receives nursing, personal assistance or supervision in their daily lives. For example: a hospital in which a tenant receives personal care.

a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied.

A tenant can't generally end a fixed-term tenancy agreement before the end of the term, unless they assign or sublet the rental unit.



There are some special circumstances, which may allow a tenant to give notice before the end of the agreement:

-

If a tenant believes that it would be impossible or unreasonable to live in the rental unit after the landlord withdraws a service, they may be able to move out before the end of their tenancy agreement. The tenant must ask the Branch to decide if they can end their tenancy.

- _____

To increase rent above the annual rent increase guideline, a landlord must apply to the Branch for approval. Sometimes a tenant might have to sign their fixed-term tenancy agreement before the Branch makes a decision on the landlord's application. Even though a tenant must sign the agreement, they still have the right to end their tenancy with notice of two rental payment periods. A tenant may give notice at any time from the date they receive notice that the landlord has applied, or intends to apply, for a rent increase above the guideline to 14 days after they receive the Branch's or the Residential Tenancies Commission's decision on the landlord's application.

-

A landlord who plans to make major improvements to a rental unit or residential complex may apply to the Branch for a temporary exemption from the annual rent increase guideline. When a landlord applies to the Branch, the tenant has the right to end a fixed term tenancy agreement with notice of two rental payment periods. A tenant may give notice at any time from the date they receive notice that the landlord has applied, or intends to apply, for approval of a rehabilitation scheme to 14 days after they receive either the first or final order from the Branch or the Residential Tenancies Commission on the landlord's application.

-

»

If a tenant's income decreases because of illness and they can't afford the rent, they can give *at least one rental*

payment period notice to move out. The tenant must give the landlord a doctor's certificate about the illness with the notice.

If one tenant's income decreases because of illness and the other tenants can't afford the rent, they can give *at least one rental payment period* notice to move out. The tenants must give the landlord a doctor's certificate about the illness with the notice.

•

If a tenant or the spouse of a tenant is posted to a location at least 50 kms away from the rental unit, the tenant can give the landlord a notice of termination.

»If the member gets notice of their change in posting three months or more before the change, they must give the landlord notice of three rental payment periods.

»If the member gets notice of their change in posting less than three months before the change, they can give the landlord notice of one rental payment period.

»The tenant must give the landlord a certificate from an official with the Canadian Forces confirming the change.

•

A tenant may end a tenancy if, because of domestic violence or stalking, they fear for their safety or the safety of their dependent child if the tenancy continues.

»The tenant must give the landlord a notice of termination that is not less than one rental payment period.

»The tenant must also give the landlord a certificate signed by a designated authority confirming there are grounds to terminate the tenancy. The Victim Services Branch of Manitoba Justice is the designated authority.

•

A tenant may end a tenancy if, due to ongoing deterioration or a change in their health (that is somewhat permanent), the rental unit is no longer accessible.

»The tenant may give the landlord a notice of termination that is not less than one rental payment period.

»The tenant must also give the landlord a certificate from a doctor confirming that because of their deteriorating or changing health, the rental unit is no longer accessible.

•

A tenant may end a tenancy if they have been accepted into a personal care home or are no longer able to live independently.

»The tenant may give the landlord a notice of termination that is not less than one rental payment period.

»The tenant must also give the landlord a certificate from a doctor confirming that they can no longer live independently.

If one tenant in a co-tenancy is accepted into a personal care home or can no longer live independently, the tenancy can be ended by giving notice of at least one rental payment period.

• _____

If a tenant dies, the tenant's estate can give *at least one rental payment period* notice to end a tenancy.

If one tenant dies, and the remaining tenant or tenants can't afford the rent, they can give one rental payment period notice to move out.

•

Section 59(1) of the *Act* says that a landlord must provide and maintain the rental unit and residential complex in a state of good repair that complies with health, building and occupancy standards.

If a tenant believes the landlord is not meeting this obligation, they can give notice of *at least one rental payment period* to end their tenancy. However, before a tenant can give notice, they must give the landlord a written demand to perform the obligation within a reasonable period of time. The tenant should keep a copy of the demand for their own records. When asking a landlord to do repairs, a tenant needs to consider how long it should take the landlord to do the work and whether it's possible for the landlord to do it. Some repairs, like roofing, can only be done on a seasonal basis.

If the landlord doesn't do the repairs and the tenant decides to end the tenancy, they should consider contacting the appropriate inspection agency to get support for their complaint about the rental unit or complex.

If the landlord doesn't agree that the tenant had the right to give notice, the landlord may file a claim against the tenant

for any losses they suffer because of the termination of the tenancy. The tenant may need evidence to show that the landlord breached the obligation to maintain the unit or complex.

A tenant doesn't have to give the landlord a written request to correct a problem if they are ending the tenancy because their health or safety is at risk. A tenant can give *five days' notice* to move out if their health is at risk. The day on which a notice is served or delivered can't be counted or included in the period of notice.

If their rental unit is in such bad condition that it is impossible for them to continue to live in it, they may be able to move out *immediately*. The Branch recommends that the tenant contact the appropriate inspection agency in these situations. If there's a dispute later over whether the tenant had the right to give a short notice, the inspector can give information on the condition of the unit.

If a tenant believes that a landlord is not meeting any other obligations under the *Act* or their tenancy agreement, they can give notice of *at least one rental payment period* to end their tenancy. However, before a tenant can give notice, they must give the landlord a written demand to perform the obligation within a reasonable period of time. The tenant should keep a copy of the demand for their own records.

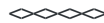
If the landlord doesn't agree that the tenant had the right to give notice, the landlord may file a claim against the tenant for any losses they suffer because of the termination of the tenancy. The tenant may need evidence to show that the landlord breached an obligation under the *Act* or tenancy agreement.

If a tenant terminates a tenancy because a landlord hasn't met their obligations, the tenant may file a claim for compensation against the landlord for their moving expenses. A tenant may claim compensation for:

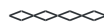
- renting a vehicle;
- hiring professional movers;
- the cost of transferring utility or service connections;
- the cost of filing a change of address with Canada Post for mail redirection;
- other reasonable expenses; this may include the cost of gas or the cost of buying food for people who help the tenant move.

When awarding compensation, if a tenant moves their own belonging, the Branch may consider:

- the size of the rental unit;
- the amount of furniture the tenant has;
- the distance moved;
- the complexity of the move.



A landlord is required to offer the tenant a tenancy agreement renewal *at least three months* before the end of the existing agreement. If a landlord doesn't offer a renewal, a tenant may leave at the end of the existing agreement without notice to the landlord.



A tenant may give notice orally. But a landlord may ask a tenant to sign a notice to confirm that they plan to move. If the tenant won't sign the notice, they haven't given proper notice and the tenancy will continue.



When a tenancy is ending, the Branch encourages a landlord and tenant to discuss move-out arrangements ahead of time.

A tenant doesn't have the right to stay in a rental unit beyond the last day of a notice period. If a tenant needs to stay in a rental unit until the first day of the next rental payment period, they must make special arrangements with the landlord.

Either a landlord or tenant can ask the Branch for information on how to end a tenancy. They can also ask the Branch to help them end a tenancy through mediation or by making a decision and issuing an Order.

- ▼ 1.The officer encourages the landlord and tenant to share information, and to discuss the problem to try to come to an agreement.

2.When a tenant or landlord asks the Branch for help with a notice of termination problem, an appropriate officer follows the procedures for:

- mediation
- orders of possession
- hearings

Notice of Termination by Tenant

.....[Form 7/Residential Tenancies Regulation](#)

For information on _____ is in Section 1.

_____ and _____ are in Section 2.

_____ are dealt with in [Section 8](#).

_____are covered in Section 11.

September, 1992

June, 2015

None

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Section 7	Notice of Termination
Sub-Section 7.9	Notice by Mortgagee

Legislation [s. 1\(1\), 98, 184\(2\), *The Residential Tenancies Act*](#)
[s. 17, *Residential Tenancies Regulation*](#)

Definitions

Fixed-term tenancy: a tenancy agreement for a specific period of time, usually one year.

Landlord: includes a mortgagee who tries under the terms of a mortgage to evict a tenant from a rental unit.

Month-to-month tenancy: a tenancy agreement for a month at a time with no specific end date.

Mortgagee: a person, mortgage company or financial institution that takes a mortgage interest in a property as security for a loan.

Notice of termination: a written notice by a landlord to end a tenancy. Landlords must use the prescribed form when giving a tenant a notice of termination (the form set out in the Residential Tenancies Regulation).

Rental Market Report: a report published by Canada Mortgage and Housing Corporation that outlines the vacancy rates for Manitoba.

School age children: for the purpose of this policy, school age children are children enrolled in kindergarten and up to, and including, Grade 12.

Tenancy agreement: a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied.

Vacancy Rate: The average private apartment vacancy rate for all bedroom types, for Winnipeg CMA (census metropolitan area), Brandon CA (census area), Portage la Prairie CA (census area), City of Steinbach, Thompson CA (census area), and for rural Manitoba, as set out in the most recent fall issue of the Rental Market Report.

When a landlord doesn't make their mortgage payments, a mortgagee may decide to foreclose on the rental unit. In spite of what a mortgage agreement may say, a mortgagee must follow the *Act* when giving a tenant notice to move. This applies even if a mortgagee doesn't collect rent from a tenant.

<><><><>

A mortgagee must honour the terms of any tenancy agreement between a landlord and tenant. A tenancy agreement survives a foreclosure.

<><><><>

This policy applies even though the landlord may have rented the property without the knowledge or consent of the mortgagee.

<><><><>

If a mortgagee sells a rental unit, they can give the tenant notice to move:

- if the purchaser asks them, in writing, to give the tenant notice because the purchaser plans to occupy the rental unit or plans to have one of the following family members move in: spouse, adult children or stepchildren, parents, mother-in-law, father-in-law; and
- once all the conditions for sale are finalized. For example: The purchaser has received their financing.

<><><><>

If there are *no school age children* living in the rental unit and:

- *the tenant is on a month-to-month tenancy*, the mortgagee can end the tenancy by giving notice based on the vacancy rate. If the vacancy rate, as set out by the fall issue of the Rental Market Report, is less than 3%, the tenant must get *at least three months' notice*.
- *the tenants* on a fixed-term tenancy agreement, the mortgagee must give notice that they won't renew the agreement *at least three months before the agreement ends*. For example: If the tenancy agreement ends on September 30, the mortgagee must give the tenant notice on or before June 30.

If there are *school age children* living in the rental unit, the tenant can stay in the unit until the end of the school year as long as the children go to a school that is conveniently accessible to the rental unit. This applies to both month-to-month and fixed-term tenancy agreements.

If a fixed-term tenancy agreement ends during the school year and the mortgagee sells the unit, they can still give notice they won't renew the agreement because the purchaser plans to move in. However, the tenant can stay in the rental unit until the end of the school year, if there are no violations of the tenancy agreement. For example: The tenancy agreement ends March 31 and the mortgagee sells the unit in December. The mortgagee must give the tenant notice by December 31, but the tenant can continue to live in the unit until the end of the school year.

<><><><>

When a mortgagee ends a tenancy because the property or unit is sold, the mortgagee is responsible to pay a tenant's reasonable moving expenses, up to a maximum of \$500.00.

<><><><>

When giving a tenant notice, a mortgagee must deliver the notice to the tenant in person. The mortgagee can also hand it to an adult at the rental unit. If there is more than one tenant, the mortgagee must put all the names on the notice. However, generally the mortgagee doesn't need to give each tenant their own copy of the notice. If the mortgagee has difficulty serving the notice to any party, they can contact the Branch for permission to serve the notice in some other way.

After receiving a notice, a tenant on a fixed-term tenancy agreement may give the mortgagee a *notice of at least one rental payment period*. For example: After the tenant receives notice in December, they find another place for March 1. They can give notice in January to leave at the end of February.

<><><><>

A mortgagee is required to follow the *Act* to end a tenancy. If a tenant receives notice that a mortgagee has applied to the Court of King's Bench for possession of the rental unit, they should contact the Branch or a lawyer immediately.

Procedure

Overview Either a mortgagee or tenant can ask the Branch for information on how to end a tenancy when there is a foreclosure. This policy is included as information for mortgagees, tenants and officers. If a mortgagee and tenant aren't able to solve a problem with ending a tenancy, they can ask the Branch for help.

- Steps ▼
- 1.The officer encourages the mortgagee and the tenant to share information, and to discuss the problem to try to come to an agreement.

2.When a tenant or mortgagee asks the Branch for help with a problem with a notice of termination, an appropriate officer follows the procedures for:

• mediation

• orders of possession

• hearings

Forms & Form Letters

Notice of Termination by Landlord (For landlord's own use)
.....[Form 11A/Residential Tenancies Regulation](#)

X-Referencing

For information on [compensation for moving expenses](#), see this section.
For information on [mediation](#), see Section 1.
Orders of Possession are dealt with in [Section 8](#).
[Hearings](#) are covered in Section 11.

Policy Developed

March, 2004

Last Revision

February, 2024

Other Resources

None

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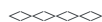
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Section 7	Notice of Termination
Sub-Section 7.8	Notice by a Landlord — Tenant Not Meeting Obligation (Other than Non-Payment of Rent)

Legislation	<u>s. 53, 96, <i>The Residential Tenancies Act</i></u>
Definitions	<u>Fixed-term tenancy:</u> a tenancy agreement for a specific period of time, usually one year. <u>Month-to-month tenancy:</u> a tenancy agreement for a month at a time. <u>Notice of termination:</u> a written notice by a landlord to end a tenancy. Landlords must use the prescribed form when giving a tenant a notice of termination (the form set out in the Residential Tenancies Regulation). <u>Tenancy agreement:</u> a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied. <u>Utility:</u> for the purpose of this subsection, utility includes heat, gas, electricity and water.
Policy	A landlord can end a tenancy when a tenant doesn't meet an obligation under the Act or a tenancy agreement. However, before a landlord can do this, they must first give the tenant a written warning or a chance to correct the problem. For example: A tenant is noisy and disturbs other tenants. The landlord must tell them there's a problem. They must warn the tenant, in writing, that they will give the tenant notice if they receive any more complaints. Or, if the tenant causes damage, the landlord must tell the tenant to repair it. The landlord must allow the tenant a reasonable length of time to do the repair. If the tenant doesn't correct the problem, then the landlord may give <i>notice of at least one rental payment period</i>. A landlord can give notice to end either a fixed-term or month-to-month tenancy. A landlord can give notice during the winter or during the school year. ◇◇◇◇◇ If a tenant breaches a reasonable rule, the landlord may be able to give the tenant notice to move. The landlord must first give the tenant a written warning to comply with the rule. ◇◇◇◇◇ A landlord usually approves or refuses a tenant because of information on the tenancy application. If the landlord approves a tenant and then finds out and can prove that the information on the application is <u>fraudulent</u>, the landlord can end the tenancy. The landlord can give the tenant <i>at least one rental payment period</i> notice to move out. For example: The tenant uses someone else's name and references on their application. The landlord approves the tenant for tenancy. The landlord then finds out the tenant's real name. ◇◇◇◇◇ If a tenant marries, has a child or adopts a child during the term of the agreement, it's considered a <u>natural increase</u> in the tenant's family. If this happens, a landlord can't give the tenant notice to move or ask them to pay more rent. If a tenant brings a <u>foster</u> child to live in a rental unit, it's considered a business arrangement, not a natural increase in the tenant's family. ◇◇◇◇◇ Under a tenancy agreement, a tenant can be responsible for paying one or more of the utility bills. If the <u>tenant doesn't pay</u> the bill, the utility company may shut off service or tell the landlord they plan to shut it off. In some cases, the landlord may learn that the tenant has not paid the utility bill, but there isn't a risk of a shut off yet. In any of these situations, the landlord can give the tenant a deadline to pay the bill. If the tenant still doesn't pay, the landlord can give a notice of <i>at least one rental payment period</i> to end the tenancy. If there's extraordinary damage or a chance of extraordinary damage, because of a utility shut-off, and the landlord wants to give notice, they must give <i>at least five days' notice</i>. For example: If the hydro is shut off in January, the water pipes freeze and burst because the furnace isn't on. Or, if the tenant's gas is shut off in the spring and the tenant doesn't have

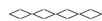
the service restored by "heating season" – late September or early October, there's potential for damage.

In some cases, to prevent or minimize the damage, a landlord should consider putting the utility in their name to maintain or restore the service. If the landlord does this, it doesn't interfere with their right to give notice.



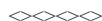
There are some cases where a landlord may give a shorter notice. In these cases, a landlord doesn't have to give the tenant a warning or a chance to correct the problem first. A landlord may give *five days' notice* if a tenant:

- causes extraordinary damage to their unit or a common area;
- risks the health or safety of the landlord or other tenants;
- creates an extraordinary disturbance.



If a landlord gives a tenant a notice to move before the end of a rental payment period, the landlord must return any unused rent to the tenant. **For example: A landlord gives a tenant notice to move on or before May 15 for disturbing other tenants. The tenant moves May 15. The landlord must refund \$263.04 to the tenant (\$500.00 x 12 , 365 = \$16.44 x 16 days remaining in the month = \$263.04).**

If a landlord doesn't return the rent, the tenant may file a claim with the Branch.



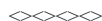
The day on which notice is served or delivered can't be counted or included in the period of notice. **For example: A five-day notice, given to a tenant on a Monday, takes effect on Saturday, not Friday.**



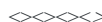
When giving a tenant notice, a landlord must deliver the notice to the tenant in person. The landlord can also hand it to an adult at the rental unit. If there is more than one tenant, the landlord must put all the names on the notice. However, generally the landlord doesn't need to give each tenant their own copy of the notice. If the landlord has difficulty serving the notice to any party, they can contact the Branch for permission to serve the notice in some other way.



When a tenancy is ending, the Branch encourages a landlord and tenant to discuss move-out arrangements ahead of time. **For example: booking an elevator, if necessary; or setting up an appointment to complete a rental unit condition report.** A tenant doesn't have the right to stay in a rental unit beyond the last day of a notice period. If a tenant needs to stay in a rental unit until the first day of the next rental payment period, they must make special arrangements with the landlord.



If a tenant doesn't move after receiving a notice of termination, a landlord may apply to the Branch for an Order of Possession and file a claim for money that the tenant owes. A landlord can't legally change the locks on a rental unit to force a tenant out. If a landlord locks a tenant out, the tenant may ask the Branch for help. The Branch will try to solve the problem through mediation. If mediation is not successful, the Branch may order the landlord to let the tenant back into the rental unit. If the landlord doesn't comply with the Order, the Branch may authorize the tenant to hire a locksmith and deduct the cost from their rent. The Branch may also impose administrative penalties. This may be considered if there is a serious or repeated breach of either the Act or an Order issued by the Branch or the Residential Tenancies Commission.



Procedure

Overview Either a landlord or tenant can ask the Branch for information on how to end a tenancy. They can ask the Branch to help them end a tenancy through mediation or by making a decision and issuing an Order.

Steps ▼ 1. The officer encourages the landlord and tenant to share information, and to discuss the problem, to try to come to an agreement.
2. When a tenant or landlord asks the Branch for help with a notice of termination problem, an appropriate officer follows the procedures for:

- mediation
- orders of possession
- hearings

Forms & Form Letters

Notice of Termination by Landlord (For cause other than non-payment of rent or tenant services charge)
.....[Form 10/ Residential Tenancies Regulation](#)

X-Referencing

For information on [mediation](#), see Section 1.

For details on **late payment of rent**, see [Late Payment Fees](#) in Section 2.

Orders of Possession are dealt with in [Section 8](#).

Hearings are covered in Section 11.

Policy Developed

September, 1992

Last Revision

June, 2015

Other Resources

None

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Manitoba



Section 7	Notice of Termination
Sub-Section 7.4	Notice by a Landlord — Landlord Needs Rental Unit For Own Use

Legislation

 _____ " _____

Definitions

Fixed-term tenancy

Month-to-month tenancy

Notice of termination:

must

Rental Market Report

School age children

Temporary tenancy:

Tenancy agreement:

Vacancy Rate:

Policy

-
- For example: spouse, adult children or stepchildren, parents, mother-in-law, father-in-law;
-
- _____
- For example: The landlord converts the unit to commercial use instead of residential

If vacancy rate is:	Tenant must receive:
---------------------	----------------------

	"

For example: The vacancy rate for Winnipeg is less than 2%. The landlord is required to give 5 months' notice to vacate. If the tenancy agreement ends on June 30, the landlord must give notice on or before January 31.

For example: The vacancy rate is less than 2%. The tenancy agreement ends March 31. In October, the landlord gives the tenant notice that they won't renew the agreement because they plan to move into the unit. The tenant can stay in the unit until the end of the school year, if there are no violations of the tenancy agreement, but the tenancy ends when the school year does.

For example: After the tenant receives notice in October, they find another place for March 1. They can give notice in January to leave at the end of February.

up to a maximum of \$500

For example: booking an elevator, if necessary; or setting up an appointment to complete a rental unit condition report

Procedure

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Section 7	Notice of Termination
Sub-Section 7.6	Notice by a Landlord — For Non-Payment of Rent

Legislation [s.53](#), [95\(1\)](#), [95\(2\)](#), [95.1\(1\)](#) [95.1\(2\)](#), [95.1\(3\)](#), [95.1\(4\)](#), [95.1\(5\)](#), [The Residential Tenancies Act](#)

Definitions

Habitual late payment: rent is paid *after the due date*, without valid or good reason, three or more times during a year or during the term of a fixed-term tenancy agreement.

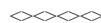
Notice of termination: a written notice by a landlord to end a tenancy. Landlords **must** use the prescribed form when giving a tenant a notice of termination (the form set out in the Residential Tenancies Regulation).

Order of Possession: a written Order, issued by the Branch, that enforces a Notice of Termination. The tenant must move out of a rental unit on or before a set date.

Policy A tenant must pay the full rent on the day it's due.



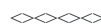
If a tenant doesn't pay their rent, a landlord is entitled to give notice *on the fifth day of a rental payment period*. **For example: The rent is due on May 1st. The tenant doesn't pay the rent. On May 5th, the landlord can give the tenant notice. Or, the rent is due on May 15th. The tenant doesn't pay. On May 19th, the landlord can give the tenant notice.**



When a landlord gives a notice for non-payment, they can decide how much time they will give the tenant to move. The Act does not set any guidelines on how much time the landlord must give. A landlord may want to consider giving a tenant a reasonable amount of time to pack and move. (See [Sample #1](#).)

A landlord's notice of termination for non-payment of rent must be on the prescribed form. The form includes all of the following information:

- the name of the tenant(s);
- the address of the rental unit that the notice applies to;
- the reason for giving notice;
- the amount of unpaid rent;
- the date the tenant is to move out;
- a statement that the tenant is entitled to disagree with or dispute the landlord's right to give notice; and
- a statement that if the tenant pays the total rent and any other amount due, they don't have to move unless the landlord states in writing that they still expect the tenant to go.



If a landlord doesn't use the prescribed form, the Branch may not consider it valid and enforceable.

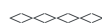


When giving a tenant notice, a landlord must deliver the notice to the tenant in person. The landlord can also hand it to an adult at

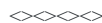
the rental unit. If there is more than one tenant, the landlord must put all the names on the notice. However, generally the landlord doesn't need to give each tenant their own copy of the notice. If the landlord has difficulty serving the notice to any party, they can contact the Branch for permission to serve the notice in some other way.



A landlord can give notice to move for non-payment of rent during the winter or during the school year.

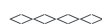


A landlord can't give a tenant a notice to move for non-payment of late fees only. A landlord may file a claim for compensation for unpaid fees.



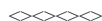
After the landlord gives the notice, the tenant may offer to pay the rent. If the tenant offers to pay, the landlord can:

- take the rent and allow the tenant to stay in the rental unit; or
- take the rent and tell the tenant immediately, in writing, that the landlord still considers the tenancy to be terminated and that the tenant still has to move because they've been habitually late paying their rent. (see [Sample #2](#)). The landlord must give the tenant the written confirmation as soon as practical. If the branch needs to determine if a landlord acted reasonably, it will consider such factors as where, when and how the tenant paid the rent. To enforce this notice, the landlord must be able to show that the tenant was late with their rent at least three times during the previous year or current tenancy agreement.

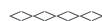


If the tenant doesn't pay the rent or move out of the rental unit by the date in the notice, the landlord can apply for an Order of Possession.

If the tenant pays the rent after receiving notice, but doesn't pay the late fees, the landlord may not be entitled to an Order of Possession, unless the tenant has been habitually late paying the rent. The landlord can file a claim for the unpaid late fees or claim them against the security deposit at the end of the tenancy.



When a tenancy is ending, the Branch encourages a landlord and tenant to discuss move-out arrangements ahead of time. **For example: booking an elevator, if necessary; or setting up an appointment to complete a rental unit condition report.** A tenant doesn't have the right to stay in a rental unit beyond the last day of a notice period. If a tenant needs to stay in a rental unit until the first day of the next rental payment period, they must make special arrangements with the landlord.



If a tenant doesn't move after receiving a notice of termination, a landlord may apply to the Branch for an Order of Possession and file a claim for money that the tenant owes. A landlord can't change the locks on a rental unit to force a tenant out. If a landlord locks a tenant out, the tenant may ask the Branch for help. The Branch will try to solve the problem through mediation. If mediation is not successful, the Branch may order the landlord to let the tenant back into the rental unit. If the landlord doesn't comply with the Order, the Branch may authorize the tenant to hire a locksmith and deduct the cost from their rent. The Branch may also impose administrative penalties. This may be considered if there is a serious or repeated breach of either the Act or an Order.

Procedure

Overview A landlord can ask the Branch for information on how to end a tenancy, because of non-payment of rent. They can also ask the Branch to help them end a tenancy through mediation or by making a decision and issuing an Order.

Steps ▼ 1. The officer encourages the landlord and tenant to share information, and to discuss the problem, to try to come to an agreement.
2. When a landlord or tenant asks the Branch for help with a notice of termination problem, an appropriate officer follows the procedures for:

- mediation
- orders of possession
- hearings

Forms

Notice of Termination for Non-Payment of Rent (For all residential tenancies, other than tenancies that include tenant services or tenancies respecting a mobile home, mobile home site or both)

.....[Form 8/Residential Tenancies Regulation](#)

.....[Form 8.1/Residential Tenancies Regulation](#)

.....[Form 9/Residential Tenancies Regulation](#)

X-Referencing For more information on [Mediation](#), see Section 1.
For details on late payment fees, go to Section 2.
Orders of Possession are covered in [Section 8](#).
For details on [hearings](#), see Section 11.

Policy Developed September, 1992*

Last Revision June, 2015

Other Resources None

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Section 7	Notice of Termination
Sub-Section 7.3	Notice by a Landlord — Compensation for <u>Moving</u> Expenses

Legislation

s. 62, 98, 99, 102, *The Residential Tenancies Act*
s.17, *Residential Tenancies Regulation*

Definitions

Temporary tenancy: when the landlord rents their home as a rental unit for a temporary period, with the understanding that the landlord will require the rental unit for their own use at the end of this time. Or, a landlord of a life lease complex rents a unit to a non-life lease tenant on the understanding that the landlord can give the tenant notice of three rental payment periods.

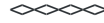
Policy

These policies do not apply to temporary tenancies.

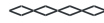
A landlord may end a tenancy if they:

- need a rental unit for their own use; or
- sell the unit and the new owner wants to move in.

When a landlord gives notice for either of these reasons, they are responsible to pay the tenant's reasonable moving expenses, to a maximum of \$500.00.

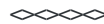


A tenant is entitled to moving expenses even if the tenant gives notice after receiving notice from the landlord. In these situations, the tenant must give notice of at least one rental payment period. **For example: A landlord gives a tenant notice on June 28 asking the tenant to move on September 30. The tenant finds a new unit for September 1 and on July 29 gives the landlord notice for August 31.**



A tenant may claim compensation for:

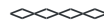
- renting a vehicle;
- hiring professional movers;
- the cost of transferring utility or service connections;
- the cost of filing a change of address with Canada Post for mail re-direction;
- other reasonable expenses; this may include the cost of gas or the cost of buying food for people who help the tenant move.



Whenever possible, a tenant should submit copies of receipts for their expenses to the landlord. If a landlord and tenant can't agree on an amount for moving expenses, either the landlord or tenant can ask the Branch for assistance. The Branch generally requires receipts from the tenant to support the claim for expenses.

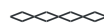
When awarding compensation, if a tenant moves their own belongings, the Branch may consider:

- the size of the rental unit;
- the amount of furniture the tenant has;
- the distance moved;
- the complexity of the move.



If a tenant believes a landlord or purchaser did not act in good faith when giving a notice, the tenant may ask the Branch to award compensation for their additional expenses. **For example: If a tenant pays a higher rent for their new rental unit, they may ask for compensation for the difference in the rent for up to a year.** The Branch may consider whether the new unit is comparable to the old one when awarding compensation for the difference in rent. **For example: If the tenant was renting a one bedroom unit and decides to move to a two bedroom unit, the Branch may not award compensation for the difference in rent. Or, if the tenant decides to move to a complex with additional services included in the rent (i.e. recreation facilities, parking), the Branch may not award compensation for the difference in rent.**

If a tenant alleges that a landlord or purchaser did not act in good faith, the tenant should give the Branch information or evidence to support their claim. This information or evidence may include the name and phone number for a new tenant in the rental unit. **For example: The landlord gives the tenant notice to move because they plan to do extensive renovations. Shortly after moving out, the tenant notices that someone new is living in the unit. The tenant goes to the unit and speaks to the new tenant. They learn that the landlord did not do any renovations before allowing the new tenant to move in.**



Procedure

Overview Either a landlord or tenant can ask the Branch for information on moving expenses. They can also ask the Branch to help them solve a disagreement about moving expenses, through mediation or by making a decision and issuing an Order.

- Steps ▼**
1. When a tenant or landlord asks the Branch for help with a moving expense problem, an officer asks the tenant to provide receipts for their actual expenses or to estimate their moving costs. The officer may also ask the tenant for a copy of the notice they received from the landlord.
 2. The officer sends a letter to the landlord to outline the tenant's request and to ask for the landlord's response.
 3. If the landlord and tenant agree on the moving costs, the officer writes up a mediated agreement.
 4. If the tenant and landlord can't agree, the Branch schedules a hearing to decide the landlord's responsibility for moving costs and/or additional expenses. In the case of additional expenses, if the landlord gave notice at the request of the purchaser, the Branch will also notify the purchaser about the hearing.

Forms

X-Referencing

For information on mediation, see Section 1.
For details on enforcing an Order, see Section 11.
Hearings are covered in Section 11.

Policy Developed March, 2004

Last Revision June, 2015

Other Resources None

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97. The Residential Tenancies Act

a rental unit a landlord provides to a caretaker or resident manager.

_____ : a rental unit an employer/landlord provides to an employee during their employment.

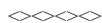
_____ : a written notice by a landlord to end a tenancy. Landlords _____ use the prescribed form when giving a tenant a notice of termination (the form set out in the Residential Tenancies Regulation).

_____ a written Order, issued by the Branch, that enforces a Notice of Termination. The tenant must move out of a rental unit on or before a set date.

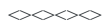
When a landlord terminates a caretaker's or employee's employment, they may give the caretaker or employee notice to move out of the caretaker or employee unit. The landlord must give *notice of at least one rental payment* period and they must give the notice *within three rental payment periods* of ending the employment.

Depending on the agreement between the landlord and the caretaker/ employee, a rental payment period may be less than a month.

The landlord deducts the caretaker's rent from their paycheque every two weeks. To end the tenancy, either the landlord or the caretaker may give two weeks notice.



When a caretaker or employee receives a notice of termination of their tenancy, they may tell the landlord they plan to leave right away. They are not required to stay until the end of the landlord's notice period.

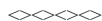


Sometimes a landlord hires an existing tenant as a caretaker or other employee. The caretaker or employee may continue to live in the same rental unit. If so, when the employment ends, the caretaker or employee is entitled to stay in the rental unit. In some cases, the landlord may still ask the Branch to order the former caretaker or employee to move.

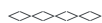


After a caretaker's or employee's employment ends, they are responsible to pay rent if they plan to stay in their rental unit. If there is a tenancy agreement or employment contract, it may show the monthly rent and the due date. If there isn't a tenancy agreement or contract, it may be difficult to decide how much rent the former caretaker or employee must pay or when they must pay it. If the information is not clear, the parties may ask the Branch for assistance. When setting the rent, the Branch may consider:

- the rent for the unit before the start of the employment; and/or
- the rent for comparable units.



The Branch has no authority to deal with unpaid wages or severance pay. If a caretaker or employee has questions about wages, they should contact Manitoba Labour and Immigration .



The Branch has no authority to deal with a claim of wrongful dismissal. If a caretaker or employee feels they were unjustly fired, they should speak with a lawyer.

A landlord, caretaker or employee can ask the Branch for information on how to end a tenancy. They can also ask the Branch to help them end a tenancy through mediation or by making a decision and issuing an Order.

- ▼ 1.The officer encourages the landlord and caretaker or employee to share information, and to discuss the problem, to try to come to an agreement.
- 2.When a landlord, caretaker or employee asks the Branch for help with a notice of termination of tenancy problem, an appropriate officer follows the procedures for:
- mediation
 - orders of possession
 - hearings

Notice of Termination by Landlord (For cause other than non-payment of rent or tenant services charge).
.....Form 10/Residential Tenancies Regulation

For information on _____, see Section 1.
_____ are dealt with in Section 8.
_____ are covered in Section 11.

March, 2004*

May, 2015

None

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s. 56.1(3), *The Residential Tenancies Act*
s. 203, 205, 206, 207, *The Condominium Act*

The registration of a condominium declaration, plan and by-law _____ a condominium corporation (ex: Winnipeg Condominium Corporation No _____).

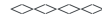
The members of the corporation are the owners of the units. The corporation acts through its board of directors to manage the property for the benefit of the unit owners. Its mandate, duties, capacity and powers are covered in Part 6 of the act.

_____ a written notice by a condominium corporation to end a tenancy.

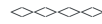
_____ a written Order, issued by the Branch, that enforces a Notice of Termination. The tenant must move out of a rental unit on or before a set date.

_____ : a person or company that owns and rents out one or more units in a condominium complex.

Every condominium corporation has a declaration and bylaws that unit owners must follow. The declaration and bylaws list the rights and responsibilities of the corporation and the unit owners. A tenant who lives in a rental unit that is a condominium must also comply with the declaration and bylaws and any rules. When a tenant moves in, a unit owner/landlord must give them a copy of each provision of the declaration with which the tenant must comply and a copy of the bylaws and rules.

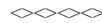


If a tenant doesn't meet the obligations under the declaration, bylaws or rules, a condominium corporation can end the tenancy. However, before the corporation can do this, they must first give the tenant a written warning or a chance to correct the problem. The corporation must also give the unit owner a copy of the warning and reasonable time to correct the problem.



When the unit owner receives a copy of a warning from the condominium corporation that their tenant is breaching the bylaws, they may decide to deal with the tenant on their own. A unit owner may follow the policies in

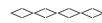
If the tenant or unit owner doesn't correct the problem, then the condominium corporation may give *notice of termination of not less than one rental payment period*.



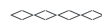
In some cases, a condominium corporation may give a *five-day notice*. The condominium corporation may give the shorter notice if a tenant or a guest of the tenant:

- causes extraordinary damage;
- risks the health and safety of other people in the condominium complex;
- unreasonably disturbs other people in the condominium complex.

Whenever possible, the condominium corporation should still give the tenant and unit owner a warning before giving a *five-day notice*.



If a unit owner fails to pay their common element fees, a condominium corporation does not have the right to give a tenant notice to move. The corporation can use collection procedures set out in the complex's declaration or bylaws, which might include garnishing a tenant's rent to satisfy the unpaid fees.



When giving a tenant notice, a condominium corporation must deliver the notice to the tenant in person. The corporation can also hand it to an adult at the rental unit. The corporation must also hand the notice to the unit owner or an agent of the owner. If the corporation has difficulty serving the notice to any party, they can contact the Branch for permission to serve the notice in some other way.



The day on which notice is served or delivered can't be counted or included in the period of notice.

Either a condominium corporation, unit owner or tenant can ask the Branch for information on how to end a tenancy. They can ask the Branch to help them end a tenancy through mediation or by making a decision and issuing an Order.

-
- ▼ 1. The officer encourages the condominium corporation, unit owner and tenant to share information, and to discuss the problem, to try to come to an agreement.
2. When a condominium corporation, unit owner or tenant asks the Branch for help with a notice of termination problem, an appropriate officer follows the procedures for:
- mediation
 - orders of possession
 - hearings

Notice of Termination by Landlord (For cause other than non-payment of rent or tenant services charge)
.....[Form 10/Residential Tenancies Regulation](#)

For information on
The Condominium Act and Information, _____
_____, see Section 1.
_____ are dealt with in Section 8.

March, 2004

June, 2015

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Section 6	Abandonment
Sub-Section 6.2	Personal Property

s. 63, 76.1, 106 – 108, The Residential Tenancies Act

Legislation

Definitions

Abandoned goods: personal items left behind by a tenant who moves out of a rental unit. Goods are "abandoned" if the landlord didn't agree to store them for the tenant.

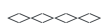
Monetary value: for the purpose of this subsection, an item has monetary value if a landlord can make enough money selling it to cover the cost of packing, moving and storing it.

Order of Possession: a written Order, issued by the Branch, that enforces a notice of termination. The tenant must move out of a rental unit on or before a set date.

Writ of Possession: an Order of the Court of King's Bench telling the sheriff to enter and take possession of a rental unit.

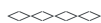
Policy

At the end of a tenancy, a tenant must remove all their property from the rental unit unless they have arranged with the landlord to store it.



Occasionally, when a tenant moves, they leave or abandon some or all of their belongings in the rental unit. This may also happen when the Sheriff's Office evicts the tenant on a Writ of Possession.

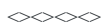
When the Sheriff's Office enforces a Writ of Possession, they are only required to remove the tenant, the tenant's family and any pets. If the tenant does not remove their belongings when the Sheriff's Officer evicts them, the landlord can consider the items abandoned.



If the landlord believes the items have no monetary value, or are unsanitary or unsafe to store, the landlord may dispose of them, without authorization from the Branch, with one exception. If a tenant leaves personal papers or photographs, the landlord must hold them for 60 days before disposing of them. The landlord must also complete a form called Inventory of Tenant's Abandoned Property and send it to the Branch and the tenant. The Branch provides the form.

Note: A landlord does not have to comply with these requirements before disposing of property that is of limited value (not worth the cost of removal, storage and sale). Landlords may give these items to a charitable or other non-profit organization, or dispose of them.

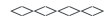
If the landlord decides the items left behind have monetary value, the landlord must complete the inventory form and send it to the Branch and the tenant. The landlord must store the items for 60 days. After that time, the Branch will authorize the landlord to sell the items, usually by public auction.



In some cases, the Branch may allow items to be sold other than by public auction. The Branch may set specific conditions for the sale. **For example: The landlord must:**

- give the Branch a list of the proposed selling prices for each item;
- advertise the items in a local paper showing the proposed selling prices;
- give the Branch copies of receipts for each item sold, showing the buyer's name, address and phone number, description of the item sold, and the price paid;

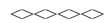
- give any unsold items to charity and provide the Branch with a receipt from the charity;
- throw away any unsold property the charity does not want.



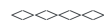
The landlord can deduct costs for packing, moving, storing and selling the items from the money collected from the sale. If the tenant owes the landlord money under a Branch order, the landlord can put the sale proceeds towards that order. If the landlord does not have an order or the tenant does not owe the landlord any money, the landlord must send the sale proceeds to the Branch. The Branch holds the money for the tenant for two years. After two years, the money is transferred to a fund the Branch uses to provide education material for landlords and tenants.

A landlord can't hold a tenant's belongings for unpaid rent or damages. If a landlord refuses to give a tenant their possessions, the tenant may ask the Branch for help. The Branch will try to solve the problem through mediation. If mediation is not successful, the Branch has the authority to order the landlord to release the belongings. If the landlord doesn't comply with the Order:

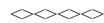
- the tenant may file a claim for compensation (for the cost of replacing their belongings); and
- the Branch may ask Manitoba Justice to consider prosecuting the landlord for breach of the Order.



If a tenant returns to claim their belongings during the *60 day period*, they must pay the landlord's reasonable costs for packing, moving and storage. If a tenant and a landlord can't agree on the cost of packing, moving and storage, they can ask the Branch to determine what amount is reasonable. Once the tenant pays this bill, the landlord must return the items.



A third party, like a rental company, may claim that some of the abandoned items belong to them. Before releasing the items, the landlord should ask for proof of ownership. The landlord may also want the third party to give them something in writing to protect them, in case the tenant returns and doesn't agree with the third party's claim of ownership.



If a landlord agrees to store a tenant's personal property at the end of a tenancy, the landlord and tenant should write up an agreement. The agreement should show:

- the items the landlord agreed to store;
- how much the tenant will pay for storage;
- when they'll pick up their belongings; and
- what the landlord can do with the items if the tenant doesn't pay for storage or pick up the goods.

When a landlord and tenant make an agreement for storage, the Branch considers it to be an arrangement outside the tenancy. The Branch doesn't have the authority to deal with any problems that might come up after the agreement is signed.

If the landlord and tenant don't have a written agreement about storing belongings, the landlord should follow the usual steps. Otherwise, the landlord may not be protected if the tenant files a claim for compensation for their belongings.

The Branch doesn't have any authority to deal with belongings left behind by a member of a housing cooperative.

Procedure

Overview A landlord sends a list of abandoned goods to the Branch. If the landlord indicates the items are of limited monetary value, the officer confirms that the landlord may dispose of the items. If the landlord states that the items have monetary value, the officer advises the landlord about the storage and sale of the belongings.

- Steps ▼**
- 1.The landlord sends in a list of belongings left behind by a tenant. The officer looks over the information. If the landlord indicates the items are of limited monetary value, the officer sends the landlord a letter to confirm that the landlord may dispose of the items.
 - 2.If the landlord advises that the items are worth more than the cost of packing, moving, storing and selling, the officer advises the landlord to store the items for 60 days.
 - 3.At the end of the 60 days, if the tenant has not picked up the belongings, the officer authorizes the landlord to sell the items.
 - 4.After the sale, the landlord must complete a form to show the results of the sale. The Branch provides this form.

The landlord may keep enough money from the sale proceeds to:

- pay for the reasonable cost of packing, moving, storing and selling the items; and
- cover any money the tenant owes to the landlord because of an Order for Compensation.

The landlord must send the completed form and any leftover money to the Branch.

5.The officer reviews the sale accounting. If there is leftover money, the officer deposits it into a trust account. The Branch holds the money for the tenant for two years. If the tenant contacts the Branch during the two years, the Branch gives the money to the tenant. After two years, the money is deposited in the Security Deposit Compensation Fund.

Forms & Form Letters

Inventory of Tenant's Abandoned Property
.....[Form 12/Residential Tenancies Regulation](#)

Accounting of Sale of Abandoned Property
.....[Form 13/Residential Tenancies Regulation](#)

X-Referencing

For information on [Mediation](#), see Section 1.
For general information on [Abandonments](#), see this section.

Policy Developed

September, 1992

Last Revision

February, 2024

Other Resources

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Section 6 Abandonment

Sub-Section 6.1 General Information

Legislation [s. 1\(3\), 106, *The Residential Tenancies Act*](#)

Definitions Abandonment: an abandonment is when a tenant:

- leaves the rental unit, without proper notice, and tells the landlord that they don't plan to come back; or
- isn't living in the rental unit and hasn't told the landlord they're going to live there again; the tenant's rent has also run out.

If a landlord believes a tenant may have abandoned a rental unit, the landlord should post a notice to the tenant on the door of the rental unit, saying that:

- the landlord believes that the tenant has abandoned the unit and the landlord plans to enter the unit to deal with the tenant's belongings; the Branch can provide a sample copy of this kind of notice; or
- the landlord plans to enter the unit to inspect.

In some cases, a tenant who rents a mobile home lot may abandon their mobile home and its contents. If a landlord believes that the tenant has abandoned, they should post a notice on the door of the mobile home. The landlord may change the wording on the notice to fit their situation.

When a landlord posts either notice, they must give the tenant *at least 24 hours* to contact them.

<><><><>

If the rental unit is unlocked or not secure when the landlord posts the notice, the landlord should make it secure. The landlord should leave a notice on the door, telling the tenant who to call for a key. The landlord must give the tenant a key if the tenant responds to the notice.

<><><><>

When a landlord enters a rental unit, the landlord should look for confirmation that the tenant has abandoned. The landlord may want to check to see:

- if the tenant's clothing and personal toiletries are still in the unit;
- if the mail and newspapers or flyers are piling up; and
- what's left in the fridge; in particular, the landlord can look at the expiry dates on any dairy products.

<><><><>

If the tenant doesn't respond to the posted notice and the landlord believes the tenant has abandoned, the landlord can take the rental unit back into their possession and change the locks.

<><><><>

If a landlord has a tenancy application for the tenant, they should call the tenant's relatives or employer to see if they know where the tenant is. The landlord should also check with neighbours to see if they've seen the tenant at the rental unit.

<><><><>

While a landlord may call the Branch for information on abandonment procedures, it's up to the landlord to decide if the tenant has really abandoned the unit. If there's a dispute about the landlord declaring the unit abandoned, the Branch will decide if the landlord acted in good faith.

<><><><>

If a tenant leaves pets in the rental unit, the landlord should contact the Humane Society for information or assistance.

Procedure

Overview This policy is included as information for landlords, tenants and officers. If a landlord has questions about an abandonment problem, they can ask the Branch for information.

Steps ▼ 1.If a landlord contacts the Branch because they believe the tenant has abandoned the rental unit, an officer may give the landlord information about:

- posting a notice on the door of the rental unit;
- looking for signs to confirm that the tenant has abandoned; and
- what to do with the tenant's belongings if the landlord declares the rental unit abandoned.

2.The officer may write down the details of the conversation with the landlord so that the information is on record with the Branch.

X-Referencing For information on what to do with a tenant's abandoned belongings , see [Personal Property](#) in this section.

Policy Developed March, 2004

Last Revision

Other Resources None

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Section 5	Utilities
Sub-Section 5.1	Landlord's Non-payment of Utilities

Legislation

[s. 60, 61, 154\(1\), 154\(2\)4, 179.1, *The Residential Tenancies Act*](#)
[s. 25\(2\), Residential Tenancies Regulation](#)

Definitions

Mortgagee: a person, mortgage company or financial institution that takes a mortgage interest in a property as security for a loan.

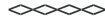
Order to redirect rent: when the Branch orders tenants to pay their rent to the Branch, instead of to their landlord; when the tenant receives an Order and pays the Branch, rent is considered paid.

Utility company: the agency that provides the [utility service](#). For example: Manitoba Hydro-Natural Gas, Manitoba Hydro-Electricity and City of Winnipeg Water.

Utility: heat, [gas](#), electricity, [water](#); it does not include cable TV.

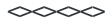
Policy

If a utility service is included in the tenant's rent, the Branch tries to make sure the services stay on, even if the landlord hasn't paid the utility bills.



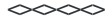
A utility company must notify the Branch before they disconnect utility service to any residential rental complex in which one or more rental units are occupied. If the Branch believes that the landlord is responsible to provide the utility service, the Branch orders the landlord to pay the bill or make arrangements with the utility.

The Branch will usually tell the utility company to keep the service on or if it's already turned off, to reconnect it.

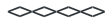


If a landlord doesn't pay the bill or make satisfactory arrangements with the utility company, the Branch redirects rents to pay the utility bills for a residential complex. The amount of rent redirected each month is usually about half the total potential rent for the complex. The Branch may re-direct more rent if the arrears are high.

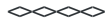
The Branch redirects rent until the utility bill is paid in full, or until the landlord makes arrangements with the utility company to keep the service on.



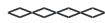
The Branch uses the rent to pay the past-due part of the account first. In some cases, there may be more than one utility account in arrears. **For example: The landlord may not have paid either the gas or the hydro bill.** When more than one utility is involved, the Branch divides the rent between the utilities, depending on the amounts owed. **For example: The total owing is \$1,500.00; the gas bill is \$1,000.00 (2/3 of the total) and the hydro bill is \$500.00 (1/3). If the Branch has \$1,000.00 to pay the bills, the gas company would get two-thirds, or \$666.66 and hydro would get one-third, or \$333.33.**



In some cases, the outstanding utility bills are so high that it's not practical for the Branch to try to collect rents and pay the bill. When this happens, the Branch sends an Order to the utility company telling them to disconnect service. The Branch sends the tenants and the health authorities a copy of the Order. If the service gets disconnected, the tenants will probably have to move.



For some accounts, the utility company may demand that a landlord pay a security deposit to protect the utility company from future non-payment. The Branch may use the rent it collects to pay the deposit.



In some tenancies, the tenant is responsible for paying for the utility service. If the service is shut off because the tenant doesn't pay the bill, the Branch doesn't get involved in trying to restore service. If this happens, the landlord can tell the tenant, in writing, to pay the bill. If the tenant doesn't pay the bill, the landlord can give the tenant notice to move out. If the unpaid bill creates a loss to the landlord, the landlord may also file a claim for compensation. If the landlord asks the Branch for assistance, the Branch will contact the tenant to explain their responsibilities and the landlord's right to end the tenancy.

Procedure

Overview If a landlord doesn't pay a utility bill, the officer tries to get the landlord or mortgagee to make payment arrangements with the utility company. If this isn't successful, tenants are ordered to pay rent to the Branch. The Branch then pays the utility company. The officer redirects rent until the utility bill is paid.

- Steps ▼**
1. A tenant or a utility company notifies the Branch that utility service to a rental unit or residential complex will be disconnected. The officer finds out what other utilities the landlord supplies as part of the tenancy agreement. The officer checks with the other utility companies to see if the service is scheduled for disconnect.
 2. The officer issues an order to the landlord to make arrangements with the utility company/companies, by a specified date, to make sure the service stays on. The officer may also advise the landlord that rent will be redirected if the landlord fails to make arrangements.
- The officer may also order the utility company to continue to supply the utility.
3. If the landlord makes arrangements, the utility company lets the officer know. The officer closes the file.
 4. If the landlord appeals the order, the officer doesn't do anything more on the file until the Residential Tenancies Commission makes a decision. If the landlord appeals, the officer attends the appeal hearing to provide information on the Branch's file and ask the Commission to confirm the Branch's Order. The officer can't redirect rent unless the appeal is decided. The Branch enforces orders issued by the Residential Tenancies Commission or the Court of Appeal.
 5. If the landlord doesn't make arrangements or appeal the Order, the officer may do a title search on the residential complex to confirm ownership.
 6. If, at any time throughout the process, it is not practical for the Branch to try to collect rents and pay the bill, the officer may issue an Order allowing the utility company to disconnect service as of a certain date. The officer sends a copy of the Order to the utility company and the landlord and tenants.
 7. If the officer learns that a mortgagee is attorning rents to pay the mortgage, the officer contacts the mortgagee. The mortgagee often agrees to make arrangements for paying the utility bills. Once the utility company confirms that service is guaranteed to the tenants, the officer closes the file.
 8. If the landlord or the mortgagee doesn't make arrangements with the utility company, the officer must get a list of the tenants living in the building. If necessary, the officer may go to the building to get the names of the tenants.
 9. The officer then issues an Order to some of the tenants of the residential complex to pay rent to the Branch. The landlord receives a copy of the order.
 10. By the second week of each month, the officer sends the landlord a statement to show which rents the Branch received.
- The officer sends follow-up letters to tenants who didn't pay their rent to the Branch.
11. If the Branch doesn't receive any rents, the officer visits the building.
- If the officer finds a tenant(s) living in the building, they'll ask the tenant why they haven't paid their rent to the Branch. The officer will tell the tenant that if they don't pay the rent, the Branch can't pay the utility bills to keep the service on. If the Branch still doesn't get a tenant's rent, they may allow the utility company to disconnect.
- If the officer finds out that no one is living in the building, the officer tells the utility company they can disconnect service. If the utility company finds a tenant living in the building when they go to disconnect the service, they must notify the Branch.
12. The Branch charges the landlord a monthly administration fee when rent is redirected. The rent collected is applied to the monthly administration fee first and then to past due portions of the bills. If there isn't enough money to pay the bills in full, the money is divided according to how much is owed on each bill. (see example in Policy box) The Branch doesn't pay out rent until after the appeal period.
 13. When the utility company advises the officer that the utility service is no longer scheduled for disconnect, the officer cancels the Order to Redirect Rent. The officer notifies the tenants, landlord and/or mortgagee. The officer returns any unused rent money to the landlord and closes the file.

Policy Developed September, 1992*

Last Revision February 27 2023

Other Resources None

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s. 59(1), 72(1), The Residential Tenancies Act
-

..... the portion of wiring between a grounding protection device or a Network Interface Device and a telephone jack; the landlord or building owner owns the inside wiring and is responsible to maintain it.

Tenancy agreement: a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied.
-

It's customary for a landlord to provide inside wiring and a jack or outlet for one telephone.

◇◇◇◇◇

A landlord is responsible for repairing the jack and the inside wiring, unless the tenant damages the equipment.

◇◇◇◇◇

If a tenant has problems with the jack or the wiring, they should tell the landlord.

◇◇◇◇◇

If a tenant wants to install a jack, they must get the landlord's written permission. If the landlord allows the installation, the tenant must arrange for it and pay the cost.

◇◇◇◇◇

Problems with the telephone, and the cord to the jack, are the tenant's responsibility.
-

..... This policy is included as information for landlords, tenants and officers. If a tenant and landlord aren't able to solve a problem with telephones or telephone jacks on their own, they can ask the Branch for help.
- ▼

1.The officer encourages the landlord and tenant to share information, and to discuss the problem, to try to come to an agreement.

2.If the landlord and tenant can't agree on a request involving a jack or inside wiring, the officer determines if the request is reasonable. If the officer decides the request is not reasonable, the officer issues a decision denying the request.

3.If the officer decides the request is reasonable, the officer follows the procedures under Landlord's Responsibility for Repairs.
-
-

For procedures on, see Section 1.

..... September, 1992

..... July, 2023

..... None

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s. 59, 72(1), 74, The Residential Tenancies Act

Manitoba Fire Code

City of Winnipeg Bylaw No. 150/2004 cited as The Winnipeg Fire Prevention Bylaw

City of Brandon Building Safety and Property Standards Bylaw

Local Fire prevention bylaws

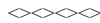
_____: a written order or notice issued under an Act or bylaw, relating to health, building, maintenance or occupancy standards, where:

- an appeal was not successful;
- the time allowed for appeal is over; or
- no appeal is allowed.

for the purpose of this subsection, fire safety equipment includes fire alarms, fire escapes, fire hoses, fire extinguishers and heat detectors.

a device that's able to sense smoke or fire and, makes a noise to warn or awaken people.

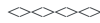
Landlords must install and keep smoke alarms in rental units in good working condition. Landlord must also keep fire safety equipment in good working order.



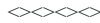
Many cities and municipalities in Manitoba have a Fire Prevention Bylaw.

The City of Winnipeg Fire Prevention Bylaw states that a landlord must:

- have a hard-wired 120 volt AC powered or an approved 10 year lithium-powered smoke alarm in the proper location in a rental unit;
- make sure the smoke alarm is always working;
- test and clean the smoke alarm at least once a year to make sure it's working properly;
- re-test the smoke alarm whenever a new tenant moves in;
- show a tenant how to use and test the alarm;
- give the tenant phone numbers to call if the smoke alarm isn't working properly;
- report any tenant who tampers with a smoke alarm to The City of Winnipeg Fire Prevention Branch.



A landlord can have a house rule that requires a tenant to test the smoke alarm periodically and to let the landlord know immediately if there is a problem with the alarm. If a landlord has such a rule, they may want to have the tenant sign a form to confirm that the landlord has shown them how to test the smoke alarm. The form could also say that the tenant understands that they must contact the landlord immediately if the smoke alarm is not working. For their own safety and the safety of others, a tenant must tell the landlord when a smoke alarm needs to be repaired or replaced.



A tenant must not tamper with a smoke alarm. A tenant who interferes with the operation of a smoke alarm is putting other tenants at risk. A landlord can give a tenant who does this a written warning and a notice to move out. If the situation creates an immediate risk to tenants' health and safety, the landlord could give the tenant as little as five days' notice to move out, without a warning. In the City of Winnipeg, a tenant may also be charged under the Fire Prevention Bylaw. The tenant may be fined up to \$1,000.00 and/or be sent to jail for up to six months.

Tenants should first discuss smoke alarm or fire safety equipment problems with their landlord. If they can't get their problem solved immediately, they should contact the Branch. An officer will discuss it with the landlord. If necessary, an officer orders a landlord to repair or replace a smoke alarm. A tenant or officer may also call the local fire prevention authorities about alarm systems that don't seem to be working. The Branch can also enforce Final Orders from the City of Winnipeg, Province or local municipality.

- ▼ 1.If a tenant calls the Branch because there are no smoke alarms or the alarms are not working, or if a tenant lists it as part of a "Tenant's Request for Repairs" form, the officer will get in touch with the landlord to discuss the situation. The landlord will be asked to fix or install a smoke alarm, to protect the safety of tenants and the property. If the landlord disagrees with the tenant's complaint or refuses to fix or install an alarm, the officer may go out and inspect the alarm.

- 2.The officer may also refer concerns or questions about smoke alarms or fire prevention to:

Fire Prevention Branch

311

See city/town listings in the
provincial telephone directory.

The Local Fire Chief is a representative
of the Office of the Fire Commissioner.

- 3.If the replacement or repair is not done properly and quickly, the officer may issue an "Order" to the landlord to do the work immediately.

The Branch may also enforce a "Final Order" from the City of Winnipeg, Provincial or Municipal Fire Department.

- 4.The officer then follows the procedures under Landlord's Responsibility for Repairs.

September, 1992*

July, 2023

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Section 4	Maintenance & Repairs
Sub-Section 4.8	Septic, Water and Oil Tanks

Legislation	s. 59(1), <i>The Residential Tenancies Act</i> The Public Health Act Local Maintenance and Occupancy Bylaws
Definitions	Tenancy agreement: a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied.
Policy	If the tenancy agreement doesn't state who is responsible for emptying a septic tank or field or filling a water or oil tank, the Branch uses the following guidelines: A tenant is responsible for: - emptying a septic tank that has no field; - leaving water, oil and septic tanks in the same condition as at the start of the tenancy. For example: If the water tank was full when the tenant moved in, they should fill it before they move out. <><><><> A landlord is responsible for: - emptying a septic tank with a field because it's part of a larger, more complex water and plumbing system; - winterizing the field; For example: with a snow fence or straw bales . - removing the material used for the winterizing.

Procedure

Overview	This policy is included as information for landlords, tenants and officers. If a tenant and landlord aren't able to solve a problem with septic, water or oil tanks on their own, they can ask the Branch for help.
----------	---

- Steps ▼
- 1.The officer encourages the tenant and landlord to share information, and to discuss the problem, to try to come to an agreement.
 - 2.If the landlord and tenant can't agree on a request involving a septic, water or oil tank, the officer determines if the request is reasonable. If the officer decides the request is not reasonable, the officer issues a decision denying the request.
 - 3.If the officer decides the request is reasonable, the officer follows the procedures under Landlord's Responsibility for Repairs.

Forms & Form Letters

X-Referencing For information on [mediation](#), see Section 1.

Policy Developed September, 1992

Last Revision July, 2023

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.....	<i>s. 59, The Residential Tenancies Act</i> The City of Winnipeg Neighbourhood Liveability By-law No. 1/2008 <i>s. 20, The Public Health Act</i>
.....	 for the purpose of this subsection, pests include <u>insects</u> like <u>cockroaches</u> or bed <u>bugs</u> and rodents like <u>mice</u> or <u>rats</u> .

.....

Pest control requirements fall under municipal bylaws or *The Public Health Act*. These requirements may vary from one municipality to another.

A landlord is generally responsible to:

- investigate complaints about pests in a rental unit or residential complex;
- get rid of the pests using commonly accepted methods; and ...
- make any repairs necessary to prevent pests from getting into the unit or complex. **For example: fixing holes in a foundation**

A tenant is generally responsible to:

- keep the rental unit reasonably clean and uncluttered to try to prevent pests from entering the unit and multiplying;
- tell the landlord about a pest problem so the landlord can deal with the problem before it spreads to other units;
- allow the landlord, or someone hired by the landlord, to enter the unit to exterminate, or get rid, of the pests;
- follow the landlord's or exterminator's instructions on preparing for the extermination so the treatment can be as effective as possible; a tenant may have to empty closets or kitchen cupboards or move furniture.



If a tenant is not able to do the work needed before the extermination, they should speak to their landlord. The landlord may need to help the tenant move their belongings. If the tenant and landlord can't resolve the problem, they may ask the Branch for assistance.



If a tenant is concerned about any health risks because of spraying, they should discuss their concerns with the landlord. It may be necessary for the tenant to find another place to stay while the spraying is happening. If the tenant and landlord can't resolve the problem, they may ask the Branch for assistance.



To get rid of insects, a landlord may need to spray an entire floor in a residential complex or possibly the whole complex. If a tenant doesn't co-operate by allowing the landlord to enter their unit, the treatment may not be effective. If the landlord doesn't spray one unit, the insects in that unit won't be killed. These insects may eventually re-infest the rest of the floor or building once the effects of the spray wear off. If a landlord has to re-spray, the landlord may choose to file a claim against the tenant for the cost of the second extermination.



The Branch or the tenant may also decide to contact the municipal health authority to help resolve a pest problem.

.....

- This policy is included as information for landlords, tenants and officers. If a landlord and tenant aren't able to solve a pest problem on their own, they can ask the Branch for help.

- ▼ 1. The officer encourages the tenant and landlord to share information, and to discuss the problem, to try to come to an agreement.
2. If the landlord and tenant can't agree, the officer may:

- refer the landlord or tenant to their local Environmental Health Office; or
- issue an Order allowing the landlord to enter the unit to exterminate the pests.

.....

.....

For details on see Section 1.

For information about , see
..... in Section 3.

- March, 2004
- May, 2015
- None

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Section	Maintenance Repairs
Sub Section	Outdoor Maintenance i e Grass Snow Gardens
Legislation	s. 7, 11, 59, 114(2) The Residential Tenancies Act City of Winnipeg Neighbourhood Liveability By-law No. 1/2008 City of Brandon Building Safety and Property Standards Bylaw
Definitions	Routine yard maintenance includes cutting <u>grass</u>, shovelling snow, weeding flowerbeds and gardens, trimming shrubs and controlling <u>weeds</u> in uncultivated areas. Tenancy agreement a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied.
Policy	A tenant who lives in a single-family dwelling is responsible for routine <u>yard maintenance</u>. <><><><> A tenant living in a townhouse, duplex or triplex, who has exclusive use of the yard or part of the yard, is generally responsible for routine yard maintenance for that part of the yard. A landlord and tenant may agree to other arrangements under the terms of the tenancy agreement. <><><><> A tenant of a mobile home site is responsible to keep the site neat and clean. <><><><> If there is no existing <u>garden</u>, the tenant must get the landlord's permission before digging a garden. <><><><> A tenant is not responsible for major projects, such as <u>tree</u> cutting. A tenant may be responsible for <u>spraying trees</u> for insects and treating lawns for <u>bugs</u> and weeds if the tenancy agreement covers it. If the tenancy agreement doesn't cover it, the landlord is responsible. <><><><> A landlord is responsible for routine yard maintenance in the common areas of multi-unit residential complexes. <><><><> A landlord is responsible to clear <u>snow</u> from the sidewalks and stairs in a multi-unit residential complex, except in areas where tenants have exclusive use of the area. <><><><> A landlord is responsible for clearing snow in multi-unit complexes, when necessary, to give tenants access to their parking stalls. The landlord doesn't have to remove snow from individual parking stalls, unless the tenant and landlord have agreed that the landlord will provide this service.

Procedure

Overview This policy is included as information for landlords, tenants and officers. If a tenant and landlord aren't able to solve a problem with routine yard maintenance on their own, they can ask the Branch for help.

- Steps ▼**
- 1.The officer encourages the landlord and tenant to discuss the problem, to try to come to an agreement.
 - 2.If the landlord and tenant can't agree on a request involving outdoor maintenance, the officer determines if the request is reasonable. If the officer decides the request is not reasonable, the officer issues a decision denying the request.
 - 3.If the officer decides the request is reasonable, the officer follows the procedures under Landlord's Responsibility for Repairs.

Forms Form Letters

X Referencing For information on [mediation](#), see Section 1.

Policy Developed September, 1992

Last Revision July, 2023

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Section 4	Maintenance & Repairs
Sub-Section 4.5	Maintaining the Appearance of a Rental Unit

Legislation [s. 58, The Residential Tenancies Act](#)

Definitions [Cosmetic improvement](#): an improvement to the appearance of the unit. For example: [painting](#), refinishing [hardwood floors](#). A cosmetic improvement is not the same as a repair.

Policy A tenant may ask a landlord for a cosmetic improvement to a rental unit. The Branch will usually enforce a tenant's request for a cosmetic improvement if:

- the tenant has lived in the rental unit for a certain period of time, *usually five years* ; and
- the request is reasonable.

If a tenant has lived in a rental unit for less than five years, the Branch may still issue an [Order to Maintain Appearance](#) to the landlord. The Branch may do this if it decides the rental unit needs cosmetic improvement. For example: A landlord hasn't painted a rental unit for seven years. Shortly after a new tenant moves in, they ask the landlord to paint. The landlord refuses to paint so the tenant contacts the Branch about a request for a cosmetic improvement. The Branch inspects and determines that the unit should be painted. The Branch orders the landlord to paint even though the tenant has lived in the unit for less than five years.

<><><><>

Sometimes, to allow a landlord to do work in a unit, a tenant may need to [move their furniture](#) or personal belongings. A tenant is responsible to move small portable items and any other fragile belongings. For example: computer components, antique furniture. A tenant should try to move furniture whenever possible. If a tenant can't move furniture, they should ask the landlord for help.

<><><><>

When a tenant [smokes](#), there may be a build-up of tar residue on the walls and ceiling. If a tenant asks a landlord to paint a rental unit during a tenancy, it's not unreasonable for the landlord to ask the tenant to wash the walls and ceiling to prepare them for painting. If a tenant doesn't think the landlord's request is reasonable, they can ask the Branch to decide. If a tenant refuses to wash the walls, the landlord can ask the Branch to decide what is reasonable.

If the Branch denies a tenant's request for a cosmetic improvement, the tenant may want to consider asking the landlord to apply for a Tenant Requested Improvement. (See Section 13)

Procedure

Overview The officer makes sure that the tenant has spoken to the landlord. The officer determines if the tenant's request is reasonable. The officer then follows steps in "Landlord's Responsibility for Repairs."

- Steps ▼
- 1.The officer checks to make sure that the tenant has discussed the request for cosmetic improvement with the landlord.
 - 2.If the tenant is requesting a cosmetic improvement, the officer determines if the tenant's request is reasonable. If the officer doesn't find the tenant's request reasonable, the officer issues a decision denying the request.
 - 3.If the officer finds the request is reasonable, the officer follows the steps in "Landlord's Responsibility for Repairs".

Forms & Form Letters

X-Referencing For information on [cleaning during tenancy](#), see this section.
For details on a [tenant requested improvement](#), see section 13.

Policy Developed September, 1992

Last Revision July, 2023

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Section 4 Maintenance & Repairs

Sub-Section 4.3 Landlord's Responsibility for Repairs

Legislation

s. 59, 113, 154(1)10, 154(2)3, 179.1, *The Residential Tenancies Act*
Residential Tenancies Regulation, s.9(1)(b).9(2).10.26(1).26(2)
Neighbourhood Liveability By-law No. 1/2008

Definitions

Furniture: for this section, furniture includes furniture and **appliances** provided with the rental unit or residential complex. **For example: bed, table, stove, refrigerator, washer and dryer.**

Order to redirect rent: when the Branch orders a tenant or tenants to pay their rent to the Branch, instead of to the landlord; when the tenant receives an Order and pays the Branch, rent is considered paid.

Order to repair: an Order the Branch issues to a landlord, ordering the landlord to do repairs in a rental unit or residential complex; the Order includes a deadline to complete the work and a description of the work to be done.

Rental unit: any living accommodation, mobile home or site for a mobile home used or intended for use as rented residential premises.

Repair: for this section, a repair means to fix, install, provide or replace.

Tenant's Request for Repairs: a form a tenant completes asking the landlord to make necessary repairs to the rental unit or residential complex; the tenant gives the form to the landlord and to the Branch.

Policy

Before the Branch becomes involved in a request for repairs, a tenant must first ask the landlord to do the repairs. A tenant is responsible to tell a landlord when repairs are needed. A landlord needs to know so they can fix a problem before there's any further damage or loss. Ideally, the tenant should give the landlord a written request to do the work.

A request for repairs can include repairs to furniture supplied with the unit.

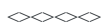


If the landlord does not do the repairs, the tenant may complete a **Tenant's Request for Repairs** form. The tenant fills out three copies of the form and gives one copy to the landlord and two copies to the Branch. A tenant may later add repairs to the original request, but only after giving both the Branch and the landlord the additional requests in writing. (**See Compensation for Unreasonable Delay in Section 9).**

Occasionally, the Branch may open a repair file if a tenant mentions a repair problem when objecting to a rent increase.



Sometimes, to allow a landlord to do repairs, a tenant may need to **move** their furniture or personal belongings. A tenant is responsible to move small portable items and any other fragile belongings. **For example: computer components, antique furniture.** A tenant should try to move furniture whenever possible. If a tenant can't move furniture, they should ask the landlord for help.



When a tenant **smokes**, there may be a build-up of tar residue on the walls and ceiling. If a landlord is asked or ordered to paint a rental unit during a tenancy, it's reasonable for the landlord to ask the tenant to wash the walls and ceiling to prepare them for painting. If a tenant doesn't think the landlord's request is reasonable, they can ask the Branch to decide. If the tenant refuses to wash the walls, the landlord can ask the Branch to decide what is reasonable.



The requirements for screens and storm windows fall under municipal bylaws or *The Public Health Act*. **For example: The City of Winnipeg Neighbourhood Liveability By-law No. 1/2008 states that screens must be provided in all habitable rooms from May 1 to November 1. The bylaw also states that storm windows must be provided for windows in all habitable rooms and basements from November 1 to April 30.**

If a window is designed to accommodate a screen or storm window, the Branch uses the following guidelines:

- A tenant in a *single-family one-storey* home is responsible for installing their own screens and/or storm windows. The landlord is responsible for providing the screens and/or storm windows.
- A landlord is responsible to provide and install screens and/or storm windows for any *multi-storey* rental unit or residential complex.



Before issuing an Order to Repair, the Branch will usually inspect the rental unit or residential complex. The Branch will not usually order a landlord to do any repairs that aren't listed on the **Tenant's Request for Repairs** form.



Sometimes the Branch may ask another authority to get involved with a repair request. **For example: Environmental Health Services.**



A tenant is responsible to repair damage they or their guests cause. If a landlord says that the tenant caused damage, the Branch will investigate and decide if the tenant did the damage. A landlord may use a rental unit condition report or pictures to show the condition of the unit when the tenant moved in. If the tenant caused the damage and there is a health or safety concern, the Branch may order the landlord to do the repair. The landlord may then file a Claim for Compensation against the tenant for the cost of the repair.



The Branch will not usually order a landlord to do repairs if the tenant owes rent. If the tenant owes rent, the landlord may give the tenant notice to move. In exceptional cases, if there is an immediate health or safety concern to tenants in a complex, the Branch may order the landlord to do the repair. **For example: The tenant has damaged the smoke alarm in their unit creating a possible fire hazard for other tenants.** The landlord may then file a Claim for Compensation against the tenant for the cost of the repair.



If a landlord doesn't comply with an Order to Repair, the Branch may issue an Order to Redirect Rent. The Branch redirects twice the amount of the original estimated cost of the repairs. The Branch does this to ensure there will be enough money to pay a contractor for the repairs. The Branch also charges an administration fee when redirecting rent. The amount of the fee is set by regulation.

When the repairs will cost more than \$999.99, the Branch tries to get estimates from at least two contractors. However, in emergency situations, the Branch may hire a contractor without getting estimates.



When the Branch hires a contractor, the Branch advises the landlord. If the landlord then does the repairs, the landlord is responsible for any costs of the contractor. **For example: The contractor buys material to do the repairs, but the landlord does the work on their own. The landlord must compensate the contractor for the material.**



If the Branch issues an Order to Repair, and the tenant moves out before the landlord finishes the work, the Branch may:

- enforce the Order to Repair by redirecting rent from the new tenant; or
- order the landlord not to re-rent the unit until they do the repairs.



If the Branch receives a request for repairs and the tenant moves out before the Branch issues an Order, the Branch gives the landlord a copy of the tenant's request. The Branch encourages the landlord to do the repairs before renting the unit to a new tenant. If there are serious health or safety concerns, the Branch may order the landlord not to re-rent the unit until they do the repairs.



The Branch enforces orders issued by the Residential Tenancies Commission or the Court of Appeal.



The Branch also enforces final orders issued by other agencies under other Acts, regulations or bylaws. **For example: The Public Health Act, the Neighbourhood Liveability By-law No. 1/2008.** A final order is one where there is no appeal, the appeal period has ended or there is no further opportunity to appeal.

Procedure

Overview The tenant fills out a repair form to ask for repairs. The officer asks the tenant if they are planning to continue to live in the rental unit or, if there are rent arrears. The officer confirms with the landlord that the repairs need to be done. The officer may inspect the rental unit to be sure that repairs are needed.

If needed repairs are not done, the officer will issue an Order to Repair. If necessary, the officer will hire a contractor to make sure that the repairs are completed.

Steps ▼ 1. When an officer receives a tenant's request for repairs, the officer asks the tenant if they are planning to continue the tenancy and if there are any rent arrears.

If the tenant plans to move, the officer may still proceed with the tenant's request, depending on what needs to be repaired and when the tenant is moving. In any case, the officer makes sure the landlord has a copy of the repair request.

If there are rent arrears, the officer will tell the tenant that the Branch can't proceed with the file until the rent is paid, unless there is an immediate health or safety risk.

2. If the tenant is planning to stay in the unit and has paid their rent, the officer contacts the landlord to go over the list of repairs, and to find out if the landlord has done the repairs or plans to do them.

3. The officer encourages the landlord to inspect the rental unit or residential complex to decide if the repairs are necessary. The officer may also inspect.

4. If the officer decides that the repair is not needed or that the tenant is responsible for the damage, they will send a written decision to both the tenant and landlord denying the request for repairs. The tenant can appeal this decision. If the tenant appeals, the officer attends the appeal hearing to provide information on the Branch's file and asks the Residential Tenancies Commission to confirm the Branch's decision.

5. If the officer decides that the repair is needed and the landlord agrees to do it, the officer and the landlord set a date for the repair to be finished.

6. If the landlord refuses to repair, or doesn't do the repair properly by the agreed upon deadline, the officer may issue an Order to the landlord to complete the repairs by a specific date. The landlord can appeal this Order. If the landlord appeals, the officer attends the hearing to provide information on the Branch's file and asks the Residential Tenancies Commission to confirm the Branch's decision.

7. If the landlord does the repair, the officer may inspect to make sure the work is done properly.

8. If the landlord doesn't appeal the Order to repair and doesn't make the repairs by the date on the Order, the officer orders the tenant who asked for the repairs to pay the rent to the Branch. This is called redirecting rent. In some cases, other tenants in the complex will also be asked to pay rent to the Branch.

If the landlord appeals the Order to repair, the officer doesn't do anything more on the file until the Residential Tenancies Commission makes a decision. The officer can't redirect rent until after the appeal is decided.

If the landlord appeals the rent redirect Order, the tenant continues to pay rent to the Branch. If the repair is not an emergency, the repair is not done until the rent redirect Order appeal is decided.

9. The officer gets estimates from contractors and hires people to do the repairs. The officer tells the landlord once they've hired someone.

10. The officer inspects the work when it is complete to make sure the work has been done properly. The contractor is paid from the redirected rent.

11. The landlord must pay an administration fee when a contractor is hired to do the repair. The officer uses The Residential Tenancies Regulation to calculate the fee. This fee is deducted from the redirected rent and any balance is returned to the landlord.

Forms & Form Letters

X-Referencing

For information on [maintaining the appearance of a rental unit](#) see this section.

To learn more about [compensation for unreasonable delay](#), see Section 9 - Claims

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Policy Developed

September, 1992*

Last Revision July, 2023

Other Resources None

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		s. 59(1), 72(1), <i>The Residential Tenancies Act</i> Local Maintenance and Occupancy Bylaws The Public Health Act
		a contract between a landlord and a tenant that sets out the basic rules for living i
Lighting requirements fall under municipal bylaws or The Public Health Act . These requirements may vary from one municipality to another. A landlord is usually responsible for:		
- making sure all light bulbs and fuses are in place and working when the tenant moves in; - replacing light bulbs in hallways and other common areas like laundry and recreational rooms and parking lots; and - repairing light fixtures in hallways and other common areas like laundry and recreational rooms, parking lots and in rental units.		
A tenant is usually responsible for:		
- replacing light bulbs in their rental unit during tenancy; - making sure all light bulbs are in place and working when they move out; - replacing standard fuses in their unit • • • ; and - making sure the fuses are in place and working when they move out.		
		This policy is included as information for landlords, tenants and officers. If a tenant and landlord aren't able to agree on a request involving light bulbs and fuses, they can ask the Branch for help.
		▼ 1.The officer encourages the landlord and tenant to share information, and to discuss the problem, to try to come to an agreement. 2.If the landlord and tenant can't agree on a request involving light bulbs and fuses, the officer determines if the request is reasonable. If the officer decides the request is not reasonable, the officer issues a decision denying the request. 3.If the officer decides the request is reasonable, the officer follows the procedures under Landlord's Responsibility
		For information on see Section 1. September, 1992 July 2023 None

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Section 4 Maintenance & Repairs

Sub-Section 4.2 Heating Equipment and Fireplaces

Legislation

[s. 11, 59\(1\), 72\(1\), *The Residential Tenancies Act*](#)
[City of Winnipeg Neighbourhood Liveability By-law No. 1/2008](#)
[s. 17\(1\), The Public Health Act Regulations](#)

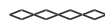
Definitions

Heating equipment: for the purpose of this subsection, heating equipment includes [furnaces](#), [boilers](#), [radiators](#), [baseboard heaters](#).

Policy

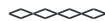
A landlord is responsible to:

- clean and maintain the fireplace chimney; and
- service and repair heating equipment.



A landlord is not responsible to clean [ducts](#) or ceiling [vents](#) unless there is a blockage which prevents heat or air from going into a room or unless the health authority says they must.

A landlord usually doesn't have to make special arrangements to clean ducts for tenants with allergies or breathing problems. A landlord may have to clean the ducts if the landlord's assurances about the ducts are later shown to be incorrect. **For example: Before agreeing to rent a unit, a tenant tells a landlord that they are allergic to cat hair. The landlord assures the tenant that there has never been a cat in the unit. After moving in, the tenant discovers cat hair in the ducts.**



A landlord must always make sure that the [temperature](#) in the rental unit meets the minimum requirements. There isn't a set date when a landlord is required to turn on the [heat](#). From 7:00 a.m. until 11:00 p.m., the temperature must be at least 21°C (70°F). From 11:00 p.m. until 7:00 a.m., the temperature can't be lower than 18.3°C (65°F). If a tenant believes that the landlord is not meeting the requirement, they should contact their local [Environmental Health Office](#).



A tenant is responsible to:

- clean their fireplace;
- clean floor and wall vents; and
- replace [furnace filters](#) if the landlord asks them to; the landlord should tell the tenant how often this should be done and what kind of filters to use.

Procedure

Overview This policy is included as information for tenants, landlords and officers. If a tenant and landlord aren't able to solve a problem with heating equipment or fireplaces on their own, they can ask the Branch for help.

- Steps ▼**
- 1.The officer encourages the landlord and tenant to share information, and to discuss the problem, to try to come to an agreement.
 - 2.If the landlord and tenant can't agree on a request involving heating equipment or a fireplace, the officer determines if the request is reasonable. If the officer decides the request is not reasonable, the officer issues a decision denying the request.
 - 3.If the officer decides the request is reasonable, the officer follows the procedures under Landlord's Responsibility for Repairs.

Forms & Form Letters

X-Referencing For information on [mediation](#), see Section 1.

Policy Developed September, 1992

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Section 4	Maintenance & Repairs
Sub-Section 4.1	Cleaning During Tenancy
Legislation	<u>s. 58, The Residential Tenancies Act</u>
Definitions	none
Policy	<u>Carpets and Drapes</u> A landlord is not expected to clean carpets or drapes during a tenancy, unless something unusual happens, like a water leak or flooding. If a tenant wants to clean their carpets or drapes, they should check with their landlord in case there are any special cleaning instructions. <u>Mold</u> The Branch generally refers complaints about mold contamination/build-up to the local environmental health authorities. Sometimes mold happens because of a repair problem. For example: a broken bathroom exhaust fan If repairs are required, the Branch follows the procedures under Landlord's Responsibility for Repairs. <u>Windows</u> A tenant in a single-family one-storey home must clean the inside and outside of all windows. A tenant in a multi-level residential complex must clean the inside glass and tracks of all windows. A tenant is responsible for cleaning the outside of doors and windows that open onto a balcony. A landlord of a multi-level residential complex is responsible for cleaning the outside of windows (including those on the main floor), except for balcony doors and windows. The landlord is responsible even though the windows may be sliding windows. Cleaning windows <i>once a year</i> is considered to be part of maintaining the appearance of the rental unit. A tenant doesn't have to live in a unit for a specific period of time before they can ask the landlord to clean the windows. Either the landlord or tenant can ask the Branch to decide if the tenant's request is reasonable. <u>Eaves trough</u> A landlord is responsible to clean leaves or other debris from eaves troughs, if required, to ensure that water can flow freely to downspouts.

Procedure

Overview This policy is included as information for landlords, tenants and officers. If a tenant and landlord aren't able to solve a problem with cleaning during a tenancy on their own, they can ask the Branch for help.

- Steps ▼**
- 1.The officer encourages the landlord and tenant to share information, and to discuss the problem, to try to come to an agreement.
 - 2.If the landlord and tenant can't agree on a tenant's request for window cleaning or cleaning an eaves trough, the officer determines if the tenant's request is reasonable. If the officer doesn't find the tenant's request to be reasonable, the officer issues a decision denying the tenant's request. If the officer decides the request is reasonable, they may order the landlord to clean the windows or eaves trough by a specific date.
 - 3.The officer then follows the procedures under Landlord's Responsibility for Repairs.

Forms & Form Letters

X-Referencing For information on [mediation](#), see Section 1.

Policy Developed September, 1992

Last Revision July, 2023

Other Resources None

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Section 3	Privacy
Sub-Section 3.4	Showing Rental Units for Sale

Legislation _____

Definitions Listing agent:

Policy

microwave, etc.

For example, television, stereo, VCR,

Procedure

Overview



Forms & Form Letters

X-Referencing

Policy Developed

Last Revision

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Section 3	Privacy
Sub-Section 3.3	Security Systems

Legislation	<u>s. 53(2), 54, 71, <i>The Residential Tenancies Act</i></u>
Definitions	Security system: a device used to discourage unauthorized people from going into a rental unit.
Policy	A tenant must get the landlord's written approval before installing a security system. The landlord and tenant should discuss what the tenant should do with the system when the tenancy ends. <><><><> The tenant must pay for the system and the installation. The tenant should also check with their local municipality to see if they need to have a permit for the system. <><><><> The tenant must give the landlord the access code to their alarm, unless they can show they have a good reason for not providing it. The landlord needs the code because they may have to go into the rental unit if there's an <u>emergency</u>. In an emergency, or if a landlord is showing the rental unit to a prospective tenant, the landlord has the right to go into a unit without giving the tenant notice. (see <u>Privacy – General Information</u>) <><><><> When a tenant who installs an alarm system moves out, they must follow the agreement they had with the landlord. If they remove the system, they must repair any damage caused during installation or removal.

Procedure

Overview This policy is included as information for landlords, tenants and officers. If tenants and landlords aren't able to solve a problem about a security system on their own, they can ask the Branch for help.

- Steps ▼**
- 1.The officer encourages the landlord and tenant to share information, and to discuss the problem, to try to come to an agreement.
 - 2.When a landlord or tenant asks the Branch for help with an alarm problem, the appropriate officer follows the procedures for:
 - mediation
 - hearings

X-Referencing	For more information on mediation , see Section 1. For details on hearings >, see Section 11.
Policy Developed	September, 1992
Last Revision	March, 2004
Other Resources	None

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Residential Tenancies Branch

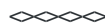
[Home](#) > [Consumer Protection and Government Services](#) > [Residential Tenancies Branch](#)

Section 3	Privacy
Sub-Section 3.2	Keys

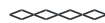
Legislation no legislative reference

Definitions none

Policy A landlord must give each tenant a key for every lock on the rental unit. The landlord must also give the tenant at least one key for the mailbox, recreation facility, laundry facility or any other secured area in the residential complex, that the tenant has the right to access.

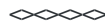


A landlord can't charge a tenant for a key or set of keys at the beginning of a tenancy.

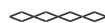


If a tenant loses their key or asks for an extra key, the landlord may charge a reasonable amount for a new or extra key.

If a tenant locks themselves out, they should ask the landlord for help. The Branch encourages landlords and tenants to try to resolve this kind of issue.



A tenant should not lend other people their keys or give out copies of their keys. Tenants are responsible for any damage or disturbance caused by the people who use these keys to enter the complex.



The tenant must return all keys, including extra keys, to the landlord, at the end of the tenancy. This helps keep the rental unit and residential complex secure.

Procedure

Overview This policy is included as information for landlords, tenants and officers. If landlords and tenants aren't able to solve a problem with keys on their own, they can ask the Branch for help.

- Steps** ▼
- 1.The officer encourages the landlord and tenant to share information, and to discuss the problem, to try to come to an agreement.
 - 2.When a landlord or tenant asks the Branch for help with a problem concerning keys, the appropriate officer follows the procedures for:
 - mediation
 - hearing

Forms & Form Letters

X-Referencing

For more information on [mediation](#), see Section 1.
For details on [hearings](#), see Section 11.

Policy Developed

September, 1992

Last Revision

March, 2004

Other Resources

None

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Section 3

Privacy

Sub-Section 3.1

General Information

Legislation

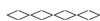
[s. 54, The Residential Tenancies Act](#)
[The Privacy Act](#)

Definitions

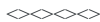
Rental unit: for the purpose of this policy, a rental unit includes the yard of a single family dwelling or a yard which is for the exclusive use of a tenant.

Policy

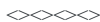
The Residential Tenancies Branch has exclusive jurisdiction to deal with disputes between landlords and tenants. This includes disputes over a landlord's right to enter a rental unit. *The Privacy Act* doesn't apply to these disputes.



A landlord usually needs to give a tenant written notice before entering a rental unit. A landlord must give a tenant *at least 24 hours written notice* before entering. A landlord may give notice of their plan to enter *up to two weeks* in advance. If a landlord plans to enter more than once, they must set out all the proposed times of entry in the notice. It may be difficult for a landlord to be exact on times if they're hiring tradespeople to do work in the unit. However, whenever possible, a landlord should be as specific as possible.



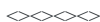
A landlord may enter the rental unit at reasonable times. A reasonable time depends on the reason for entering the unit and the tenant's schedule and lifestyle. The Branch encourages landlords and tenants to discuss any special requirements for entry.



If a landlord needs to enter all or several rental units in a complex, the landlord must give each tenant notice of the entry. **For example: A landlord needs to enter all units to test the smoke alarms.** A landlord can't just post a general notice of entry in the common areas of the building.



A tenant doesn't have to be present when a landlord enters the rental unit. As long as the landlord gives proper notice, the landlord has the right to enter.



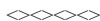
When a landlord gives a tenant a notice of entry, the time may not be convenient for the tenant. If it's not convenient, the tenant may tell the landlord, but the tenant must give the landlord another reasonable alternative time to enter the unit. A tenant should have a valid reason for changing the time of entry. The fact that a tenant can't be at home is not a valid reason for changing the time. If a landlord and tenant can't agree on a time for entry, they can ask the Branch for help.



A landlord has the right to inspect a rental unit during a tenancy to see if they need to do any work in the unit. If they plan to take pictures of damage, they should tell the tenant ahead of time. A tenant may refuse to allow the landlord to take pictures of their personal belongings.



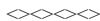
When a landlord hires someone to do work in a rental unit, the landlord doesn't have to stay in the unit while the work is done. However, the landlord is responsible for the activity of the tradesperson.



A landlord has the right to enter a rental unit to show it to prospective tenants once the tenant gives, or is given, notice to end the tenancy. A landlord doesn't have to tell the tenant before showing the unit. However, when the notice ending the tenancy is given, the landlord may want to let the tenant know that they will show the unit without advance notice. If the tenant works evenings or nights and sleeps during the day, they should let the landlord know. The landlord and tenant may then be able to schedule set times to show the unit.



When a tenant knows a landlord plans to enter the rental unit, the tenant should take reasonable steps to prevent damage to or loss of their personal belongings.



A tenant must allow a landlord to show a rental unit to prospective tenants. If the tenant doesn't co-operate, the landlord may not be able to re-rent the unit. If the landlord loses rent, the landlord may choose to file a claim for compensation against the tenant.

Procedure

Overview An officer receives a complaint from a landlord or tenant about entering a rental unit. The officer contacts the other person to discuss the complaint. The officer encourages the landlord and tenant to agree on entry. If necessary, the officer issues an Order.

Steps ▼ When a tenant refuses to allow a landlord access to a rental unit:

1. An officer receives a complaint from a landlord that a tenant is refusing to allow the landlord to enter a rental unit. The officer ensures that the landlord gave the tenant the required notice; or, the officer confirms that either the landlord or tenant gave notice to end the tenancy.
2. The officer contacts the tenant to discuss the landlord's concerns. The officer explains the landlord's rights to enter the rental unit. The officer encourages the landlord and tenant to agree on a time for the landlord to enter the unit. If the landlord and tenant agree, the officer may put the agreement in writing.

When a landlord enters a rental unit without proper notice:

1. An officer receives a complaint from a tenant that their landlord has entered the rental unit improperly. The officer asks the tenant for information on the date and time of entry and how the tenant knows the landlord was in the unit. In some cases, the officer may ask the tenant to make a written statement about their complaint.
2. The officer contacts the landlord to discuss the tenant's concerns. The officer explains the landlord's responsibility to give notice before entering the rental unit. The officer cautions the landlord about entering without proper notice. The officer may send a letter confirming the information they gave to the landlord.
3. If the landlord continues to enter, the officer may allow the tenant to end the tenancy agreement and file a claim for compensation for moving costs against the landlord.

Forms & Form Letters

X-Referencing

For information on [showing a rental unit to prospective buyers](#), see this section.
For details on [mediation](#), see Section 1.
For more information on [claims for compensation](#), see Section 9.

Policy Developed

March, 2004 *

Last Revision

April, 2023

Other Resources

None

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Residential Tenancies Branch

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Section 2	Tenancy Agreements
Sub-Section 2.14	Tenants and Shared Utility Service

Legislation

no relevant legislation

Definitions

Mediation: a confidential process the Branch uses to encourage and help tenants and landlords discuss problems, think of possible solutions and reach their own agreements. Mediation can take place in meetings, conference calls or separate telephone conversations.

Shared utility: a tenant shares utility costs with other tenants or the landlord.

Tenancy agreement: a contract between a landlord and a tenant that sets out the basic rules for living in rental unit. It can be written, oral or implied.

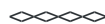
Utility: a vital service like heat, gas, electricity and water.

Policy

Unless a rental unit is metered separately from other units or common areas, it is the policy of most utility companies to bill the landlord. In spite of this, the Branch recognizes that landlords and tenants make other arrangements in tenancy agreements.

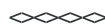
For example: A tenant may agree to

- pay for all, or part of, the utility service to common areas; or
- share the utility costs with their landlord or other tenants.



As long as a tenant knew what they would be paying for at the start of the tenancy, the Branch will not relieve the tenant of the responsibility to pay a share of the utility bill. However, either the tenant or the landlord may ask the Branch to determine if the tenant's share of the bill is reasonable.

To determine this, the Branch may consider the square footage of the rental unit in relation to the total square footage of the complex and the history of consumption.



If a tenant learns that they are paying for service which they didn't agree to pay for, they may ask the Branch for help. The Branch may review the tenancy agreement and change the terms of it.

Procedure

Overview When a tenant and landlord can't agree on how to solve a shared utility service problem, they should first discuss it with the utility company. If a landlord and tenant can't come to some agreement, they can also ask the Branch for help.

- Steps ▼**
1. The officer receives a complaint from either a tenant or a landlord. The officer encourages the landlord and tenant to share information, and to discuss the problem, to try to come to an agreement.
 2. If they can't agree, the officer gets information from the tenant, landlord and utility company.
 3. The officer tries to help the tenant and landlord sort out the original agreement, and decide who should now be responsible for the utilities or, how much either should pay.
 4. If mediation is successful, the officer puts the agreement in writing. Both the landlord and tenant get a copy.
 5. If a landlord and tenant can't agree, the officer may
 - hold a hearing; or
 - make a decision and issue an Order.

Forms & Form Letters

X-Referencing For more information on [Mediation](#), see Section 1.

Policy Developed September, 1992

Last Revision March, 2004

Other Resources None

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Section 2	Tenancy Agreements
Sub-Section 2.13	Tenancy Agreement Renewal

Legislation [s. 21 – 24, s. 87\(5\), s. 91, *The Residential Tenancies Act*](#)

Definitions

Anniversary date: the date on which a landlord is entitled to increase the rent on a rental unit. In some residential complexes, all units have the same anniversary or rent increase date. In other complexes, the anniversary dates may be spaced throughout the year. A landlord can usually increase rent only once every 12 months.

Annual rent increase guideline: the percentage that a landlord can increase rent without applying to the Branch for approval. The Government sets the amount each year. The guideline takes effect on January 1. A landlord can apply for a larger increase if they can show that the guideline will not cover their increases in expenses. The guideline applies to most rental units, including apartments, single rooms, houses, duplexes, mobile homes and mobile home lots. *The Residential Tenancies Act* does not apply to rent increases on land leases.

Fixed-term tenancy agreement: a tenancy agreement for a specific period of time, usually one year.

Month-to-month tenancy: a tenancy agreement for a month at a time with no specific end date.

Tenancy agreement: a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied.

Temporary tenancy: where the landlord rents their home as a rental unit for a temporary period, with the understanding that the landlord will need the residence for their own use at the end of the period.

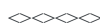
Policy

Unless a landlord gives a proper notice to end a fixed-term tenancy agreement, the landlord must give a tenant a new tenancy agreement or a renewal agreement *at least three months before the expiry date of the existing tenancy agreement*. The new tenancy agreement:

- must be for the same length of time and have the same benefits and obligations as the existing tenancy agreement; and
- may include a rent increase.



A landlord and tenant can agree to change the terms of the new tenancy agreement. Or, they can agree to different benefits and obligations. Any changes should be written in the new agreement.



If a landlord wants to increase the rent by more than the guideline, they must apply to the Branch for approval. A landlord and tenant can't just agree to raise the rent by more than the annual rent increase guideline.



When a landlord gives a tenant a new fixed-term agreement, the landlord must also let the tenant know, in writing, that;

- the tenant may continue to live in the rental unit;
- the tenant must return the signed agreement to the landlord *at least two months before the existing agreement ends*, if they intend to continue to live in the unit; and

- if the new tenancy agreement increases the rent by more than the guideline set for that year, the tenant may sign the agreement and still have a right to end the tenancy later with notice of *two rental payment periods*; the tenant's right to give notice is in effect from the date they receive notice that the landlord is applying for an above guideline increase to *14 days* after the Branch or the Residential Tenancies Commission issues a decision on the landlord's rent increase application.



Sometimes the rent increase or anniversary date is not the same as the renewal date. This type of agreement is often called a "step-lease". A step-lease has two columns in the "amount of rent payable" section. The first column shows the rent the tenant will pay for the first part of the agreement; the second column shows the effective date of the rent increase. **For example: The tenancy agreement is from October 1 to September 30. The anniversary date on the rental unit is April 1. The tenant pays \$500.00 per month from October 1 to March 31. On April 1, the rent increases to \$505.00 per month.**

When a landlord needs to offer a renewal, the landlord may not always know the actual amount to put in the second column. This can happen when:

- the landlord plans to apply to the Branch for an increase above the guideline, but hasn't yet made a final decision how large an increase to apply for; or
- the government hasn't announced the annual rent increase guideline.

In these cases, the landlord must complete the second column of the tenancy agreement by:

- inserting the sentence, "The landlord plans to increase the rent by the annual rent increase guideline."; or
- inserting an amount that is the same as or slightly higher than the amount they plan to apply for. The landlord can later choose to reduce the amount of the increase, but they cannot increase it.

For example: The tenant pays \$500.00 per month. The landlord does some initial calculations and is considering applying for an above guideline increase of 6%. If the landlord is confident that the 6% increase will be the amount they will be applying for, they can insert \$30.00 into the second column of the agreement. If the landlord is not certain that 6% will be their final amount, they might want to show an increase of 8% to allow some flexibility. In this case, the landlord would insert \$40.00 into the second column.

Once the landlord knows the actual dollar amount of the rent increase, they must still give the tenant *three months' written notice*. The tenant still has the right to object to any rent increase.



A tenant must return the signed renewal agreement to the landlord at least two months before the existing agreement ends. Otherwise, the tenancy ends on the date the existing tenancy agreement haends. If a tenant doesn't return a renewal, a landlord may want to confirm tt the tenant does intend to move. This may help the landlord avoid having two tenants for one unit.



If there are two or more tenants named on the agreement, the landlord should make sure that each tenant signs the renewal. If the landlord accepts a renewal that is not signed by all the tenants, the landlord may only have the right to file a claim against the tenant or tenants who signed the agreement.

If one or more of the tenants chooses not to renew, the landlord can terminate the tenancy on the date the existing tenancy agreement ends or ask the remaining tenants to sign a new agreement. If the landlord wishes to change some of the terms and conditions in the agreement and the remaining tenants agree to the changes, the landlord should provide a copy of the new tenancy agreement and a prescribed Notice to New Tenant form to the tenants that are planning to remain in the rental unit.

The landlord should complete a condition report with all of the original tenants on or before the last day of the original tenancy.

If the landlord does not have a claim against the security deposit, they must return it to the original tenants. If the landlord has a claim against the security deposit, they must provide a copy of the claim to the tenants. (See Subsection 10.4)

The landlord should also complete a new condition report with the remaining tenants and collect a new security deposit.

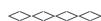


Prior to June 2005, if a landlord failed to provide a renewal agreement to a tenant for two consecutive terms, the tenancy was considered to be month to month. Tenancies that became month to month under this circumstance continue to be month to month unless the landlord and tenant agree to change it to a fixed term. These tenancies are not affected by current legislation [Section 21(5)] which is described in the following paragraph.

If the landlord doesn't give the tenant a new tenancy agreement on time as required by the legislation, and the tenant continues to live in the rental unit after the end of the existing tenancy agreement, the agreement is renewed for another term. The term of the renewed agreement is the same as the term of the original agreement or 12 months, whichever is less. **For example: A tenancy agreement runs from October 1 to September 30. To properly renew the agreement, the landlord must offer the tenant a new tenancy agreement before July 1. The landlord does not offer the renewal on time and the tenant is still in the unit on October 1. In this case, the agreement is renewed from October 1 to September 30. Another example: A landlord and tenant sign an 18-month tenancy agreement from October 1, 2004 to March 31, 2006. To properly renew this agreement, the landlord must offer the tenant a new tenancy agreement before January 1, 2006. If the landlord does not offer the renewal on time and the tenant is still in the unit on April 1, 2006, the agreement is renewed for the maximum of 12**

months from April 1, 2006 to March 31, 2007. The landlord may increase the rent during the term, with *three months' written notice* to the tenant.

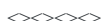
When an agreement is automatically renewed because of a landlord's failure to offer a renewal, the tenant may terminate the renewal agreement by giving the landlord notice of one rental payment period. **For example: When an agreement is automatically renewed from October 1 to September 30, the tenant can give notice on or before March 31 to end the tenancy on April 30.**



A tenancy may become month to month if the tenant:

- doesn't sign and return a new tenancy agreement or a renewal to the landlord;
- doesn't move out of the unit; and
- pays rent, which the landlord accepts, after the current tenancy agreement ends.

For example: A tenancy agreement runs from October 1 to September 30. The landlord offers the tenant a renewal on June 20. The tenant doesn't return the agreement by the end of July and doesn't move on September 30. On October 1, the tenant pays their rent and the landlord accepts the payment. By accepting the rent, the landlord creates a new month to month tenancy.



This policy on renewing tenancy agreements doesn't apply to temporary tenancies.

Procedure

Overview This policy is included as information for tenants, landlords and officers. If landlord and tenants aren't able to solve problems that may arise when a tenancy is renewed, they can ask the Branch for help.

- Steps ▼**
- 1.The officer encourages the tenant and landlord to share information, and to discuss the problems, to try to come to an agreement.
 - 2.When a landlord or tenant asks the Branch for help with a tenancy renewal problem, the appropriate officer follows the procedures for:
 - [mediation](#)
 - [claims for compensation](#)/orders of possession
 - [hearings](#)

Forms & Form Letters

Standard Residential Tenancy Agreement
.....[Form 1/Residential Tenancies Regulation](#)
Renewal of Tenancy Agreement
.....[Form 4/Residential Tenancies Regulation](#)

X-Referencing

For information on [mediation](#), see Section 1.
For more information on **ending tenancy**, see [Notices of Termination](#) in Section 7.
For information on [hearings](#), see Section 11.
For details on [rent increases](#), see Section 13.

Policy Developed

September, 1992*

Last Revision

May, 2015

Other Resources

None

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Residential Tenancies Branch

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Section 2	Tenancy Agreements
Sub-Section 2.11	Tenancy Agreement - General

Legislation [s. 7\(1\) - 18, s. 91, *The Residential Tenancies Act*](#)

Definitions

Anniversary date: the date on which a landlord is entitled to increase the rent on a rental unit. In some residential complexes, all units have the same anniversary or rent increase date. In other complexes, the anniversary dates may be spaced throughout the year. A landlord can usually increase rent only once every 12 months.

Annual rent increase guideline: the percentage that a landlord can increase rent without applying to the Branch for approval. The Government sets the amount each year. The guideline takes effect on January 1. A landlord can apply for a larger increase if they can show that the guideline will not cover their increases in expenses. The guideline applies to most rental units, including apartments, single rooms, houses, duplexes, mobile homes and mobile home lots. *The Residential Tenancies Act* does not apply to rent increases on land leases.

Fixed-term tenancy agreement: a tenancy agreement for a specific period of time, usually one year.

Implied tenancy agreement: even though a tenant and landlord didn't formally commit themselves to a tenancy agreement, in writing or orally, their actions toward each other indicate a tenancy was formed. For example: A tenant paying the rent and a landlord accepting it.

Mediation: a confidential process the Branch uses to encourage and help tenants and landlords discuss problems, think of possible solutions and reach their own agreements. Mediation can take place in meetings, conference calls or separate telephone conversations.

Minor: a person who has not reached the age of 18.

Necessary: for the purpose of this policy, a necessary is shelter, as in a rental unit.

Oral tenancy agreement: a tenancy based on an oral offer and acceptance to rent a rental unit. The terms and conditions of this type of tenancy are not put in writing. It is most commonly a month-to-month tenancy.

Written tenancy agreement: A specific form that is signed by both the tenant and landlord. It identifies the landlord, tenant and rental unit, and states the terms and conditions of the tenancy. It may also state the landlord's reasonable "house" rules. A written tenancy agreement may run for a fixed-term, usually one year, or on a month-to-month basis.

Policy

A tenancy agreement may be written, oral or implied. It sets out the conditions or basic rules of the tenancy. For example: the amount of monthly rent, the services provided by the landlord.

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In the Residential Tenancies Regulation, there is a prescribed form called "Standard Residential Tenancy Agreement." The Branch provides a sample copy of this form. Some stationery stores also sell the forms.

A landlord can create their own tenancy agreement as long as they don't include anything that is contrary to the legislation or the standard form.

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Minors and mentally challenged individuals can enter into tenancy agreements. Since a rental unit is considered a necessary, a minor or mentally challenged person can be held responsible for a breach of a tenancy agreement. A

landlord may file a claim for compensation or an Application for an Order of Possession with the Branch. The Branch has the authority to order a minor or mentally challenged person to move or to pay compensation.

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A tenancy agreement may say how many people can live in the rental unit. If the agreement is specific and the tenant wants to have more people live in the unit, a landlord and tenant may mutually agree to end the original tenancy agreement and create a new agreement to cover the additional occupants. If the agreement is not specific, the Branch may try to help the landlord and tenant resolve the matter. If the landlord and tenant agree that they spoke about who would occupy the unit, it could be a term of the agreement, even though it's not in writing.

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If a tenant marries, has a child or adopts a child during the term of the agreement, it's considered a natural increase in the tenant's family. If this happens, a landlord can't give the tenant notice to move or ask them to pay more rent, unless the increase breaches other terms and conditions of the tenancy agreement. Other situations may be considered a natural increase and would be determined by the Branch based on the circumstances of each case.

The addition of anyone who is not part of the existing tenancy agreement, including a tenant's adult children, extended family or foster children would not be considered a natural increase.

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Sometimes the rent increase or anniversary date is not the same as the start date of a tenancy agreement. This type of agreement is often called a "step-lease". A step-lease has two columns in the "amount of rent payable" section. The first column shows the rent the tenant will pay for the first part of the agreement; the second column shows the effective date of the rent increase. For example: The tenancy agreement is from October 1 to September 30. The anniversary date on the rental unit is April 1. The tenant pays \$500.00 per month from October 1 to March 31. On April 1, the rent increases to \$505.00 per month.

When a landlord needs to prepare a tenancy agreement, the landlord may not always know the actual amount to put in the second column. This can happen when:

- the landlord plans to apply to the Branch for an increase above the guideline, but hasn't yet made a final decision how large an increase to apply for; or
- the government hasn't announced the annual rent increase guideline.

In these cases, the landlord must complete the second column of the tenancy agreement by:

- inserting the sentence, "The landlord plans to increase the rent by the annual rent increase guideline."; or
- inserting an amount that is the same as or slightly higher than the amount they plan to apply for. The landlord can later choose to reduce the amount of the increase, but they cannot increase it.

For example: The tenant pays \$500.00 per month. The landlord does some initial calculations and is considering applying for an above guideline increase of 6%. If the landlord is confident that the 6% increase will be the amount they will be applying for, they can insert \$30.00 into the second column of the agreement. If the landlord is not certain that 6% will be their final amount, they might want to show an increase of 8% to allow some flexibility. In this case, the landlord would insert \$40.00 into the second column.

Once the landlord knows the actual dollar amount of the rent increase, they must still give the tenant *three months' written notice*. The tenant still has the right to object to any rent increase.

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To increase rent above the annual rent increase guideline, a landlord must apply to the Branch for approval. Sometimes a tenant might have to sign their fixed-term tenancy agreement before the Branch makes a decision on the landlord's application. Even though a tenant must sign the agreement, they still have the right to end their tenancy with notice of *two rental payment periods*. A tenant may give notice at any time from the date they sign the agreement to *14 days* after they receive the Branch's or the Residential Tenancies Commission's decision on the landlord's application.

Procedure

Overview	This policy is included as information for landlords and tenants. If landlords and tenants aren't able to solve a problem with a tenancy agreement, they can ask the Branch for help.
Steps ▼	1. The officer encourages the tenant and landlord to share information and to discuss the problem to try to come to an agreement. 2. If the inquiry is about a written tenancy agreement, the officer will ask to see it before answering specific questions about the terms and conditions. 3. When a landlord or tenant asks the Branch for help with a tenancy agreement problem, the appropriate officer follows the procedures for: • mediation • claims for compensation/order of possession • hearings
Forms & Form Letters	Standard Residential Tenancy AgreementForm 1/Residential Tenancies Regulation Form 1.1/Residential Tenancies Regulation Standard Residential Tenancy Agreement (Mobile Home and Sites)Form 2/Residential Tenancies Regulation
X-Referencing	For more information on mediation, see Section 1. For information on failure to deliver a copy of a tenancy agreement, see this section. For details on tenancy agreement renewals, see this section also. For more information on increasing rent for additional occupants, see Rent Increase For New Tenant in Section 13.
Policy Developed	September, 1992*
Last Revision	May, 2015
Other Resources	None

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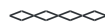
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Section 2	Tenancy Agreements
Sub-Section 2.12	Tenancy Agreement - Failure to Deliver a Copy

Legislation	<u>s. 8, 12, The Residential Tenancies Act</u>
Definitions	Tenancy agreement: a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied.
Policy	If a tenancy agreement is in writing, both the tenant and landlord must sign it. The landlord must give the tenant a copy of the fully signed tenancy agreement <i>within 21 days</i> after the tenant has signed it and given it to the landlord . The landlord may ask the tenant to sign a receipt or note that they received a copy of the tenancy agreement.



If a tenant doesn't get a copy of the tenancy agreement *within the 21 day period*, the tenant should ask the landlord, in writing, for a copy. If the landlord doesn't provide it on request, the tenant may ask the Branch for help.

Procedure

Overview This policy is included as information for landlords, tenants and officers. If tenants and landlords aren't able to solve problems that arise if a copy of the tenancy agreement is not delivered, they can ask the Branch for help.

- Steps ▼**
- 1.A tenant may get in touch with the Branch if the landlord has not given them a copy of the tenancy agreement.
 - 2.An officer will contact the landlord to confirm the information, and to see if the matter can be settled informally through mediation.
 - 3.If mediation isn't successful, the Branch will issue a decision:
 - ordering the landlord to deliver a copy of the tenancy agreement to the tenant by a specific date;
 - defining the terms of the tenancy;
 - imposing reasonable conditions on the landlord and tenant; **For example: allowing the tenant to give one month notice to terminate the tenancy;** or
 - dealing with a specific problem that came up because the tenant wasn't given a copy of the tenancy agreement.

Forms & Form Letters

X-Referencing For information on [mediation](#), see Section 1.

Policy Developed September, 1992

Last Revision March, 2004

Other Resources None

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Section 2	Tenancy Agreements
Sub-Section 2.9	Smoking

Legislation	<u>The Non-Smokers Health Protection Act</u>
Definitions	none

Policy	<i>The Non-Smokers Health Protection Act</i> says that all “enclosed public places” must be smoke-free. This legislation includes any part of the common areas of a residential building. Hallways, elevators, and group-use spaces (for example, a room tenants can use to hold a function) must all be smoke-free. Landlords must ensure that tenants comply with this legislation. The Branch encourages landlords to post signs in public areas reminding tenants of this law.
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Some tenants are more sensitive to smoking fumes than others. If a tenant believes that smoke from another unit is filtering into theirs, they should discuss the problem with the landlord. A landlord may be able to seal the unit more tightly. Or, the landlord may allow the tenant to move to another unit in the complex.

If a landlord can't resolve the problem, a tenant may want to move because of a risk to their health. If a tenant chooses to move and the landlord loses rent, the landlord may decide to file a claim for compensation. Before moving, a tenant may want to consider giving the landlord information from a doctor to support their claim of the risk to their personal health.

When a tenant smokes, there may be a build-up of tar residue on the walls and ceiling. If a landlord plans to paint a rental unit during a tenancy, it's not unreasonable for the landlord to ask the tenant to wash the walls and ceiling to prepare them for painting. At the end of a tenancy, it's not unreasonable for the landlord to expect that the tenant leave the walls and ceiling in reasonably clean condition.

Procedure

Overview	This policy is included as information for officers, landlords and tenants on issues related to smoking. If a landlord and tenant can't resolve a problem on their own, they can ask the Branch for help.
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Steps ▼	1.The officer encourages the landlord and tenant to share information and to discuss the problem, to try to come to an agreement. 2.When a tenant or landlord asks the Branch for help with a smoking related problem, an appropriate officer follows the procedures for:
---------	---

- [mediation](#)
- [hearings](#)

X-Referencing For information on [mediation](#), see Section 1.
For details on a tenant's right to give notice, see [Notice by Tenant – Fixed Term Tenancy Agreement](#) in Section 7.

Policy Developed March, 2004

Last Revision May, 2015

Other Resources None

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Section 2	Tenancy Agreements
Sub-Section 2.7	Reasonable Rules
Legislation	s. 11, 17, 29.1, 29.2, 75, 75.1, 96(1)(c), <i>The Residential Tenancies Act</i> s. 1, 9, 16, Human Rights Code The City of Winnipeg Fire Prevention By-law No. 150/2004 Manitoba Fire Code Local fire prevention by-laws apply
Definitions	<u>Liability insurance:</u> financial protection for a person, in case they are found responsible for damage or personal injury. <u>Pet damage deposit:</u> is money a tenant pays to a landlord before bringing a pet into a rental unit. A pet damage deposit can't be more than one month's rent. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the pet damage deposit for damage or cleaning costs the landlord suffers because of the tenant's pet. <u>Service animal:</u> an animal that has been trained to provide assistance to a person with a disability that relates to that person's disability.
Policy	In the Residential Tenancies Regulation, there is a prescribed form called "Standard Residential Tenancy Agreement." The standard agreement has certain <u>rules</u> in it which are considered reasonable. For example: The tenant agrees to use the rental unit and residential complex for residential use only. In addition to the rules in the standard agreement, a landlord may set their own house rules. Any additional or house rules not spelled out in the standard tenancy agreement must be put in writing. A landlord should make a rule as clear as possible. If a landlord wants tenants to avoid certain behaviour, the landlord should be specific in their rules. Both the landlord and tenant must have a copy of the rules. ◇◇◇◇◇ Although a landlord may choose not to enforce a rule at present, it doesn't prevent them from enforcing the rule in the future. However, a landlord must ensure that they treat all tenants equally in order to be fair. ◇◇◇◇◇ If a tenant breaches a reasonable rule, the landlord may be able to give the tenant notice to move. The landlord would first need to give the tenant an opportunity to comply with the rule. ◇◇◇◇◇ The Branch may decide if a rule is reasonable, but only after receiving information from both the landlord and the tenants. The Branch would likely hold a hearing to consider this type of issue. ◇◇◇◇◇ A landlord can change or add rules during the tenancy. If the rule change is significant, the landlord should give the tenants reasonable notice of the change. In some cases, when a landlord changes or adds a rule, it may create undue hardship for a tenant or tenants. If this happens, the tenant can ask the Branch to decide if the change or addition is reasonable. Here are some examples of common reasonable rules: <u>Barbeques</u>

A landlord can refuse to allow tenants, living in a residential complex, to use barbecues. This rule is reasonable because of the risk of fire.

Christmas Trees

A landlord can refuse to allow tenants, living in a residential complex, to have real Christmas Trees. This rule is reasonable because of the risk of fire and because real trees can create a mess in the common hallways when tenants bring them in or out of the building.

Garage or Yard Sales

A tenant should get the landlord's permission before having a yard, garage or apartment sale. A landlord may refuse to allow a tenant to have a yard, garage or apartment sale because of the potential damage or disturbance it could cause. Or, they can set guidelines for where and when tenants can have the sale. These rules may vary. **For example: It is not unreasonable for a landlord of a multi-family unit like a four-plex to refuse to allow a yard sale, particularly if all tenants have use of the common areas. It is not unreasonable for a landlord to refuse to allow an apartment sale in a residential complex that offers tenants the protection of a security system.**

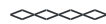
Insurance

Generally, a landlord can't insist that a tenant carry liability insurance as a condition of tenancy. The Branch recommends that tenants consider buying a tenant's insurance package for their own protection. In certain circumstances, it may be reasonable for a landlord to require a tenant to carry liability insurance (e.g. if a tenant has a waterbed, a large aquarium or a portable washer).

Pets

A landlord can refuse to allow tenants to have pets. Or, they can set general guidelines for the kind of pets tenants can have. **For example: Small breed dogs or cats may be allowed.** Landlords who choose to allow pets in their buildings can ask tenants who have pets to pay a pet damage deposit.

Landlords can change their "pet rules". If a landlord brings in a new "no pet rule", tenants who were allowed pets under the old rules can keep them, but can't replace them.



The Human Rights Code does not allow landlords to refuse to rent to someone who needs a service animal. Service animals are not pets. A tenant who needs a service animal is not breaking a "no pets" rule in a tenancy agreement. **Landlords cannot charge a pet damage deposit for tenants who rely on a service animal.**

Tenants who have service animals are responsible for their behaviour. A tenant must make sure that their service animal does not disturb or intimidate other tenants.

Rent Payments

A landlord may set rules on where and how they will accept rent from tenants. A landlord must give their tenants written notice of the address where the tenants are expected to pay rent. A tenant is responsible to ensure that they deliver their rent to that address. A landlord can't refuse to accept cash at that address, since cash is legal tender. A landlord may allow tenants to pay rent at other places too. If they do this, they can put conditions on how the tenants can pay the rent. **For example: If a tenant pays their rent at the address the landlord gave them, the landlord must accept cash or other legal tender, like a money order. The landlord may say that the manager or caretaker is not authorized to accept cash for security reasons. But, the landlord may allow the tenant to give a cheque or money order to the on-site manager or caretaker.**



If a financial institution did not honour a tenant's previous rent cheque, a landlord can tell a tenant that, in future, they will only accept cash, certified cheque or money order for rent.

Satellite Dishes

A tenant must get the landlord's permission before installing any satellite dish or other equipment in the rental unit or residential complex.

Waterbeds

A landlord may refuse to allow a tenant to have a waterbed because of the potential damage it could cause. A landlord who allows a tenant to have a waterbed may require the tenant to have a tenant's insurance policy. The landlord may ask the tenant for proof that the tenant purchased the necessary insurance. The landlord can also ask the tenant to show that they've renewed the policy each year.

Water Bills

If a tenant is responsible to pay the water bill under the terms of their tenancy agreement, the landlord can ask a tenant to take regular water meter readings to ensure that the water bills are actual and not estimated. This rule is reasonable since The City of Winnipeg may apply an unpaid water bill to a landlord's property taxes.

Procedure

Overview This policy is included as information for landlords, tenants and officers. If tenants and landlords aren't able to solve a problem with reasonable rules on their own, they can ask the Branch for help.

- Steps ▼**
- 1.The officer encourages the landlord and tenant to share information, and to discuss the problem, to try to come to an agreement.
 - 2.When a landlord or tenant asks the Branch for help with a problem about reasonable rules, the appropriate officer follows the procedures for:
 - [mediation](#)
 - [claims for compensation/orders of possession](#)
 - [hearings](#)

Forms & Form Letters

X-Referencing For more information on [mediation](#), see Section 1.
For details on [notices of termination](#), see Section 7.

Policy Developed September, 1992*

Last Revision May, 2015

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Section 2	Tenancy Agreements
Sub-Section 2.5	Parking & Vehicle Insurance

Legislation

[s. 11, *The Residential Tenancies Act*](#)
[*Public Health Act*](#)
[City of Winnipeg Neighbourhood Liveability By-law No. 1/2008](#)
[City of Brandon By-law No.6481](#)
[Municipal Bylaws](#)

Definitions

Derelict vehicle: a vehicle, vehicle body or chassis that

- is old and unused;
- is not in roadworthy condition;
- has some parts removed;
- doesn't have a visible, current licence plate;
- is kept in the open;
- is abandoned; or
- is kept by the owner for salvaging, selling parts or for scrap metal.

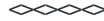
Only an environmental health officer has the authority to decide if a vehicle is "derelict".

In Brandon, the City of Brandon Licensing Department uses the City of Brandon Municipal Act's definition.

Vehicle storage insurance: a policy offered by the Manitoba Public Insurance Corporation on vehicles not used all year-round. It protects against liability, vandalism, theft and certain types of damage.

Policy

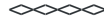
A landlord may assign a parking stall to each rental unit in a complex and include it in the written tenancy agreement, whether the tenant needs a parking stall or not.



If an assigned parking stall is included in the tenancy agreement, the stall must be made available to the tenant.



Some landlords keep a record of the licence numbers of vehicles that tenants park in their stalls. Tenants should let the landlord know of any change in vehicle licence numbers.

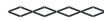


If a tenant, with an assigned parking stall, doesn't have a vehicle:

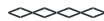
- the tenant's guests can park in the stall; the tenant should give the landlord the licence plate number of anyone using the parking stall;
- the tenant can rent the stall to someone else, with the landlord's permission; or
- the landlord can rent the stall to someone else, with the tenant's permission.



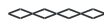
If extra parking stalls are available, the landlord may assign an additional stall to a tenant who asks for one. The landlord can charge the tenant the same monthly rental fee as they would charge another residential tenant.



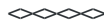
A landlord may set reasonable rules for tenants' use of assigned parking stalls and visitor parking stalls. The landlord must let tenants know what these parking rules are and how they will be enforced. **For example: posting tow away signs.**



The landlord can limit visitor parking stalls to casual use. A tenant may have to get the landlord's permission for a visitor to park overnight or longer. A landlord can charge a fee for special visitor parking arrangements.



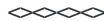
A landlord may set aside specific "no parking" areas or assign parking stalls for emergency vehicle use only. **For example: ambulances or fire trucks.**



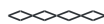
Tenants may park an uninsured vehicle in their own parking stall. A landlord can't ask a tenant to remove a vehicle simply because it's not insured. If a Winnipeg Environmental Health Officer, the Brandon Licensing Department or a Provincial Environmental Health Officer says the vehicle is "derelict", the landlord may give the tenant notice to remove it. The notice should also tell the tenant that if they don't remove the vehicle by a certain date, the landlord will tow it, at the tenant's expense.



A landlord can't insist that a tenant buy vehicle storage insurance, for vehicles not used year round, as a condition of tenancy. However, tenants should consider buying an insurance policy package for their own protection.



In an outdoor parking lot, the landlord is responsible for clearing snow, when necessary, to give tenants access to their parking stall. The landlord doesn't have to remove snow from individual parking stalls, unless the tenant and landlord have agreed that this service will be provided.



A landlord may provide electrical outlets, in a parking lot, for block heaters. A landlord can use a "timer" system but there must then be enough electricity to start vehicles, in reasonable condition, at any time of the day, during the winter months.



Procedure

Overview This policy is included as information for landlords, tenants and officers. If tenants and landlords aren't able to solve a problem with parking and/or vehicle storage insurance on their own, they can ask the Branch for help.

- Steps ▼**
- 1.The officer encourages the landlord and tenant to share information, and to discuss the problem, to try to come to an agreement.
 - 2.When a tenant and landlord asks the Branch for help with a parking problem, the appropriate officer follows the procedures for:
 - [mediation](#)
 - [claims for compensation/orders of possession](#)
 - [hearings](#)

Forms & Form Letters

X-Referencing

For more information of [mediation](#), see Section 1.
[Orders of Possession](#) are covered in Section 8.
For details on [hearings](#), see Section 11.

Policy Developed September, 1992

Last Revision May, 2015

Other Resources None

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Section 2 Tenancy Agreements

Sub-Section 2.3 Landlord's Responsibility to Investigate Complaints

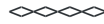
Legislation [s. 67, 73, 74, 74.1, 89, *The Residential Tenancies Act*](#)

Definitions **Adjacent Property:** property that is close to, but not necessarily right next door to a rental unit; it can include property across a street or a back lane.

A tenant must not:

- disturb other people in the residential complex or in adjacent properties;
- threaten the safety of others in the residential complex.
- engage in unlawful activity in the residential complex that:
 - causes damage to a rental unit or the residential complex
 - interferes with the enjoyment of a rental unit or the complex by another tenant or the landlord or a person either lets into the complex
 - adversely affects (harms) the security, safety, health or well-being of another tenant or occupant, the landlord or a person allowed in the complex by the tenant or landlord

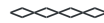
A tenant must also make sure that their guests don't cause any problems.



When a landlord receives a complaint that a tenant or their guest has disturbed other people in the residential complex or endangered their safety, the landlord must investigate the complaint.

A landlord is also responsible to investigate complaints about a disturbance they receive from neighbours about the tenant.

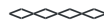
After investigating, if the landlord believes the complaint is justified, the landlord must try to correct the problem. **For example: A landlord receives a complaint from a tenant that another tenant is playing music very loudly and disturbing others. The landlord talks to several tenants who agree that there's a problem. The landlord gives a written warning to the tenant who is causing the problem. If the tenant continues to play the music loudly, the landlord may give the tenant a notice to move.**



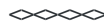
Occasionally, a tenant or someone else doesn't think that a landlord is responding to their complaint properly. When this happens, the complainant may contact the Branch.

The Branch has the authority to decide if a landlord is meeting their obligation to investigate a complaint.

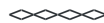
If the Branch decides that the landlord is not meeting their obligation, the Branch will order the landlord to investigate the complaint and to correct the problem. The Order won't specify the steps the landlord must take to correct the problem. The Branch doesn't have the authority to order a landlord to give a notice to move to a tenant who is causing a problem.



If a landlord doesn't comply with the Branch's Order to investigate, a complainant may file a claim for compensation for any actual loss or expense that they have. However, the Branch doesn't have the authority to award compensation for personal injury or death, pain and suffering or mental anguish.



If a complainant tenant decides to move, they must give the landlord notice or ask the Branch to terminate the tenancy. Under the standard residential tenancy agreement, a landlord is responsible to comply with the Act. If the landlord doesn't investigate and try to resolve a complaint, the landlord breaches the tenancy agreement. The tenant must give the landlord a written demand to correct the problem. For a material breach of a tenancy agreement, a tenant may choose to end a tenancy with notice of one rental payment period. (See Notice by Tenant – Section 7)



Anyone who feels threatened by another person also has the right to file a complaint with the Provincial Court. The Provincial Court has the authority to issue a peace bond, if necessary, to order one person not to contact another person.

Procedure

Overview An officer receives a complaint that a landlord is not meeting their obligation to investigate. The officer contacts the complainant and the landlord to discuss the concerns. The officer tries to mediate. If mediation is not successful, the officer may make a decision.

- Steps ▼**
- 1.The officer reviews the complaint to make sure they have information on the complainant's concerns. The officer also ensures that they have details on how the complainant told the landlord of the problem.
 - 2.The officer contacts the landlord to:
 - confirm that the landlord knows about the complainant's concerns;
 - advise the landlord of their responsibility to investigate.The officer may also suggest how the landlord could:
 - investigate the complaint; and/or
 - try to resolve the problem
 - 3.The officer encourages the complainant and the landlord to share information and discuss the problem. The officer may try to mediate an agreement between the complainant and the landlord.
 - 4.If mediation is not successful, the officer may make a decision about whether or not the landlord is meeting their obligation to investigate. To make the decision, the officer may:
 - ask the complainant and the landlord to submit any information they consider relevant; or
 - schedule a hearing and invite the landlord and the complainant to attend to give information about the problem.
 - 5.The officer issues an Order.

Forms & Form Letters

X-Referencing

For information on [mediation](#), see Section 1.
For details on [giving notice](#), see [Notice by Landlord – Tenant Not Meeting Obligation](#) in Section 7.

Policy Developed

March, 2004

Last Revision

May, 2015

Other Resources

None

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Section 2	Tenancy Agreements
Sub-Section 2.4	Late Payment Fees

Legislation	s. 69(4) , <i>The Residential Tenancies Act</i> s. 20(1), 20(2), <i>Residential Tenancies Regulation</i>
Definitions	House rule: a written rule a landlord may have for tenants in addition to the obligations in a tenancy agreement. For example: A tenant may not have a pet in the rental unit. Tenancy agreement:a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied.
Policy	A tenant is responsible to pay the landlord the full rent on the day the rent is due. If the rent is not paid on time, the landlord may charge the tenant a late payment fee. A landlord must tell a tenant in writing that they will charge a late payment fee if the tenant doesn't pay rent on time. A landlord can include this information: - on a tenancy agreement; or - in the house rules. Once a tenant knows about the fee, a landlord is entitled to charge it. <><><><> The rate for a late payment fee is set by regulation. A landlord cannot charge more than what has been set by regulation. A landlord may charge a late payment fee of: - up to \$10.00 for the day the rent was due; and - up to \$2.00 for each day after the due date that the rent is late in any consecutive number of rental payment periods, to a maximum of \$100.00. When a landlord charges a late payment fee, the tenant must pay the daily rate: - up to and including the day they actually pay the rent in full; or - the fee reaches the \$100.00 maximum. Example #1: The tenant is supposed to pay their rent on November 1. The tenant doesn't pay the rent until November 8. The landlord is entitled to a late payment fee of \$24.00 (\$10.00 for November 1 and \$2.00 per day for November 2 to November 8). Example #2: The tenant is supposed to pay their rent on November 1. The tenant pays part of their November rent on November 1, but doesn't pay the balance of November's rent until December 8. The tenant also pays their December rent on December 8. The landlord is entitled to a late payment fee of \$84.00 (\$10.00 for November 1 and \$2.00 per day for November 2 to December 8). Example #3: The tenant is supposed to pay their rent on the first of each month. The tenant stays in the rental unit,

but doesn't pay their rent in November, December or January. The landlord is entitled to \$100.00 for a late payment fee (\$10.00 for November 1 and \$2.00 per day starting November 2 to the maximum of \$100.00).

<><><><>

When a landlord claims a late payment fee on an Application for an Order of Possession or a Claim for Compensation, the Branch calculates the fee up to and including the date of the hearing, to a maximum of \$100.00.

Example #1: The tenant owes November rent and doesn't move on the landlord's notice. The landlord applies for an Order of Possession and claims rent and a late payment fee. On November 25, the Branch holds a hearing on the landlord's application. The Branch awards the landlord a late payment fee of \$60.00 (\$10.00 for November 1 and \$2.00 for each day up to and including November 25).

Example #2: The tenant owes November and December rent. The landlord applies for an Order of Possession and claims rent and a late payment fee. On January 8, the Branch holds a hearing on the landlord's application. The Branch awards the landlord a late payment fee of \$100.00 (\$10.00 for November 1 and \$2.00 for each day up to the maximum of \$100.00).

Example #3: The tenant moves out at the end of November owing November rent. The landlord files a claim against the tenant for November's rent and a late payment fee. On January 20, the Branch holds a hearing on the landlord's claim. The Branch awards \$100.00 for a late payment fee (\$10.00 for November 1 and \$2.00 per day starting November 2 to January 20 to the maximum of \$100.00).

<><><><>

A landlord may also claim accumulated late payment fees at the end of a tenancy if the claim is made in a timely manner. For example: At the start of a tenancy, a landlord tells a tenant in writing that they charge a late payment fee. The rent is due on the first of each month. During the one year agreement, the tenant pays their rent late four times – November 5, December 4, January 8 and February 3. At the end of the tenancy, the landlord may claim a total late payment fee of \$72.00 (\$18.00 for November, \$16.00 for December, \$24.00 for January and \$14.00 for February).

The landlord may:

- deduct the accumulated late payment fee from the security deposit at the end of the tenancy with notice to the tenant; or
- include the accumulated late payment fee on a claim for compensation they file with the Branch.

<><><><>

A landlord can't terminate a tenancy for non-payment of late payment fees only.

Procedure

Overview This policy is included as information for landlords, tenants and officers. If tenants and landlords can't agree on the amount of late payment fees, they can ask the Branch for help.

- Steps ▼**
- 1.The officer encourages the tenant and the landlord to share information, and to discuss the problem, to try to come to an agreement.
 - 2.When a landlord or tenant asks the Branch for help with a late payment fees problem, the appropriate officer follows the procedures for:
 - [mediation](#)
 - [claims for compensation/orders of possession](#)
 - [hearings](#)

Forms & Form Letters

X-Referencing None

Policy Developed September, 1992*

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Section 2	Tenancy Agreements
Sub-Section 2.8	Rental Unit Condition Report

Legislation [s. 39, *The Residential Tenancies Act*](#)
[Residential Tenancies Regulations](#)

Definitions Rental Unit Condition Report : a form a landlord and tenant complete and sign to show the condition of a rental unit at the beginning and end of a tenancy.

In the Residential Tenancies Regulation, there is a prescribed form for a condition report. The Branch provides a sample copy of this form. Some stationery stores also sell the forms. Many landlords create their own condition reports.

<><><><>

The Branch encourages a landlord and tenant to do a rental unit condition report when a tenant moves in or out or when there's an assignment or sublet.

<><><><>

Either a landlord or tenant may ask to have a condition report done. When there's a request, the landlord and tenant must inspect the unit and complete a report.

<><><><>

Once the report is signed, the landlord must give the tenant a copy.

<><><><>

If a landlord or tenant refuses to complete a condition report, the other person can ask the Branch for help.

<><><><>

A landlord or tenant may use a condition report as evidence to support or respond to:

- a claim against a deposit;
- a claim for compensation for damage or cleaning; or
- an Application for an Order of Possession.

When a landlord or tenant give a notice to end the tenancy, the landlord may want to tell the tenant, in writing, what they expect the tenant to clean before moving.

<><><><>

Before the move out date, the landlord and tenant should make arrangements to do the end of tenancy condition report.

Ideally, both a landlord and tenant should sign the condition report at the end of the tenancy. However, occasionally a tenant leaves without signing the report. If this happens, the landlord should still complete the report. The landlord may want to ask another tenant or neighbour to witness the condition of the unit.

<><><><>

The Branch considers condition reports when deciding claims or other matters. The Branch generally accepts condition reports as evidence as long as:

- the landlord gave the tenant a reasonable chance to complete an unsigned report; or
- the report isn't changed after the landlord and tenant sign it.

Procedure

Overview A landlord or tenant asks an officer for help because the other person is refusing to do a condition report. The officer contacts the landlord and tenant to discuss the problem. The officer tries to mediate. If mediation is not successful, the officer may make a decision.

-
- Steps ▼**
- 1.The officer reviews the complaint and contacts the person who is refusing to complete a condition report. The officer explains the requirement to do a report if either a landlord or tenant ask for one.
 - 2.The officer then speaks to both the landlord and tenant to try to arrange a time to complete the report.
 - 3.If mediation if not successful, the officer may:
 - order the landlord or tenant to complete the report; or
 - allow the landlord or tenant to complete the report with a third party as a witness.

X-Referencing	For information on mediation, see Section 1. For information on claims against security deposits, see Security Deposit Claims – Guidelines for Decision in Section 10.
Policy Developed	March, 2004
Last Revision	May, 2015
Other Resources	None

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Section 2	Tenancy Agreements
Sub-Section 2.1	Assignment and Subletting

Legislation

[s. 41 – 50, 90, *The Residential Tenancies Act*](#)
[s. 20 *Residential Tenancies Regulations*](#)
[The Condominium Act](#)

Definitions

Assignment: a tenant gives all obligations and rights under a [tenancy agreement](#) to another person. In an assignment, the original tenant will not return to the rental unit, giving up all right to occupy the rental unit for the rest of the tenancy agreement.

Sublet: a tenant gives all obligations and rights in a tenancy agreement to another person, for a time, during the term of the tenancy agreement. In a sublet, the original tenant intends to return to the rental unit before the end of the tenancy agreement.

Subsidized housing a rental unit where the amount of the tenant's rent is based on their income.

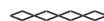
Tenancy agreement: a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied.

Policy

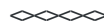
An assignment or subletting is not valid unless the landlord gives written consent. The landlord cannot refuse to give consent unless they have a valid reason.

A tenant can't sublet or assign a rental unit if:

- they're renting subsidized housing; or
- their rental unit is a caretaker's unit or an employee's unit.



A tenant is responsible to find a person to move into their rental unit on an assignment or subletting of the tenancy.



A tenant should talk to their landlord before trying to assign or [sublet](#) a rental unit. The landlord may have a waiting list of potential tenants which might help the tenant rent their unit more easily.

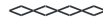
The tenant is responsible to arrange and pay for advertising their rental unit for an [assignment](#) or sublet.



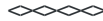
When consenting to an assignment, the landlord can ask the new tenant for:

- a security deposit; and
- payment of the first month's rent.

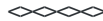
The new tenant is entitled to any [rent discounts](#) offered in the existing tenancy agreement, unless they are conditional discounts. **For example: rent discounts for seniors only**



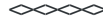
A landlord may charge the original tenant up to \$75.00 for consenting to an assignment or sublet.



A tenant must get their landlord's written approval or consent to assign or sublet a tenancy agreement. But, a landlord must have good reason to refuse an assignment or sublet. **For example: A landlord can review a rental application and decide not to approve a sublet based on the prospective tenant's past rental history, credit references and personal references.**



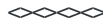
It is not unreasonable for a landlord to refuse to allow an assignment of the last three months of a tenancy. The landlord may say they will only consent to the assignment if the assignee or new tenant agrees to sign a tenancy agreement renewal. This doesn't apply to a sublet since a sublet must end before a tenancy agreement does.



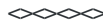
A tenant who wants to assign or sublet should expect that the landlord will want to check the references of a prospective tenant. A tenant should give the landlord a reasonable number of days to check the references. It's not unreasonable for a landlord to take *up to five business days* to do a reference check. It may take longer if some of the references are out of province.



Once a landlord consents to an assignment or sublet, they generally cannot withdraw the consent. However, if a landlord consents before they've had a chance to do a reference check, they should state in writing that their consent is conditional on the outcome of the reference check. A tenant may want to confirm that the landlord's consent is unconditional before they arrange for other housing.

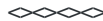


If a landlord refuses to consent to an assignment or sublet, a tenant may ask the Branch to decide if the landlord is being reasonable. In a case like this, the Branch will only decide if and when the tenancy agreement will end. The Branch will not order a landlord to accept an applicant as a tenant.

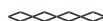


If a tenant who owes rent or has not met other obligations wants to assign or sublet, the landlord can choose to:

- allow the assignment or sublet;
- end the tenancy; or
- hold the original tenant's guarantor, if there is one, responsible for the tenancy agreement.



If the landlord consents to the assignment or sublet, the tenant is still responsible to pay any rent that is outstanding on the date the assignment or sublet takes effect.



There are special rules for tenants who are living in rental units which are converted to condominiums. These tenants have the right to assign their tenancy agreement to another person. They don't have the right to assign their "right to occupy" to anyone else. **For example: A tenant has lived in a building for six years. The landlord converts the building to a condominium. Under *The Condominium Act*, the tenant has the right to stay in the unit for another six years. If the tenant is on a fixed-term agreement, and wants to move early, they can assign the rest of the agreement. They can't assign their right to stay in the unit for six years.**

Procedure

Overview This policy is included as information for landlords, tenants and officers. If tenants and landlords aren't able to solve a problem with an assignment or sublet on their own, they can ask the Branch for help.

Steps ▼ 1. The officer encourages the landlord and tenant to share information and to discuss the problem, to try to come to an agreement.

2. When a tenant or landlord asks the Branch for help with an assignment or sublet problem, an appropriate officer follows the procedures for:

- mediation
- hearings

Forms & Form Letters	Standard Residential Tenancy Agreement Form 1/Residential Tenancies Regulation
	Assignment or Subletting of Tenancy Agreement Form 3/Residential Tenancies Regulation
X-Referencing	For information on mediation , see Section 1. For details on hearings , see Section 11.
Policy Developed	September, 1992*
Last Revision	May, 2015
Other Resources	None

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s. 3(1)(f), *The Residential Tenancies Act*

[Residential Care Facilities Licensing Regulation, M.R. 484/88R](#)

_____ : a place where an individual receives nursing, personal assistance or supervision in their daily living.

_____ : Residential Care Facilities are licensed by the Residential Care Licensing Branch. These facilities are often called "guest homes". They provide non-professional care and supervision to residents who don't need the type of personal care provided by a personal care or nursing home. Services may include room and board and assistance with medication and bathing.

_____ : These facilities are not designated as personal care homes and are not licensed as residential care facilities. Services may include: meals, transportation, organized activities, housekeeping, linen service, 24-hour desk supervision, assistance to arrange nursing or medical care.

The Residential Tenancies Branch does not deal with disputes about licensed residential care facilities or personal care homes.



The Residential Tenancies Branch deals with only certain tenant and landlord questions and disputes about unlicensed residential care facilities

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The Residential Tenancies Branch does not deal with:

- disagreements between tenants and landlords about meals.
- disagreements between landlords and tenants about the quality of an activity the landlord organizes.

This policy is included as information for landlords, tenants and staff. The Residential Tenancies Branch can clarify rights and responsibilities of landlords and tenants of unlicensed residential care facilities. If a tenant isn't certain if the facility they live in is licensed or unlicensed, they can ask the Branch to confirm whether this policy applies to their facility.

-
- ▼ 1.If an officer is uncertain whether a facility is licensed or unlicensed, the officer will contact the Residential Care Licensing Branch.
- 2.If a landlord and tenant of an unlicensed residential care facility can't solve a problem with a tenancy, the officer encourages the landlord and tenant to share information and to discuss the problem to try to come to an agreement.
- 3.When a tenant or landlord asks the Branch for help with a problem, an appropriate officer follows the procedures for:
- mediation
 - hearing

For information on _____, see section 4.
For details on _____, see section 8.
For information on _____, see section 13.

March, 2004

May, 2015

None

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Section 1 General Issues

Sub-Section 1.15 Tenancy Applications

Legislation

[s.16, The Human Rights Code](#)
[s. 3, 6, The Personal Investigations Act](#)

Definitions

Application for Tenancy: a form that a landlord may ask a potential tenant to fill out. An application form:

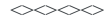
- gives the landlord information to help the landlord decide if the person has the ability to pay the rent;
- usually asks for information about current and previous landlords, character references, employer or source of income, and who to contact in case of emergency;
- sometimes contains terms that create a tenancy agreement once the person is accepted as a tenant (this can happen when no other written document is signed);

Co-signer : a person who signs a tenancy agreement along with the tenant and agrees to be responsible for the obligations of the tenant. **For example: the obligation to pay rent and to pay for damages, etc.**

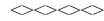
Guarantor: a person who signs a separate agreement and attempts to guarantee that a tenant will meet the specific obligations set out in the guarantee itself. **For example: to be responsible for paying the rent.**

Policy

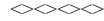
A landlord may ask a potential tenant to complete an application for tenancy before entering into a tenancy agreement. This personal information can only be used in connection with the tenancy. **For example: for considering the tenant's application to rent or for contacting the tenant's relative in case of an emergency.**



In most cases, a landlord will also ask for a security deposit when a tenancy application is filled out.

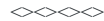


The landlord should let the tenant know, as soon as possible, whether or not they are accepted. A tenant may withdraw their offer to rent a unit, but only if they do it before the landlord tells them their application is accepted.



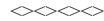
The Personal Investigations Act states that to do an investigation the landlord must either:

- get the tenant's written consent before doing an investigation; or
- notify the tenant in writing that an investigation was done, *within ten days* of granting or refusing tenancy.



The landlord may ask for a co-signer or a guarantor. **For example: A landlord might ask for a co-signer or guarantor when:**

- **the tenant's ability to pay rent is questionable; or**
- **the tenant doesn't have a previous rental record.**



The Branch only provides information on tenancy applications. The Branch does not decide whether or not a landlord has the right to refuse a prospective tenant's application for tenancy.

Procedure

Overview This policy is included as information for landlords, tenants and officers. If a tenant and landlord aren't able to solve a problem with a tenancy application on their own, they can ask the Branch for information.

Steps ▼ 1.If a landlord or tenant have questions about a personal investigation, the officer refers them to:

Consumer Protection Office

302-258 Portage Avenue, Winnipeg MB R3C 0B6

204-945-3800 or Toll-free 1-800-782-0067

Fax 204-945-0728

E-mail: consumers@gov.mb.ca

2.If a landlord or tenant have questions about discrimination, they may contact:

The Manitoba Human Rights Commission

700 - 175 Hargrave St. Winnipeg MB R3C 3R8

204-945-3007 or Toll free 1-888-884-8681

Fax 204-945-1292

E-mail: hrc@gov.mb.ca

Brandon: Room 341 - 340-9th Street,

Brandon MB R7A 6C2

204-726-6261 Fax 204-726-6035 The Pas: 2nd Floor – Otineka Mall

P.O. Box 2550, The Pas MB R9A 1M4

204-627-8270 Fax 623-5404

Toll Free in Manitoba: 1-888-884-8681

Website: www.gov.mb.ca/hr

Forms & Form Letters

X-Referencing

For more information on co-signers, see [Co-signers and Guarantors](#) in Section 2.

Policy Developed

September, 1992

Last Revision

May, 2015

Other Resources

None

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Section	General Issues
Sub Section	Shared Accommodation

Legislation	
Definitions	Implied tenancy agreement For example a tenant pays the rent and a landlord accepts it <u>Shared accommodation</u> For example a student lives in a room in the owner's home and they share food and meals Tenancy agreement

Policy	- For example the individuals who live lived in the house were parent and child siblings i e sisters husband and wife
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Procedure	
Overview	

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Section 1	General Issues
Sub-Section 1.12	Room and Board

Legislation

s. 1(1), 116(1), *The Residential Tenancies Act*

Definitions

Room and board: a living arrangement where the landlord provides both the room and meals.

Tenancy agreement: a contract between a landlord and a tenant for a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied.

Policy

The Residential Tenancies Act, including the rent increase guideline, applies:

- only when there are five or more rooms in a boarding house; and
- only to the room portion of a room and board tenancy agreement.

<><><><>

The Branch has no authority to deal with disagreements between tenants and landlords concerning meals.

<><><><>

Procedure

Overview This policy is included as information for landlords, tenants and officers. If tenants and landlords aren't able to solve a problem with the room portion of a room and board agreement on their own, they can ask the Branch for help.

- Steps ▼**
- 1.The officer encourages the landlord and tenant to share information, and to discuss the problem, to try to come to an agreement.
 - 2.When a tenant or landlord asks the Branch to help settle room and board disagreements, the officer will:
 - get information from the landlord and the tenant;
 - explain that the Branch only deals with the room portion;
 - help the landlord and tenant settle the disagreement through mediation.
 - 3.If mediation isn't successful, the officer refers the file for a decision and Order.

X-Referencing For information on [Mediation](#), see this section.
Details on [Hearings](#) are in Section 11.

Policy Developed September, 1992

Last Revision March, 2004

Other Resources None

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Section 1	General Issues
Sub-Section 1.11	Rent-to-Own or Option to Purchase Agreement

Legislation	no legislative references
Definitions	Option to Purchase agreement: a tenant lives in a rental unit with an option to purchase the unit, usually by a specific date. The landlord may apply some of the tenant's rent to the purchase price, but this isn't always the case. For example: If the tenant buys the house, the landlord will apply 10% of the rent paid to the purchase price. Rent-to-own agreement: a tenant pays rent and an additional monthly payment towards the purchase of the house. Tenancy agreement: a contract between a landlord and a tenant for a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied.
Policy	Option to Purchase and rent-to-own agreements are residential tenancies. <><><><> As long as only part of the money the tenant pays goes towards the purchase price of the unit, it is a landlord and tenant relationship. If all the money goes towards the purchase, it is not a tenancy. <><><><> When preparing a rent-to-own agreement, a landlord should clearly show how much of the tenant's payment is considered rent. For example: The tenant is required to pay \$600.00 each month. The landlord will apply \$200.00 of each payment to the purchase price of the unit. The tenant's monthly rent is \$400.00. <><><><> If a tenant on a <u>rent-to-own agreement</u> doesn't pay, the landlord may file a claim with the Branch. However, the Branch only has the authority to deal with a claim for unpaid rent. Again using the figures above, the Branch could only award a maximum of \$400.00 each month.

Procedure

Overview An officer reviews the rent-to-own contract and helps mediate the dispute. If an agreement can't be reached, the officer makes a decision and issues an Order.

If the agreement is not a tenancy agreement, the officer refers the buyer and seller to their lawyers.

Steps ▼ 1.If a landlord or tenant, in a [rent-to-own agreement](#), asks the Branch for help, an officer will:

- review the agreement; and
- get more information from the landlord and tenant.

2.If it isn't clear whether the agreement is a tenant and landlord contract, the officer may schedule a hearing.

3.If it is a landlord and tenant agreement, the officer will:

- give the tenant and the landlord the information they need;
- offer mediation as a way to resolve problems;
- refer the file for a decision and Order, if mediation isn't successful.

4.If the agreement doesn't create a landlord and tenant contract, the owner and buyer should talk to their lawyers about how to proceed .

Forms & Form Letters

X-Referencing

For information on [Mediation](#), see this section.
For details on [rent increases](#), go to Section 13.
For more information on [Claims for Compensation](#) see Section 9.

Policy Developed

September, 1992

Last Revision

March, 2004

Other Resources

None

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Section 1 General Issues

Sub-Section 1.10 Motel and Hotel Accommodation

Legislation

s. 2, 3(1)(a) and 116(1)(a), *The Residential Tenancies Act*

Definitions

Policy

A room or a suite in a building such as a motel or hotel, may fall under the Branch's jurisdiction, unless it is occupied on a transient (temporary) basis. However, this type of accommodation is always exempt from the rent regulation provisions of the *Act*.

The Branch looks at the circumstances and the agreement between the parties to decide whether hotel-type accommodation falls under the *Act*. Factors that may be considered include:

- whether the occupant has exclusive possession of the rented premises;
- whether the rented premises are the occupant's principal residence;
- the degree of control exercised by the owner, taking into account matters such as keys, curfews, cooking arrangements, cleaning, rules about guests;
- the duration of the occupancy;
- the intent of the parties;
- the terms of the agreement, including any notice provisions;
- whether the occupant has paid a security deposit;
- whether the rent is paid on a daily, weekly or monthly basis

For example: A person who lives in Brandon and checks into a hotel in Winnipeg for a week's vacation at a daily rate is not a tenant under the *Act*. However, a person who has no other residence and moves into a hotel room for an indefinite period at a monthly rent, will probably be considered a tenant. Between these extremes, there is a grey area. Each situation is decided on its own facts.

Procedure

Overview This policy is included as information for landlords, tenants and officers. If tenants and landlords aren't able to solve a problem with a motel/hotel tenancy, they can ask the Branch for help.

- Steps ▼**
- 1.The officer encourages the landlord and tenant to share information and to discuss the problem, to try to come to an agreement.
 - 2.When a landlord or tenant asks the Branch for help with a motel/hotel tenancy issue, an officer follows the procedures for:
 - mediation
 - hearing

Forms & Form Letters Standard Residential Tenancies Agreement
..... [Form 1, Residential Tenancies Regulation](#)

X-Referencing For information on [mediation](#), see Section 1.
For information on [hearings](#), see Section 11.

Policy Developed February, 2004

Last Revision May, 2015

Other Resources None

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Section 1	General Issues
Sub-Section 1.9	Mobile Homes

Legislation

[s. 1\(1\), s. 109 – 114, s. 42-50, *The Residential Tenancies Act*](#)

Definitions

Mobile home: a dwelling that is designed to be mobile and built to provide a permanent residence to one or more people; it does not include a travel or tent trailer.

Mobile home park: a residential complex where two or more mobile homes are located for 60 days or more; it includes the land, structures, services and facilities intended for the common use of the tenants.

Rental unit: any living accommodation, mobile home or site for a mobile home used or intended for use as rented residential premises.

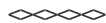
Sublet: a tenant gives all obligations and rights in a tenancy agreement to another person, for a time, during the term of the tenancy agreement. In a sublet, the original tenant intends to return to the rental unit before the end of the tenancy agreement.

Tenancy agreement: a contract between a landlord and a tenant that sets out the basic rules for living in a rental unit. It can be written, oral or implied.

The Residential Tenancies Act and its regulations apply to a tenancy agreement between an owner of a mobile home park (landlord) and a mobile home owner (tenant).

Sometimes a mobile home owner may want to move out of their mobile home and rent the mobile home and the mobile home site to another person. A mobile home owner may, with the written consent of the owner of the mobile home park, sublet the mobile home site to another person.

When this happens, this creates a subtenancy agreement between the owner of the mobile home park, the mobile home owner and the tenant of the mobile home for the rental of the site. At the time of the sublet, the owner of the mobile home park cannot increase the rent for the site since the tenancy is ongoing.



Both the mobile home owner and the tenant of the mobile home are entitled to the benefits under the *Act* and the tenancy agreement. They are both liable to the owner of the mobile home park for any breach of the tenant's obligations under the *Act* or the tenancy agreement for the mobile home site.

If the tenant of the mobile home doesn't meet the obligations under the *Act* or the tenancy agreement for the mobile home site, the owner of the mobile home park can end the tenancy. However, before the owner can do this, they must first give the tenant a written warning or a chance to correct the problem. The owner of the mobile home park must also make all reasonable attempts to give the mobile home owner a copy of the warning and reasonable time to correct the problem.

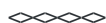
For example: A tenant is noisy and disturbs the other people in the mobile home park. The owner of the mobile home park must tell the tenant there is a problem. They must warn the tenant and mobile home owner, in writing, that they will give the tenant notice if they receive any more complaints.

When the mobile home owner receives a copy of a warning from the park owner that the tenant is breaching the *Act* or the tenancy agreement for the mobile home site, they may decide to deal with the tenant on their own. A mobile home owner may follow the policies in Notice by a Landlord – Tenant not Meeting Obligations (Other than Rent).

If the tenant or mobile home owner doesn't correct the problem, then the park owner may give a notice of termination of not less than one rental payment period.

In some cases, the owner of the mobile home park may give a *five-day notice*. The park owner may give the shorter notice if a tenant or a guest of the tenant:

- causes extraordinary damage;
- risks the health and safety of other people in the mobile home park;
- unreasonably disturbs the other people in the mobile home park.
- Whenever possible, the park owner should still give the tenant and mobile home owner a warning before giving a *five-day notice*.



There is a separate tenancy agreement between the owner of the mobile home and the tenant for the rental of the home. Under that separate agreement, the mobile home owner is the landlord. The *Act* and the regulations also apply to these tenancy agreements. The mobile home owner has the benefits and obligations of a landlord under the *Act* and the tenancy agreement. The tenant has the benefits and obligations of a tenant under the *Act* and the tenancy agreement. The mobile home owner can set the rent on the mobile home. (See Setting Rent on New or Previously Exempt Rental Units and Rent Increase for New Tenants in Section 13).

Procedure

Overview This policy is included as information for landlords, tenants and officers. If tenants and landlords aren't able to solve a problem with a mobile home tenancy agreement or a mobile home site tenancy agreement, they can ask the Branch for help.

- Steps ▼**
1. The officer encourages the landlord and tenant to share information and to discuss the problem, to try to come to an agreement.
 2. When a landlord or tenant asks the Branch for help with a mobile home tenancy issues, an appropriate officer follows the procedures for:
 - mediation
 - hearings
 - rent increases

Forms & Form Letters Standard Residential Tenancy Agreement (Mobile Homes and Sites)
.....[Form 2/Residential Tenancies Regulation](#)

X-Referencing For information on mediation, see [Mediation](#) in Section 1.
For more details on [Assignment and Subletting](#), see Section 2.
For information on hearings, see [Hearings](#) in Section 11.
For information on [Rent Increases](#), and [Mobile Home Parks – Licence Fees & Municipal Taxes](#), see Section 13.

Policy Developed February, 2004

Last Revision May, 2015

Other Resources None

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Section 1	General Issues
Sub-Section 1.8	Mediation

Legislation

[153. *The Residential Tenancies Act*](#)

Definitions

Brainstorm: a discussion with people to explore potential options and solutions.

Claimant: a landlord, tenant or [co-signer](#) who makes a claim against another.

[Conference call](#): a telephone call involving a mediation officer and the people involved in a dispute.

Face to face mediation: a meeting where the people involved in a dispute and a mediation officer come together to discuss a problem.

Ground rules: basic rules of conduct. For example: no interrupting when someone is speaking, polite language, respectful behaviour, etc.

Mediation: a confidential process the Branch uses to help people discuss problems, think of possible solutions and reach their own agreements. Mediation can take place in meetings, conference calls or separate telephone conversations.

[Mediated agreement](#): a written document a mediation officer prepares to outline an agreement between a claimant and respondent or if there isn't a claim filed, between affected parties. Mediated agreements are confidential. They are not a matter of public record.

Mediation officer: a neutral third person. An officer who doesn't take sides or pass judgement, but helps people reach their own agreement.

Order: instructs the claimant and respondent, in writing, to either pay money, move or do something. Example 1: The landlord shall pay the tenant \$500.00 compensation for their moving expenses on or before March 31, 2002. Example 2: The tenant shall move out of the rental unit on March 31, 2002.

Respondent: a landlord, tenant or co-signer against whom a claim is made.

Policy

The Branch tries to mediate all disagreements between people, except for complaints about rent increases. Rent increase decisions are based on procedures set out by *The Residential Tenancies Act* and regulations.

Mediation is available from the time a dispute arises. However, mediation can only happen if everyone agrees to participate.

<><><><>

■ A mediation officer will:

- focus on helping people solve the problem;
- oversee the discussion, identify common ground and help people look at possible solutions;
- make sure that the agreement is allowed under *The Residential Tenancies Act*;

- keep discussion going.

■ A mediation officer won't:

- decide who is right or wrong;
- solve the problem, but will help people reach their own agreement;
- offer legal advice;
- judge guilt or innocence;
- take sides.

<><><><>

Mediation is a confidential and voluntary process.

If mediation isn't successful, the Branch may make a decision or issue an Order. When making a decision or issuing an Order, the Branch doesn't consider any offers or counteroffers people may have made to try to resolve the problem. The Branch also doesn't consider any information provided by a party during mediation unless that party asks that the information go to a hearing officer. For example: estimates or quotes for work to be done, third party statements.

<><><><>

The parties involved in a dispute can't ask a mediation officer to give evidence.

<><><><>

When there is a mediated agreement, it is binding. If either party doesn't live up to the terms of an agreement, the Branch may issue an Order to comply. Section 153(5) of the *Act* gives the Branch the authority to issue the order. The mediation officer is responsible to confirm the terms of the Order. However, another officer or manager will actually issue the Order. If the Branch issues an Order, it's a matter of public record and can't be appealed.

<><><><>

When a landlord gives a tenant a warning letter or a notice of termination, either the landlord or tenant may ask the Branch to try to resolve the problem through mediation. In some cases, the tenant might agree to move on a specific date. The Branch can issue a mediated agreement to confirm that the tenancy will end on that date. If the tenant doesn't move as agreed, the landlord can ask the Branch to issue an Order of Possession. The landlord does not have to complete an Application for an Order of Possession and attend a hearing. However, to receive an Order, the landlord must pay \$60.00, the same amount as the filing fee for an Application.

<><><><>

A mediated agreement often includes a plan for a tenant to pay a landlord specific amounts on specific dates. If the tenant misses a payment or pays late, the Branch can order the tenant to pay the outstanding balance, unless the mediated agreement says otherwise.

<><><><>

In some cases, a claimant may agree to reduce the amount of their claim and allow the respondent to make payments on the reduced amount. When this happens, the claimant may ask that, if the respondent doesn't pay:

- the Branch cancel the agreement and schedule a hearing to consider the claimant's original claim; or
- the Branch order the respondent to pay the amount shown on the original claim.

The mediated agreement will show the terms of the agreement and what will happen if the respondent defaults on a term.

<><><><>

When mediating a claim for compensation or order of possession, the Branch tries to speak to everyone named on the claim form or application. In some cases, the Branch may not be able to contact all of the respondents. If the claimant decides to go ahead with a mediated agreement, the agreement is only binding on the person or people the Branch speaks to directly.

<><><><>

When a claimant files a claim against more than one person, each respondent may offer to pay a portion of the claim. If the claimant agrees to accept the offer, the mediated agreement may show how much each respondent is responsible to pay. The agreement will also show what will happen if one of the respondents doesn't pay. The agreement may show that the claimant will receive an Order against the one person who doesn't pay or an Order against all the respondents.

When helping a landlord and tenant come to an agreement, the Branch always tells a landlord and tenant about the sections of the *Act*, the regulations and the policies that cover their situation. The Branch won't issue a mediated agreement that includes something that is against the *Act* or the regulations.

However, sometimes a landlord and tenant may want to include something in a mediated agreement that's contrary to Branch policy. For example: A tenant may agree to a landlord's full claim for costs even though, because of policy, the Branch may not award all the costs at a claim for compensation hearing. If, after getting all the information, a landlord or tenant may still want to agree to something outside a policy, the Branch will include it in the agreement. In the agreement, the Branch will show that the landlord or tenant knew about the policy, but chose to do otherwise.

Procedure

Overview A landlord or tenant contacts an officer with a problem or complaint. An officer may also contact a claimant and respondent after a claim for compensation or Application for an Order of Possession is filed with the Branch. Based on the information given and the kind of complaint, the officer may attempt mediation. The officer then outlines the process and describes what a mediation officer does. If people agree to try mediation, the officer works through basic steps to get an agreement.

- Steps ▼ 1. The officer explains both the mediation and decision making process to the parties. If they agree to try mediation, different approaches can be used, depending on the dispute. For example: If the disagreement can be easily discussed, mediation can be done over the telephone or by mail. If it is more complex, it might be necessary to have a more formal mediation.
2. Mediation, whether in person or on the telephone, has four basic stages
- In stage one, the officer:
 - makes introductions;
 - states the reason for the meeting, conference call or telephone call;
 - describes the mediation officer's job;
 - stresses confidentiality;
 - outlines the steps or stages in mediation;
 - sets the ground rules for the discussion;
 - gets people to agree to go ahead with the discussion;
 - encourages a commitment to mediation.
 - In stage two, the officer:
 - gets a basic or better understanding of the issue by letting each person briefly describe their situation;
 - lets people hear each other's explanation, as it's told to someone else;
 - may need to have a private discussion or caucus, with either party;
 - begins to pick out key issues;
 - summarizes and confirms the issues that need to be dealt with.
 - In stage three, the officer:
 - asks the parties to talk about the things that concern them;
 - emphasizes areas of agreement and starts to work towards solving the problem;
 - encourages the parties to brainstorm and come up with possible solutions to their problems;
 - lets the parties comment on any information they hear;
 - makes sure that the possible solutions are allowed under *The Residential Tenancies Act*.
 - In stage four, the officer:
 - makes sure everyone has a common understanding of how the issues have or will be dealt with;
 - writes down, in words of the parties, what they agreed to, including amounts of money, dates and deadlines;
 - makes sure everyone is clear on who will do what, where, when, how and why;
 - reads the agreement out loud and gets everyone's approval;
 - mails a written copy of the telephone mediated agreement to both the claimant and respondent. In these cases, a *seven-day grace or review period* is given, to make sure that the written agreement is correct.
 - has the parties sign the agreement if the mediation is done in person; the mediation officer also signs the agreement as a witness. People can have a lawyer or an advisor read the agreement over before signing it.
3. If one party doesn't live up to the agreement, the other party can apply to the Branch for an Order based on the mediated agreement. This Order can't be appealed. This order is a matter of public record.
4. If the parties don't agree to mediate or can't reach an agreement, two things can happen:
- there could be a hearing; or
 - another officer reviews the file and makes a decision.

The information received during the mediation is not considered in the decision.

X-Referencing For more details on [Enforcing an Order](#), see Section 10.

Policy Developed September, 1992*

Last Revision May, 2015

Other Resources None

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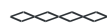
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[s. 3, 152\(1\), The Residential Tenancies Act](#)
[The Residential Rent Regulation](#)
[The Condominium Act](#)
[The Cooperatives Act](#)
[The Life Leases Act](#)

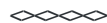
.....
.....: a person or corporation who borrows money from another person, mortgage company or financial institution to finance a property.
.....: a person, mortgage company or financial institution that takes a mortgage interest in a property as security for a loan.

.....
The Branch has exclusive authority to investigate, mediate and determine a question or matter under [The Residential Tenancies Act](#) and [The Life Leases Act](#).

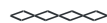


The Branch has the jurisdiction to deal with certain sections of [The Condominium Act](#). The Branch may:

- decide a tenant's term of occupancy when a landlord converts a residential complex to a [condominium](#);
- grant or deny a condominium corporation's Application for an Order of Possession.



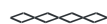
The Branch also receives annual [reserve fund statements](#) from condominium corporations.



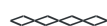
At the request of the parties, the Branch may also arrange for arbitration of a dispute between a condominium corporation and a unit owner or a dispute between unit owners.



The Branch gives general information on the other sections of [The Condominium Act](#). For more specific information or advice, people should speak to their own lawyer.



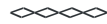
The Branch has very limited [jurisdiction](#) to deal with [housing cooperatives](#). The Branch may consider a cooperative's Application for an Order of Possession. However, it cannot offer mediation as a way of resolving the application. The Branch can only review the procedures to ensure the cooperative followed the required steps. The Branch does not have the authority to consider whether the directors had a valid reason or grounds under the cooperative's bylaw for issuing a notice of termination.



The Branch doesn't have the authority to resolve a dispute involving a breach of a mortgage agreement. When a [mortgagor](#) and mortgagee sign a mortgage agreement or any other security agreement, they usually don't intend

to create a landlord and tenant relationship. Some mortgage agreements mention that the mortgagor will become a tenant if they default on their mortgage payments. This wording isn't enough to create a tenancy agreement.

The owner becomes a tenant only when they enter into an actual tenancy agreement with the mortgagee or new owner. The Branch can deal with claims, applications and any other issues under these arrangements.



The Branch doesn't have jurisdiction to deal with occupancy arrangements that are set up under marital separation agreements. **For example: As part of a separation agreement, a husband remains in the house and pays compensation to the wife for the right to live in the house.** Since there was no intent to create a landlord/tenant relationship, the Branch has no jurisdiction.

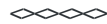
The Branch doesn't have jurisdiction to decide who is right or wrong in a dispute between tenants or order one tenant to pay compensation to another.

The Branch also doesn't have jurisdiction to resolve a dispute about:

- a commercial lease ;
- an agreement for sale;
- shared accommodation ; and
- units not covered by the Act or regulations.



The Branch may have jurisdiction to determine a matter involving a landlord and a corporate tenant if the facts show that a residential tenancy exists. The Branch considers the length of time the occupant of the unit lives there, whether they are required to take their personal belongings with them if they leave for a period of time and whether the agreement between the landlord and the corporate tenant specifies the name of the occupant.



A landlord or tenant may dispute the Branch's jurisdiction to deal with an issue. If the issue involves a claim for compensation or an Application for an Order of Possession, the Branch hears the information and evidence on both the jurisdiction issue and the claim or application at a hearing. If the Branch decides it has jurisdiction, it issues a decision on both the jurisdiction and the claim or application. If the Branch decides it doesn't have jurisdiction, then the decision deals only with the jurisdiction issue.

In some cases parties may ask the Branch to determine if the Act applies to their situation. **For example: A person living in the basement of a home asks the Branch to decide if they are a tenant.** In this case, the Branch makes a decision on jurisdiction and bases the decision on either written submissions from the parties or information received at a hearing or both.

.....

..... A landlord or tenant files a claim or application with the Branch or ask the Branch for help. The officer learns that either the landlord or tenant questions the Branch's jurisdiction to deal with the claim, application or issue. The officer provides information and, if necessary, may make a decision about the Branch's jurisdiction.

..... ▼ 1. The officer receives information that either the landlord or tenant questions the Branch's jurisdiction.

2. The officer contacts the person who questions the authority. The officer explains the Branch's role and jurisdiction.

3. If necessary, the officer may schedule a hearing to consider whether or not the Branch has jurisdiction. If there is already a scheduled hearing for a claim or application, the officer explains that the jurisdiction question will be dealt with at the hearing along with the claim or application. The officer notes on the file that there is a question on jurisdiction.

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For information on; see this section.

For more information on and; see section 8.

For details on; see section 11.

..... [October, 2002](#)

..... [May, 2015](#)

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Section 1	General Issues
Sub-Section 1.6	Investigation

Legislation	<u>s. 140, 152, <i>The Residential Tenancies Act</i></u>
Definitions	Investigation: the gathering of information, statements and evidence through telephone calls, interviews, inspections and any other appropriate way an officer finds necessary. Mediation: a confidential process that the Branch uses to encourage and help tenants and landlords discuss problems, think of possible solutions and reach their own agreements. Mediation can take place in meetings, conference calls or separate telephone conversations.
Policy	The Branch can investigate, or closely examine, the details of complaints received from landlords and tenants when evidence suggests a serious breach of the <i>Act</i>. Investigations can vary in depth, depending on the issue. The Branch might also do an investigation if it decides it needs more information before issuing a hearing decision.

Procedure

- Overview If a landlord or tenant contacts an officer with a problem or complaint, the officer first suggests mediation. If the tenant and landlord can't agree, an officer makes a decision. In some cases, there may be an investigation. Based on the kind of complaint, and information required, the officer follows basic steps and either:
- makes a report or recommendation to another officer; or
 - makes a decision and issues an Order.

- Steps ▼
- 1.The officer contacts both the tenant and landlord in person, by telephone or mail.
 - 2.The officer outlines the processes that may be used to resolve the problem:
 - investigation/decision making
 - mediation
 - 3.If the landlord and tenant don't want to try mediation, the officer will ask them for more information on the problem. The officer may take written statements from both the landlord and tenant.
 - 4.After the officer has a basic understanding of the issue, they may contact other people who have information about the problem. For example: other tenants, witnesses, case workers, health or building inspectors, police officers, etc. The officer may ask these people for written statements or other evidence, like copies of records, reports or receipts.

In some cases, the officer may go to the rental unit or residential complex to look at evidence, take pictures or interview witnesses or neighbours in person.
 - 5.Once all the facts are collected, the officer:
 - makes a decision, based on those facts, and issues an Order. Both the landlord and tenant get a copy of the Order; or
 - writes a report for the hearing officer, if the investigation was done for a hearing. The report details specific findings, conclusions and may include a recommendation. Both the landlord and tenant get a copy of the report. The hearing officer then arranges to reconvene the hearing. The tenant and landlord can comment on the report at the hearing. The hearing officer makes a decision, based on all the evidence and the report. The hearing officer issues an Order and both the landlord and tenant get a copy.

Forms & Form Letters

X-Referencing For more details on [Mediation](#), see this section.
For details on [Hearings](#), see Section 11.

Policy Developed September, 1992

Last Revision March, 2004

Other Resources None

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The diagram illustrates a mapping between a set of points and a set of lines. On the left, there is a grid of points. On the right, there is a grid of lines. The points are arranged in a grid, and the lines are arranged in a grid. The diagram shows how a set of points can be mapped to a set of lines, and vice versa.

[illegible]

The diagram illustrates a sequence of points and a triangle. The top part shows a sequence of points with a triangle formed by the first three points. The bottom part shows a sequence of points with a triangle formed by the first three points.

.....

..... For more information on [.....](#), see this section.
For details on [.....](#), see Section 11.

..... September, 1992*

..... March, 2004

..... None

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Section 1	General Issues
Sub-Section 1.3	Elections

Legislation [s. 66\(2\), *The Residential Tenancies Act*](#)
[s. 1, 30.3\(1\), 53\(1\), *The Elections Act \(Manitoba\)*](#)

Definitions
Election sign : a poster, banner or other advertisement that promotes a person or a political party running in an election campaign.
Enumerator : a person who is responsible for creating a list of the people in a specific area who are eligible to vote in an election.

Election Signs

A tenant may display an election sign in their rental unit during an election campaign. The sign must be on the inside of the window or the inside of the balcony.

The tenant may put a sign in the yard if the tenant is the only person entitled to use the yard. For example: a tenant living in a side-by-side duplex with their own yard may put up a sign.

The tenant is responsible to repair any damage the sign may cause.

The tenant must remove election signs the day after the election.

The landlord may post an election sign in the common area of the building or complex.

A landlord may not place an election sign in a yard where the tenant has the exclusive use of the yard.

Access by Enumerator

To prepare a voters' list, an enumerator must go to each house in their area. In an apartment building or residential complex, an enumerator must go to each rental unit. If there is a security system on the entrance doors to a complex, the landlord is responsible to ensure that the enumerator can get into the building. In an urban area, an enumerator may have to go into a building at least twice to try to get the information they need.

<><><><>

If a landlord refuses to allow access to an enumerator, the enumerator should contact their returning officer or Elections Manitoba.

Access by Political Candidate or Authorized Representative

A landlord can't prevent political candidates or their representatives from going into a residential complex to speak to the tenants or hand out pamphlets. A landlord also can't limit access in a complex, as long as the candidate is not interfering with the normal operation of the complex. For example: A landlord can't say that political candidates can only leave their pamphlets in a central recreation room.

<><><><>

A landlord is only required to allow access to candidates once the date for the election is set. A person is considered a candidate only after the election is called.

<><><><>

A landlord does not have to make special arrangements to allow candidates into secure buildings. Candidates must arrange for access with a tenant or a resident manager. If a candidate asks a resident manager for access, the manager must allow access as long as the candidate or their representative has proper identification and it's during reasonable hours.

Procedure

Overview If a landlord refuses access to a political candidate, the candidate or their authorized representative may contact the Branch.

If a landlord and tenant disagree about how and where an election sign is posted, they can ask the Branch for help. The officer explains the guidelines and helps mediate an agreement. If mediation isn't successful, an officer may make a decision and issue an Order.

Steps ▼ 1. The officer encourages the tenant and landlord or the landlord and the candidate to share information, and to discuss the problem, to try to come to an agreement.

2. When a landlord or tenant or candidate asks the Branch for help with an election sign problem or an access complaint, the officer follows the procedures for:

- mediation
- hearings

X-Referencing For procedure on [Mediation](#), see this section.
For information on [Hearings](#), see Section 11.

Policy Developed September, 1992*

Last Revision March, 2004

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Section 1 General Issues

Sub-Section 1.4 Entitlement to Collect Rent

Legislation [s. 1,51, *The Residential Tenancies Act*](#)
[s. 204, *The Condominium Act*](#)

Definitions **Mortgagee**: a person, mortgage company or financial institution that takes a mortgage interest in a property as security for a loan.

Notice of Attornment: a notice to a tenant to pay rent to a mortgagee or someone the mortgagee designates instead of to the landlord.

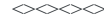
Notice of Garnishment: a notice to a tenant to pay rent to Court of King's Bench or Canada Revenue Agency to satisfy an unpaid debt or judgement of a landlord.

Policy

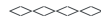
This policy does not apply to situations where the Branch re-directs rent.

Occasionally tenants receive notice to pay their rent to someone other than their landlord. This happens most frequently when:

- the landlord doesn't make their mortgage payments; the mortgagee gives the tenants a Notice of Attornment;
- the landlord doesn't pay their common element fees for a rental unit in a condominium complex; the condominium corporation gives the tenant a simple notice to pay them the rent;
- the landlord owes money to Canada Revenue Agency; Canada Revenue Agency issues a Notice of Garnishment;
- there is a change of landlord.

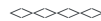


Often when a tenant receives this kind of notice, they worry about the landlord's reaction. They're concerned that the landlord may give them notice to move if they pay the rent to someone else.

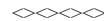


When someone other than a landlord wants to collect rent, the Branch suggests that they give the tenants a signed written notice:

- outlining the reason why they want the rent. **For example: The landlord has not paid the mortgage for the rental unit or residential complex.;**
- explaining their right to collect the rent. **For example: The landlord signed a mortgage agreement giving the mortgagee the right to collect rent if the landlord missed mortgage payments.;**
- advising the tenant that they will protect the tenant against any claim by the landlord for the rent; this is often called an "indemnification" or "save harmless" clause.



The Branch generally uses mediation to resolve "entitlement" disputes. But if there's a dispute or disagreement, the Branch has the authority to decide who is entitled to receive rent.



If a tenant pays rent to someone other than their landlord, the landlord may try to terminate the tenancy for non-payment of rent. The landlord may also apply to the Branch for an Order of Possession. As long as:

- the tenant provides proof that they paid their rent; and
- there is evidence to show that the person who collected the rent was entitled to receive it;

it's unlikely the Branch would make an Order against the tenant.



When a mortgagee collects rent, the Branch considers them to be a landlord. They are then responsible for all the duties of a landlord under the *Act* and any tenancy agreement. The mortgagee must give each tenant a Notice to Tenant–Change of Landlord form with the new landlord's name and phone number and information on the tenant's security deposit.

Procedure

Overview A tenant contacts the Branch because they've been asked to pay rent to someone other than their landlord. An officer contacts all involved parties to try to resolve the issues. If necessary, the officer makes a decision on who is entitled to the rent.

- Steps ▼**
- 1.The officer encourages the tenant to discuss their concerns with their landlord and whoever is trying to collect the rent.
 - 2.If there is a dispute between the landlord and the other party over the rent, the tenant may ask the Branch to decide who is entitled to the money.
 - 3.The officer contacts the landlord and the other party to discuss the tenant’s concerns. If necessary, the officer may ask the landlord and the other party for information to support their claim of entitlement to the rent.
 - 4.If the officer is not able to resolve the problem through mediation, the officer may order the tenant to pay their rent to the Branch. The Branch holds the rent until there is a decision on who’s entitled to the money.
 - 5.The officer reviews the information received from the landlord and other party. The officer issues a decision about who is entitled to the rent. In some cases, the officer may hold a hearing to decide the case.
 - 6.Anyone directly affected by the officer’s decision may appeal it to the [Residential Tenancies Commission](#).
 - 7.If there is no appeal and the Branch holds rent, the officer pays the money to the person who is entitled to receive it. If there is an appeal, the Branch continues to hold the money until there is a final decision.

Forms & Form Letters Notice to Tenant-Change of Landlord
[Form 6/Residential Tenancies Regulation](#)

X-Referencing For more information on mediation, see [Mediation](#) in this Section.
 For details on rent redirects by the Branch, see [Repairs](#) in Section 4 and [Utilities](#) in Section 5.
 For details on hearings, see [Hearings](#) in Section 11.

Policy Developed March, 2004 *

Last Revision February, 2024

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s. 152(1), 154(1), 195(1), *The Residential Tenancies Act*
-

.....for the purpose of this subsection, an agent is a person or company that has the authority to act for another.

.....a person or company that a landlord or tenant hire to collect money owing.
-

A landlord or tenant can hire a collection agent to collect money owing.

◇◇◇◇◇

A landlord or tenant must give a collection agent written permission to file a claim on their behalf. Once this is done, the Branch will deal with the collection agent as the landlord’s or tenant’s agent. Information, decisions and Orders are sent to the collection agent. The Branch doesn’t send the decision or Order to the person who hired the collection agent unless the Branch receives specific instructions to do so.

◇◇◇◇◇

Either a landlord or tenant can again become personally involved in their claim, instead of having the collection agent act on their behalf. In these cases, the Branch must get specific instructions from either the tenant or landlord on where the decision is to be sent.

◇◇◇◇◇

A landlord or tenant contacted by a collection agent has the right to dispute the claim to the Branch. The person contacted by the collection agent should also write a letter to the agent to say that they have asked the Branch to resolve the claim. The Branch has exclusive authority to investigate, mediate and make decisions on claims relating to residential tenancies.

A collection agent can’t restrict or try to restrict a landlord or tenant’s right to participate in Branch proceedings. If a collection agent interferes, they may be guilty of an offence under the *Act*. The Branch may consider prosecution.
-

..... This policy is included as information for tenants, landlords and officers. If landlords and tenants aren’t able to solve a problem that involves a collection agent on their own, they can ask the Branch for help.

- ▼ 1.The officer receives a call or written complaint.
- 2.The officer finds out how the landlord and tenant have tried to solve the problem.
- 3.The officer contacts the tenant and landlord, and any other person who may have information about the dispute.
- 4.The officer encourages the landlord and tenant to share information, and to discuss the problem, to try to come to an agreement.
- 5.The officer follows the procedures for:
 - [mediation](#)
 - [hearings](#)

.....

..... None

..... September, 1992

..... May, 2015

..... None

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Section 1	General Issues
Sub-Section 1.1	Bankruptcy

Legislation

s. 46(1), *The Landlord and Tenant Act*
The Bankruptcy and Insolvency Act

Definitions

The definitions in this subsection are for the purpose of this policy only. They may not be the same as the definitions in *The Bankruptcy and Insolvency Act*.

Assignment in bankruptcy: a document compiled by a Trustee in Bankruptcy and signed by a debtor. The debtor also completes a Statement of Affairs to show their assets and liabilities. An assignment gives the Trustee control over the debtor's assets, other than those assets which are exempt under *The Executions Act*. The Trustee may sell the assets so that dividends are payable to the debtor's creditors. To establish a claim, creditors file a Proof of Claim with the Trustee. A creditor cannot prevent a debtor from filing an assignment in bankruptcy.

Claimant: a person who makes a claim against another.

Consumer proposal: a proposal prepared by a debtor and an administrator and filed with the Office of the Superintendent of Bankruptcy. The proposal lists the creditors and allows the debtor to negotiate with their creditors to reduce their debt or extend the time to pay it. A consumer proposal may be accepted or rejected by the creditors in accordance with the procedures established under *The Bankruptcy and Insolvency Act*.

Discharge in bankruptcy: first time bankrupts can be automatically discharged nine months following the date of bankruptcy, unless a creditor files a notice of objection. A court ordered discharge is required in all other instances.

Respondent: a landlord, tenant or co-signer against whom a claim is made.

Trustee in bankruptcy: a person who is licensed or appointed under *The Bankruptcy and Insolvency Act*. The powers and duties of a Trustee are set out in *The Bankruptcy and Insolvency Act* and numerous policy directives issued by the Superintendent of Bankruptcy.

Policy

An assignment in bankruptcy or a consumer proposal has an impact on how the Branch deals with disputes between landlords and tenants.

•Application for an Order of Possession

An Order of Possession is not a claim provable in bankruptcy. The Branch can hear an application even though a tenant:

- may have filed for bankruptcy;
 - may have filed a consumer proposal; or
 - is a discharged bankrupt.
-
- *assignment in bankruptcy:* • Whether a tenant filed an assignment in bankruptcy or is a discharged bankrupt, the Branch may grant an order of possession for rent owed from before or after the date of the assignment. • The Branch may grant the order of possession even though the landlord may have filed a Proof of Claim for the rent

with the Trustee in Bankruptcy. In these cases, the Branch can order the tenant to move, but can only award compensation for rent arrears from the date of the assignment. A claim for rent or other compensation which arose before the date of the assignment are claims provable in bankruptcy. The Branch does not have authority to deal with these claims as they are stayed under The Bankruptcy and Insolvency Act.

- *consumer proposal*: If a consumer proposal has been filed and/or accepted, the Branch can't grant an order of possession on rent owed from before the date of the proposal. The Branch can't award compensation for rent or other claims for compensation which arose prior to the consumer proposal. A claim for rent or other compensation which arose before the date of the assignment are claims provable in bankruptcy. The Branch does not have authority to deal with these claims as they are stayed under The Bankruptcy and Insolvency Act.

If the consumer proposal was rejected, the Branch may grant an order of possession on rent owed from before the date of the proposal. The Branch may also award compensation for the rent or other claims.

If a tenant does not pay rent as it becomes due, after filing a consumer proposal, the landlord may terminate the tenancy for non-payment of rent and apply for an order of possession and an order for compensation, if necessary.

•Claim for compensation – damage, cleaning costs, other compensation

- *assignment in bankruptcy*: If a tenant moves out of a rental unit after filing an assignment in bankruptcy, the Branch's authority to issue an Order depends on when the claim arose. If the claim arose before the assignment in bankruptcy, the claim is a claim provable in bankruptcy. The landlord may file a proof of claim with the Trustee in Bankruptcy. If the claim arose after the assignment, the Branch may issue an Order. The Branch will determine when a claim arose based on the facts of each case.

The Branch can't award compensation if a tenant:

- moves out and then files an assignment, or;
- files an assignment after the landlord files a claim.

The landlord may be able to keep the security deposit. But, they should talk to the Trustee about keeping the money. If the landlord has a claim for a larger amount, they would have to file a Proof of Claim with the Trustee.

If a tenant files an assignment after the Branch issues an order to pay, the Branch will provide a certified copy of the Order on request. However, the landlord cannot file the Order in the Court of King's Bench. The landlord should contact the Trustee in Bankruptcy to file a proof of claim for the compensation awarded in the Order.

- *consumer proposal*: If a tenant moves out of a rental unit after filing a consumer proposal, the landlord may file a claim for compensation for damage, cleaning costs or other compensation. If the claim arose before the consumer proposal, the Branch can't award compensation. If the claim arose after the consumer proposal, the Branch may issue an Order.

•Claim for compensation – rent

- *assignment in bankruptcy*: When a tenant files an assignment, the Branch can't award compensation for rent the tenant owes from before the date of the assignment. The landlord may file a Proof of Claim for the rent with the Trustee. A landlord may make a claim for any rent the tenant owes after the date of the assignment.
- *consumer proposal*: If a consumer proposal has been accepted, the Branch can't award compensation for rent arrears from before the date of the consumer proposal. The Branch could award compensation for rent arrears after the date of the consumer proposal.

•**Mediated agreements**: If either a landlord or tenant agrees to pay some money and then files an assignment, the Branch can't issue an order to pay the money. The claimant could file a Proof of Claim with the Trustee.

If a tenant agrees to pay or move out and then files an assignment, the Branch may still grant the landlord the order of possession.

•**Order to return a security deposit**: If the Branch orders a landlord to return a security deposit and the landlord is already bankrupt or files an assignment, the Branch will file a Proof of Claim with the Trustee on behalf of the Security Deposit Compensation Fund.

The Branch does not refund a filing fee for a claim or order of possession if either the landlord or tenant files an assignment.

Overview	A landlord or tenant files a claim with the Branch. The Branch receives information that the “respondent” filed an assignment in bankruptcy. The officer advises the “claimant” of the Branch’s authority to issue an Order.
Steps ▼	1.The officer receives information that either a landlord or tenant, named on a claim or order of possession, filed an assignment in bankruptcy. 2.The officer reviews the information and may contact the Trustee for advice. 3.If the Branch has the authority to issue an Order, the officer follows the procedures for: • mediation; • orders of possession; or • claims for compensation. 4.If the Branch is unable to issue an Order, the mediation officer contacts the person who filed the claim or order of possession to explain why the Branch can’t issue an Order. The mediation officer refers the claimant to the Trustee to file a Proof of Claim.

Forms & Form Letters

X-Referencing	For details on Mediation, see Mediation in this section. For information on giving notice for unpaid rent, see Notice of Termination – For Non-payment of Rent in Section 7. For information on claims, see Claims in Section 9. For information on enforcing a security deposit order, see Enforcing An Order to Return a Security Deposit in Section 10.
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Policy Developed	March, 2004*
Last Revision	February, 2024
Other Resources	None

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s. 138, 139, *The Residential Tenancies Act*
s. 6(1) & (2), Residential Rent Regulation

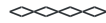
the date on which a landlord is entitled to increase the rent on a rental unit. In some residential complexes, all units have the same anniversary or rent increase date. In other complexes, the anniversary dates may be spaced throughout the year. A landlord can usually increase rent for a rental unit only once every 12 months. A landlord can change the anniversary date on a rental unit by waiting more than 12 months between rent increases.

the amount of money paid by a tenant to a landlord for the right to occupy a rental unit and the use of common areas, services and facilities; rent includes any service/facility for which the tenant pays a separate charge

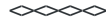
Withdrawal of service: for the purpose of this sub-section, a withdrawal of service also includes reduced services.

Before a landlord withdraws a service, they must:

- give each tenant, affected by the withdrawal, a *three-month written notice*; and
- apply to the Branch to fix the value of the service *at least two and one-half months before the service is withdrawn*.



The Branch supplies both the notice and application forms for the landlord to complete. A landlord may use their own forms as long as they have the same information as the Branch's.



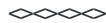
When a landlord applies for a withdrawal of service, the Branch invites the tenants affected by the withdrawal to come to the Branch, during normal office hours, to inspect the landlord's application and supporting material. In exceptional circumstances, the Branch may arrange for tenants to inspect a file outside normal office hours. If the residential complex is outside Winnipeg, Brandon or Thompson, the Branch arranges for the tenants to inspect a copy of the file in or near their community. To inspect a file, tenants must show identification to prove that they live at the residential complex.

The Residential Rent Regulation gives tenants the right inspect the application and the supporting material. The regulation does not give the Branch the authority to provide photocopies of this information. People can make their own written notes about the material.

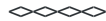
Tenants can comment, in writing, about the application. The landlord has the right to see and respond in writing to any comments the tenants give to the Branch. While tenants and landlords may discuss the file with Branch staff, the Branch will usually consider only written comments when making a decision on a withdrawal of service.

When the Branch issues a decision on an application, it closes its file. Once the file is closed:

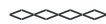
- the tenants are no longer entitled to inspect the landlord's application and supporting material; and
- the landlord is not entitled to inspect the tenants' written comments.



If a landlord's actual costs for providing the service are readily available, the Branch sets the value of the service based on the landlord's costs.



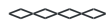
If a landlord's actual costs aren't readily available, the Branch considers the estimated cost to the landlord and sets a value for the service that has been withdrawn.



A landlord may apply to withdraw a service during a fixed-term tenancy agreement. When this happens, the value of the service withdrawn is temporarily based on the tenant's cost to replace it until the end of the agreement.



If there is a month-to month agreement, the tenant's rent is reduced by the amount of the landlord's costs. Using the previous example, the tenant's rent would go down by \$15.00.



When the Branch issues an Order setting the value of a withdrawal or reduction in service, the Branch will also say when the tenants will start to pay the "new" rent. This Order doesn't affect or change the anniversary date on a rental unit.

An officer reviews a landlord's application for a withdrawal or reduction of service, taking into account the information the landlord provides, tenants' comments and the landlord's response to them. The officer calculates the value of the withdrawal or reduction and issues an Order, which includes reasons. Both the landlord and tenants get copies of the Order.

- ▼
1. The officer reviews the application to make sure that:

• the application is properly completed;

• the landlord supplied financial information, invoices, bills or other information to support the application.
2. If necessary, the officer sends the landlord a letter asking for any missing information or supporting material.
3. When the officer has all the information required, they send a letter to all tenants affected by the withdrawal of service. The letter invites the tenants to:

• inspect the information on file; and

• provide written comments.
4. If the officer receives written comments from tenants, the officer will either discuss the information with the landlord by telephone or invite the landlord to inspect and comment on the tenants' statements in writing.
5. The officer considers all the tenant and landlord information, makes a decision, and issues an Order:

• setting the dollar value and the effective date of the withdrawal; and

• reducing the rent by that amount

Notice to Tenant – Reduction/Withdrawal of Service	
.....	Form 8/Residential Rent Regulation
Application to Fix Value of Reduction/Withdrawal of Service	
.....	Form 9/Residential Rent Regulation

None

September, 1993

août 2015

None

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Section 13	Rent Regulation
Sub-Section 13.13	Unauthorized Rent Increases

Legislation s. 52, 140, 185, *The Residential Tenancies Act*

Definitions **Allowable rent:** the maximum amount a landlord can charge for a rental unit; this amount is based on:

- the guideline increases the landlord takes after giving a tenant *three months'* written notice; or
- an Order the Branch issues, setting the rent.

Anniversary date: the date on which a landlord is entitled to increase the rent on a rental unit. In some residential complexes, all units have the same anniversary or rent increase date. In other complexes, the anniversary dates may be spaced throughout the year. A landlord can usually increase rent for a rental unit only once every 12 months. A landlord can change the anniversary date on a rental unit by waiting more than 12 months between rent increases. **For example: The anniversary date on a particular unit was September 1, 2003. The landlord wanted to change the anniversary date to January 1 to coincide with the anniversary dates on the other units in the complex. To change the date, the landlord did not increase the rent on September 1, 2003 but waited for the increase until January 1, 2004.**

Annual rent increase guideline: the percentage that a landlord can increase rent without applying to the Branch for approval. The Government sets the amount each year. The guideline takes effect on January 1. For an explanation of how the annual rent increase guideline is calculated, [click here](#). A landlord can apply for a larger increase if they can show that the guideline will not cover their increases in expenses. The guideline applies to most rental units, including apartments, single rooms, houses, duplexes, mobile homes and mobile home lots. *The Residential Tenancies Act* does not apply to rent increases on land leases.

Order: a written decision the Branch issues when it holds a hearing or determines a matter. The Branch gives written reasons for the decision.

Order to redirect rent: when the Branch orders a tenant or tenants to pay their rent to the Branch, instead of to the landlord; when the tenant receives an Order and pays the Branch, rent is considered paid.

Registry: a Branch computer system that records information on the rents charged for rental units.

Rent: the amount of money paid by a tenant to a landlord for the right to occupy a rental unit and the use of common areas, services and facilities; rent includes any service/facility for which the tenant pays a separate charge (**For example: parking, storage locker.**)>

Policy

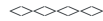
When the Branch receives rent information, including Notice of Rent Increase and Notice to New Tenant forms, the Branch enters the information in its Registry. When the Branch enters the information received, it doesn't mean the Branch has approved the rent. The Branch can't approve the rent because it can't be certain that the tenant received the required notice of the increase and that the information is correct. The Branch can only be certain about the allowable rent after issuing an Order setting the rent.



The Branch reviews the rent information filed with the Branch if the information suggests that tenants may have been or, are about to be charged, more than the allowable rent.



The Branch also reviews the rent information if someone has a complaint or question about the rent a landlord is charging.



The Branch calls this rent review process "rent compliance". Here are some examples of the most common "rent compliance" situations:

- The landlord doesn't give the tenant *three months' written notice* of a rent increase.
- The landlord increases the rent by more than the annual rent increase guideline without applying to the Branch. **For example: The allowable rent is \$500.00 plus \$15.00 parking. The annual rent increase guideline is 1.5% so the rent increase should be \$7.73. The landlord can round to \$8.00 so the new allowable rent is \$523.00. The landlord doesn't apply to the Branch, but raises the rent to \$530.00.**
- A landlord withdraws or reduces a service that is included in a tenant's rent, without applying to the Branch to fix the value of the withdrawal.

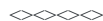
There are two possible situations: 1. The tenant is asked to pay extra for the service that was included in the rent. **For example: There is a recreation room in the building which is open to all tenants. The landlord installs a security system and tells tenants they must now buy monthly passes to use the recreation room.** 2. The tenant continues to pay the same rent, but has a service or privilege removed or reduced. **For example: The rent includes cable TV. The landlord cancels the cable service. Or, the landlord reduces the drying time on the dryers.**

- A landlord increases the rent before the anniversary date. **For example: The anniversary date on a rental unit is May 1. The landlord increases the rent on April 1.**
- A landlord increases the rent more than once in 12 months. **For example: A landlord increases rent on May 1. The landlord then raises the rent again on September 1.**
- The landlord doesn't give a tenant the information required on a Notice of Rent Increase or a Notice to New Tenant form.
- The landlord increases the rent to the average of other similar units, but the Branch's registry doesn't have information that is consistent with the amount the landlord shows as the average.
- The landlord increases the rent for a new tenant because the complex has fewer than four units, but the Branch's registry doesn't have information on the number of units in the complex.



When a landlord gives a tenant a Notice of Rent Increase, the landlord must also send a copy to the Branch. In some cases, a landlord may give the tenant the notice, but neglects to send the form to the Branch. If the Branch does a review, its records will not be complete. If the landlord doesn't send the form to the Branch, the Branch may decide not to roll the rent back if:

- the landlord took only guideline increases; and
- the landlord can demonstrate that they gave the tenant the required notice.



When the Branch reviews rent, the Branch may consider any possible unauthorized rents the landlord charged in past years. The Branch reviews:

- information from its Registry;
- information gathered from current or previous tenants or their representatives; and
- information received from the landlord.

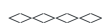
If the landlord refuses to provide information on request, the Branch may attend the landlord's place of business to inspect the records for the residential complex. If the landlord continues to refuse access, the Branch might consider, as a last resort, applying to the Courts for an Order authorizing access.



When the Branch reviews the rent to determine if there's an unauthorized rent increase, the Branch considers:

- the maximum allowable rent during the relevant period;

- the rent the landlord actually collected during that time;
- the amount of money, if any, the landlord must refund to the current tenant or previous tenants; and
- how the landlord must repay the tenants (i.e. rent setoff or refund).



If someone is thinking about buying a rental property, they should ask the Branch to check its Registry for information on the property. A new landlord is liable if a previous landlord didn't comply with *The Residential Tenancies Act*. If there is an unauthorized rent increase, the Branch may:

- roll back the rent on the residential complex to the date of the first unauthorized rent increase;
- order the new landlord to repay unauthorized rent to tenants; the new landlord's liability to repay rent is limited to *a period of two years* before they took over the property; and
- order the previous landlord to repay unauthorized rent to tenants.

If the landlord can show that the tenants received proper notice of the rent increases, the Branch may allow the landlord guideline increases.

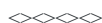
For example: A new landlord purchases a residential complex on March 1, 2004. The new landlord believes the monthly rent on all their units is \$472.00. In May 2004, the Branch becomes aware of a possible unauthorized rent increase which happened in 1999. On January 1, 1999, the former landlord increased the rent from \$375.00 to \$450.00. This was an increase above the guideline, but the former landlord didn't apply to the Branch. The former landlord then took guideline increases from 2000 to 2003. The former landlord provides the Branch with copies of the notices of increase in rent they gave the tenant.

The Branch orders the new landlord to repay the tenants the unauthorized rent collected since March 1, 2002. The Branch also orders the former landlord to repay the unauthorized rent collected from January 1, 1999 to February 28, 2002.

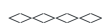
The following chart illustrates the effect of the rent roll back:

Date	Unauthorized Rent	Allowable Rent	Rent Rebate
January 1, 1999	\$450.00	\$379.00	\$71 per month per unit
January 1, 2000	\$455.00	\$383.00	\$72 per month per unit
January 1, 2001	\$460.00	\$389.00	\$71 per month per unit
January 1, 2002	\$465.00	\$397.00	\$68 per month per unit
January 1, 2003	\$472.00	\$401.00	\$71 per month per unit

Since the former landlord may be directly affected by a Branch Order, the Branch sends them a copy of the Order too.



If the landlord applies for an increase above the guideline and the Branch is reviewing any of the rents, the Branch won't process the rent increase application until the review is complete and the landlord adjusts any unauthorized rents.



If the Branch finds that the landlord improperly increased rent on one unit, the Branch may review and set the rents on other units in the complex too.



Section 140.0.1 gives the Branch and Commission the discretion, under certain specific circumstances, to allow a landlord a guideline rent increase when the landlord does not meet all the requirements of the Act for giving a Notice of Rent Increase (NORI) or a Notice to New Tenant (NTNT). This section is intended to give a landlord "one-time relief" from certain requirements of the Act. The authority under the section will only be used when:

- it is the most reasonable and expeditious method of resolving a compliance matter; and
- there is no unfairness to tenants.

If the Branch/Commission allows the landlord the guideline rent increase(s), the Branch and Commission will notify the landlord that they must fully comply with the requirements of the legislation for all future NORI and NTNT. The Branch/Commission will not extend its discretion to the same landlord after rent compliance issues have been resolved under Section 140.0.1

The Branch/Commission may allow a guideline increase if the landlord gave the tenant written notice of the rent increase on an incomplete NORI or in a letter or tenancy agreement renewal. The Branch/Commission must be satisfied that:

- the tenant received the notice at least three months before the rent was increased; and
- the previous rent increase was at least 12 months before the effective date of the proposed rent increase.

If the landlord did not give the required notice on time or increased the rent before the anniversary date, the Branch/Commission may adjust the date of the rent increase during its review.

The Branch/Commission must also be satisfied that the landlord's failure to give the required notice has not resulted in unfairness to tenants. When appropriate, the Branch/Commission may contact the current tenants of a rental unit/complex. The Branch/Commission will ask tenants about the rent increase notice they received and invite them to submit any comments they want the Branch/Commission to consider. In some cases, the Branch/Commission may also speak with previous tenants. In determining whether there was any unfairness, the Branch/Commission may consider:

- if the notice the landlord provided to the tenant contained, at the very least, the date of the proposed increase and the amount of the new rent;
- whether or not the tenant would be prejudiced by a guideline rent increase; and
- any other factors that the Branch/Commission consider relevant.

Once the Branch/Commission completes its review, it may issue an order setting the rent for the rental unit and ordering the landlord to return any resulting overpayments to the tenants.

Procedure

Overview The Branch receives information that suggests a landlord may have charged or has proposed to charge more than the allowable rent. An officer collects, reviews and verifies information. The officer calculates the correct rent. If there is an overpayment, the officer tries to get an agreement with the landlord to refund the overpayment to the tenant. If the landlord won't agree, or doesn't comply with an agreement, the officer issues an Order.

- Steps ▼**
1. An officer receives information that suggests tenants may have been, or are about to be charged, an unauthorized or incorrect rent.
 2. The officer compares the information received with rent information currently on file.

If the rent charged is the allowable rent, the officer notes that the rent is correct and closes the file.
 3. If there appears to be a problem, the officer contacts the landlord to confirm the information currently on file. The officer may contact the landlord by phone, mail or e-mail. The officer asks the landlord for information on the amount of rent charged in past years, and the dates of rent increases. The officer may also explain what the landlord must do to correct any possible unauthorized rents.
 4. If the landlord doesn't correct the rent or send in the required information, the officer calculates the correct rent and overpayment refund, using available information.

The officer sends the landlord a letter, along with these detailed calculations. The landlord has two weeks to:
 - agree with or accept the officer's calculations; or
 - send in new information that changes the calculations.
 5. If the landlord agrees with the officer's calculations, the landlord must tell the officer, in writing, that tenants have received refunds for any overpaid rent. If the landlord can't find a tenant, they must send the money to the Branch to be held for the tenant. The Branch holds the money for two years. If the tenant doesn't claim the money, the Branch deposits it in the Security Deposit Compensation Fund.
 6. If the landlord doesn't agree with the officer's calculations or send in new information *within two weeks*, the officer sends a second letter. This letter states that if the landlord doesn't reply or agree to correct the rent within 5 days, the officer will contact the current tenant to verify the rent information on file.
 7. If the landlord does not agree or send in new information, the officer asks the tenant for more information. For example:
 - rent receipts;
 - cancelled cheques;
 - a copy of a tenancy agreement;
 - a tenant's written and signed declaration or statement of the rent paid;
 - notices of any rent increases;
 - notices to new tenants.
The officer may also get in touch with former tenants to find out what they paid and what services were included in the rent.
 8. Once the officer has the necessary information, the officer issues the Order. The Order will:
 - set the rent to the correct amount;
 - identify the amount, if any, the landlord is to refund to tenants;
 - authorize current tenants to deduct the overpayment from their rent;
 - tell the landlord to pay previous tenants. If the landlord can't find a previous tenant, the landlord must send the money to the Branch.
 9. If the landlord appeals the Order, the officer attends the appeal hearing to provide information on the Branch's file and ask the Commission to confirm the Branch's Order.
 10. If the landlord doesn't pay previous tenants, and the tenants ask the Branch to enforce the Order, the officer may issue an Order to Redirect Rent from current tenants.

Forms & Form Letters

X-Referencing None

Policy Developed September, 1992

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Section 13.	Rent Regulation
Sub-Section 13.12	Tenant Requested Improvement

Legislation [s.59\(1\), 118\(2\), 137, *The Residential Tenancies Act*](#)
[s. 9\(1\), Residential Rent Regulation](#)

Definitions Allowable rent: the maximum amount a landlord can charge for a rental unit; this amount is based on:

- the guideline increases the landlord takes after giving a tenant *three months'* written notice; or
- an Order the Branch issues, setting the rent.

Anniversary date: the date on which a landlord is entitled to increase the rent on a rental unit. In some residential complexes, all units have the same anniversary or rent increase date. In other complexes, the anniversary dates may be spaced throughout the year. A landlord can usually increase rent for a rental unit only once every 12 months. A landlord can change the anniversary date on a rental unit by waiting more than 12 months between rent increases. For example: The anniversary date on a particular unit was September 1, 2003. The landlord wanted to change the anniversary date to January 1 to coincide with the anniversary dates on the other units in the complex. To change the date, the landlord did not increase the rent on September 1, 2003 but waited for the increase until January 1, 2004.

Annual rent increase guideline: the percentage that a landlord can increase rent without applying to the Branch for approval. The Government sets the amount each year. The guideline takes effect on January 1. For an explanation of how the annual rent increase guideline is calculated, [click here](#). A landlord can apply for a larger increase if they can show that a guideline will not cover their operating or capital expenses. The guideline applies to most rental units, including apartments, single rooms, houses, duplexes, mobile homes and mobile home lots. *The Residential Tenancies Act* does not apply to rent increases on land leases.

Rent: the amount of money paid by a tenant to a landlord for the right to occupy a rental unit and the use of common areas, services and facilities; rent includes any service/facility for which the tenant pays a separate charge (For example: parking, storage locker.)

Policy If a tenant asks a landlord to provide an extra service or amenity, the landlord might be entitled to charge extra rent. The Branch sets the amount of the extra rent.

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An improvement is a change or addition to the rental unit or residential complex that increases its rental value. The improvement must be an item or service that isn't included in the rent. Parking stalls which are commonly available for an additional cost aren't considered improvements.

Here are some examples of tenant requested improvements:

- a frost-free fridge when a landlord normally provides only the manual defrost type;
- a window air conditioner in a building with no air conditioning;
- hydro service in a complex where the units are individually metered and the hydro is normally paid by the tenant.

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A tenant requested improvement can't be used to make up for normal wear and tear or to repair damage. If it appears that the improvement is really normal maintenance or upgrading required by law, the Branch may decide not to approve the landlord's application for a tenant requested improvement.

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It's up to the landlord to decide if they want to provide the improvement the tenant requests. The Branch won't order a landlord to provide an item or service that isn't normally included in the rent. For example: A tenant asks the landlord to provide an air conditioner. The landlord declines to provide it for the tenant. Since air conditioning is not a service the landlord usually provides, the Branch won't order the landlord to supply it.

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If a landlord decides to give the tenant what they requested, the landlord must apply to the Branch for an Order to set the value of the improvement. The Branch supplies an application form for the landlord to complete. Landlords may use their own form as long as it has the same information as the Branch's form. The Branch must receive the application *no later than 15 days after the landlord complies with the tenant's request* . The landlord must include a copy of the tenant's written request for the improvement along with the application.

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A landlord may withdraw an application for a Tenant Requested Improvement. But they must withdraw it before they start to provide the improvement or service and charge for it.

A landlord, who adds a service that was not included in the rent before, can only charge for it if:

- the tenant requests the improvement; and
- they apply to the Branch to fix the value of the improvement.

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A landlord and tenant may agree on the monthly charge for the improvement. If there is an agreement, the landlord should include a copy of it with the application. The Branch approves reasonable repayment schedules. If the tenant and landlord don't have a reasonable repayment agreement or schedule, the Branch can try to help them reach one.

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If necessary, the Branch can also determine the amount and number of payments, based on the total cost of the improvement. To determine the number of payments, the Branch may use the guidelines for capital expenditures in the regulations.

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When issuing an Order setting the value of an improvement, the Branch considers:

- the type of improvement or service;
- any agreement between the landlord and tenant;
- the duration of the improvement or service; and
- the initial cost of the improvement, the installation charge, any financing costs and any ongoing maintenance cost.

When the Branch issues an Order, the Branch may do one of the following:

- include the service in the rent for a fixed term, i.e. one year; the landlord would need to apply annually to have the Branch set the value of the service for the coming term; For example: The landlord rents in suite washers and dryers from an appliance company. The landlord applies each year to have the value of the service set based on their contract with the appliance company.
- include the service in the rent permanently; For example: The landlord is responsible to provide hydro as part of the rent.
- include the improvement, but not the charge for it in the rent permanently; For example: The landlord installs better quality carpet in a unit at the tenant's request. The tenant pays for the carpet over a period of months or years. The carpet stays in the unit, even though the tenant isn't paying for it any longer.
- include the improvement in the rent permanently, but order the tenant to pay an ongoing amount for service. For example: The landlord installs an air conditioner at the tenant's request. The tenant pays for the purchase of the air conditioner over a period of months or years. The tenant also pays an amount to cover the ongoing cost for hydro and repair and maintenance.

The Order setting the value of the improvement shows:

- when the tenant will start to pay;
- how much the tenant must pay; and
- how long the tenant must pay for the improvement.

The Order setting the value doesn't affect or change the anniversary date on the rental unit. For example: A landlord increases rent on the anniversary date, June 1, 2004. The tenant starts to pay for the tenant requested improvement on November 1, 2004. On June 1, 2005, the landlord is entitled to increase the rent again.

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If a tenant pays a specific amount for a tenant requested improvement, the landlord should separate that amount from the basic rent on the Notice of Increase in Rent or Notice to New Tenant form. When the landlord increases the rent, they calculate the increase on the basic rent, not on the total amount the tenant pays. For example: The basic rent is \$300.00. The Branch valued the tenant requested improvement at \$50.00 per month. Even though the tenant is paying \$350.00 a month, the landlord calculates the rent increase on \$300.00. If the tenant pays a permanent additional charge for service, the landlord includes the service charge in the rent increase calculation. For example: The basic rent is \$300.00. The tenant requested that the landlord install an air conditioner in their unit. The landlord applied to the Branch. The Branch set the value of the air conditioner at \$50.00 per month for seven months and also allowed the landlord \$10.00 per month for hydro on a permanent basis. When the landlord increases the rent, they calculate the increase on \$310.00.

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When the Branch issues the Order, the Order shows that the improvement is now part of the tenancy agreement. If a tenant doesn't pay the amount set for the improvement, the landlord may consider giving the tenant notice. (See Notice by Landlord – Tenant Not Meeting Obligations Other Than Rent).

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The landlord owns the improvement, unless the tenant and landlord have a different written agreement. The tenant is responsible to leave the improvement clean and undamaged at the end of the tenancy.

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If the Branch approves a tenant requested improvement, the landlord can't include the cost of providing the improvement as an expense in an application for a rent increase above the guideline.

Procedure

Overview	A landlord applies for a tenant requested improvement. The officer reviews the application and approves landlord and tenant repayment agreements that are consistent with costs of providing the improvement. If there isn't a repayment schedule, the officer uses information provided to help the tenant and landlord decide on the amount of the monthly payment and number of payments. The officer issues an Order to fix the value of the improvement.		
Steps ▼	1.	The officer reviews the application and makes sure that the following	supporting material has been included:
		• a copy of the tenant's written request for the improvements; • details of the costs; and • a copy of any repayment agreement.	
	2.	If there is a repayment agreement, the officer makes sure that the total	amount of money that the landlord will
		collect is consistent with the cost	of providing the improvement.
		If it is, the officer issues an Order, setting the amount of monthly	payments and number of payments as
		shown in the application.	
	3.	The officer helps the tenant and landlord decide on the amount of the	monthly payment and number of
		payments if:	
		• a tenant or landlord can't agree on a repayment schedule; or • the repayment amount isn't consistent with the total cost of the improvement.	
	4.	The officer issues an Order, setting the repayment schedule. Both the	tenant and landlord get a copy of the
		Order.	

X-Referencing

For information on withdrawing a service, see [Withdrawal of a Service](#) in this section.

Policy Developed

September, 1993 *

Last Revision

August, 2015

Other Resources

None

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Section 13	Rent Regulation
Sub-Section 13.10	Setting Rent on New or Previously Exempt Rental Units

Legislation	s. 116, 118(1), The Residential Tenancies Act s. 1(3), 3, Residential Rent Regulation
-------------	--

Definitions

Allowable rent: the maximum amount a landlord can charge for a rental unit; this amount is based on:

- the guideline increases the landlord takes after giving a tenant *three months'* written notice; or
- an Order the Branch issues, setting the rent.

Anniversary date: the date on which a landlord is entitled to increase the rent on a rental unit. In some residential complexes, all units have the same anniversary or rent increase date. In other complexes, the anniversary dates may be spaced throughout the year. A landlord can usually increase rent for a rental unit only once every 12 months. A landlord can change the anniversary date on a rental unit by waiting more than 12 months between rent increases. **For example: The anniversary date on a particular unit was September 1, 2003. The landlord wanted to change the anniversary date to January 1 to coincide with the anniversary dates on the other units in the complex. To change the date, the landlord did not increase the rent on September 1, 2003 but waited for the increase until January 1, 2004.**

Annual rent increase guideline: the percentage that a landlord can increase rent without applying to the Branch for approval. The Government sets the amount each year. The guideline takes effect on January 1. For an explanation of how the annual rent increase guideline is calculated, [click here](#). A landlord can apply for a larger increase if they can show that a guideline increase will not cover their increases in expenses. The guideline applies to most rental units, including apartments, single rooms, houses, duplexes, mobile homes and mobile home lots. *The Residential Tenancies Act* does not apply to rent increases on land leases.

Exemption period: a period of time the annual rent increase guideline doesn't apply to a rental unit or residential complex.

Exempt unit: a unit to which the annual rent guideline doesn't apply. Some units are exempt for a specific period of time, for example: 5 or 15 years. Others may be exempt indefinitely, **for example: a unit owned and managed by government or for government**. There is a complete list of the types of units that are exempt in the Act and the regulations.

Notice to New Tenant: a form a landlord must give a new tenant at the beginning of a tenancy. The landlord must send the Branch a copy of the form *within 14 days* of giving it to the tenant. The notice tells the tenant about the services and facilities that are included in the rent. It also shows the previous and present rent for the rental unit and tells the tenant of any proposed rent increase. The Branch provides the form. A landlord may use their own form as long as it has all the information required by the *Act*.

Registry: a Branch computer system that records information on the rents charged for rental units

Rent: the amount of money paid by a tenant to a landlord for the right to occupy a rental unit and the use of common areas, services and facilities; rent includes any service/facility for which the tenant pays a separate charge (For example: parking, storage locker.)

Rent discount: a contractual agreement between a landlord and tenant allowing a tenant to pay less than the allowable rent on their rental unit. A rent discount must be set out in a written agreement and can:

- be for a specific period of time(**for example: one year**);
- be a one-time, "bonus" offer (**for example: one month's free rent**);
- have certain conditions attached to it(**for example: in order to get the discount, rent must be paid on time**).

Policy

New Construction

New buildings where the first occupancy permit was issued after April 9, 2001 or where the first tenant moved in after that date are exempt from the annual rent increase guideline for 15 years.

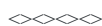
New buildings where the first occupancy permit was issued after March 7, 2005 or where the first tenant moved in after that date are exempt from the annual rent increase guideline for 20 years.

A landlord can set the amount of the rent for the first tenant of the unit and for any other tenants who move in during the 15 or 20 year period. However, once the landlord sets the rent for a rental unit, they cannot increase the rent for 12 months.



Additions to Existing Residential Complexes

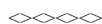
When a landlord adds rental units to an existing residential complex, the Branch does not consider the new units to be a "new building". The landlord can set the rent for the first tenant of the unit. However, when the landlord sets the rent, it must be an actual rent, without any discount. The landlord must give the tenant a Notice to New Tenant and send a copy of the notice to the Branch. Once the landlord sets the rent for a rental unit, they cannot increase the rent for 12 months. When the landlord increases the rent on or after the anniversary date, the annual rent increase guideline applies.



Existing Units That Are New to the Residential Rental Market

When a property owner decides to rent their home or other type of unit(**e.g. commercial unit**) as a residential rental unit, they can set the rent for the first tenant of the unit. This can also happen when a landlord rents a unit that was previously occupied only by a caretaker or other employee of the landlord. However, when the landlord sets the rent for a tenant, they cannot increase the

rent for 12 months from the date the tenancy begins. The landlord must give the tenant a Notice to New Tenant and send a copy of the notice to the Branch. When the landlord increases the rent on or after the anniversary date, the annual rent increase guideline applies. (See also Rent Increase for New Tenant)



Existing Units That Are Returning to the Residential Rental Market

Sometimes landlords remove rental units from the residential rental market for use as other types of accommodation (e.g. extended stay hotel unit, caretaker/employee unit). When the landlord returns the unit to the residential rental market, they cannot set the rent at an amount of their choosing. The landlord must give the tenant a Notice to New Tenant and send a copy of the notice to the Branch. The Branch's practice is to refer to the last rent registered in our [Registry](#) and then apply the annual rent guideline(s) for the period the unit was "off the market" to establish the current rent. If the landlord applied for and received approval for an above guideline increase for other units in the complex during the period, the Branch will also apply that increase when establishing the current rent.

Units After the End of a Specified Exemption Period

If a landlord offers a rent discount during an exemption period, it may affect the amount of rent the landlord can charge after the exemption period ends.



If a landlord **didn't** offer a rent discount, they may charge the same rent they charged during the last tenancy agreement before the end of the exemption period. **For example: The first occupancy permit for a building was issued on April 1, 1999. The building was exempt for five years, from April 1, 1999 to March 31, 2004. During the last tenancy agreement, from April 1, 2003 to March 31, 2004, the monthly rent was \$550.00. If the landlord plans to increase the rent on April 1, 2004, they calculate the increase on \$550.00.**



If a landlord **did** offer a rent discount, the landlord must use the formula in the Residential Rent Regulation to:

- calculate the value of the discount; and
- determine the allowable rent.

The formula to calculate the value of the discount is:

any rent **actually** paid during the exemption period
+ (*plus*)
an amount equal to the annual rent increase guideline for the remaining years in the same exemption period
- (*minus*)
the rent payable during the first year after the exemption period
= (*equals*)
the value of the discount

The landlord may choose the "start" year for the calculation. Generally a landlord will choose the year *the actual rent paid* was the highest. **For example:**

The building was exempt for five years, from April 1, 1999 to March 31, 2004. During the exemption period, tenants paid the following rent:

	Oct 1/99	Oct 1/00	Oct 1/01	Oct 1/02	Oct 1/03
Total Rent	\$575.00	\$600.00	\$620.00	\$640.00	\$680.00
Discount	(25.00)	0.00	70.00	85.00	125.00
Rent Paid	\$550.00	\$600.00	\$550.00	\$555.00	\$555.00

The actual rent paid was highest in 2000, \$600.00. When the exemption period ends March 31, 2004, the maximum allowable rent is \$627.00 [\$600.00 rent paid in 2000, plus the 1.5% annual rent increase guideline in 2001, 2% in 2002 and 1% in 2003]. The value of the discount is \$72.00 (\$627.00 - \$555.00).

On April 1, 2004, the allowable rent is \$627.00. However, in this example, there is a tenancy agreement from October 1, 2003 to September 30, 2004 at a monthly rent of \$555.00. The landlord can't increase the rent until October 1, 2004. If the landlord increases the rent on October 1, 2004, the landlord calculates the increase on \$627.00.

After an exemption period ends, a landlord may increase the rent with *three months' written notice*. The landlord may only increase the rent if:

- the previous increase was more than 12 months ago; and
- there isn't a fixed term tenancy agreement preventing the increase.

Procedure

Overview This policy is included as information for landlords, tenants and officers. If there is a question about the allowable rent for a rental unit, a landlord or tenant can ask the Branch for help.

- Steps ▼**
1. If a landlord or tenant asks the Branch for help, the officer asks the landlord for information on the rent history of the rental unit.
 2. The officer reviews the landlord’s information and the information in the Branch’s Registry to ensure that the landlord is not planning to charge more than the allowable rent increase. If necessary, the officer issues an Order, setting the maximum amount of rent the landlord may charge.

Forms & Form Letters

X-Referencing None

Policy Developed March, 2004

Last Revision August, 2015

Other Resources None

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Section 13.	Rent Regulation
Sub-Section 13.9	Rent Review - Non-Profit Life Lease Complex

Legislation

[S. 140.1, *The Residential Tenancies Act*](#)
[S. 27\(1\), *The Life Leases Act*](#)

Definitions

Operating costs: for non-profit [life lease](#) complexes, an operating cost is a cost incurred to run the complex; it can include: property taxes, insurance, utilities, mortgage interest and capital repair and replacements.

Refund fund: a fund a landlord sets up to refund entrance fees to tenants when their tenancies end; a refund fund may become "fully funded" when there is enough money in the fund to cover the total amount of all entrance fees the landlord owes to former tenants and the total the landlord would owe to current tenants, if everyone ended their life leases.

Rent review: a process for the Branch to review the rent increases for non-profit life lease complexes; tenants can ask the Branch to review the amount of the proposed rent increase and to ensure that the landlord is using the tenants' life leases to calculate the tenants' share of the operating costs.

Reserve fund: a fund a non-profit landlord must set up to pay for repairing and replacing major items like a roof, heating and plumbing systems and parking facilities; a landlord may also use a reserve fund to cover any unexpected cost or shortfall in revenue for a complex.

Policy

When reviewing the rents, the Branch considers the budgeted costs shown in the complex's life lease agreement. However, the Branch reviews all costs to ensure that the money was spent or will be spent for the benefit of the tenants in the complex.

The Branch may not allow contributions to a refund fund as part of the operating costs. However, this would likely be done only if the refund fund is "fully-funded."

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The Branch may order a landlord to withdraw money from a reserve fund and apply it to the operating costs for a complex or the Branch may not allow a landlord to contribute more money to a reserve fund. When considering this kind of order, the Branch asks the landlord if there has been a reserve fund study done. If there has been a study, the landlord will likely have set aside reserve fund money for a specific repair or replacement. The Branch would usually consider only the excess or "unreserved" portion of the fund. If there is no reserve fund study, the Branch needs to estimate and infer what the balance in the fund needs to be to cover future repair and replacement costs.

Procedure

Overview An officer reviews a tenant's request for a rent review. The officer may ask the landlord to complete a rent review statement. The officer notifies all tenants in the complex of the rent review. The officer reviews the rents for the complex, taking into account the financial information provided and the terms of the life leases, the tenants' comments and the landlord's response to them. The officer issues an Order, which includes reasons. The landlord and tenants get copies of the Order.

- Steps ▼**
1. The officer reviews the tenant's request for a rent review. In some cases, the officer may find that, although the tenant is asking for a rent review, they have a problem that can be resolved in some other way. For example: The tenant's stove may need repair. If the officer contacts the landlord about the tenant's concerns, the landlord may fix the stove. The tenant may then withdraw their request for a review.
 2. If the officer decides to proceed with a rent review, they will send a letter to the landlord, asking the landlord to complete a rent review statement and return it to the Branch *within two weeks*. The officer will also ask the landlord for the names and mailing addresses of all the tenants in the complex.
 3. If the officer doesn't get the information by the deadline, they will telephone the landlord. If necessary, they will give the landlord another five days to submit the information. They will confirm the telephone conversation by letter. If the officer still doesn't receive the information from the landlord, they will make a decision based on the information on file.
 4. When the officer has all the information required, the officer sends the tenants a letter to advise them of the rent review. Tenants are invited to inspect the landlord's application and to comment on it. Comments must be in writing.
 5. The officer then invites the landlord to review and comment in writing on the tenants' statements.
 6. The officer prepares a worksheet, which shows any changes to the rent review statement, with a short explanation for each change. The officer must ensure that the budgeted costs or costs incurred are reasonably attributable to the operation of the complex for the benefit of the tenants and that the amounts in the reserve funds are reasonable.
 7. The officer issues an Order to the landlord and tenants that:
 - adjusts or disallows any of the budgeted costs;
 - requires the landlord to apply money from one or more reserve funds to operating costs;
 - disallows future contributions to a reserve fund or refund fund;
 - sets the rent that the landlord may charge for the rental units, based on the terms of the life leases.
- The Order includes reasons.
8. Either the landlord or tenants can appeal the Order.
 9. If the landlord doesn't submit the information the officer needs to do a rent review, the officer may issue an Order disallowing the rent increase.

Forms & Form Letters

X-Referencing None

Policy Developed March, 2004

Last Revision

Other Resources None

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.....	
.....	

..... [s. 116.1, 118\(2\), 131 and 132, The Residential Tenancies Act](#)

..... **Anniversary date:** the date on which a landlord is entitled to increase the rent on a rental unit. In some residential complexes, all units have the same anniversary or rent increase date. In other complexes, the anniversary dates may be spaced throughout the year. A landlord can usually increase rent for a rental unit only once every 12 months. A landlord can change the anniversary date on a rental unit by waiting more than 12 months between rent increases. **For example:** The anniversary date on a particular unit was September 1, 2003. The landlord wanted to change the anniversary date to January 1 to coincide with the anniversary dates on the other units in the complex. To change the date, the landlord did not increase the rent on September 1, 2003 but waited for the

..... **Form** a landlord must give a new tenant at the beginning of a tenancy. The landlord must send the Branch a copy of the form within 14 days of giving it to the tenant. The notice tells the tenant about the services and facilities that are included in the rent. It also shows the previous and present rent for the rental unit and tells the tenant of any proposed rent increase.

..... the amount of money paid by a tenant to a landlord for the right to occupy a rental unit and the use of common areas, services and facilities; rent includes any service/facility for which the tenant pays a separate charge **(For example:**

.....

A landlord can usually increase rent on a rental unit only once every twelve months. However, there are two exceptions:

- *When a new tenant moves into a residential complex with three units or less, the landlord can increase the rent as long as they give the tenant a Notice to New Tenant form. The landlord may decide the amount of the rent increase.*
- *When a complex has four or more units, the landlord can also increase a new tenant's rent as long as they give the tenant a Notice to New Tenant form. The new rent can't be more than the average of the rents charged for similar or comparable units in the residential complex.*

In a fourplex, if the landlord lives in one of the units, the Branch considers the complex to be three units or less.

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When a new tenant moves in, a landlord must give the tenant a Notice to New Tenant form, even if they don't intend to increase the rent. The Branch provides the form. A landlord may use their own form as long as it has all the information required by the Act.

The landlord must give the tenant the Notice to New Tenant form before they can charge the higher rent. The landlord must give the notice to the tenant when they agree to rent the unit.

If a landlord doesn't give the tenant a Notice to New Tenant, then the rent increase is not allowed. The Branch may "roll-back" the rent increase and order the landlord to refund the rent overpayment to the tenant.

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A tenancy agreement may say how many people can live in the rental unit. In a complex of three or less units, if the agreement is specific and the tenant wants to have more people live in the unit, a landlord and tenant may end the original tenancy agreement and create a new agreement to cover the additional occupants. To increase the rent, the landlord must give the tenant a Notice to New Tenant form and send a copy to the Branch.

<><><>

*When a landlord increases the rent to an average of the rents charged for similar or comparable units, the landlord must include all similar units when calculating the amount of the rent. **For example: If a landlord is calculating the average for a one-bedroom unit, they must include the information about all one-bedroom units in the complex. (see calculation example in Step 2 of Procedures.)** The Branch recognizes that there may be style differences between similar units. The Branch takes the different styles into account when calculating the average. ... **example: A building may have two different styles of one-bedroom units – one style with a den and one***

<><><>

When a new tenant moves into a complex with four or more units, the landlord can't increase the charge for parking by averaging the charges for other parking stalls. The Act allows the landlord to average the rent on the rental unit only, not on the other services or facilities.

<><><>

In a complex with four or more units, when a landlord increases rent for a new tenant, the tenant has the right to ask the Branch to determine what the average rent is on comparable units. The tenant must apply to the Branch within 30 days of receiving the Notice to New Tenant form.

<><><>

In a condominium complex with more than three units, a landlord/owner who:

- *owns three units or less, may increase the rent on the rental unit to amount of their choice;*
- *owns four units or more, may increase the rent on the rental unit to the average of similar or comparable units owned by that landlord.*

<><><>

*When a landlord increases rent to an average of the rents charged for similar or comparable units for a new tenant, it doesn't change the anniversary date for the rental unit. The landlord may still increase the rent again on the anniversary date. ... **example: A landlord increases rent on the anniversary date, February 1, 2004. A new tenant moves in May 1, 2004. The landlord gives the tenant a properly completed Notice to New Tenant form and increases the rent to the average of similar units in the complex. On February 1, 2005, the landlord is entitled to***

.....

..... A new tenant contacts the Branch with a question about the amount of their rent. The officer checks to make sure that the tenant received a Notice to New Tenant form. The officer then follows set procedures, depending on the number of units in the residential complex.

.....▼ 1. A new tenant contacts the Branch with a question or concern about their rent. The Branch may also open a file if it receives information that does not explain why the rent was increased.

2. **If the tenant lives in a residential complex with three units or less** , the _____ officer makes sure the tenant received a properly completed Notice to _____ New Tenant form. If the tenant received the notice, the officer advises the tenant that the landlord is entitled to set the rent.

If the tenant lives in a residential complex with four or more units, and has contacted the officer within 30 days of getting their copy of the Notice to New Tenant form, the officer:

- *contacts the landlord to clarify and discuss the rent information;*
- *reviews Branch records to see how the average was calculated on previous files; and*
- *calculates the average of the rents for similar units in the complex as follows:*

$$\frac{\text{Total monthly undiscounted rent for all similar units in the complex on the date the new tenant moves in (not including the subject unit)}}{\text{Average rent for similar units in the complex}}$$

Number of all similar units in the complex

If the landlord's rent increase is more than the officer calculates the average increase to be, the officer contacts the landlord to confirm the rent information and tries to get an agreement on the amount of the rent. If necessary, the officer makes a decision and issues an Order.

3. If the tenant didn't get a copy of the Notice to New Tenant form, the officer will:

- *contact the landlord to confirm that they didn't give the tenant a Notice to New Tenant form;*
- *tell the landlord if the tenant is entitled to a refund on the rent overpayment because they weren't given proper notice;*
- *discuss the amount of the refund with the landlord and agree on a method of repayment; the landlord may return the rent overpayment to the tenant or allow the tenant to deduct the overpayment from future months' rent;*
- *make a decision and issue an Order, if necessary.*

Notice to New Tenant.....Form 2/Residential Rent Regulation

September, 1992 *

March, 2004

.....

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Residential Tenancies Branch

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Section 13	Rent Regulation
Sub-Section 13.8	Rent Increase – When Landlord Adds Furniture

Legislation

[s. 1\(1\), 132.1, *The Residential Tenancies Act*](#)
[s. 10.2, Residential Rent Regulation](#)

Definitions

Anniversary date: the date on which a landlord is entitled to increase the rent on a rental unit. In some residential complexes, all units have the same anniversary or rent increase date. In other complexes, the anniversary dates may be spaced throughout the year. A landlord can usually increase rent for a rental unit only once every 12 months. A landlord can change the anniversary date on a rental unit by waiting more than 12 months between rent increases. **For example: The anniversary date on a particular unit was September 1, 2003. The landlord wanted to change the anniversary date to January 1 to coincide with the anniversary dates on the other units in the complex. To change the date, the landlord did not increase the rent on September 1, 2003 but waited for the increase until January 1, 2004.**

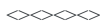
Furniture: in a furnished rental unit, appliances such as stove, fridge, washer and dryer are not considered furniture.

Notice to New Tenant: a form a landlord must give a new tenant at the beginning of a tenancy. The landlord must send the Branch a copy of the form *within 14 days* of giving it to the tenant. The notice tells the tenant about the services and facilities that are included in the rent. It also shows the previous and present rent for the rental unit and tells the tenant of any proposed rent increase.

Rent: the amount of money paid by a tenant to a landlord for the right to occupy a rental unit and the use of common areas, services and facilities; rent includes any service/facility for which the tenant pays a separate charge (**For example: parking, storage locker.**)

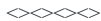
Policy

When a tenant moves out of an unfurnished rental unit, a landlord may decide to add furniture to the unit. The landlord may increase the rent for the furnished rental unit.

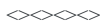


If the rental unit is in a residential complex *with four or more units*, the landlord must tell the new tenant how much they increased the rent because of the new furniture. The landlord shows this information on a Notice to New Tenant form. The Branch provides the form. A landlord may use their own form as long as it has all the information required by the *Act*.

If there are *three units or fewer* in the complex, the landlord may add furniture and decide the amount of the rent increase. The landlord must still give the tenant the Notice to New Tenant form.



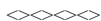
The landlord must give the tenant the Notice to New Tenant before they can charge the higher rent. The landlord must give the notice to the tenant when they agree to rent the unit.



The landlord may only increase the monthly rent by a maximum of 1/36 of the total cost of the furniture. **For example: The total cost of the furniture is \$3,600.00. The landlord may increase the rent by 1/36 or \$100.00 per month (\$3,600.00 , 36 = \$100.00).**

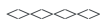


In a complex *with four or more units*, when a landlord increases rent for added furniture, the new tenant is entitled to object to the amount of the increase. The tenant must file their written objection with the Branch *within 30 days* of receiving the Notice to New Tenant form.



To make a decision on a rent increase for added furniture, the Branch may ask the landlord for information. When making the decision, the Branch considers:

- the amount of the increase;
- the cost of the furniture; and
- any other information received from the landlord and tenant.



When a landlord increases rent for added furniture, it doesn't necessarily change the anniversary date for the rental unit. **For example: A landlord increases rent on the anniversary date, February 1, 2004. The landlord adds furniture to the rental unit and a new tenant moves in May 1, 2004. The landlord gives the tenant a Notice to New Tenant form and increases the rent. On February 1, 2005, the landlord is entitled to increase the rent.**

Procedure

Overview An officer receives a tenant's objection to a rent increase for added furniture. The officer contacts the tenant and landlord to discuss the objection. The officer may ask the landlord for information about the cost and value of the added furniture. The officer tries to help the landlord and tenant resolve the objection. If they can't resolve it, the officer issues an Order.

- Steps ▼**
1. The officer reviews the tenant's objection and contacts the tenant to discuss it. The officer then contacts the landlord to discuss the objection. The officer tries to help the tenant and landlord resolve the problem.
 2. If the officer can't resolve the objection, they send the landlord a letter asking for information on the cost, age and value of the furniture.
 3. The officer reviews the information from the landlord and issues an Order setting the maximum amount of the rent increase for the added furniture.

Forms & Form Letters Notice to New Tenant.....[Form 2/Residential Rent Regulation](#)

X-Referencing None

Policy Developed March, 2004

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Section 13 Rent Regulation

Sub-Section 13.6 Rent Discounts

Legislation

Definitions

Allowable rent:

-
-

Rent:

(For example: parking, storage locker.)

Rent discount:

- for example: one year)
- for example: one month's free rent)
- for example: in order to get the discount, rent must be paid on time
-

Policy

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For example: The tenancy agreement is from January 1 to December 31. The agreement specifies that the discount only applies from January 1 to June 30.

For example: If the landlord is

removing the discount on a tenancy agreement that is being renewed effective July 1, the landlord must give the tenant written notice of the removal on or before March 31.

for example: a \$20.00 discount each month for paying rent on time

-
-
-

For example: The tenant is entitled to a rent discount of \$50.00 per month as long as they live in the rental unit from October 1, 2004 to September 30, 2005.

For example: The tenant receives a discount of \$50.00 per month on the condition the tenant live in the unit for 12 months. The tenant leaves after four months. The landlord wants the tenant to pay back \$200.00 (4 x \$50.00)

For example: The tenant is entitled to a rent discount of \$50.00 per month. To be entitled to this discount, the tenant agrees to live in the rental unit from October 1, 2004 to September 30 2005. The tenant understands that if they move out of the rental unit before September 30, 2005, they must pay back the discount they receive for the months they occupy the unit.

For example: The allowable rent is \$550.00 per month. The tenant pays \$500.00; the \$50.00 rent discount is recorded in the tenancy agreement. The landlord calculates the rent increase on \$550.00.

For example: A landlord applies to increase the rent from \$650.00 to \$725.00. The landlord’s Notice of Increase in Rent and tenancy agreement show that, if the Branch approves the increase, the landlord plans to offer a \$50.00 discount. On the forms, the landlord also clearly shows that, if the Branch allows a smaller rent increase, the landlord will re-calculate the amount of the discount

Procedure

Overview

Steps ▼

-
-

Forms & Form Letters

X-Referencing

<u>mediation</u>	rent	<u>Security Deposits – Guidelines for Decision</u>
<u>Units</u>	rent discounts and exemption periods	<u>Setting Rent on New or Previously Exempt Rental</u>
	increasing rent for a new tenant	<u>Rent Increase For New Tenant</u>

Policy Developed

Last Revision

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	a. 91.1, 99.133 – 135.1, <i>The Residential Tenancies Act</i> s. 12, Residential Rent Regulation s.13, Residential Tenancies Regulation
	the number of years in which a landlord can increase rent above the annual rent increase guideline without applying to the Branch. a detailed plan for major improvements to a rental unit or residential complex.
	A landlord who plans to make major improvements to a rental unit or residential complex may apply to the Branch for a temporary exemption from the annual rent increase guideline. When applying for approval of a rehabilitation scheme, a landlord must pay the Branch a non-refundable application fee. ◇◇◇◇◇ A landlord who applies for a rehabilitation scheme • must not have given any tenant a notice of termination under section 99(1)(b) (renovating a rental unit to such an extent that the tenant must move out) • • • • must not start any improvement proposed in their rehabilitation scheme before the branch issues the first order. The Branch supplies an application form for the landlord to complete. A landlord may use their own form as long as it has the same information as the Branch's form. ◇◇◇◇◇ <i>Within 14 days of</i> applying for approval of their rehabilitation scheme, the landlord must give the tenants affected by the scheme written notice of their plans. The landlord must also give the tenants a chance to inspect the application and the supporting information. • • • • • • Three items from Box 1 • • • • Three items from Box 2 • • • • Two items from Box 2 and two items from Box 3. Box 1 Structural Improvements Structural Improvements Structural Improvements Box 2 Electrical Wiring

Plumbing
Heating
Structural Improvements

Box 3 Installation of insulation and related measures to improve thermal efficiency
Installation of insulation and related measures to improve thermal efficiency

The improvements must substantially increase the life expectancy and the quality of the residential complex and the rental units in the residential complex. The improvements must include major renovations to the rental units
.....
.....

Major improvements those repairs required to:

- correct deficiencies that threaten the health and safety of the occupants;
- replace functioning but deteriorated components where failure is expected within a reasonably short time or where failure would result in damage to other building components
.....
.....

Major improvements basic and standard maintenance items such as the following:

- repairing a leaking roof that requires minor repair or patching of flashing and shingles but not replacement;
- cleaning a furnace and adjusting the burners;
- repairing or replacing a leaking faucet;
- repairing or replacing electrical fixtures, such as outlets or light fixtures;
- repairing or replacing doors or windows with cracked panes of glass or damaged or deteriorated sills but whose components are in reasonable condition;
- repairs to the motor and controls of a furnace.

Although the cost to do extensive maintenance might be high, it would still not qualify the property for approval of a rehabilitation scheme.

Repairs to restore a building or rental unit that has been destroyed or partially destroyed by fire or flood are not "major improvements" if the building or rental unit is simply restored to what it was immediately before the fire or flood.

The Branch has established rehabilitation standards. Since these standards may change, anyone who is considering a rehabilitation scheme should contact the Branch for the most up-to-date information. The standards are as follows:

All work must be done in a skillful and workmanlike manner.

.....

A landlord must:

- obtain building permits, occupancy permits, and building services certificates as required by the authority having jurisdiction;
- obtain architectural drawings, shop drawings and specifications and related professional supervision costs, where required by an authority having jurisdiction;
- describe all work clearly in a work write-up to ensure that contractors consistently understand the work required; provide reasonable quantities, dimensions, drawings and other explanatory material, where applicable and where possible;
- carry out work on buildings designated as architecturally or historically significant in a manner consistent with the objectives of the designating authority.

.....

A landlord must:

- repair or remove dilapidated structures that constitute a fire safety hazard from the site;
- repair or replace ancillary storage buildings where replacement is more economical than repair ;
- repair or replace walkways, driveways and parking structures that constitute a safety hazard ;
- install a new walkway where the lack of a walkway constitutes a safety hazard;

- provide adequate surface water drainage over the building site and take suitable measures for its disposal without erosion;
- undertake slope stabilization, where required, to protect the buildings and surrounding property to a reasonable distance from the building.

.....

A landlord must:

- repair or replace deteriorated food preparation work surfaces;
- ensure that base kitchen cabinets provide adequate support for the work surface;
- ensure that bathroom space meets local health requirements and that facilities are installed so they comply with local building requirements;
- replace deteriorated appliances;
- replace deteriorated carpets and vinyl flooring; refinish deteriorated hardwood floors;
- take appropriate measures to repair damage, exterminate or remove pests, and protect the building against re-infestation, where the presence of insects, rodents, or other pests damaging to the building or the health of the occupants is evident or suspected.

.....

A landlord must:

- provide each dwelling unit and common space with fire protection that complies with local fire prevention requirements;
- ensure that dwelling units are separated from adjacent rooms and dwellings by a fire separation having a fire resistance rating that complies with local fire prevention requirements;
- install smoke alarms in each dwelling unit, in locations that comply with local fire prevention requirements; the alarms must be those approved by the local fire prevention authority;
- fire-stop concealed spaces that could provide a passage for the spread of smoke and flame between dwelling units, between stories within a dwelling unit, or between a storey and a roof space;
- provide a means of egress for multiple unit buildings, including emergency lighting and signage, in accordance with local fire prevention requirements.

.....

A landlord must:

- ensure that structural components of buildings are sized so they are capable of supporting the loads imposed on them without failure or undue movement;
- repair or replace structural members that are so deteriorated that their load-carrying capacity has been compromised;
- repair or replace interior and exterior stairs, landings, balconies, porches or verandahs and related handrails and guards if they are deteriorated and present a safety hazard;
- ensure that wooden exterior fire escape stairs and landings comply with local building requirements; repair or replace foundations as necessary, to ensure they are capable of supporting the loads imposed;
- repair foundation walls where water penetration has caused or will cause structural damage or is a threat to building services or living areas contained in the space; the landlord must damp-proof or waterproof the walls and provide adequate drainage;
- ensure that exterior walls prevent the entry of water and are reasonably durable;
- caulk or flash the junctions of exterior finish materials and window and door frames, exhaust fan outlets and other penetrations, as required, to prevent the entry of water into the building exterior;
- ensure that roof components are capable of supporting any loads imposed and provide a suitable surface for the fastening of roofing materials;
- ensure that the roof covering is capable of preventing the entry of rain and snow into the roof space; ensure that, where the construction of a sloped roof is being considered because it is more cost effective than the repair of the original flat roof, they review the manufacturer's specifications to determine if the existing structure can support the additional loads imposed by a new wood frame roof; if such specifications are not available, the landlord must obtain an engineer's certificate certifying such a modification;

- vent roof and attic spaces to the exterior where there is evidence that condensation is occurring or may occur;
- ensure that floor assemblies are capable of supporting the loads without undue movement and provide a surface suitable for the installation of floor covering materials in all habitable areas;
- repair basement floor slabs where heaving or buckling has caused a safety hazard;
- take measures to prevent the entry of moisture through the basement or crawl space floors;
- level sloping or sagging wood floor systems where the slope constitutes a hazard.

.....

A landlord must:

- restore insulation to its original thermal value, where repairs result in the exposure of the insulation; insulate hollow walls; insulate attics/ceilings to a minimum of R40 (North of 58th parallel – R60);
- seal paths of air leakage from the interior of the dwelling unit into insulated wall, ceiling or floor assemblies to the extent that accessibility and practicality allow; provide an effective air barrier or vapour barrier, where interior or exterior wall finish is being removed or replaced;
- provide ventilation that complies with local building requirements;
- repair or replace existing windows and doors, including hardware;
- repair existing windows or doors to restore adequate operation;
- paint, or otherwise protect, wood components of windows and doors to prevent deterioration.

.....

A landlord must:

- paint, or otherwise protect, exterior cladding and trim to prevent deterioration;
- provide a waterproof wall finish around bathtubs to a height of not less than 1200mm (46 in.) above the rim of bathtubs equipped with showers and 400 mm (16in.) above the rim of bathtubs not equipped with showers;
- provide a waterproof wall finish in shower stalls to a height of not less than 1800 mm (6 ft.) above the floor.
- apply a protective coating, such as paint, where interior finishes are installed;
- provide handrails and guards that comply with local building requirements;
- cover floors in bathrooms, shower rooms and toilet rooms with a flooring material that is impervious to water and provides reasonable wear resistance;
- replace or repair floor or stair finishes that are deteriorated to the point of presenting a significant safety hazard.

.....

A landlord must:

- ensure that any new heating equipment, including oil-burning, gas-burning, electric and solid-fuel-burning furnaces, stoves, heaters, add-on units and factory-built chimneys is certified, listed and labelled, under the appropriate Canadian standards;
- seal off or repair existing fireplaces and chimneys deemed to be a fire hazard;
- install new heating equipment, including provision for mounting, clearances and air supply, to conform to appropriate provincial or municipal requirements;
- size smoke pipes, vent connectors, vents and flues to comply with the specifications of the manufacturer of the heating equipment;
- repair or replace badly deteriorated masonry chimneys with a suitable factory-built chimney;
- ensure that new liners for existing masonry chimneys are certified, listed and labelled for the particular use and are installed following the manufacturer's recommendations and comply with local building requirements;
- ensure that existing fuel-burning appliances, including chimneys and other components of fuel-burning appliances carrying flue gases from the appliance to the exterior, have sufficient clearance throughout their length to prevent overheating of adjacent combustible construction.

Plumbing

A landlord must:

- provide dwelling units with an adequate source of potable water in accordance with the requirements of the local authority;
- repair or replace defective plumbing pipes and broken or inoperative fixtures
- ensure that plumbing pipes and fixtures are adequately supported and protected from freezing;
- replace galvanized steel pipe carrying domestic hot water with copper tubing or chlorinated polyvinyl chloride pipe in accordance with the requirements of the local authority or, in the absence of local regulations, with the requirements of the Canadian Plumbing Code;
- provide dwelling units with adequate facilities for sewage disposal in accordance with the requirements of the provincial or local municipal authority.

Electrical

A landlord must:

- ensure that electrical installations, including the service capacity and the number and distribution of circuits, meet the requirements of the local authority. If there are no local requirements, the landlord must ensure that electrical installations meet the Canadian Electrical Code.

Elevators

A landlord must:

- ensure that elevators comply with the requirements of the local authority.

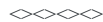
Environmental Concerns

A landlord must:

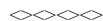
- ensure that they take special precautionary measures to clean up where lead-based paint is necessarily being disturbed by repairs or renovations;
- take precautionary measures for the removal of asbestos where it is necessarily being disturbed because of repairs or renovations.
- take the required remedial measures where the presence of an environment hazard has been confirmed by an acceptable means of testing and the hazard poses an immediate threat to the health and safety of the occupants.



When a landlord applies to the Branch, the tenant has the right to end a fixed term tenancy agreement with notice of two rental payment periods. A tenant may give notice at any time from the date they receive notice that the landlord has applied for approval of a rehabilitation scheme to 14 days after they receive either the first or final order from the Branch or the Residential Tenancies Commission on the landlord's application.

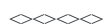


If a landlord plans to temporarily move tenants out of their rental unit during the renovations, they must provide details in the plan. The landlord is responsible for the costs of the temporary move.



During renovations, the landlord must:

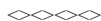
- tell tenants, in writing, that contractors will be going into their units, and when they will be going in;
- tell tenants, in writing, if there will be any disruption of service;
service; and
- minimize disruptions to tenants;
extended period of time.



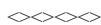
If the tenants must move out to allow the landlord to do the work, the landlord must give them a written notice to end the tenancy. The length of notice the a landlord is required to give for this reason is based on the vacancy rate in the area. The landlord must pay the tenant's moving expenses up to \$500.00.

Note: Landlords must not give any tenants in the residential complex a notice of termination for renovations before the first Order is made.

Tenants who lived in a residential complex, before the rehabilitation scheme, must be given the first chance to move back in. The landlord must charge the returning tenant the lowest rent they would charge any other tenant for the same unit.



If a plan is approved, the rental unit(s) or complex can be exempt from the annual rent increase guideline *for up to five years*. The landlord is still required to give the tenants *three months' notice* of any rent increase. The landlord is also required to give a Notice to New Tenant form to any tenant moving into the building.



To set an exemption period, the Branch calculates how much the landlord plans to spend on each unit.

The Branch uses the following scale:

Cost Per Unit	Exemption Period
\$19,000.00 - \$22,999.99	2 years
\$23,000.00 - \$26,999.99	3 years
\$27,000.00 - \$40,999.99	4 years
\$41,000.00 or more	5 years

After the Branch sets an exemption period, a landlord may find that they must do more work than originally planned. If this happens, the landlord can apply to the Branch to extend the exemption period.

Procedure

Overview A landlord applies for approval of a rehabilitation plan. A building inspector reviews the plan, inspects the unit(s) or complex, and writes a report. A hearing is scheduled. The officer considers all the information, makes a decision and issues an Order, either rejecting the plan or approving it on the condition that the plan be completed. Once completed, a new inspection is made and a new hearing held. If the plan is approved, the officer follows set procedures for tenant and landlord review of information, inspections, hearings and Orders.

Steps ▼

1. When a landlord applies, the officer reviews the completed application, supporting information and calculations.
2. If necessary, the officer sends the landlord a letter asking for any missing information.
3. The officer has a building inspector review the plan and inspect the rental unit(s) or complex.
4. Once the officer receives the inspector's written report, they schedule a hearing for the tenants affected by the renovations and the landlord. The officer sends letters to the tenants and landlord inviting them to the hearing. The letter advises the tenants of their opportunity to inspect the landlord's application at the Branch before the hearing date.
5. At the hearing, the landlord may present information on the scheme. The tenants can speak about any concerns they have about the landlord's plans.
6. The officer considers all the tenant and landlord information, makes a decision and issues an Order, either approving or rejecting the plan.

If the plan is approved, the Order sets out:

 - when the landlord must complete the renovations;
 - any special conditions; **For example: steps that the landlord must take to minimize disruption to tenants;**
 - any additional repairs or upgrades the landlord must do to ensure that the renovated rental unit or residential complex meets all health, building and maintenance, and occupancy standards; and
 - the proposed exemption period and the date it will begin.
7. A landlord can apply to extend the exemption period *within 30 days* of completing the plan. If the officer approves the extension, they issue an Order setting the new exemption period.
8. When the landlord completes the work, the landlord must submit copies of all invoices to the Branch.
9. The officer then arranges for another building inspection. Whenever possible, the officer asks the same building inspector who did the first inspection to do the second inspection.
10. *If the inspector indicates the work is satisfactory*, the officer schedules a second hearing with the landlord and tenants affected by the renovations. The tenants can review the invoices and inspector's report at the Branch before the hearing. Once the officer is satisfied that the work is complete and all conditions have been met, they issue an Order confirming the exemption period. The landlord and tenants get a copy of the Order.

If inspector indicates the work is not satisfactory, the officer contacts the landlord to discuss the problem. If the landlord does not complete the work to the officer's satisfaction, the officer may amend or rescind the original Order. The landlord and tenants get a copy of the Order.
11. The tenants or the landlord can appeal either decision to the Residential Tenancies Commission.
12. After the final order is issued and the appeal period is over, the branch registers a notice saying that the residential complex is the subject of a rehabilitation scheme under section 134 of the Act. .

Forms & Form Letters

Application for Approval of Rehabilitation Scheme for All or Part of a Residential Complex. To see **Form 5A** [click here](#).

Notice to Tenant – Rehabilitation Scheme for All or Part of a Residential Complex. To see **Form 6** [click here](#).

X-Referencing

For more information on **giving a tenant notice**, see **[Notice by Landlord – Landlord Requires Unit for Own Use](#)** **Section 7**.

Policy Developed

September, 1992*

Last Revision

August, 2015

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s.1(1.3), 1(1.4), 1(1.5), 1(1.6), 14, *The Residential Tenancies Act*
s. 232(2), *The Municipal Act*
s.11(3), 22(1), *The Municipal Assessment Act*
-
..... a permit issued by a municipality to a mobile home owner; the mobile home owner pays a fee for the licence.
..... a residential complex where two or more mobile homes are located for 60 days or more.

.....

.....

Licence Fees

Some municipalities have bylaws that require mobile home owners to licence their mobile homes. In many cases, the landlord of the mobile home park acts as an agent for the municipality. The landlord collects the licence fees and passes the money on to the municipality. The municipality requires the landlord to collect the licence fees for each occupied lot in the mobile home park.



The Branch does not consider a licence fee to be part of a tenant's rent. Since a licence fee is not considered rent, the landlord is not required to give three months' notice if the municipality increases the licence fee. The landlord advises the tenants of the increase and can collect the increased amount on the date set by the municipality.

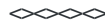


When a landlord applies for a rent increase above the guideline, the landlord does not include the licence fees they collect as part of their revenue.



Municipal Taxes

Some municipalities assess municipal taxes against mobile homes and any other property on a mobile home site, such as garages or tool sheds. The municipality assesses the landlord the taxes as the registered owner of the mobile home park. The landlord can then determine the portion of the taxes that apply to each mobile home site and collect that amount from the tenants. On a tenancy agreement, a landlord of a mobile home park must clearly show the amount of the monthly rent. The landlord must also show that the tenant will be responsible to pay a portion of municipal taxes when the municipality bills the landlord.



.....

There are several municipalities that own mobile home parks and rent sites to mobile home owners. When a municipality owns rental property, the property is exempt from rent regulation. The land is also considered exempt from taxation. When land is exempt from taxation, *The Municipal Assessment Act* gives a municipality the right to assess a mobile home and collect taxes on the mobile home directly from the mobile home owner.

When the municipality collects taxes, it's acting as a taxing authority, not as a landlord. The money collected for taxes is not considered rent. Since it's not considered rent, the municipality doesn't need to give the mobile home owners three months' notice to increase the charge. The municipality can increase taxes as frequently as their bylaws allow. When the municipality increases rent, it is still required to give three months notice of the increase. The municipality can only increase the rent once every 12 months. The increase in the taxes and the increase in the rent don't need to happen at the same time.

.....

..... This policy is included as information for landlords, tenants and officers. If a tenant and landlord aren't able to solve a problem with licence fees or municipal taxes on their own, they can ask the Branch for help.

-▼
1. A landlord or tenant asks the Branch for information about a licence fee or municipal taxes.
 2. The officer discusses the circumstances with the landlord and tenant. The officer may ask the parties for a copy of the tenancy agreement and any relevant by-laws or legislation.
 3. The officer provides information to the landlord and tenant on their rights and responsibilities.

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Standard Residential Tenancy Agreement (Mobile Homes and Sites)
.....Form 2/Residential Tenancies Regulation

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.....

For information on , see Section 1.
For more information on , see
..... in Section 7.

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..... March, 2004 *

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..... August, 2015

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..... None

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Section 13	Rent Regulation
Sub-Section 13.3	Laundry Charges

Legislation

s. 118(2), 127 – 130, 138, 139, *The Residential Tenancies Act*
6(1), 10.1, Residential Rent Regulation

Definitions

Arm's length: A business relationship between individuals or parties that are not related and do not share controlling interest in each other.

Policy

If a landlord charges separately for laundry, they must apply to the Branch to increase laundry rates. The landlord must apply *at least two and one-half months before* the date of the increase. **For example: A landlord gives tenants notice that they plan to increase laundry charges on October 1. The Branch must receive the landlord's application on or before July 14.** If the deadline for filing an application falls on a weekend or statutory holiday, the deadline is extended to the first business day following the weekend or holiday.

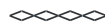
The Branch supplies an application form for the landlord to complete. A landlord may use their own form as long as it has the same information as the Branch's form.



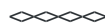
A landlord can't include a laundry rate increase in an application for a rent increase above the guideline. A landlord must apply separately to increase the laundry rates.



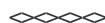
A landlord doesn't have to apply for a laundry rate increase at the same time they apply for an above guideline rent increase.



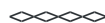
A landlord can only increase laundry rates once every 12 months.



If a landlord reduces the cycle time on the equipment, it's considered a rate increase. The landlord must apply to the Branch for the increase. The Branch calculates the value of the change by taking the reduction in time as a percentage of the cost for the cycle. If the landlord doesn't apply, the Branch follows the policies and procedures under Unauthorized Rent Increases.



A landlord must give **each** tenant a written notice of the increase in laundry charges, *at least three months before it takes effect*. Posting a notice in the common areas of the building is not proper notice.



When reviewing an application to increase laundry charges, the Branch considers the following factors:

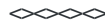
- the date of the last increase;
- any change in the length of the washing and drying cycles on the equipment since the last increase;

- whether the landlord purchased any new equipment since the last increase;
- the landlord's expenses, including the cost to repair equipment and utility bills; and
- any comments received from tenants.



In some buildings, tenants don't pay a separate charge for laundry. Use of the laundry facilities is considered a service which is included in the tenants' rent. If a landlord wants to start charging for laundry, they must first give the tenants notice of the withdrawal of the "free" laundry and then apply to the Branch to fix the value of the withdrawal of service. It's considered a withdrawal of service because the landlord is expecting the tenants to pay for a service which was previously included in their rent. The Branch supplies an withdrawal of service application form for the landlord to complete. A landlord may use their own form as long as it has the same information as the Branch's form.

When the Branch reviews the application to withdraw the "free" laundry, the Branch bases the value of the withdrawal on the average number of loads and the average cost per load in comparable residential complexes.



If a landlord wants to transfer, or turn over the operating of laundry facilities to an independent person or company who is at arm's length, they must apply to the Branch. The Branch will then set the laundry rates for the 12 months following the date of the increase. The individual or company must charge this set rate for 12 months. After that, they can increase the rates without applying to the Branch. They can also increase the rates as often as they choose.



When a landlord applies to increase laundry rates or transfer the service, the Branch invites the tenants to come to the Branch to inspect the landlord's application and supporting material. If the residential complex is outside Winnipeg, Brandon or Thompson, the Branch arranges for the tenants to inspect a copy of the file in or near their community. To inspect a file, tenants must show two pieces of identification to prove that they live at the residential complex.

Tenants have the right to inspect the application and the supporting material. The Branch does not have the authority to provide photocopies of this information. People can make their own written notes about the material.

Tenants can comment, in writing, about the application. The landlord has the right to see and respond in writing to any comments the tenants give to the Branch. While tenants and landlords may discuss the file with Branch staff, the Branch will usually consider only written comments when making a decision on a laundry increase.

When the Branch issues a decision on an application, it closes its file. Once the file is closed:

- the tenants are no longer entitled to inspect the landlord's application and supporting material; and
- the landlord is not entitled to inspect the tenants' written comments.

Procedure

Overview An officer reviews a landlord's application to increase laundry charges or transfer laundry service to a third party. The officer takes into account the financial information provided, tenants' comments and the landlord's response to them. The officer calculates the amount of the laundry increase and issues an Order, which includes reasons. Both the landlord and tenants get copies of the Order.

- Steps ▼**
1. When a landlord applies to increase laundry charges or transfer service, the officer reviews the landlord's application to make sure that:
 - the information on the rent roll is complete;
 - the landlord supplied copies of the invoices for any new equipment purchased; and
 - there is supporting information for the application, i.e. copies of repair or utility bills.
 2. If necessary, the officer sends a letter to the landlord, asking for missing information or supporting material *within two weeks*.
 3. When the officer has all the information required, the officer sends the tenants a letter inviting them to inspect the application.
 4. If the officer receives written comments from tenants, the officer will either discuss the information with the landlord on the telephone or invite the landlord to inspect and comment on the tenants' statements in writing.
 5. The officer considers all of the tenant and landlord information and the denominations of coins and coin slots available, makes a decision, and issues an Order setting the laundry charges.

Forms & Form Letters	Application for Increase in Charge for Laundry Facilities Form 4/Residential Rent Regulation
	Application for Withdrawal/Reduction of Service Form 9/Residential Rent Regulation

X-Referencing For more information on **withdrawing a service included in the rent** , see [Withdrawal of Services](#) in this section.

Policy Developed September, 1993*

Last Revision August, 2015

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Section 13	Rent Regulation
Sub-Section 13.1	Application for <u>Rent Increase Above the Guideline</u>

Legislation

s. 25, 69(1), 123–126, 140(4), *The Residential Tenancies Act*
Residential Rent Regulation (except Sections 10.1 and 12)

Definitions

Anniversary date: the date on which a landlord is entitled to increase the rent on a rental unit. In some residential complexes, all units have the same anniversary or **rent increase** date. In other complexes, the anniversary dates may be spaced throughout the year. A landlord can usually increase rent for a rental unit only once every 12 months. A landlord can change the anniversary date on a rental unit by waiting more than 12 months between rent increases. **For example: The anniversary date on a particular unit was September 1, 2003. The landlord wanted to change the anniversary date to January 1 to coincide with the anniversary dates on the other units in the complex. To change the date, the landlord did not increase the rent on September 1, 2003, but waited for the increase until January 1, 2004.**

Annual rent increase guideline: the percentage that a landlord can increase rent without applying to the Branch for approval. The Government sets the amount each year. The guideline takes effect on January 1. For an explanation of how the annual rent increase guideline is calculated, [click here](#). A landlord can apply for a larger increase if they can show that the guideline will not cover their increases in expenses. The guideline applies to most rental units, including apartments, single rooms, houses, duplexes, mobile homes and mobile home lots. *The Residential Tenancies Act* does not apply to rent increases on **land leases**.

Application for Rent Increase Above the Guideline: a form a landlord completes when they apply to the Branch to increase their rent by more than the annual rent increase guideline.

Arm's length: a relationship between parties who have no specific duty, obligation or relationship to one another.

Capital expense: a major purchase, repair or replacement that has a lasting and long term benefit to the residential complex. **For example: air conditioning, carpets, roof, refrigerators and stoves.** The regulations allow only a portion of a capital expense to be used when calculating a rent increase.

Economic adjustment factor: a percentage the Government sets each year as part of the rent increase guideline. The Economic Adjustment Factor recognizes the non-operating part of the rent revenue. The Government considers inflation when setting the Economic Adjustment Factor.

Notice of Rent Increase: a form a landlord must give a tenant to tell them about a planned rent increase.

Operating expense: an expense related to the normal or usual operation of a residential complex. For example: **utilities**, insurance premiums, property taxes, repair and maintenance. It does not include budgeted, projected or anticipated costs.

Rent: the amount of money paid by a tenant to a landlord for the right to occupy a rental unit and the use of common areas, services and facilities; rent includes any service/facility for which the tenant pays a separate charge **(For example: parking, storage locker.)**

Rent discount: a contractual agreement between a landlord and tenant allowing a tenant to pay less than the full rent on their rental unit. A rent discount must be set out in a written agreement and can:

- be for a specific period of time **(for example: one year);**
- be a one-time, "bonus" offer **(for example: usually given when a new tenant either signs a tenancy agreement or moves in);**
- have certain conditions attached to it **(for example: in order to get the discount, rent must be paid on time)**

Rent roll: a list of the tenants' names and unit numbers for a residential complex and information on their rents, including the amount of the rent and the amount payable for any other service, for example: parking.

Reporting methods: only revenue earned and expenses incurred in the appropriate reporting periods will be considered; for example: In the category of realty taxes, only one annual realty tax bill will be considered in each reporting period. Any arrears showing on the bill will be moved to the appropriate period. Penalties, late fees and advance payments are not allowed.

Reporting period: a period of 12 consecutive or back to back months. When a landlord applies for a rent increase above the guideline, they must choose a "current" reporting period and give the Branch information on their expenses during that period and the "previous" period. A "current" period is a period of 12 consecutive months which ends at least 3 months, but not more than 14 months before the date of the first rent increase in the complex, as shown on the application. A "previous" period is the 12 months immediately before the "current" period. **For example: A landlord plans to increase rent on October 1, 2004. The landlord chooses a "current" period ending June 30, 2004. The landlord submits information on their expenses for the "current" period, July 1, 2003 – June 30, 2004. The landlord also submits information on their expenses for the "previous" period, July 1, 2002 – June 30, 2003.** When a landlord does not apply for an above guideline increase for three years, they can change the reporting periods they use on their next application.

Residential Tenancies Commission: a board that hears appeals from landlords and tenants on decisions or Orders the Branch issues.

Tenant objection: an objection by a tenant to a planned rent increase. A tenant can object, in writing, to a rent increase above the guideline. A tenant must send their objection to the Branch *at least 60 days before* the date of the increase.

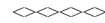
Policy

Application Process

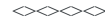
A landlord must apply to the Branch when they want to **increase rent** above the annual guideline. The Branch supplies an application form for the landlord to complete. A landlord may use their own form as long as it has the same information as the Branch's form. When applying for an above-guideline rent increase, a landlord must pay the Branch a non-refundable **application fee**.

A landlord must give a tenant *at least three months' written notice* of any rent increase.

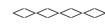
A landlord must apply for a rent increase above the guideline *at least two and one-half months before* the date of the first increase. **For example: A landlord gives a tenant notice on June 15 that they plan to increase the rent by more than the guideline on October 1. The Branch must receive the application on or before July 14.** If the deadline for filing an application falls on a weekend or statutory holiday, the deadline is extended to the first business day following the weekend or holiday.



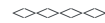
When a landlord applies for a rent increase above the guideline, they must apply for all the non-exempt units in the residential complex, even though the units may have different anniversary dates.



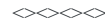
There are special rules for rental units in condominium complexes since there may be several different unit owners or landlords. If a condominium owner/landlord owns more than one unit in a residential complex, they or their property manager must apply, at the same time, for all the units the owner has in the complex.



A landlord can choose to apply a rent increase to tenants' rent by an equal percentage, like 5% to each rental unit, or in equal dollar amounts, i.e. \$12.00 increase per rental unit.



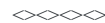
A landlord must apply a rent increase equally in each period. **For example: If a landlord is allowed to increase rent by \$120.00 a year, they can increase the rent by \$10.00 per monthly rental payment period.**



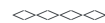
A landlord may "round" to the nearest dollar when increasing the rent. However, if a landlord chooses to "round" to the nearest dollar on one unit in a complex, they must "round" all rents in the complex to the nearest dollar. **For example: The allowable rent for Suite 403 is \$502.57. The landlord may round to \$503.00. On Suite 605, the allowable rent is \$478.35. The landlord must round the rent on Suite 605 to \$478.00.**

A rent increase is calculated on the full monthly amount a tenant is supposed to pay the landlord. **For example: The tenant's rent is \$500.00, which includes one parking stall. The landlord applies the rent increase to \$500.00. If the tenant's rent is \$500.00 plus \$25.00 for one parking stall, the landlord applies the rent increase to \$525.00. If the tenant's rent is \$500.00 plus \$50.00 for two parking stalls, the landlord applies the increase to \$550.00.**

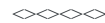
If a landlord of a mobile home park collects licence fees on behalf of a municipality, the landlord must not include those fees as part of their reported revenue.



If a landlord provides coin operated laundry, they can't include the laundry revenues and expenses in an application for a rent increase above the guideline.



A landlord can't include a laundry rate increase in an application for a rent increase above the guideline. If a landlord wants to increase the laundry rates, they must apply separately. (See Laundry Charges)



When a landlord makes an application to the Branch for a rent increase above the guideline on a complex which includes exempt rental units, the landlord must exclude those expenses that relate only to the exempt units (**for example: new carpet in an exempt rental unit**). When an expense (**for example a new roof**) relates to both exempt and non-exempt units, that expense must be apportioned fairly.

When reviewing a landlord's expenses, the Branch can only consider those expenses related to non-exempt units. If a residential complex includes exempt units, the Branch:

- ensures that the revenue on the application is only for the non-exempt units; the Branch uses the relevant revenue figure to calculate the 5% management fee (if the owner manages the complex themselves) and to determine the economic adjustment;
- ensures that the expenses on the application are only for the non-exempt units and excludes the following expenses:
 - ◆ the operating expenses incurred for the sole benefit of exempt rental units;
 - ◆ the capital expenses and mortgage interest incurred for the sole benefit of exempt rental units;
 - ◆ the dollar value of any change in services that relates to or affects only exempt rental units.
- Uses a ratio to apportion those expenses that relate to both exempt and non-exempt units; this is known as the A/B ratio and it is calculated as follows:

The total number of rental units that are not exempt

The total number of rental units in the complex

For example: if there are 100 units in the complex and 12 of the units are exempt, A/B =

$$\frac{88 \text{ (non-exempt units)}}{100 \text{ (all rental units)}} = 88\%$$

- Multiplies each of the following expenses by the A/B ratio to determine the allowable portion of the expenses to be included in the application:

♦ the operating expenses incurred for the common benefit of all rental units in the complex, other than management or other expenses incurred in lieu of management fees by a landlord who manages their own property;

♦ the capital expenses and mortgage interest expenses for the common benefit of all rental units in the complex;

♦ the dollar value of any change in services that relates to or affects all rental units in the complex.

Inspection of Material

When a landlord applies for a rent increase above the guideline, the Branch invites the tenants to come to the Branch, during normal office hours, to inspect the landlord's application and supporting material. In exceptional circumstances, the Branch may arrange for tenants to inspect a file outside normal office hours. If the residential complex is outside Winnipeg, Brandon or Thompson, the Branch arranges for the tenants to inspect a copy of the file in or near their community. To inspect a file, tenants must show identification to prove that they live at the residential complex.

The Residential Rent Regulation gives tenants the right to inspect the application and the supporting material. The regulation does not give the Branch the authority to provide photocopies of this information. People can make their own written notes about the material.

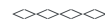
Tenants can comment, in writing, about the application. The landlord has the right to see and respond, in writing, to any comments the tenants give to the Branch. While tenants and landlords may discuss the file with Branch staff, the Branch will usually consider only written comments when making a decision on a rent increase.

When the Branch issues a decision on an application, it closes its file. Once the file is closed:

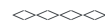
- the tenants are no longer entitled to inspect the landlord's application and supporting material; and
- the landlord is not entitled to inspect the tenants' written comments.

Branch Orders

The Branch makes a decision on a rent increase application based on the financial information and written submissions of the landlord and the tenants. The Branch may also hold a hearing to allow the landlord and tenants to present information, but this is unusual.



When reviewing an application, the Branch follows Section 125 of the *Act* and the Residential Rent Regulation.



Some types of expenses can be operating or capital, depending on the circumstances. If the regulation on expenses is not specific, the Branch considers whether the landlord routinely incurs the expense by comparing the information between reporting periods. If the Branch decides that an amount shown as an operating expense is extraordinary, it will:

- disallow all or part of it; or
- move all or part of the cost from operating expenses to capital.

If the Branch moves this type of expense from operating to capital, it may:

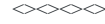
- calculate the amount of the cost to remain in operating expenses; and
- move the balance to capital.

For example: A landlord includes a \$40,000 expense for painting a number of rental units in their entirety as an operating expense. The Branch needs to determine if the expense is extraordinary. The Branch compares the cost for painting in the current period to the cost in the previous period. The Branch considers part of the cost to be a capital expense. There are 150 units in the building. The landlord painted 100 of the units during the current

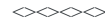
period. The Branch leaves the cost of painting 20% of the units in operating and moves the balance to capital (150 units x 20% = 30 units). The cost of painting 100 units was \$40,000 or \$400 per unit (\$40,000 ÷ 100). Therefore the cost of painting 20% of the units or 30 units is \$12,000 (30 x \$400). The Branch moves the balance of \$28,000 (\$40,000 - 12,000) to capital.

Some landlords do their own repairs and maintenance. These landlords are entitled to show a reasonable amount for their labour as an operating expense. However, the Branch may not allow part of the expenses if they appear unreasonable when compared to similar transactions in the marketplace.

If a landlord does their own repairs, they must make sure that the work meets health, building and maintenance and occupancy standards.

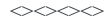


When reviewing operating expenses, the Branch considers whether the landlord and the supplier of the goods or services are at arm's length. If the parties are not at arm's length, the Branch may not allow part of the expenses if they appear unreasonable when compared to similar transactions in the marketplace.



In certain instances, some landlords purchase "capital items" such as appliances or plumbing fixtures in bulk and do not necessarily install all of them in rental units during the same year. When this happens the Branch only considers the cost of those items that are actually installed in rental units during the "current period" of the application.

For example: A landlord applies for an above guideline rent increase and uses financial statements for the period January 1, 2006 to December 31, 2006 as the "current period" on the application. The landlord purchased 50 refrigerators in 2005 at a cost of \$35,000 and installed 25 of them during 2006. The Branch will only allow the allowable portion of the cost of the 25 refrigerators installed during the "current period" on this application. (\$17,500 X 1/4 = \$4,375).



Not all capital items are specifically listed in the Regulations. Regulation 9(1.2)(d) states:

"(d) 1/3, 1/4, 1/6, or 1/8, as determined by the director, of the cost of such other items as the director determines to be capital expenses."

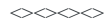
Some examples of "such other items" would be:

- 1/6 of the acquisition or replacement cost of vanities or woodwork
- 1/8 of the acquisition or replacement cost of light fixtures

A landlord may include reasonable professional fees related to applications and appeals under the Act as an operating expense. The Branch will allow these professional fees as long as:

- the landlord supports them with a bill or invoice from the individual or company that provided the professional services;
- the individual or company has a professional designation (**For example: Chartered Professional Accountant**); and
- the fees are within the reporting periods chosen by the landlord.

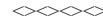
The Branch does not consider bad debts, allowance for errors, allowance for vacancy loss or any other budgeted, projected or anticipated costs to be operating or capital expenses.



Sometimes the Branch may consider information from previous years when reviewing an application for a rent increase above the guideline.

When the Branch reviews an application, the Branch checks to see when the landlord last applied for a rent increase above the guideline. If the landlord applied two years before the current application and didn't apply a year ago, the Branch does some calculations to see if there are any unusual fluctuations in the expenses between the reporting periods on the two applications. If there are significant differences, the Branch may do a review of the expenses for up to three years before the date of the current application. When reviewing the expenses for previous years, the Branch considers the effect of increases or decreases over the three-year period. The Branch also considers whether the landlord took a guideline rent increase in the year they didn't apply to the Branch. After considering the information on file, the Branch may adjust the landlord's expenses to reflect the increases and decreases in expenses in the last three years.

For example: A landlord applies for a rent increase above the guideline in 2004. The landlord uses 2003 as their current reporting period and 2002 as the previous period. The landlord shows expenses of \$90,000 for 2003 compared to \$60,000 for 2002. The landlord increased the rent by the guideline in 2003. The landlord applied for an increase above the guideline in 2002. On that application, the landlord showed expenses of \$70,000 for 2001. Since there is an unusually large difference in the expenses, the Branch decides to review the expenses more closely. In this example, there is an increase of \$20,000 in the operating expenses over the three years. [\$70,000 in 2001 to \$60,000 in 2002 = (\$10,000) decrease; \$60,000 in 2002 to \$90,000 in 2003 = \$30,000 increase; increase \$20,000]. The Branch reduces the landlord's expenses by \$10,000. The Branch also deducts \$2,000 for the guideline increase the landlord took in 2003. (Total rent roll \$200,000 x 1% guideline = \$2,000).



When a landlord applies for a rent increase above the guideline, they can ask the Branch to consider expenses from the three years before the date of the application. The Branch may consider the expenses only if the landlord:

- didn't apply for a rent increase above the guideline in the three-year period;
- is prepared to submit complete information on their operating and capital expenses for those periods; and
- did the work in the three-year period.

For example: A landlord puts a new roof on a building and buys new appliances for several rental units. Although the landlord could justify a rent increase above the guideline, they don't apply to the Branch. They take only the guideline increase. Later, when the landlord applies for a rent increase above the guideline, they ask the Branch to consider the expenses for the current and previous periods and the expenses for the roof and the appliances. The landlord supplies the Branch with information on the operating and capital expenses for the three periods. The information shows that the landlord could have justified an increase above the guideline. The Branch adjusts the landlord's application to show the new allowable rent increase.

The Branch's goal is to issue an Order setting the rents before the date the landlord plans to increase the rent *or within 90 days* from the date it receives the application. If the Branch doesn't issue the Order before the date of the proposed increase, the tenants must pay the landlord the rent increase the landlord requested. If the Branch later sets the rent increase at a lower amount and the landlord doesn't appeal the Order, they must return the overpayment to the tenant. The landlord may give the tenants a refund or allow them to reduce their next rent payment. If the landlord appeals the Order, the tenants must continue to pay the requested amount until the Residential Tenancies Commission issues an Order setting the rent. **For example: The landlord gives the tenants a notice of increase in rent for October 1 and applies to the Branch for an increase of 5%. The Branch doesn't issue an Order before October 1. The tenants must pay the 5% increase. On November 8, the Branch sets the rent increase at 4%. Neither the landlord nor tenants appeal the Order. The landlord must refund the 1% overpayment for October and November.**

If necessary, the Branch can authorize tenants to set off an overpayment against future rent. The Branch also has the authority to re-direct rent to satisfy an Order to return a rent overpayment.



Some landlords charge separately for a service, **for example: parking**. When the Branch issues an Order, it shows the date the rent can go up and the maximum amounts the landlord can charge for the rent for the unit and the separate service. **For example: Effective October 1, the landlord may increase the rent for the unit to a maximum of \$505.00 and the rent for the parking to a maximum of \$47.00 for a total of \$552.00.** After the Branch issues the Order, the landlord can't change how they allocate the rent increase until the next increase or new tenancy agreement. **For example: The landlord can't say that rent for the unit is \$510.00 and the rent for the parking \$42.00.** If the landlord only increases the rent by the amount of the guideline the next year, they can apply the increase to either component or split it between them. **For example: The monthly rent for the unit is \$505.00 and the rent for the parking is \$47.00 for a total rent of \$552.00. The annual rent increase guideline is 1.5%. The landlord may increase the total rent by \$8.00 to \$560.00. The landlord may say the rent for the unit is \$513.00 and the rent for the parking is still \$47.00 for a total rent of \$560.00. Or, the landlord may say the rent for the unit is still \$505.00 and the rent for the parking is now \$55.00 for a total of \$560.00. Or, the landlord may say the rent for the unit is \$509.00 and the rent for the parking is \$51.00, again for a total rent of \$560.00.**

When a new tenant moves in, a landlord may also choose to "move" some of the money allocated for rent to parking or some of the money set for parking to rent. **For example: The monthly rent for the unit is \$505.00 and the rent for the parking is \$47.00 for a total rent of \$552.00. The landlord prepares a new tenancy agreement for a new tenant and says the rent for the unit is \$525.00 and the rent for the parking is \$27.00 for a total rent of \$552.00. Or, the landlord may say the rent for the unit is \$497.00 and the rent for the parking is \$55.00 for a total rent of \$552.00.** A landlord must always give the new tenant a Notice to New Tenant form and send a copy to the Branch.



When the Branch issues an Order setting the rents, it also sets the effective date of the increase. If a landlord chooses not to collect the total amount of a rent increase in the year the Branch approves it, the landlord can't carry the balance or unused portion forward and add it to future rent increases. If a landlord prefers not to charge the full amount of the approved rent, they may consider offering their tenants a rent discount. (see Rent Discounts)



When a landlord applies for a rent increase, the Branch checks for open repair files on the complex. The Branch may also receive an objection from a tenant which mentions repair problems. Depending on the type of repair or repairs, the Branch may:

- allow the increase, but order the landlord to make the necessary repair; this may happen if the repair is minor; **For example: A stove needs to be fixed;**
- allow the increase, but delay the effective date of the increase until the work is complete; this may happen if the repairs affect all or several units in a complex. **For example: The roof is leaking and needs to be replaced and several units have water damage.**

Procedure

Overview An officer reviews a landlord's application for a rent increase above the guideline, taking into account the financial information provided, tenants' comments and the landlord's response to them. The officer calculates the amount of the rent increase and issues an Order, which includes reasons. Both the landlord and tenants get copies of the Order.

Steps ▼ 1. The officer reviews the landlord's application to make sure that:

- the information on the rent roll is complete;
- the landlord is using the same reporting periods as on previous applications;
- the landlord is showing the revenue earned and expenses incurred in the appropriate reporting periods;
- the landlord continues to provide the same services as part of the rent;
- the landlord supplied copies of invoices for any capital expenses;
- there is supporting information for any unusual increase in operating expenses in the current period; and
- the expenses are for the residential complex shown on the application.

The officer also confirms the reporting methods the landlord is using. The methods must be used consistently to allow the Branch to properly compare reporting periods.

2. If necessary, the officer sends a letter to the landlord, asking the landlord to supply missing information or supporting material *within two weeks of the date of the letter*. The officer may also call the landlord if any information on the application is not clear. If the officer calls, they either send the landlord a letter to confirm the conversation or ask the landlord to send a letter confirming the information. If there are large or unusual increases and/or decreases in expenses, the officer may ask for financial information for the two periods shown on the application and information from previous periods.

3. When the officer has all the information required, they send the tenants a letter inviting them to inspect the application.

4. If the officer receives written comments from tenants, the officer will either discuss the information with the landlord by telephone or invite the landlord to inspect and comment on the tenants' statements in writing.

5. The officer reviews the written information from tenants to see if there are any comments on:

- when, or if, the landlord did certain repairs or replacements;
- the rent roll information or rent history;
- services added, or withdrawn, during the periods;
- the landlord's response to repair requests.

If a tenant's written comments mention an urgent repair, for example: a smoke alarm that's not working, the officer opens a repair file. If there are other repair requests, the officer may send a letter to the tenant to advise them of the Branch's repair process.

The officer also reviews any response the landlord made after they reviewed the tenants' comments.

The officer checks to see if there are any repair files on the complex to confirm that the landlord is meeting their obligation to maintain the building.

6. The officer completes a worksheet about the application. The worksheet shows any changes made to the landlord's application, with a short explanation for each change. Here are some examples of common changes:

- correcting a calculation error;
- moving an item from operating expenses to capital expenses and determining the fraction to use; **For example: Interior painting in rental units could be either a capital or operating expense depending on the circumstances (see policy section for an explanation);**
- correcting the fraction used to calculate the cost allowable for a capital expense; **For example: A landlord used 1/3 of the cost of buying new dishwashers instead of 1/4;**
- re-calculating the value of a change in service;
- removing laundry equipment from capital expenses if a landlord has coin operated laundry facilities; and/or
- removing an item from operating or capital expenses that doesn't belong to the reporting periods the landlord chose.

7. Once changes are made, the officer uses a set formula to calculate the total allowable rent increase. This is based on:

- the increase or decrease in operating expenses between reporting periods;
- the allowable portion of capital expenses for the current period;
- economic adjustment factor/or an allowance for operating losses; and
- the value of any change in service.

8. The officer allocates the rent increase to each rental unit by either equal percentage or equal dollar, depending on which method the landlord chose.

9. The officer issues an Order setting the amount of the rent for each unit. The Order includes reasons. The landlord and tenants get a copy of the Order.

Forms & Form Letters

Application for Rent Increase Above Amount Permitted by Regulation. To see **Form 3** [click here](#).

Notice of Rent Increase. To see **Form 1A** [click here](#)

Notice to New Tenant. To see **Form 2** [click here](#)

X-Referencing

For information on **applications received after the deadline**, see [Late Applications](#) in this section.

For information on **discounting rent**, see [Rent Discounts](#) in this section.

Policy Developed

September, 1992*

Last Revision

September, 2019

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Section 13	Rent Regulation
Sub-Section 13.2	Application for Rent Increase Above the Guideline: Late Application

Legislation *s. 123(3), The Residential Tenancies Act*

Definitions **Annual rent increase guideline:**the percentage that a landlord can increase rent without applying to the Branch for approval. The Government sets the amount each year. The guideline takes effect on January 1. For an explanation of how the annual rent increase guideline is calculated, [click here](#). A landlord can apply for a larger increase if they can show that the guideline will not cover their increases in expenses. The guideline applies to most rental units, including apartments, single rooms, houses, duplexes, mobile homes and mobile home lots. *The Residential Tenancies Act* does not apply to rent increases on land leases.

Application for Rent Increase Above the Guideline a form a landlord completes when they apply to the Branch to increase their rent by more than the annual rent increase guideline.

Economic adjustment factor:a percentage the Government sets each year as part of the rent increase guideline. The Economic Adjustment Factor recognizes the non-operating part of the rent revenue. The Government considers inflation when setting the Economic Adjustment Factor.

Policy A landlord must apply to the Branch for a rent increase above the guideline *at least two and one-half months before the date of the first increase*. **For example: A landlord gives a tenant notice on June 15 that they plan to increase the rent by more than the guideline on October 1. The Branch must receive the application by July 14** If the deadline for filing an applications falls on a weekend or statutory holiday, the deadline is extended to the first business day following the weekend or holiday.

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A landlord who sends in an application *after* the deadline can either:

- take a lower rent increase that is within the guideline; or
- change the date that the rent increase is to take effect, so that there is a new deadline for applying. The landlord must give affected tenants a new written notice of the proposed rent increase. **For example: The landlord gives tenants notice of rent increase on June 30 for an October 1 rent increase. The Branch receives the landlord's application on July 20, after the deadline. The landlord can either take a guideline increase on October 1 or postpone the proposed above guideline increase to November 1.**

Procedure

Overview An officer receives a late application. The officer explains the options to the landlord. If the landlord doesn't choose an option, the officer makes a decision on the available information and issues an Order setting the rent.

Steps ▼ 1. When the Branch receives an application for a rent increase after the deadline, the officer telephones the landlord and explains the landlord's options:

Option 1 – Lower the amount of the rent increase to the guideline

Option 2 – Postpone the date of the rent increase

2. The officer gives the landlord *two weeks* to make a decision.

If the landlord chooses Option 1 the officer asks the landlord to write the tenants to tell them that the rent increase has been lowered.

The landlord can either use the Notice of Rent Increase form or write their own letter. The landlord must send the Branch a copy of this notice.

If the landlord chooses Option 2 the officer asks the landlord to write a letter to the affected tenants, telling them that the effective date of the increase has been postponed. The landlord must send the Branch a copy of the letter.

3. If the landlord doesn't make a decision *within two weeks*, the officer issues an Order setting the rent. The officer may:

- allow a guideline rent increase (unless there is a tenant objection);
- allow an increase which equals the economic adjustment factor;
- set the rent increase at \$1.00 per month per rental unit; or
- not allow any rent increase.

Forms & Form Letters Application for Rent Increase. To see **Form 3** [click here](#)

X-Referencing For more information on rent increase above the guideline see this section.

Policy Developed September, 1992

Last Revision August, 2015

Other Resources None

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Section 12	Costs and Interest
Sub-Section 12.2	Interest

Legislation

[s. 31.1, 154\(1\)5\(c\), *The Residential Tenancies Act*](#)
[Residential Tenancies Interest Regulation](#)
[The Court of King's Bench Act, Part XIV](#)

Definitions

Claimant: a person who makes a claim against another.

Costs: expenses that a claimant may have to file or serve a claim or application or provide supporting evidence for a claim or application.

Interest: for the purpose of this subsection, interest can be:

- interest that a landlord is required to pay on a security deposit. A tenant is entitled to interest from the date they pay a deposit until the date the landlord returns the money or the Branch issues an Order on the deposit. The government sets the interest rate.
- interest at the Court of King's Bench rate that a landlord or tenant can claim on an award of compensation.

Claimants can ask for interest on compensation the Branch awards.

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The Branch doesn't automatically include interest on every compensation award. When a claimant files a claim or an Application for an Order of Possession, they must ask for interest in the details of claim section of the form.

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To calculate interest, the Branch uses the pre-judgment rate set out by *The Court of King's Bench Act*. The rate is set quarterly.

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Although a claimant and respondent may sign an agreement to pay interest at a rate other than the pre or post-judgment rate, the Branch can only award interest at the Court of King's Bench rates.

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The Branch decides the date from which a respondent is responsible to pay interest. Interest can be calculated from:

- the date that the respondent didn't meet their responsibilities under the *Act* or a tenancy agreement;
- the date that a claimant had a financial loss or paid an expense;
- the date the tenancy ended; or
- the date the claim for compensation was filed with the Branch.

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Interest is calculated on the amount of the compensation only. Compensation includes returned cheque charges, but doesn't include:

- costs;
- late payment fees; or
- interest awarded at the pre-judgment rate.

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On a claim for rent, the Branch generally awards interest at the pre-judgment rate from the date the rent was due. For example: A landlord files a claim for rent for April and May. The monthly rent is \$505.00. The Branch issues the decision on June 15. The pre-judgment rate is 5.5% per year for the period from April 1 to June 30. For April 1 – April 30, the interest is \$2.28 ($\$505.00 \times 30 \text{ days} \div 365 \text{ days} \times 5.5\%$). For the period May 1 – June 15, the interest is \$7.00 ($\$1010.00 \times 46 \text{ days} \div 365 \text{ days} \times 5.5\%$). The total interest is \$9.28.

On a claim for cleaning, damage or other compensation, the Branch generally awards interest at the pre-judgment rate from the date the tenancy ended to the date of the Order. For example: A landlord files a claim for cleaning and damage. The tenancy ended April 30. On June 15, the Branch awards the landlord \$700.00. The pre-judgment rate is 5.5% per year for the period of April 1 – June 30. The interest is \$4.85 ($\$700.00 \times 46 \text{ days} \div 365 \text{ days} \times 5.5\%$).

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In some cases, a claimant may not file a claim for several months or years after the end of a tenancy. If the claimant doesn't have a reasonable explanation for the delay in filing the claim, the Branch will only award interest from the date the claimant filed the claim.

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A claimant can file a certified copy of a Branch Order in the Court of King's Bench to enforce the Order. When a claimant files an Order, interest on the compensation is calculated at the post-judgment rate from the date of the Branch's decision or Order to the date the compensation is paid.

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Interest on A Security Deposit

When the Branch issues an Order of Possession, a landlord may ask the Branch to apply the security deposit to the Order for compensation. When this happens, the Branch calculates the interest on the deposit from the date the landlord received the deposit up to the date the tenant is to move.

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When making any other decision on a security deposit, the Branch calculates the interest on the deposit up to the date of the Order.

Procedure

Overview A claimant can ask for interest when filing a claim for compensation or applying for an Order of Possession. The officer uses set rates when calculating interest.

- Steps ▼** 1.If a claimant claims interest when they file a claim for compensation or apply for an Order of Possession, the officer:
- determines the amount of compensation owing;
 - decides the date from which the respondent is responsible to pay interest;
 - calculates the interest at the pre-judgment rate; and
 - awards interest at the post-judgment rate.

Forms & Form Letters

X-Referencing None

Policy Developed September, 1992

Last Revision February, 2024

Other Resources None

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Section 12	Costs and Interest
Sub-Section 12.1	Costs

Legislation

[s. 154\(1\)5\(b\),154\(1.1\)2\(a\) *The Residential Tenancies Act*](#)
[s. 23, 24 Residential Tenancies Regulation](#)
[Residential Tenancies Costs Regulation](#)

Definitions

Claimant: a person who makes a claim against another.

Costs: expenses that a claimant or respondent may have in order to file or serve a claim or application or provide supporting evidence for a claim or application or costs relating to a writ of possession.

Filing fee: a fee for filing a claim for **compensation** or an Application for an Order of Possession.

Respondent: a landlord, tenant or co-signer against whom a claim is made.

Policy

Claimants and respondents may make a claim for reasonable costs related to filing a claim for compensation or an Application for an Order of Possession. The Branch follows the Residential Tenancies Costs Regulation when awarding costs.

Applications for Orders of Possession

When a landlord applies for an Order of Possession they may also have a claim for compensation on the same application.

The Branch issues two decisions; one on the application for the Order of Possession and another on the claim for compensation as well as costs.

If the Branch grants the Order of Possession but does not order the tenant to pay compensation, the costs are \$110.00.

If the Branch orders the tenant to pay compensation the Branch may award costs of \$110.00 without requiring any receipts or other proof of expense.

If the Branch awards compensation of more than \$110.00, the Branch may award costs of up to 10% of the amount of the compensation, *but only if the claimant provides evidence of their reasonable costs*. The Branch can't award costs of more than 10% of the compensation. For example: The Branch awards the claimant \$1,300.00. The claimant has supported expenses of \$155.00. The Branch can only award \$130.00 or 10% of \$1,300.00 as costs.

On the day of an Order of Possession hearing, a landlord might advise the Branch that the tenant has moved so they no longer need the Order of Possession. However, the landlord can still ask the Branch to consider a claim for compensation shown on the application form. If the Branch issues an Order to the tenant to pay the landlord, it uses the above guidelines for awarding costs. If the landlord no longer needs the Order of Possession and does not have a claim for compensation the landlord can still ask the Branch to consider granting the landlord costs. If the landlord filed for the Order of Possession after the move out date on the Notice of Termination, the Branch may award costs to the landlord.

Claims for Compensation

If the Branch orders the respondent to pay compensation, the Branch may award costs of \$65.00, without

requiring any receipts or other proof of expense.

If the Branch awards compensation of more than \$65.00, the Branch may award costs of up to 10% of the amount of the compensation, *but only if the claimant provides evidence of their reasonable costs*; the Branch can't award costs of more than 10% of the compensation. For example: The Branch awards the claimant \$950.00. The claimant has supported expenses of \$125.00. The Branch can only award \$95.00 or 10% of \$950.00 as costs.

To support a claim for costs of 10% of the compensation awarded, reasonable costs may include:

- the cost of hiring a process server to personally serve a claim or application, as long as a receipt is provided;
- the cost of personal service of a claim or application by a claimant; the Branch generally awards \$55.00 for service. If a claimant can show that they needed to make more than one trip to serve the respondent, the Branch may award reasonable costs, up to a maximum of 10% of the amount of the compensation awarded if there is evidence shown that the costs were over \$55.00.
- the cost of sending a claim by registered mail;
- filing fees;
- costs incurred by a landlord to obtain or enforce a writ of possession;
- expenses for finding the other person, if a forwarding address is not available;
- expenses for providing supporting evidence including:
 - the cost of purchasing film or developing one set of photographs as long as the photographs are necessary to support the claim and a receipt is provided; if there isn't a receipt, the Branch may award the following:

photos: 1 – 12 pictures up to \$14.00
13 – 24 pictures up to \$19.00
25 – 36 pictures up to \$26.50
 - the cost of making photocopies necessary to support the claim when a receipt is provided (one set for the Branch, one set for the claimant or respondent); if there isn't a receipt, the Branch may award the following:

bulk photocopies (over 10 copies) up to 25¢ per copy



The Branch awards costs only for the evidence it needs to make a decision.



The Branch doesn't award costs for:

- legal fees;
- the time spent to prepare for, or attend a hearing;
- mileage, travel or parking costs;
- expenses for giving notice of termination, warnings or letters.



The Branch doesn't award costs if the claim for compensation is not successful.

The Branch may not award costs if it doesn't appear that a landlord's claim for more than a deposit was reasonable. For example: A landlord has a security deposit of \$275.00. The landlord files a claim with the Branch for \$1,600.00. After hearing the evidence, the Branch awards the landlord \$50.00. Since the landlord's award was significantly less than the security deposit, the Branch doesn't award costs.



When calculating costs, the Branch includes the following as part of compensation:

- the daily or per diem rate a tenant is ordered to pay for use and occupancy to their move-out date; For example: The Branch orders a tenant to move on July 9th. The Branch also orders the tenant to pay \$17.26 per day effective July 1 until the date they move out of the unit. The Branch includes \$138.08 (\$17.26 X 8 days) as part of the compensation when calculating costs.
- late payment fees;

- returned cheque charges.

Procedure

Overview A claimant can ask for costs when filing a claim for compensation or applying for an Order of Possession. The officer uses set guidelines for awarding costs.

Steps ▼

- 1.A claimant asks for costs when they file a claim for compensation or apply for an Order of Possession.
- 2.If the claim for compensation or the Application for an Order of Possession is successful, the officer awards the appropriate costs.
- 3.The officer issues an Order showing the amount of costs awarded. If the officer doesn't allow certain costs, they give reasons for their decision.

Forms & Form Letters

X-Referencing

For more information on [mediation](#), see Section 1.
[Orders of Possession](#) are dealt with in Section 8.
 For more information on filing a claim, see [Claims](#), in Section 9.
 For details on [hearings](#), see Section 11.

Policy Developed September, 1992

Last Revision June, 2015

Other Resources None

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Residential Tenancies Branch

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Section 11	Hearings/Hearing Orders
Sub-Section 11.3	Hearings - Substitutional Service

Legislation	<u>s. 184, <i>The Residential Tenancies Act</i></u>
Definitions	Claim: a form filed with the Branch by a landlord, tenant, or co-signer asking the Branch to decide if the person who filed the claim is entitled to money from the person they filed against. Claimant: a landlord, tenant or co-signer who makes a claim against the other. Commissioner for Oaths: a person appointed by the Provincial Government to take statements under oath and receive solemn declarations. Co-signer: a person who signs a tenancy agreement along with the tenant and agrees to be responsible for the obligations of the tenant. For example: the obligation to pay rent or to pay for damages. Declaration of Service: a form signed by the person who served the claim. It shows how and when the respondent was given notice that a hearing would take place. Guarantor: a person who signs an agreement and attempts to guarantee that a tenant will meet the specific obligation set out in the guarantee. For example: to be responsible for payment of the rent. Hearing: a meeting where a claimant and respondent present information about their case to an officer to have their claim, application or question decided. Respondent: a landlord, tenant, or tenant's co-signer against whom a claim is made. Substitutional service: an alternate way for a claimant to give a respondent notice of a hearing where service attempts fail. The claimant must apply to the Branch for approval of substitutional service.
Policy	Before the Branch approves substitutional service, a claimant must make reasonable attempts to give a respondent a Claim and Notice of Hearing form, or an Application for an Order of Possession,<i>at least five days before the hearing date</i>. Reasonable attempts may include: • trying to deliver the claim or application in person at the respondent's home, on different days and at different times; • trying to give the claim or application to an adult at the respondent's home; • trying to give the claim or application to the respondent at work; or • trying to send the claim to the respondent by <i>registered</i> mail. ◇◇◇◇◇ If a claimant can't serve a respondent, they may apply to the Branch for substitutional service. When applying for substitutional service, the claimant must pay a non-refundable application fee. The applicant must: • explain to the Branch how they tried to give the respondent the claim or application; and • suggest how they think they could serve the respondent. When applying for substitutional service, a claimant must submit the fee with the application. ◇◇◇◇◇ If a claimant says they've tried to serve a respondent by registered mail, without success, they must give the Branch proof of their attemptFor example: They could submit the envelope marked "Unclaimed" or "Refused" by Canada Post. ◇◇◇◇◇ If a landlord can't serve an Application for an Order of Possession, the Branch generally allows the landlord to post the application on the door of the rental unit and slide a copy of it under the door or put it in the mailbox. ◇◇◇◇◇ The Branch may consider the following methods for substitutional service of a claim: • sending it to the respondent by prepaid, first class<i>regular</i> mail; • delivering it in person to an adult family member or sending it to them by prepaid, first class<i>regular</i> mail; • delivering it in person or sending it by prepaid, first class<i>regular</i> mail to the respondent's employer, if the employer can guarantee the respondent will receive it; • placing an advertisement in the legal notice section of a newspaper (see sample). ◇◇◇◇◇ The Branch must be satisfied that the respondent will likely receive the claim by substitutional service before it will authorize substitutional service. ◇◇◇◇◇ If the Branch allows substitutional service, it will give the claimant instructions on how to serve the respondent. In some cases, the Branch might reschedule the hearing to make sure the claimant has time to give enough notice of the hearing. ◇◇◇◇◇ The claimant must give the Branch a declaration of service before the hearing. The person who served the claim by following the instructions for substitutional service must sign the declaration in front of a Commissioner for Oaths. To speed up the hearing process, the Branch encourages a claimant to have the declaration signed and witnessed before coming to the Branch for a hearing.

Procedure

Overview	An officer receives an Application for Substitutional Service from a claimant. The officer reviews the application to decide whether to allow substitutional service or deny it.
----------	--

- Steps ▼
1. An officer reviews the Application for Substitutional Service.

2. If the officer approves substitutional service, they send the claimant an Alternative Notice of Hearing form with instructions on how to give the claim to the respondent. If the officer reschedules the hearing, the form will also show the new date and time.

3. If the officer doesn't believe that substitutional service will be successful, they will not authorize it. The officer gives the claimant reasons for denying the application. The officer may suggest other methods for substitutional service or, suggest that the claimant re-file the claim when they have a valid address for the respondent.

Forms & Form Letters

[Application for Substitutional Services](#)

X-Referencing

For more information on **substitutional service**, see this section under:

Serving Notice of A Hearing

Hearings – General Information

For details on **Order of Possession**, see [Section 8](#).

For information on **claims for compensation**, see [Claims](#), in Section 9.

Policy Developed

September, 1992

Last Revision

September, 2005

Other Resources

None

NOTICE UNDER *THE RESIDENTIAL TENANCIES ACT OF MANITOBA*

TO:

 (Name of Respondent)

The Residential Tenancies Branch will hold a hearing at _____ A.M./P.M.
(time)

on _____ at 302-254 Edmonton Street, Winnipeg, MB, R3C 3Y4
 (date)

to consider the landlord's claim in the amount of \$ _____

for _____
(i.e. damages, rent, cleaning, costs, etc.)

against you respecting a tenancy at _____
(address of rental unit)

If you do not attend the hearing, a decision may be made in your absence.

(Name of Claimant)

This ad must:

- be addressed to the person to whom the notice is being given;
- give the address of the rental unit;
- set out the information to be given to the other party;
- identify the person giving the notice.

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Section 11	Hearings/Hearing Orders
Sub-Section 11.2	Hearings - Serving Notice of A Hearing

Legislation

[s. 184, *The Residential Tenancies Act*](#)
[s. 19, *Residential Tenancies Regulation*](#)

Definitions

Claim: a form filed with the Branch by a landlord, tenant or [co-signer](#), asking the Branch to decide if the person who filed the claim is entitled to money from the person they filed against.

Claimant: a landlord, tenant or co-signer who makes a claim against another.

Commissioner for Oaths: a person appointed by the Provincial Government who can take statements under oath and receive solemn declarations.

Co-signer: a person who signs a tenancy agreement along with the tenant and agrees to be responsible for the obligations of the tenant. **For example: the obligation to pay rent or to pay for damages .**

Declaration of Service: a form signed by the person who served the claim. It shows how and when the respondent was given notice that a hearing would take place.

Guarantor: a person who signs an agreement and attempts to [guarantee](#) that a tenant will meet the specific obligation set out in the guarantee. **For example: to be responsible for payment of the rent.**

Hearing: a meeting where a claimant and respondent present information about their case to an officer to have their claim, application or question decided.

Respondent: a landlord, tenant or tenant's co-signer or guarantor against whom a claim is made.

Substitutional service: an alternate way for the claimant to give a respondent notice of a hearing, when service attempts fail. The claimant must apply to the Branch for approval of substitutional service.

Policy

When a claimant files a claim or application, they must give the respondent notice of the hearing.



The claimant must give the respondent the Application for an [Order of Possession](#) or Claim and Notice of Hearing form *at least five full days before the hearing*. When counting days, a claimant can include the day they serve the notice or the day of the hearing, but not both. **For example: A hearing is scheduled for May 8. Counting 5 days backward from the date of the hearing (7, 6, 5, 4, 3), the claimant must serve the respondent on or before May 3.**



When a claimant files a claim against more than one person, each person is entitled to receive a copy of the claim. This includes claims filed against married couples. If the respondents live at the same address, the claimant may hand the claims to one respondent or to someone who appears to be an adult at the respondents' residence.



When a landlord files a claim or applies for an Order of Possession, they may:

- hand the documentation to the tenant *in person* at the tenant's home, place of business or workplace or other public place;
- hand the documentation to someone who appears to be an adult at the tenant's home; or
- send the documentation by registered mail to the tenant's home address.

When a landlord sends an application for an Order of Possession by registered mail, they must ensure that the tenant receives the documentation and signs for it at least five days before the hearing. Since a landlord cannot always be reasonably sure if and when a tenant receives a notice of hearing sent by registered mail, the Branch encourages the landlord to try serving the tenant in person or by giving it to someone who appears to be an adult at the tenant's home address. Notices of termination must be delivered to the tenant in person or handed to an adult at the rental unit. (See sub-section 7.4)

A landlord may name other people, such as co-signers or guarantors, in the claim or application. The same rules of service apply to all parties named on a claim or application.



When a tenant files a claim, they may:

- hand the claim to the landlord in person at the landlord's home, place of business or workplace or other public place;
- hand the claim to an employee or agent of the landlord at the address for service the landlord provided; or
- send the claim by registered mail to the landlord's home.



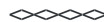
Occasionally, when a landlord or tenant tries to hand a claim or application to another person, the other person refuses to accept the document. If this happens, the person serving the document should ask for the name of the person refusing service and ask if the person is at least 18 years old. If the person is at least 18 years old or appears to be 18 years old, the server can then drop the document at the person's feet and indicate that the document is a claim/application filed against "name of the respondent" with the Residential Tenancies Branch.

In some cases, the person being served may look through a window and then refuse to open the door to allow service. In these situations, if it is obvious that the person refusing service is at least 18 years old, the person serving the document can state that they have a claim/application that was filed with the Branch and then slide the document under the door. If it is not possible to slide the document under the door, the server should somehow attach the document to the door.

A claimant must give the Branch a declaration of service before the hearing to show when and how the respondent received the claim. The person who served the claim must sign the declaration in front of a Commissioner for Oaths. To speed up the hearing process, the Branch encourages a claimant to have the declaration signed and witnessed before coming to the Branch for a hearing.

A claimant must complete a separate declaration for each respondent.

The Branch needs an original declaration of service before issuing an Order. There is one exception to this policy. If the Branch reschedules a hearing and sends the parties notice of the new hearing date, the claimant is not required to submit a declaration of service.

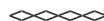


When a claimant sends a claim by Registered Mail along with the declaration of service. The claimant can get a certificate by logging on to the Canada Post web site and entering the item number shown on their receipt.

The certificate shows the date the respondent received the mail and who signed for it. If someone other than the respondent signs for mail sent to their home address, the claimant:

- must give the Branch their receipt to confirm that they addressed the claim to the respondent;
- may need to give the Branch some evidence of the relationship between the person who signed for the mail and the respondent. **For example: spouse, parent.**

The Branch must be reasonably sure that the respondent received notice of the hearing. If the Branch is not satisfied, it won't proceed with the hearing.



In some cases, a claimant may want to file a claim against someone who is in jail. If the claimant knows where the respondent is being held, they can call the facility to find out when and how they can serve the claim.



The Branch can only issue an Order or decision against individuals shown to have received notice of the hearing.



Occasionally, after the Branch issues a decision, a respondent will say the claimant did not give them notice of the hearing. The Branch provides the respondent with a copy of the declaration of service. The respondent may contact the Residential Tenancies Commission about an appeal.

Procedure

Overview At the beginning of a hearing, a hearing officer uses the guidelines in this policy to ensure that a claimant gave a respondent the required notice of a hearing.

- Steps ▼**
1. If the claimant did give the respondent the required notice of the hearing, the officer follows the procedures set out in Hearings –General Information.
 2. If the claimant did not give the required notice, the officer helps the claimant to reschedule the hearing. If the claimant was unable to serve the respondent, the officer may follow the procedures under Substitutional Service.

Forms & Form Letters

X-Referencing For more details on **hearings**, see this section under:

- [General information](#)
- [Substitutional Service](#)

Also see **Order of Possession** in [Section 8](#) and **Claims** in Section 9.

Policy Developed September, 1992

Last Revision Augsut, 2015

Other Resources None

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Section 11	Hearings/Hearing Orders
Sub-Section 11.7	Hearing Orders - Returned Orders
Legislation	no legislative reference
Definitions	Certified Order: an Order certified with a seal. The Branch certifies all Orders that landlord and tenants can file and enforce in the Court of King's Bench. Claimant: a person who makes a claim against another. Order: an Order for one person to pay another, generally for rent arrears, damage or cleaning costs. Respondent: a landlord, tenant or co-signer against whom a claim is made.
Policy	When the Branch issues an Order, it sends it to the claimant and respondent by first class, pre-paid mail. Sometimes Canada Post returns an Order to the Branch. When an Order is returned to the Branch, the Branch may re-issue the Order with a new appeal date. If the Order is returned because the respondent moved, the Branch won't issue a new Order until the claimant provides a new address for the respondent.
Procedure	Overview Canada Post returns an Order to the Branch. An officer reviews the file to decide if it is possible to issue an amended Order. Steps ▼ 1. An officer receives an Order returned by Canada Post. The officer reviews the file. 2. If the Order was addressed incorrectly, the officer cancels the original Order and issues a new Order with a new appeal date. 3. If the Order is returned for any other reason, the officer places the returned Order on file.
Forms & Form Letters	
X-Referencing	None
Policy Developed	March, 2004

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Section 11	Hearings/Hearing Orders
Sub-Section 11.4	Hearings - When the Branch Decides a Hearing is Necessary



Legislation

s. 154. *The Residential Tenancies Act*

Definitions

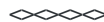
Hearing: a meeting where a claimant and respondent present information about their case to an officer to have their claim, application or question decided.

Mediation: a confidential process that the Branch uses to encourage and help claimants and respondents discuss problems, think of possible solutions and reach their own agreements. Mediation can take place in meetings, conference calls or separate telephone conversations.

Policy

If a tenant or landlord wants the Branch to decide an issue, the Branch may ask them to submit a request in writing for a determination. The request should set out the specific question or questions to be answered.

The Branch tries to mediate most disputes that arise between a tenant and landlord. If the Branch can't mediate, it may call a hearing to decide the issue.



The Branch may hold a hearing if:

- a tenant and landlord can't agree on the amount of moving expenses a tenant may be entitled to receive;
- the Branch needs more information to decide a claim that is less than or equal to the amount of security deposit; or
- a landlord or tenant has asked the Branch for a decision on a complicated or unusual dispute. **For example: A tenant asks the Branch to determine if the landlord has met their obligation to investigate the tenant's complaint about another tenant.**



A landlord and tenant may bring evidence or witnesses to a hearing to support their position.



There is no filing fee for this type of hearing.

Procedure

Overview

The Branch receives a request from a landlord and tenant to decide an issue. A mediation officer tries to help the landlord and tenant reach an agreement. If there is no agreement, the officer may schedule a hearing to decide the matter. In some cases, after reviewing a file, an officer may decide that a hearing is necessary to resolve an issue.

- Steps ▼**
1. The officer encourages the tenant and landlord to share information, and to discuss the problem, to try to come to an agreement.
 2. If mediation isn't successful, the officer advises the landlord and tenant there will be a hearing. The officer confirms the mailing addresses for the landlord and tenant and advises them to expect a letter about a hearing.
 3. The officer sends letters to the landlord and tenant, advising them to attend the hearing.
 4. If either the landlord or tenant chose not to attend, the hearing goes ahead. A hearing officer hears information from the person(s) attending, and reviews information on file. The officer makes a decision based on all available information, and mails an Order to the tenant and landlord.
 5. If no one attends the hearing, the officer might make a decision based on the available information and send an Order or decision to the landlord and tenant or the office might close the file.

Forms & Form Letters

X-Referencing

For more information on **hearings**, see [General Information](#) in this section.
For details on **mediation**, see Section 1.
For further information on **claims**, see [Claims](#), in Section 9.

Policy Developed September, 1992

Last Revision August, 2015

Other Resources None

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Section 11	Hearings/Hearing Orders
Sub-Section 11.1	<u>Hearings</u> - General Information

Legislation

s. 154, 155, *The Residential Tenancies Act*

Definitions

Adjourn: to postpone or suspend a hearing to a later date or time.

Claim: a form filed with the Branch by a landlord, tenant or co-signer, asking the Branch to decide if the person who filed the claim is entitled to money from the person they filed against.

Claimant: a landlord, tenant or co-signer, who makes a claim against another.

Commissioner for Oaths: a person appointed by the Provincial Government to take statements under oath and receive solemn declarations.

Contested hearing: a hearing both the claimant and respondent attend.

Co-signer: a person who signs a tenancy agreement along with the tenant and agrees to be responsible for the obligations of the tenant. **For example: the obligation to pay rent or to pay for damages.**

Declaration of Service: a form signed by the person who served the claim. It shows how and when the respondent was given notice that a hearing would take place. This form must be signed in front of a Commissioner for Oaths.

Default hearing: a hearing only one party attends, either the claimant or the respondent.

Evidence: information provided to support a claim. Evidence may include oral or written statements from witnesses, letters, condition reports, photographs, videotapes, bills or invoices and receipts.

Ground rules: basic rules of conduct. **For example: speak directly to the hearing officer when presenting evidence; no interrupting when someone is speaking; no "cross-table talk" between the claimant and respondent; polite language and respectful behaviour.**

Guarantor: a person who signs an agreement and attempts to guarantee that a tenant will meet the specific obligation set out in the guarantee. **For example: to be responsible for payment of the rent.**

Hearing: a meeting where a claimant and respondent present information about their case to an officer to have their claim, application or question decided.

Hearing docket: a list of the hearings scheduled on a specific date.

Hearing Officer: a neutral third person who receives information and evidence from claimants and respondents and issues decisions/orders based on the information, legislation and regulations.

Mediation: a confidential process the Branch uses to help claimants and respondents discuss problems, think of possible solutions and reach their own agreements. Mediation can take place in meetings, conference calls or separate telephone conversations.

Residential Tenancies Commission: a board that hears appeals on decisions or orders the Branch issues.

Respondent: a landlord, tenant, or tenant's co-signer or guarantor, against whom a claim is made.

Screening Officer: an officer who reviews the hearing docket to see which claimants and respondents are present. The officer decides how to proceed with the docket and assigns hearings to hearing officers.

Substitutional service: an alternative way for a claimant to give a respondent notice of a hearing where service attempts fail. The claimant must apply to the Branch for approval of substitutional service.

Policy

Branch hearings are open to the public. The Branch holds hearings on:

- applications for Orders of Possession;
- claims for compensation, including claims for more than a security deposit; and
- requests to determine a question.

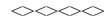


A claimant may file a claim at any of the three Branch offices. The Branch holds hearings in Winnipeg, Brandon and Thompson as well as in other judicial centres in the province. The Branch decides where the hearing will be held. This decision is based on the location of the rental unit and the address of the landlord and tenant. The Branch usually schedules a hearing in the judicial centre closest to the rental unit. A claimant may ask to have their hearing outside of the nearest judicial centre. The Branch will accommodate a request for a different location if it appears fair to both the claimant and the respondent.



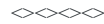
The Branch will usually only reschedule a hearing if both parties agree to reschedule. The Branch may also reschedule a hearing if it considers it necessary. If the Branch does reschedule:

- before the date of a hearing, it will send a letter to the claimant and respondent confirming the date and time of the hearing.
- on the actual day of the hearing, it will advise the parties verbally of the date and time of the rescheduled hearing.



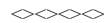
The Branch generally holds hearings with the parties present in the hearing room. If there's a safety issue or a court order preventing the parties from being in the same room, the Branch may arrange to conduct the hearing in some other way. If one of the parties can't attend a hearing, the Branch can do the hearing by telephone or conference call. The Branch only does conference call hearings if absolutely necessary. If a claimant or respondent can't attend a hearing or be available for a conference call, they can make a written submission to the hearing officer.

If a landlord or tenant wants the Branch to consider a written submission, all parties must receive the response two full business days before the hearing. The Branch won't consider any evidence received *after* a hearing is finished, unless a hearing officer specifically asks for more information or evidence.

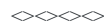


A claimant or respondent can:

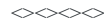
- attend a hearing and represent themselves;
- attend a hearing with a representative; or
- send a representative to a hearing to represent them.



The Branch will accept evidence from a representative even though they may not have personal knowledge of the case. However, if someone who does have direct knowledge challenges what the representative has said, the Branch will generally accept the evidence of that person as the best evidence that is available.



Whenever possible, a claimant or respondent should submit the originals of bills or invoices. The Branch will continue to hold the evidence unless the person who submitted the originals asks the Branch to return them. When someone asks the Branch to return original evidence, the Branch makes copies of the information for the file.



When a respondent does not attend a hearing or submit a written response to the claim, the Branch doesn't automatically award the amount claimed. The Branch must still ensure that:

- the claim is due to a breach of a tenancy agreement or *The Residential Tenancies Act*; and
- the claimant is entitled to the amount claimed. The Branch must determine that the amount claimed is reasonable. **For example: The landlord claims \$500 to replace a fridge the tenant damaged. The Branch must determine if the tenant is responsible to compensate the landlord and if \$500 is reasonable considering the age of the fridge. Or, the tenant claims \$700.00 to replace some water-damaged furniture. If the Branch determines the landlord is responsible to compensate the tenant, the Branch considers the age and condition of the furniture.**

If a respondent doesn't attend a hearing, the Branch will ask the claimant to provide a Declaration of Service to confirm the respondent's current mailing address.



The Branch uses a docket system for hearings on claims for compensation and Applications for Orders of Possession. Under a docket system, the Branch schedules all morning hearings for 9:00 a.m. and all afternoon hearings for 1:30 p.m. The Branch may not always hear the claims or applications in the same order as they're listed on the hearing docket. The Branch also doesn't give priority to a claimant or respondent who has a lawyer or other agent representing them.



If it appears a hearing may continue after 11:30 a.m. or 4:00 p.m., the Branch may adjourn the hearing and continue it on another day. The Branch will verbally advise the attending parties of the date and time it will complete the hearing.

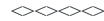


Branch hearings are informal. The Branch doesn't:

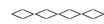
- allow video or audio taping during a hearing;
- have the authority to subpoena people or evidence to a hearing;
- "swear in" witnesses.

While evidence is not given under oath, a hearing officer does decide who is likely telling the truth and how much importance different evidence has. In other words, a hearing officer considers things like credibility, relevance and whether or not the

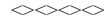
evidence helps prove the case.



The Branch will not hear the same claim more than once. If a party disagrees with the Branch's decision, they may appeal it to the Residential Tenancies Commission.



In some cases, a claimant may want to add items to their claim during a hearing. When this happens, the respondent may choose to waive their right to notice of the extra claims. If the respondent waives their right to notice, the Branch will consider the entire claim. If the respondent says that they are not prepared to waive their right to notice, the Branch will only consider the original claim. If the Branch believes the claimant could have reasonably included the additional claims in the original claim, it has the authority not to accept a second claim. If the Branch allows the claimant to file another claim for the additional items, it will schedule another hearing. The claimant must pay another filing fee.



If the Branch believes further investigation of a matter is needed before a decision can be made, a hearing may be adjourned to a later date. The hearing may resume after an investigation officer submits a report to the hearing officer. The claimant and respondent receive a copy of the report.

Procedure

Overview A landlord and tenant state their case and provide evidence. A hearing officer makes a decision based on the information provided, the legislation and policy and issues an Order.

Steps ▼ Screening Process

When a claimant or respondent come to the Branch for a hearing, they must report to the main hearing room. At either 9:00 a.m. or 1:30 p.m., a screening officer reviews the hearing docket.

The screening officer:

- tells claimants and respondents about the Branch's mediation service;
- checks to see which claimants and respondents are present; and
- offers mediation on those files where both the claimant and respondent are present.

■ **When the claimant and respondent choose to try mediation:**

- the screening officer assigns a mediation officer to assist them;
- the mediation officer takes the claimant and respondent to another room and follows the Branch's procedures for mediation (see Section 1);
- if the parties agree to settle the claim or application, the mediation officer advises the screening officer to remove the file from the hearing docket;
- if the parties can't agree on a settlement, the mediation officer returns to the main hearing room with the claimant and respondent and advises the screening officer that a hearing is required;
- the screening officer then assigns the file to the next available hearing officer.

■ **When the claimant and respondent choose not to try mediation or when only the claimant or respondent attends the hearing, the screening officer:**

- assigns files to the available hearing officers; the hearing officers then take the claimant and respondent to other hearing rooms;
- hears evidence from claimants and respondents on the remaining files on the docket.

Hearing Process:

■ When both the claimant and respondent appear at the hearing:

- 1.The hearing officer states their name and explains the purpose of the hearing.
- 2.The officer writes down the names of everyone who will participate in the hearing, and explains what will happen during the hearing and the ground rules.
- 3.The officer asks witnesses to leave the hearing room until they are called to provide evidence.
- 4.The claimant provides details of the claim, gives evidence to support the claim, and calls witnesses, one at a time.
- 5.The respondent gives a response to the claim and evidence to support the information, and calls witnesses, one at a time.
- 6.The claimant or respondent may question each other or the witnesses, through the hearing officer. Questions are for purposes of clarification. The claimant or respondent may also comment on the information provided by each other or any witness.
- 7.The officer may question the claimant or respondent or any witnesses, at any time during the hearing.
- 8.The officer records in writing, the documents, photos, etc., that the claimant or respondent provides as evidence to be heard and considered.
- 9.The officer allows the claimant to respond to the respondent's information and lets the respondent make a final comment too.
- 10.The officer confirms the mailing addresses for the claimant and respondent and ends the hearing. In an Order of Possession, the officer asks how the courier may enter the residential complex to deliver the decision.
- 11.The officer reviews the information and evidence received and/or reviewed at the hearing and issues a written Order or decision with reasons. On Orders of Possession, the officer issues a decision within three working days of the hearing. On claims or other matters, the officer usually issues a decision within ten working days of the hearing.

When the Branch issues an Order and later issues a second or third Order on the same tenancy, the Branch will make note of the previous Order number(s) on the following Order(s).

When the Branch issues offsetting Orders, the Branch sends copies of both Orders to the Court of King's Bench for their records.

■ When only the claimant attends the hearing:

- 1.The hearing officer reviews the declaration of service to make sure the respondent received proper notice of the hearing.
- 2.If the respondent didn't receive the proper notice, the officer won't proceed with the hearing. The claimant may ask the Branch to reschedule the hearing so they can give the claim to the respondent. The claimant may ask the Branch to authorize substitutional service on the respondent, if service could not be made.
- 3.If the respondent did receive the proper notice, the officer checks the file to see if the respondent provided a written response to the claim.
- 4.The claimant tells the officer the details of the claim, gives evidence to support the claim and calls witnesses, one at a time.
- 5.The officer records in writing, the documents, photos, etc., that the claimant or respondent provides as evidence to be heard and considered.
- 6.If the respondent provided a written response to the claim, the officer may read the response to the claimant or give the claimant a copy of it. The officer allows the claimant to review any evidence the respondent provided to support the information. The claimant can comment on the respondent's information.
- 7.Step 6 is repeated if the respondent filed a claim, and the claimant acknowledges receiving the required notice of the claim.
- 8.The officer confirms the claimant's mailing address and will ask the claimant to confirm that the mailing address they gave for the respondent is still current.
- 9.The officer reviews the information and evidence received and/or reviewed at the hearing and issues a written Order or decision with reasons. On Orders of Possession, the officer issues a decision within two working days of the hearing. On claims or other matters, the officer usually issues a decision within ten working days of the hearing.

When the Branch issues an Order and later issues a second or third Order on the same tenancy, the Branch will make note of the previous Order number(s) on the following Order(s).

When the Branch issues offsetting Orders, the Branch sends copies of both Orders to the Court of King's Bench for their records.

■ When only the respondent attends the hearing:

- 1.The officer and the respondent review the claim and any supporting documents the claimant provided. The respondent can comment or give information on each claim.
- 2.If the respondent filed a claim, and provided proof of service, the respondent will give details of the claim, provide evidence and call witnesses, one at a time.
- 3.The officer reviews the information and evidence received and/or reviewed at the hearing and issues a written Order or decision with reasons. On Orders of Possession, the officer issues a decision within two working days of the hearing. On claims

or other matters, the officer usually issues a decision within ten working days of the hearing.

When the Branch issues an [Order](#) and later issues a second or third Order on the same tenancy, the Branch will make note of the previous Order number(s) on the following Order(s).

When the Branch issues offsetting Orders, the Branch sends copies of both Orders to the Court of King's Bench for their records.

■ **When no one attends the hearing:**

The screening officer returns the file to the assigned mediation officer. If the file started as a request by a tenant for their security deposit, the mediation officers re-assigns the file to the original client service representative for processing. In all other cases, the mediation officer sends a closing letter to the claimant. To re-open the file, the claimant must pay another filing fee and serve the respondent again.

Forms & Form Letters

X-Referencing

For more information on **claims**, see **Claims** in Section 9.

For details on **serving a claim and notice of hearing** see this section.

For information on **investigation**, see Section 1.

Policy Developed

September, 1992

Last Revision

February, 2024

Other Resources

None

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Section 11	Hearings/Hearing Orders
Sub-Section 11.6	Hearing Orders - Enforcing An Order

Legislation

[s. 157, The Residential Tenancies Act](#)
[The Reciprocal Enforcement of Judgments Act](#)

Definitions

Certificate of Judgment: a certification of a judgment or Order issued by Court of King's Bench; can be filed in Land Titles as a lien against property.

Certified Order: an Order certified with a seal. The Branch certifies all Orders that landlords and tenants can file and enforce in the Court of King's Bench.

Notice of Garnishment: an Order of Court of King's Bench used to seize wages or money from accounts in banks or other financial institutions.

Seal: a stamp that certifies an Order.

Writ of Seizure and Sale: an Order of Court of King's Bench telling the sheriff to seize belongings to satisfy an Order.

Policy	The Branch only enforces Orders to return security deposits and overcharged rent. A tenant or landlord who wants to enforce any other Order must file it in Court of King's Bench. Before they can file an Order in the Court, they must ask the Branch to provide a certified copy of the Order. ◇◇◇◇◇ A landlord or tenant may file in Court to get: • a Notice of Garnishment; • a Writ of Seizure; • a Certificate of Judgment. ◇◇◇◇◇ If a landlord or tenant <u>loses</u> their certified Order, they can ask the Branch to replace it. The landlord or tenant must complete a form about the missing Order. The Branch then certifies a copy of the Order from our file. ◇◇◇◇◇ A landlord or tenant may file a certified copy of an Order in the Court of King's Bench: • after the appeal period is over; and • if no one files an appeal with the Residential Tenancies Commission. If a respondent files an assignment in <u>bankruptcy</u> after the Branch issues a certified Order, the claimant cannot file the Order in the Court of King's Bench. The claimant should contact the Trustee in Bankruptcy to file a proof of claim for the compensation awarded in the Order. ◇◇◇◇◇ In rare cases, the Residential Tenancies Commission may allow an appeal after a landlord or tenant has filed the Branch's certified Order in the Court of King's Bench. If this happens, the Branch's Order is stayed and can't be enforced. The Branch would notify the Court not to enforce the Order. ◇◇◇◇◇ A tenant or landlord may enforce an Order against someone who lives outside Manitoba. To do this, they register the certified copy of the Order in Court of King's Bench in Manitoba. They ask for a certificate under <i>The Reciprocal Enforcement of Judgments Act</i>. This allows the landlord or tenant to enforce the Order out-of-province.
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Procedure

Overview	When the Branch issues an Order, an officer certifies the Order to allow for enforcement in the Court of King's Bench.
Steps ▼	1.The officer issues an Order and places a seal on the successful party's copy of the Order. When sending the Order to the successful party, the officer also includes information on how to enforce the Order.
Forms & Form Letters	Notice of Garnishment – Form 60E , Court of King's Bench Rules Writ of Possession – Form 60B , Court of King's Bench Rules Writ of Seizure and Sale – Form 60A , Court of King's Bench Rules
X-Referencing	For information on enforcing an Order of Possession , see Enforcing An Order of Possession in Section 8.
Policy Developed	September, 1992*
Last Revision	February, 2024
Other Resources	None

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Section 11	Hearings/Hearing Orders
Sub-Section 11.5	Hearing Orders - Amending An Order

Legislation

[S. 160.1, *The Residential Tenancies Act*](#)

Definitions

Claimant: a person who makes a claim against another.

Guarantor: a person who enters into a guarantee agreement with a landlord.

Order: an order for one person to pay another, generally for rent arrears, damage or cleaning costs.

Respondent: a landlord, tenant or co-signer against whom a claim is made.

Policy

The Branch can only amend an Order to:

- correct a typing error (for example: the respondent's name was misspelled);
- correct a simple calculation error, like a mistake in addition or subtraction or an improper calculation of interest;
- add items that were claimed, but accidentally left off the Order;
- add names of respondents that were improperly omitted;
- correct an injustice caused by an oversight by the Branch; For example: The Branch awards a landlord compensation for unpaid rent, but fails to take into account a payment the tenant made between the time the original claim was filed and the hearing.

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The Branch may correct or amend an order at the request of a person directly affected by the order. Occasionally, the Branch will correct or amend an order on its own initiative.

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A request to correct or amend an order must be made on or before the appeal date shown on the order.

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The Branch provides forms for requesting a correction or amendment of an order. A person requesting a correction or amendment does not have to use the form, but the request must be in writing and contain the following information:

- the order number
- the address of the rental unit
- the name and contact information of the person making the request
- the details of the correction or amendment being requested

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Whenever possible, the officer who made the original decision will review the request to correct or amend. If the officer is not available, the request will be considered by the Manager, Adjudication Services.

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After reviewing the request, the officer may:

- correct or amend the order;
- deny the request to correct or amend.

In some cases, the officer may invite written submissions about the request to correct or amend the order and amend or deny the request based on those submissions. In rare situations, the officer may hold a hearing to determine if the order should be amended or the request to correct or amend denied.

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At the request of a person or on the Branch's own initiative, an order may be stayed to allow for consideration of a request to correct or amend. When an order is stayed, it cannot be enforced in the Court of King's Bench.

Generally, a stay of an order will not be necessary unless a request to correct or amend is received close to the deadline for appeal and the Branch cannot deal with the request immediately.

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When the Branch corrects or amends an order, it may be necessary to amend other parts of the order. For example: If an Order of Possession is corrected or amended, it may be necessary to "update" the day the tenant is to move out of the rental unit.

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When the Branch corrects or amends an order, the amended order will identify the corrections or amendments that have been made.

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The Branch's decision to correct or amend an order is not appealable. However, if the Branch does correct or amend an order, the amended order will have a new appeal period.

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The Branch generally can't amend an Order to correct the name of a respondent if the claimant spelled the name incorrectly on the Claim and Notice of Hearing form. It may be difficult for a claimant to enforce an Order in Court of King's Bench if the respondent's name is not correct. In such a case, the claimant should consider re-filing and re-serving the claim. The claimant must pay a second filing fee.

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If a respondent legally changes their name after the Branch issues an Order, the Branch can't amend the Order to show the name change. Only the Court of King's Bench has the authority to amend an order under these circumstances. The claimant can file a motion in the Court asking that the Court amend the Order. When filing the motion, the claimant must complete a statutory declaration and provide evidence of the name change, i.e. a copy of a marriage certificate or change of name from Vital Statistics. The Court will give a claimant a sample copy of the motion and declaration. If the claimant is not able to complete the forms, they should contact a lawyer.

Procedure

Overview A landlord or tenant asks the Branch to amend an Order. The officer who issued the Order reviews it to see if we have the authority to correct or amend.

- Steps ▼**
1. A landlord or tenant completes a Request to Correct or Amend an Order.
 2. The officer reviews the file to determine if they can correct or amend the Order.
 3. If the officer determines that they made an error, they will issue an Amended Order. The Amended Order shows why the officer amended the original Order. The officer will extend the deadline for appeal. For example: If the officer improperly omitted a respondent's name on the original Order, the officer would set a new appeal date to allow the respondent an opportunity to appeal the Order.

X-Referencing	For information on claims for compensation , see Section 9. For information on Orders of Possession, see Section 8 . For details on making a claim for more than a security deposit , see Section 10 .
Policy Developed	October, 2002*
Last Revision	February, 2024
Other Resources	None

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Section 10	Deposits
Sub-Section 10.9	Tenant Request for Deposit(s)

Legislation [s. 32, 33, 34, 52\(3\), *The Residential Tenancies Act*](#)

Definitions **Landlord:** in this section "landlord" includes a mortgagee.

Mortgagee: a person, mortgage company or financial institution that takes a mortgage interest in a property as security for a loan.

Security deposit: is money a tenant pays to a landlord before the start of a tenancy. A security deposit can't be more than half of the first month's rent. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the security deposit for unpaid rent, damage, extraordinary cleaning costs or other obligation of the tenant. Many people refer to this money as a damage deposit.

Pet damage deposit: is money a tenant pays to a landlord before bringing a pet into a rental unit. A pet damage deposit collected between June 30, 2010 and July 31, 2014 can't be more than half of a month's rent. A pet damage deposit collected on or after August 1, 2014 can be up to one month's rent. Existing tenants who have already paid a pet damage deposit cannot be asked to pay the increased amount. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the pet damage deposit for damage or cleaning costs the landlord suffers because of the tenant's pet. Landlords **cannot charge a pet damage deposit for tenants who rely on a service animal.**

Tenant services security deposit: is money a tenant pays to a landlord before entering into a tenancy agreement in a building that provides tenant services. A tenant services security deposit can only be half of one month's tenant services charge. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim a tenant services security deposit for unpaid tenant services charges or other money owed that is related to a tenant service.

Policy

A tenant may ask the Branch to decide if they are entitled to all or part of their security deposit after a tenancy ends. There is no fee for filing this request if a tenant contacts the Branch *within two years* of the end of the tenancy. *After two years*, as long as the landlord hasn't sent the deposit to the Branch, the tenant may file a claim for compensation against the landlord.

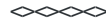


The *Act* says that a landlord must notify a tenant of any claim against a security deposit within 28 days of the end of the tenancy. If a tenant doesn't receive notice of a claim within 28 days, they can ask the Branch to decide who is entitled to the security deposit. When a tenant asks the Branch for a decision *within the two-year period*, the Branch asks the landlord to send their claim to the Branch by a certain date. The date the Branch sets depends on when the tenancy ended. **For example: If a tenant contacts the Branch more than 28 days after the end of the tenancy, the Branch gives the landlord 19 days to submit a claim.** If the landlord misses the deadline, the landlord must return the deposit to the tenant. The landlord may still file a claim for compensation against the tenant.

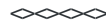


A new landlord (includes mortgagee) is responsible for the security deposits of all the tenants who live in the rental unit or residential complex on or after the date the property changes hands. The new landlord is responsible even though they may not have received the security deposits from the former landlord/mortgagor. If they have a claim against the tenant, they can ask the Branch to make a decision on the claim. Otherwise, they must return the deposit to the tenant. The new landlord may try to recover the money from the previous landlord. The new landlord may file a claim for the money with the Branch.

A former landlord is responsible for the deposits of any tenants who moved out before the new landlord took over. The Branch may confirm that the new landlord didn't receive a former tenant's security deposit by mistake. If necessary, the Branch will use the procedures set out in Enforcing an Order to Return a Security Deposit to recover a security deposit.



At the end of a tenancy, a landlord and tenant may agree in writing on a claim against the security deposit. The landlord and tenant may write their own agreement or, they can use the "end of tenancy" box on the standard rental unit condition report. When a tenant signs an agreement *at the end of a tenancy*, it's usually binding. The tenant can't later ask the Branch to decide if the agreement is fair, unless the tenant can show that they were forced to sign the agreement.



Some landlords have tenants sign an agreement about the return of a security deposit *before the start of a tenancy*. This type of agreement is not binding. In spite of signing the agreement, a tenant may still ask the Branch for a decision on a claim against the deposit. **For example: A landlord's application form may say that the tenant agrees to give up their security deposit if they don't move in after the landlord approves their application. If the tenant changes their mind, the landlord may have a claim for loss of rent or the cost to re-advertise the unit. But the tenant still has the right to ask the Branch to make a decision on the security deposit. Or, a tenant moves after a one-year tenancy. The landlord doesn't have a claim against the tenant, but says the tenant gave up their security deposit before the tenancy began. Again, the tenant can ask the Branch to decide.**



If a landlord doesn't return all or part of a security deposit and interest to a tenant, after receiving an Order to do so, the Branch will enforce the Order.

Procedure

Overview The tenant asks the Branch for a decision on their security deposit. When a landlord holds the security deposit, the officer asks the landlord for a claim by a certain date. The officer follows set procedures, depending on whether the landlord submits a claim.

Steps ▼ If the landlord has the security deposit:

- 1.The officer asks the tenant to complete a form about their tenancy. The form asks for information about: the address of the rental unit, the amount of the security deposit, who paid it and when it was paid, the date that the tenant moved in and out, the kind of tenancy, i.e. one year lease, the name of the landlord.
- 2.The officer asks the tenant for some kind of proof that they paid a security deposit. **For example: a receipt, cancelled cheque, copy of a money order or tenancy agreement.**
- 3.The officer sends a letter to the landlord telling them that the tenant has asked for a decision on their security deposit. The letter also tells the landlord to send their claim against the deposit to the Branch by a specific date. The Branch provides a claim form for the landlord to complete.
- 4.If the landlord sends in a claim the officer follows the procedures for *Claim by Landlord – Security Deposit or Less* or *Claim by Landlord – More Than Security Deposit*.
- 5.If the officer doesn't receive a claim, the officer issues an Order to the landlord to refund the security deposit and interest to the tenant.

If the Branch has the security deposit:

- 1.The officer checks Branch records to see if the landlord has sent in a claim or a copy of an agreement within the *28-day deadline*.
- 2.If there is a claim, the officer follows the procedures **Claim by Landlord - Security Deposit or Less or Claim by Landlord - More Than Security Deposit**.
- 3.If there isn't a claim from the landlord, the officer telephones or writes to the landlord to confirm the actual date that the tenancy ended.
- 4.Once this date is confirmed, the Branch pays the security deposit to the tenant.

Forms & Form Letters

X-Referencing

For information on procedures for **filing claims against security deposits**, see this section under:

- [Claim by Landlord –Branch has Deposit](#)
- [Claim by Landlord - More than Security Deposit](#)
- [Claim by Landlord -Security Deposit or less](#)

For details on **filing a claim for compensation**, see [Claims](#) in Section 9.

For information on [Enforcing an Order to Return a Security Deposit](#), see this section.

For information on [interest on security deposits](#), see Section 12.

Policy Developed

September, 1992

Last Revision

December, 2023

Other Resources

None

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Section 10	Deposits
Sub-Section 10.8	Deposit Claims - Guidelines for Decisions

Legislation

[s. 1\(1\), 31.1, 55, 82\(2\) The Residential Tenancies Act](#)
[s. 21.1, 22, Residential Tenancies Regulation](#)

Definitions

Security deposit: is money a tenant pays to a landlord before the start of a tenancy. A security deposit can't be more than half of the first month's rent. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the security deposit for unpaid rent, [damage](#), extraordinary cleaning costs or other obligations of the tenant. Many people refer to this money as a [damage deposit](#).

Pet damage deposit: is money a tenant pays to a landlord before bringing a pet into a rental unit. A pet damage deposit collected between June 30, 2010 and July 31, 2014 can't be more than half of a month's rent. A pet damage deposit collected on or after August 1, 2014 can be up to one month's rent. Existing tenants who have already paid a pet damage deposit cannot be asked to pay the increased amount. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the pet damage deposit for damage or cleaning costs the landlord suffers because of the tenant's pet. Landlords **cannot charge a pet damage deposit for tenants who rely on a service animal.**

Tenant services security deposit: is money a tenant pays to a landlord before entering into a tenancy agreement in a building that provides tenant services. A tenant services security deposit can only be half of one month's tenant services charge. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim a tenant services security deposit for unpaid tenant services charges or other money owed that is related to a tenant service.

Policy

At the end of a tenancy, a landlord may make a [claim against a deposit\(s\)](#) if a tenant doesn't meet their obligations under the *Act* or a tenancy agreement.

For a claim to succeed, the landlord must prove, at the very least:

- that they had a financial loss;
- that the loss took place during the tenancy;
- that the tenant is responsible for the loss; and
- the amount of the loss.

When a landlord makes a claim against a deposit or a claim for [compensation](#), they must show what they did to keep their loss to a [minimum](#).



Here are some guidelines the Branch uses when making decisions on deposit claims and other claims for compensation:

Administration Fee

A landlord may make a claim for an administration fee of \$75.00 if a tenant:

- abandons a fixed term tenancy agreement without any notice;
- gives notice that they plan to move, but does not assign the balance of the tenancy agreement to another tenant;
- finds another tenant to move into the unit, but does not assign the unit because the landlord signs a new tenancy agreement with the new tenant.

A landlord may make a claim for an administration fee even if they do not suffer any loss of rent.

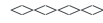
A landlord who needs to advertise to find a new tenant may also make a claim for advertising costs.

Advertising

If a tenant:

- moves without proper notice or abandons a rental unit; or
- doesn't move in after being accepted for tenancy;

a landlord may claim the advertising cost to re-rent the unit. To claim an advertising cost, a landlord must be able to show that the cost is for a specific unit and not just a general advertisement they run regularly.



Assignment/Sublet Fee

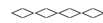
A landlord may charge the original tenant up to \$75.00 for consenting to an assignment or sublet.

Cleaning

A landlord may claim the cost of extraordinary cleaning. The Branch may award up to \$20.00 per hour for cleaning costs.

If a landlord claims less than the standard amount, **for example: \$12.00 per hour**, the Branch will not award more than the landlord actually claims.

If a landlord pays more than \$20.00 per hour, the Branch may ask the reason for the additional charge. There are circumstances where a landlord may have to pay more than the "going" rate. **For example: A tenant moves out at midnight and doesn't leave their suite clean. The landlord has a new tenant moving in at 9:00 a.m. and has to pay \$30.00 an hour to get the suite cleaned on time.** A landlord may also have to pay a higher rate if the unit needs extraordinary cleaning. **For example: A tenant moves out, but leaves their dogs unattended in the unit. The landlord hires cleaners who charge a higher than usual rate because of the kind of cleaning they need to do.**



When moving, a tenant must leave the rental unit ordinarily clean. A tenant is responsible to:

- wipe or vacuum **air conditioners** and **baseboard heaters** to remove dust and dirt;
- clean all **appliances**; this includes cleaning the stove top, elements and oven, defrosting and cleaning the refrigerator and wiping the inside and outside of the dishwasher and any in-suite washer and dryer. If the refrigerator and stove are on rollers, the tenant is also responsible to pull them out and clean behind and underneath. If these appliances aren't on rollers and the landlord expects the tenant to pull them out, they must tell the tenant how to move them without damaging the floor;
- clean all fixtures in the **bathroom**;
- wipe out **cabinets** and **cupboards**;
- vacuum the **carpets**. A tenant is only responsible to shampoo or steam-clean a carpet if they stain it. **For example: If the tenant spills food or drink on a carpet or walks on it with muddy shoes, they must clean it;**
- leave the **drapes** clean. A tenant is only responsible to wash or dry-clean drapes if they deliberately or carelessly stain them. If a tenant needs to clean drapes, they should ask the landlord if there are any special cleaning instructions. A tenant is not responsible to clean drapes that are water stained because of leaky **windows**;
- wipe or vacuum **fans and vents** to remove dust and dirt;
- wash or damp-mop **floors**;
- **wash** scuff marks, fingerprints, food and tar build-up from smoking off **walls**;
- remove and clean the tracks and inside panes of sliding **windows**. A tenant living above the main floor of a building doesn't have to clean the outside panes and screens unless they can do it from the balcony. If the windows aren't sliders, the tenant is responsible to clean only the inside of the window.



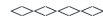
A tenant must leave a unit ordinarily clean. However, if a landlord files a claim for cleaning costs and the tenant can provide evidence to show that the unit was not clean when they moved in, the Branch might not award the landlord compensation for cleaning.

A tenant is entitled to move into a clean rental unit. If a tenant suffers a loss because the unit was not clean at the beginning of their tenancy, they may choose to file a claim against the landlord. If a tenant wants to claim compensation, they should file their claim as soon as possible after moving into a unit.



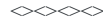
Late payment fees

A landlord may claim late payment fees against a security deposit as allowed by the regulations and Branch policy see Late Payment Fees in Section 2).



Light bulbs

A tenant is responsible to replace any missing or burnt out light bulbs at the end of the tenancy.



Rent

When a landlord makes a claim for loss of rent, they must show what they did to try to re-rent the unit. The landlord is expected to get the unit ready and show it to prospective tenants as soon as practicable. The landlord must try to keep their loss of rent to a minimum. When determining if the landlord met their obligation to minimize their loss of rent, the Branch may consider:

- when the landlord started the repairs or cleaning needed to prepare the unit for a new tenant;
- the advertising the landlord did to try to re-rent the unit;
- the landlord's efforts to show the unit to prospective tenants before showing them other units; and
- the vacancy rate for the area where the rental unit is located.

A landlord may make a claim for rent if a tenant:

- owes rent when they move out; if a landlord gave a tenant a notice of termination and the tenant:
 - moved on or before the date on the notice, the Branch usually awards rent for the current month on a daily or per diem basis.
For example: On April 10, a landlord gave a tenant notice to move on or before April 16 for non-payment of rent. The monthly rent was \$500.00 and was due on the first of each month. The tenant moved on April 16. The landlord is entitled to \$263.04 for April rent (16 x \$16.44).
If the tenant moved on April 13, the landlord would be entitled to 13 days rent.
- moves without giving proper notice and the landlord loses rent. If a tenant, on a *month-to-month tenancy*, moves without notice and the landlord isn't able to re-rent the unit, the landlord can claim the next month's rent. **For example: A tenant moves without notice on October 18. The landlord isn't able to rent the unit until December 1. The landlord can claim for November's rent.** If a tenant, on a *fixed-term tenancy agreement*, moves without assigning their agreement, the landlord may claim rent until the end of the agreement or the date they re-rent the unit, whichever comes first. **For example: A tenant has a one year agreement from January 1 to December 31. In mid-August, the tenant moves and doesn't assign the agreement. The landlord isn't able to re-rent the unit until November 1. The landlord can claim the rent for September and October.**
- abandons the rental unit and the landlord loses rent;
- deliberately breaks a term of the tenancy agreement with the intention of forcing the landlord to give them notice to move. **For example: The tenant wants to move, but doesn't want to assign their lease. They have a huge party and disturb the other tenants in the hope that the landlord will give them notice to move. It's up to the landlord to prove that this was the case.**
- interferes with the landlord's ability to re-rent the suite by refusing to let the landlord show the unit to prospective tenants after giving or receiving a notice to move; or
- decides not to move into a rental unit after the landlord accepts them for tenancy and the landlord loses rent; the amount of rent the landlord can claim depends on the type of tenancy agreement the landlord and tenant agreed to sign. **For example: On September 10, the tenant signs a fixed-term agreement for October 1 to September 30. On September 25, the tenant tells the landlord they're not going to move in. The landlord is able to re-rent the unit for December 1. The landlord may claim rent for October and November.**



When a tenant moves without giving proper notice, or abandons a unit, a landlord may rent the unit to another tenant from one of their buildings and still claim a loss of rent. The landlord may only make a claim for the amount of rent the original tenant was responsible to pay. **For example: A tenant moves out of their one-bedroom unit on the third floor without notice. A tenant, living in a one-bedroom unit on the main floor in the same building, asks to move into the third floor unit. The landlord allows the second tenant to move. The rent on both units is \$450.00. The landlord may claim \$450.00 per month. Or, a tenant, living in a two-bedroom unit, asks to move in to the smaller unit. The landlord allows the tenant to move. The rent on the two-bedroom unit is \$525.00, but the landlord may only claim \$450.00 a month from the original tenant.**



When a tenant moves without giving proper notice or abandons a unit, a landlord can't claim loss of rent if they choose to move into the unit or sell it.



Some tenancy agreements may state that a tenant is entitled to a rent discount only if they live in the rental unit for a specific period of time. **For example: The tenant is entitled to a rent discount of \$50.00 per month as long as they live in the rental unit from October 1, 2001 to September 30, 2002.** If the tenant doesn't fulfill their obligation to stay in the unit for the specified time, the landlord may want to make a claim against the tenant for the amount of the discount for the months the tenant lived in the unit.

For example: The tenant receives a discount of \$50.00 per month on the condition they live in the unit for 12 months. The tenant leaves after four months. The landlord wants the tenant to pay back \$200.00 (4 x \$50.00). To make a claim like this, a landlord must be able to show that the tenant knew they would have to pay back their rent discount if they didn't live up to the agreement. If a tenancy agreement or discount agreement is conditional, it must be very clear what will happen if the tenant breaches the agreement. **For example: The tenant is entitled to a rent discount of \$50.00 per month. To be entitled to this discount, the tenant agrees to live in the rental unit from October 1, 2001 to September 30, 2002. The tenant understands that if they move out of the rental unit before September 30, 2002, they must pay back the discount they received for the months they occupy the unit.**

In some cases, if a tenant fails to comply with a condition to pay rent on time, the landlord intends that the tenant shall lose the discount not only for the current month, but for all the previous months of the agreement. In other words, the tenant has to pay back all previous discounts received from the start of that agreement. To enforce such a condition, the landlord's discount agreement must show clearly that the tenant will be responsible to pay the landlord back for all discounts received since the start of the current discount agreement. Here is some sample wording:

The tenant is entitled to a rent discount of \$50.00 per month. To be eligible for this discount, the tenant must pay their rent on or before the first day of each month. The tenant understands that if they pay their rent after the first day of the month, they:

• will lose the rent discount for that month; and

• must pay back, to the landlord, all discounts received since the start of this agreement.

When making a determination on a claim by a landlord for the return of a discount, the Branch may consider:

- the wording of the landlord's agreement relating to the discount;
- the date the tenant paid the rent, if the first of the month falls on a day the landlord's office was not open for business;
- any arrangements the landlord and tenant may have for the collection/payment of rent.

If the Branch determines that the tenant must pay the landlord back for previous months' discounts, it will only include the discounts the tenant received under the most recent agreement.



Repairing damage or replacing items

A landlord may claim the cost to repair damage the tenant caused to the unit or complex, if it's more than "ordinary wear and tear". A landlord may also claim the cost of replacing items that can't be repaired or are missing. **For example: If a tenant doesn't return all the keys they received when they moved in, the landlord can claim the cost of re-keying the locks. Or, if the tenant removes light bulbs, the landlord can charge to replace them.**



When a tenant causes damage, a landlord may:

- hire someone to repair the damage and claim the cost of the repair; or
- do their own repairs and claim their expenses for material and labour

In either case, the Branch will decide whether the amount the landlord is claiming is reasonable for the type of repair needed. Although a landlord may do their own repairs, the Branch will not award more than the "going rate" for the work. If a landlord does their own repairs, they must make sure that the work meets health, building and maintenance and occupancy standards.



When a landlord needs to replace an item a tenant damaged, the Branch may not award the full replacement cost. The Branch awards the landlord compensation for the loss of value, not the cost of the replacement item.

When determining the loss of value, the Branch considers:

- the age of the item;
- the condition of the item at the beginning of the tenancy;
- the useful life of the item; and
- the replacement cost.

For example: A tenant puts several cigarette burns in a living room carpet. The landlord says it will cost \$1,000.00 to replace the carpet. The landlord provides evidence to show the carpet is 10 years old and was in very good condition when the tenant moved in. The landlord also provides evidence to show that the useful life of the particular carpet is 14 years. The tenant agrees with the landlord's information. The Branch awards the landlord \$285.72 for the carpet. $\$1,000.00$ (replacement cost) $\div$ 14 (years of useful life) = \$71.43 (annual value). $\$71.43 \times 4$ (remaining years of useful life) = \$285.72 (loss of value).



If there is a dispute over the useful life of an item, the Branch decides the issue. The Branch may do a survey to get the information

necessary to make the decision.



When a landlord claims the cost of replacing an item, the Branch also considers whether the replacement is comparable to the original item. **For example: A tenant damages a stove. The stove can't be repaired. The landlord decides to upgrade the stove to one with a self-cleaning oven. The Branch uses the replacement cost of a stove without a self-cleaning oven to determine the award to the landlord.**



A landlord doesn't actually have to repair damage to be able to claim for it. A landlord may choose to do a repair after the Branch issues a decision. Or, a landlord may say that a tenant caused damage that reduced the value of an item. The landlord may claim the loss of value.



Most tenants will put up pictures in their rental units. A landlord may set some rules, in writing, on how to hang pictures. **For example: A landlord may say that a tenant can't use adhesive hangers or unnecessarily large nails.** As long as the tenant acted reasonably, it's not considered damage. As a rule, a tenant should not fill nail holes at the end of a tenancy. If a tenant does fill holes and doesn't do it properly, it may create work for the landlord. A landlord may be able to claim the cost of the unnecessary patching and painting. If a tenant hangs an excessive number of pictures or hangs items which need larger nails or screws, they may be responsible for the cost of repairing the walls.



A tenant is responsible to repair any walls that they deliberately or carelessly damage.



A tenant should only paint or put up wallpaper with the landlord's written permission. A landlord may set some rules on how and where the tenant may decorate. Before moving out, the tenant should check with the landlord to find out if they should remove the paper or re-paint. The landlord may allow the tenant to leave the wallpaper if the incoming tenant likes it. In some cases, the landlord may ask the new tenant to sign a form saying that they agree to be responsible for the cost of removing the wallpaper at the end of their tenancy. If the landlord doesn't discuss the wallpaper with the new tenant at move-in, then it's considered to be part of the landlord's rental unit. In this case, the landlord could only make a claim against the new tenant if they actually damage the wallpaper.



Returned cheque charge

A landlord may claim compensation for any cheque a financial institution refuses to cash. The most common reasons for a bank or credit union to return a tenant's cheque to a landlord are:

- there isn't enough money in the account to cover the cheque;
- the tenant put a stop payment on the cheque; or
- the cheque was written on a closed account.

A landlord must provide evidence to show that a financial institution refused to cash a cheque. Evidence could include the actual returned cheque or the landlord's bank statement.

A landlord may claim up to \$60.00 for each cheque returned to them. A landlord may claim accumulated returned cheque charges during or at the end of a tenancy if the claim is made in a timely manner. **For example: During a one-year tenancy agreement, the bank returns three of the tenant's rent cheques. After the tenant moves, the landlord files a claim against the tenant for compensation. The claim includes a \$180.00 charge for the returned cheques.**

This policy also applies if a financial institution advises a landlord that they cannot process an automatic debit to the tenant's account.



Utility bills

A landlord may make a claim for utilities against a security deposit.



If a tenant doesn't pay their water bill, the city or municipality may apply the bill to the landlord's property taxes. The landlord can claim the amount of the outstanding bill. The landlord then becomes responsible to pay the bill.



Other utility companies don't have the authority to apply outstanding bills to property taxes. But, if a landlord can show that they suffered a loss because they had to pay a bill, they may claim the amount of the unpaid bill.



A landlord may also make a claim if they believe a tenant did something which caused an increase in their utility bill. To support such a claim, the landlord needs to show an increase from their normal billing. **For example: A tenant is responsible to let a landlord know about necessary repairs. The tenant doesn't tell the landlord that the toilet is running constantly. The landlord receives their water bill for a higher amount than usual. Since the tenant didn't give the landlord an opportunity to fix the toilet, the landlord may claim the difference between the normal bill and the higher bill.**



If a tenant is responsible to pay for utilities under a tenancy agreement, a landlord may also claim utility costs if a tenant moves without proper notice or abandons a rental unit. **For example: Under the tenancy agreement, the tenant is responsible to pay for gas. The tenancy agreement runs from October 1 to September 30. At the end of January, the tenant moves and closes**

their account with the gas company. The landlord has to open an account to ensure there's heat in the rental unit so the pipes won't freeze. The landlord is able to re-rent the unit for April 1. The landlord may claim rent for February and March and the gas bill for those months too.



A landlord may not claim against a security deposit for personal loans, like money for groceries.

Procedure

Overview Either a tenant or landlord may ask the Branch to make a decision on a claim against a deposit. When making a decision, an officer uses the guidelines set out in this policy.

Steps ▼ See Procedures for Claim by Landlord - More Than Deposit and Claim by Landlord - Deposit or Less in this section.

Forms & Form Letters

X-Referencing For information on [late payment fees](#), see Section 2.
For details on [claims](#), see Section 9.

Policy Developed September, 1992

Last Revision août 2015

Other Resources None

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Residential Tenancies Branch

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Section 10

Deposits

Sub-Section 10.7

Refunding A Deposit(s)

Legislation

[s. 32, The Residential Tenancies Act](#)

Definitions

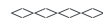
Security deposit: is money a tenant pays to a landlord before the start of a tenancy. A security deposit can't be more than half of the first month's rent. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the security deposit for unpaid rent, damage, extraordinary cleaning costs or other obligation of the tenant. Many people refer to this money as a damage deposit.

Pet damage deposit: is money a tenant pays to a landlord before bringing a pet into a rental unit. A pet damage deposit collected between June 30, 2010 and July 31, 2014 can't be more than half of a month's rent. A pet damage deposit collected on or after August 1, 2014 can be up to one month's rent. Existing tenants who have already paid a pet damage deposit cannot be asked to pay the increased amount. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the pet damage deposit for damage or cleaning costs the landlord suffers because of the tenant's pet. Landlords **cannot charge a pet damage deposit for tenants who rely on a service animal.**

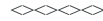
Tenant services security deposit: is money a tenant pays to a landlord before entering into a tenancy agreement in a building that provides tenant services. A tenant services security deposit can only be half of one month's tenant services charge. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim a tenant services security deposit for unpaid tenant services charges or other money owed that is related to a tenant service.

Policy

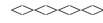
If a landlord doesn't have a claim against a deposit(s), they must return the money to the tenant *within 14 days of the end of the tenancy*.



If there is more than one tenant, the landlord should make the security deposit cheque payable to all the tenants, unless the tenants have said otherwise, in writing.



If a landlord is not sure who to give a security deposit to, either the landlord or the tenant(s) may ask the Branch for assistance. In some cases, the Branch may accept the security deposit from the landlord. The Branch will then decide who is entitled to the money.



The Branch may also get involved if a tenant can't cash a security deposit cheque payable to two or more tenants.



Deciding who gets a security deposit depends on circumstances during, and at the end, of a tenancy. Here are some common situations:

■ Example 1

Chris and Gerry have a one-year tenancy agreement with their landlord. At the end of the tenancy, both names and signatures are on the agreement, even though Chris moved out in the middle of the last month.

The landlord should make the security deposit cheque out to both Chris and Gerry.

■ Example 2

Chris and Gerry have a one-year tenancy agreement with their landlord. Three months into the tenancy, Gerry moves out and everyone agrees to take his name off the tenancy agreement. Chris leaves at the end of the one-year agreement.

Since Gerry, officially, is no longer responsible, the security deposit cheque should be made payable only to Chris.

■ Example 3

Chris and Gerry have a one-year tenancy agreement with their landlord. Gerry moves out at the end of the first term and only Chris' name and signature are on the renewal. Chris leaves at the end of the second agreement.

The security deposit goes to Chris.

■ Example 4

Chris and Gerry have a month-to-month tenancy agreement with their landlord. During the tenancy, Chris moves out and Shawn moves in. Shawn pays his part of the rent directly to the landlord.

When the tenancy ends, the security deposit cheque should be made payable to both Gerry and Shawn.

■ Example 5

Chris and Gerry have a month-to-month tenancy agreement with their landlord. They both pay their share of the last month's rent. But, Chris moves out five days before Gerry.

When the tenancy ends, the security deposit cheque should be made payable to both Chris and Gerry.

Procedure

Overview If a landlord is not sure who should receive a deposit, the landlord may send the deposit to the Branch. An officer tries to help the landlord and tenant(s) reach an agreement on the deposit. If they can't agree, the officer may decide which tenant or tenants should get the deposit.

Steps ▼ 1.The officer asks the tenant(s) or the landlord the following questions

- Is there proof of a written or oral agreement?
- Who paid the security deposit?
- When was the security deposit paid?
- How was the security deposit paid?
- How much was the security deposit?
- Is there a receipt or cancelled cheque for the security deposit paid and do they have it?
- Why a cheque payable to all tenants can't be cashed?
- What portion of the security deposit did each tenant pay?

2.The officer may try to mediate between the tenants to help them reach their own agreement. An officer may ask each tenant to agree that the Branch decide who should get the security deposit.

Forms & Form Letters

X-Referencing

For information on [interest on deposits](#), see Section 12.

Policy Developed

February, 1995

Last Revision

August, 2015

Other Resources

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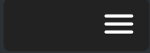
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Residential Tenancies Branch

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..... When the Branch orders a tenant or tenants to pay their rent to the Branch instead of to the landlord;
when the tenant receives an Order and pays the Branch, rent is considered paid.

Pet damage deposit: is money a tenant pays to a landlord before bringing a pet into a rental unit. A pet damage deposit collected between June 30, 2010 and July 31, 2014 can't be more than half of a month's rent. A pet damage deposit collected on or after August 1, 2014 can be up to one month's rent. Existing tenants who have already paid a pet damage deposit cannot be asked to pay the increased amount. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the pet damage deposit for damage or cleaning costs the landlord suffers because of the tenant's pet.

Landlords

• • • • • To enforce an Order to return a deposit(s), the Branch may collect or attempt to collect rent from a tenant currently living in • • • of the landlord's rental properties.

A tenant may choose to enforce the Order to Return a Deposit(s) on their own in the Court of King's Bench.

.....

- A tenant contacts the Branch and says the landlord did not comply with an Order to return a deposit(s) to them. An officer contacts the landlord to try to resolve the problem. If the landlord refuses to comply with the Order, the officer tries to re-direct rent to cover the deposit. If the officer is not able to re-direct rent, they request payment from the Deposit(s) Compensation Fund.

- ▼ 1.The officer contacts the landlord to find out why they haven't complied with the Order. If the officer can't reach the landlord by phone, they send a letter.
- 2.If the landlord still doesn't comply with the Order, the officer does a title search to confirm that the landlord owns the property.
- 3.The officer may check the Branch's registry to see if the landlord owns any other rental property.
- 4.The officer may go to the properties to get the names of tenants. The officer may also contact Employment and Income Assistance of Manitoba Family Services And Labour to see if they have any clients living in the properties.
- 5.If the officer gets a tenant's name, the officer issues an Order to Re-direct Rent. If the officer receives the rent, they disburse the deposit(s) to the tenant. After deducting the administration fee, the officer returns the balance of the re-directed rent to the landlord.
- 6.If the officer doesn't receive rent or is not able to locate a tenant, the officer has the tenant complete a request to receive money from the Deposit(s) Compensation Fund.
- 7.The officer forwards the request to the Manager, Investigation Services, for approval.
- 8.When the Branch receives the deposit(s) from the fund, the officer forwards the cheque to the tenant.
- 9.The officer still attempts to recover the deposit(s) from the landlord. If necessary, the Branch may register the Order in the Court of King's Bench and garnish wages or bank accounts or file a lien against property the landlord owns.

.....

..... For information on ; see in Section 1.

..... September, 1992

..... February, 2024

..... None

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Section 10	Deposits
Sub-Section10.4	Claim by Landlord - Deposit(s) or Less

Legislation [s. 32, 34, *The Residential Tenancies Act*](#)

Definitions

Hearing: a meeting where a claim is decided. Claimants and respondents may present information about their case to an officer to have their claim decided.

Mediation: a confidential process the Branch uses to encourage and help claimants and respondents discuss problems, think of possible solutions and reach their own agreements. Mediation can take place in meetings conference calls or separate telephone conversations.

Mediated agreement: a written document a mediation officer prepares to outline an agreement between a claimant and respondent. Mediated agreements are confidential. They are not a matter of public record. If either the landlord or tenant doesn't live up to a mediated agreement, the Branch may issue an Order.

Order: instructs the landlord or tenant, in writing, to either pay money, move or do something. For example: make repairs.

Security deposit: is money a tenant pays to a landlord before the start of a tenancy. A security deposit can't be more than half of the first month's rent. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the security deposit for unpaid rent, damage, extraordinary cleaning costs or other obligation of the tenant. Many people refer to this money as a damage deposit.

Pet damage deposit: is money a tenant pays to a landlord before bringing a pet into a rental unit. A pet damage deposit collected between June 30, 2010 and July 31, 2014 can't be more than half of a month's rent. A pet damage deposit collected on or after August 1, 2014 can be up to one month's rent. Existing tenants who have already paid a pet damage deposit cannot be asked to pay the increased amount. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the pet damage deposit for damage or cleaning costs the landlord suffers because of the tenant's pet. Landlords cannot charge a pet damage deposit for tenants who rely on a service animal.

Tenant services security deposit: is money a tenant pays to a landlord before entering into a tenancy agreement in a building that provides tenant services. A tenant services security deposit can only be half of one month's tenant services charge. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim a tenant services security deposit for unpaid tenant services charges or other money owed that is related to a tenant service.

Policy	When a landlord has a <u>claim against</u> a tenant's deposit(s), they must send a copy of the claim to the tenant. The landlord has <i>28 days, from the end of the tenancy</i>, to send it. <><><><> If a landlord and tenant can't agree on the claim, they can ask the Branch for a decision on the claim. The Branch provides a form for a landlord to use when submitting a claim to the Branch. A landlord may use their own form or letter, but they should be as specific about their claim as possible. <><><><> The Branch usually makes a decision on this type of claim from written information received from the landlord and tenant. The landlord and tenant can submit statements, letters, invoices and pictures to support their position. When making a decision on a claim for a deposit(s) or less, the Branch uses the guidelines for decision set out in this section. <><><><> There is no fee for filing this kind of claim.
--------	--

Procedure

Overview	An officer receives a copy of a claim from a landlord, and asks the tenant to comment. The officer tries to help the landlord and tenant agree on the claim. If they can't agree, an adjudication officer makes a decision on who gets all, or part of the deposit(s).
Steps ▼	1. The officer receives a copy of the claim, and makes sure that the information is clear and complete. If information is unclear or missing, the officer telephones or writes the landlord. 2. The officer sends a copy of the claim to the tenant. 3. The tenant has <i>14 days to send their comments</i>, in writing, to the Branch. 4. If the tenant doesn't send in comments, the officer reviews the claim and makes a decision. 5. If the tenant sends in comments, the landlord gets a copy to review. The officer tries to help the landlord and tenant agree on who should get all or part of the deposit(s). 6. If mediation is successful, the officer prepares a written agreement and sends a copy to both the landlord and tenant. 7. If the landlord and tenant can't agree, the officer reviews the file to make sure the information is complete. 8. The file then goes to an adjudication officer. This officer makes a decision, and sends it to the landlord and tenant. In rare cases, the officer may decide to hold a hearing to decide the claim.

Forms & Form Letters

X-Referencing	For information on guidelines for decisions, see <u>Deposit Claims – Guidelines for Decision</u> in this section. For information on <u>Enforcing an Order to Return a Deposit(s)</u>, see this section. For details on <u>Hearings</u>, see Section 11. For information on <u>interest on deposits</u>, see Section 12.
Policy Developed	September, 1992
Last Revision	August, 2015
Other Resources	None

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s. 32, 34, 35, *The Residential Tenancies Act*

is money a tenant pays to a landlord before the start of a tenancy. A security deposit can't be more than half of the first month's rent. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the security deposit for unpaid rent, damage, extraordinary cleaning costs or other obligation of the tenant. Many people refer to this money as a damage deposit.

_____ an account set up to hold unclaimed security deposits, rent refunds and proceeds from the sale of abandoned property. The Branch can use the money in the fund to return a security deposit to a tenant. Many people refer to this money as a damage deposit.

is money a tenant pays to a landlord before bringing a pet into a rental unit. A pet damage deposit collected between June 30, 2010 and July 31, 2014 can't be more than half of a month's rent. A pet damage deposit collected on or after August 1, 2014 can be up to one month's rent. Existing tenants who have already paid a pet damage deposit cannot be asked to pay the increased amount. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the pet damage deposit for damage or cleaning costs the landlord suffers because of the tenant's pet. Landlords

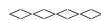
is money a tenant pays to a landlord before entering into a tenancy agreement in a building that provides tenant services. A tenant services security deposit can only be half of one month's tenant services charge. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim a tenant services security deposit for unpaid tenant services charges or other money owed that is related to a tenant service.

If a landlord has a claim against a deposit(s), but can't find the tenant, they can still ask the Branch to make a decision on their claim. Before making a decision, the Branch needs information from the landlord to support the claim.



Before making a decision on a claim, the Branch sends a copy of the claim to the tenant's last known address (this may be the address of the rental unit). The officer does this in case Canada Post is forwarding the tenant's mail.

If the tenant contacts the Branch after receiving the claim and the landlord has a claim for more than the security deposit, the Branch will give the landlord an opportunity to file their full claim. The landlord may file the claim and have a hearing scheduled to decide the matter. Normally, the Branch gives the landlord the tenant's address so they can serve them with the claim. The Branch serves the tenant if the tenant can prove there's good reason not to give the address to the landlord. The Branch won't give the landlord the tenant's address if there is a restraining order or a non-molestation order between the landlord and tenant.



If the tenant doesn't respond to the claim, the Branch makes a decision on the deposit(s) only. The Branch can't issue a decision until *at least 60 days* after the end of the tenancy. The Branch may award the deposit(s) to the landlord in partial satisfaction of their claim. If a landlord has a claim for more than the deposit(s), they may file for the rest of their claim, when they find the tenant.



If the landlord is only claiming part of the deposit(s) and interest, the landlord must send the rest of the money to the Branch. The Branch will hold the money for the tenant for *up to two years*. After two years, the money goes into the Security Deposit Compensation Fund. Once the money goes into the Fund, the tenant is no longer entitled to it. The tenant can't file a claim for compensation against the landlord for the deposit.

A landlord comes to the Branch with a claim against a deposit(s), but doesn't know where the tenant is. The officer sends the claim to the tenant's last known address. If the tenant responds to the claim, the officer follows set procedures to process the claim. If the tenant doesn't respond to the claim, the officer makes a decision on the deposit(s).

- ▼ 1. When a landlord comes to the Branch with a claim, an officer asks the landlord for evidence to support their claim. The officer sends the claim to the tenant's last known address.

, the officer tries to help the landlord and tenant reach an agreement on the claim. If the landlord and tenant can't agree, an officer makes a decision on the claim. If the landlord's claim is for more than the deposit(s), the landlord may file a claim and have a hearing to decide the claim (see Claims in Section 9). If the landlord doesn't file a claim, an officer makes a decision on the deposit(s) in full and final settlement.

, and it's *60 days* past the end of the tenancy, the officer makes a decision on who should get all or part of the deposit(s). The officer sends the Order to the landlord and tenant. If the officer awards the landlord the deposit(s) in partial satisfaction of their claim, the officer specifies what the deposit is to cover.

If the landlord finds the tenant later, the landlord may file a claim for the balance of the money they believe the tenant owes them.

For more information on a _____, see this section.
For details on _____, see Section 9.

September, 1992

October, 2023

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Section 10	Deposits
Sub-Section10.3	Claim by Landlord - More Than Deposits

Legislation

s. 32, 34, *The Residential Tenancies Act*

Definitions

Hearing: a meeting where a claim is decided. Claimants and respondents may present information about their case to an officer to have their claim decided.

Mediation: a confidential process the Branch uses to encourage and help claimants and respondents discuss problems, think of possible solutions and reach their own agreements. Mediation can take place in meetings conference calls or separate telephone conversations.

Mediated agreement: a written document a mediation officer prepares to outline an agreement between a claimant and respondent. Mediated agreements are confidential. They are not a matter of public record. If either the landlord or tenant doesn't live up to a mediated agreement, the Branch may issue an Order.

Order: instructs the landlord or tenant, in writing, to either pay money, move or do something.**For example: make repairs.**

Security deposit: is money a tenant pays to a landlord before the start of a tenancy. A security deposit can't be more than half of the first month's rent. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the security deposit for unpaid rent, damage, extraordinary cleaning costs or other obligation of the tenant. Many people refer to this money as a damage deposit.

Pet damage deposit: is money a tenant pays to a landlord before bringing a pet into a rental unit. A pet damage deposit collected between June 30, 2010 and July 31, 2014 can't be more than half of a month's rent. A pet damage deposit collected on or after August 1, 2014 can be up to one month's rent. Existing tenants who have already paid a pet damage deposit cannot be asked to pay the increased amount. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the pet damage deposit for damage or cleaning costs the landlord suffers because of the tenant's pet. Landlords **cannot charge a pet damage deposit for tenants who rely on a service animal.**

Tenant services security deposit: is money a tenant pays to a landlord before entering into a tenancy agreement in a building that provides tenant services. A tenant services security deposit can only be half of one month's tenant services charge. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim a tenant services security deposit for unpaid tenant services charges or other money owed that is related to a tenant service.

Policy	When a landlord has a <u>claim against</u> a tenant's deposit(s), they must send a copy of the claim to the tenant. The landlord has <i>28 days</i>, from the end of the tenancy, to send the claim. <><><><> If a landlord has a claim for more than a deposit(s), they can file a claim with the Branch (see Claims in Section 9). The Branch holds a hearing to receive information from landlords, tenants and witnesses on this type of claim. When filing a claim, a landlord must use a "Claim and Notice of Hearing" form the Branch provides. The Branch does not accept claims on any other forms. <><><><> When a landlord files a claim for more than the deposit, the Branch reserves the right to schedule the <u>hearing</u> on a date which allows the claim to be heard within a reasonable amount of time. For example: A landlord can't ask that the Branch schedule a hearing eight months from the date the landlord files the claim. A landlord can't delay the date of the hearing without good reason. If a landlord plans to be away for an extended period, they can participate in the hearing by conference call, send someone to the hearing to represent them, or submit their claim and evidence in writing. <><><><> A landlord must pay a non-refundable filing fee when they ask the Branch to award more than the security deposit. <><><><> When a tenant can't be found, the Branch can make a decision on the deposit(s) only. If a landlord later finds the tenant, they can file for the rest of their claim.
---------------	---

Procedure

Overview	The landlord files a claim for more than the deposit(s). The Branch schedules a hearing. Either the landlord or tenant can ask a mediation officer for help in reaching an agreement on the claim before the hearing. If they can't agree, there is a hearing. A hearing officer makes a decision on the claim.
Steps ▼	1.A landlord files a claim for more than the deposit(s) and pays the filing fee. 2.The Branch schedules a hearing and gives the landlord a copy of the claim form for their records and one original claim form for each tenant and anyone else named in the claim. For example: co-signer. The form includes information on the date and time of the hearing. The landlord must give the claim to the tenant and/or the co-signer <i>at least five days before the hearing date</i> 3.If the landlord can't give the notice of hearing to the tenant or co-signer, they may apply to the Branch in writing for substitutional service and/or a new hearing date. 4.Before the hearing, the landlord or tenant may contact a mediation officer to see if they can reach an agreement on the claim. 5.If mediation is successful, the agreement is put in writing, and both the landlord and tenant get a copy. The hearing is cancelled. 6.If mediation isn't successful, the hearing goes ahead as scheduled. (See <u>Hearings/Hearing Orders – General Information in Section 11</u>)

Forms & Form Letters

X-Referencing	For information on <u>mediation</u>, see Section 1. For more information on <u>hearings</u> and <u>serving notice of a hearing</u>, see Section 11.
Policy Developed	September, 1992
Last Revision	October, 2023
Other Resources	None

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Section10	Deposits
Sub-Section10.1	Claim by Landlord – Branch has Deposit

Legislation
[s. 32, 33, 34,35, 36, *The Residential Tenancies Act*](#)
[s.25\(2.3\), Residential Tenancies Regulation](#)

Definitions

Security deposit: is money a tenant pays to a landlord before the start of a tenancy. A security deposit can't be more than half of the first month's rent. When a tenancy ends, a landlord may claim the security deposit for unpaid rent, damage, extraordinary cleaning costs or other obligation of the tenant. Many people refer to this money as a damage deposit.

Pet damage deposit: is money a tenant pays to a landlord before bringing a pet into a rental unit. A pet damage deposit collected between June 30, 2010 and July 31, 2014 can't be more than half of a month's rent. A pet damage deposit collected on or after August 1, 2014 can be up to one month's rent. Existing tenants who have already paid a pet damage deposit cannot be asked to pay the increased amount. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim the pet damage deposit for damage or cleaning costs the landlord suffers because of the tenant's pet. Landlords cannot charge a pet damage deposit for tenants who rely on a service animal.

Tenant services security deposit: is money a tenant pays to a landlord before entering into a tenancy agreement in a building that provides tenant services. A tenant services security deposit can only be half of one month's tenant services charge. The landlord holds the money until the tenant moves out. When a tenancy ends, a landlord may claim a tenant services security deposit for unpaid tenant services charges or other money owed that is related to a tenant service.

Policy

A landlord may choose to have the Branch hold the deposit(s) for their tenants. The Branch charges an annual administration fee for each residential complex. The amount of the fee is set out in the Residential Tenancies Regulation.

<><><><>

When the Branch holds the deposit(s) and the landlord has a claim against the money, they must send the claim to the tenant. The landlord has *28 days*, from the end of the tenancy, to send the claim.

A landlord must also send a copy of the claim to the Branch *within 28 days* of the end of the tenancy. If the landlord misses this deadline, the Branch must return the deposit(s) and interest to the tenant. The landlord can still file a claim under Part 11 of *The Residential Tenancies Act*.

<><><><>

A landlord and tenant can agree in writing about who should get all or part of the security deposit. If this happens, the landlord should send a copy of the agreement to the Branch *within 28 days* of the end of the tenancy.

Procedure

Overview The officer receives a copy of an agreement or a claim, and checks to make sure that the agreement or claim was sent in time. When there is an agreement, it's confirmed and the money is paid out. If there is a claim, the officer follows the procedures for dealing with claims against security deposits.

Steps ▼ 1.If there is an agreement:

- If the landlord sends a copy of an agreement to the Branch, an officer telephones or writes the tenant to confirm the agreement.
- Once the agreement is confirmed, the officer pays out the money as the tenant and landlord agreed.

2.If there is a claim:

- If the landlord sends a copy of a claim to the Branch, an officer checks to make sure that the claim was sent in time.
- The officer follows the procedures for claims against deposit(s).

Forms & Form Letters

X-Referencing For more information on how the Branch deals with claims against deposits, see [Landlord Claim for More than a Deposit\(s\)](#) or [Landlord Claim for Less than a Deposit\(s\)](#) in this section.
For details on filing a claim under Part 11, see [Claims](#) in Section 9.

Policy Developed September, 1992

Last Revision August, 2015

Other Resources None

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[POLICIES AND PROCEDURES GUIDEBOOK](#)

The Policies and Procedure Guidebook has not been updated to include recent changes to The Residential Tenancies Act. We are in the process of updating our links to the Act and Regulations throughout the website to provide links to the updated Manitoba Laws site. We apologize for the inconvenience. If you have any questions, please call the Branch information line at 204-945-2476 (or toll-free at 1-800-782-8403), email rtb@gov.mb.ca or visit the office. You can visit <https://web2.gov.mb.ca/laws/statutes/ccsm/r119.php?lang=en> for access to the most recent version of the Act and regulations.

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Introduction

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[How was this guidebook developed?](#)
[What information is in this guidebook?](#)
[How is this guidebook organized?](#)
[How will this guidebook be updated?](#)

Why did we write this guidebook?

This guidebook was written to outline, as clearly as possible, branch policies and procedures for staff, landlords and tenants. It's a practical tool, and the foundation on which sound decisions are made. It takes the guesswork and duplication out of efforts, and helps to make our service more efficient and effective.

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Who did we write this guidebook for?

» For new and existing Residential Tenancies Branch staff . . .

This guidebook is used as part of an overall training program. It is also a quick and up-to-date reference for experienced staff. » For a landlord or tenant . . . who may have questions about the law, about security deposits, rent increases and fees for subletting. It's also for landlords and tenants who might need information on their rights and responsibilities, on mediation, hearings and how to prepare for both.

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How was this guidebook developed?

This guidebook was developed and written by staff members with different responsibilities, skills and levels of experience. Landlord and tenant representatives also reviewed and commented on drafts.

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What information is in this guidebook?

This guidebook has guidelines for dealing with different situations, sets out the policies or rules of how the branch operates, and describes how things are done.

For example, it has information on:

- » claims for compensation
- » hearings
- » landlord and tenant responsibilities
- » mediation
- » non-payment of utilities
- » notices of termination
- » orders of possession
- » privacy
- » recovery of filing fees, costs and interest
- » rent regulation
- » repairs
- » security deposits
- » tenancy agreements

We have used plain language to make this information easier to understand. Words or expressions used in this guidebook may be different from the wording in the Act and regulations. If there is a question about the correct approach or interpretation, the Act is used, not the guidebook.

We know that uncommon situations, questions and issues will come up from time to time that are outside the scope of this guidebook.

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How is this guidebook organized?

The key responsibilities of the Residential Tenancies Branch have been organized into major sections. Each section covers certain parts of the Residential Tenancies Act and each section is numbered.

For example: Section 2 deals with Tenancy Agreements and Section 10 is all about Security Deposits. If you need information on Repairs, go to Section 4.

Repairs	4
---------	---

The pages are numbered in order within each section.

For example: Section 4 is Repairs and Maintaining the Appearance of a Rental Unit begins on page 4 - 16.

Information in the subsections has been written and organized so that it is easy to find, read, understand and use. It is "as long as necessary, but as short as possible".

When referencing legislation, "section" is abbreviated as "s".

Each subsection includes an explanation of the policies and procedures.

The brief overview of a subsection procedure is set apart by a bold line.

You can easily spot the policies, because they are in a box.

The brief overview of a subsection procedure is set apart by a bold line.

Detailed procedure steps are set out with an arrow. For example: Steps6

Important deadlines are in italics.

Examples are bolded.

"Tenant" and "landlord" are used throughout the guidebook. Landlord and tenant can mean either a male or female. The plural pronoun or possessive is occasionally used for sake of readability and, to avoid repeating he or she, his or her, him or her, or his or hers. For example: a tenant may give one

rental payment period notice to move out, once they have been accepted into a personal care home.

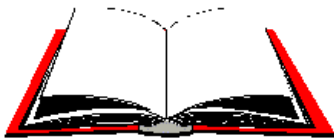
This guidebook also has:

- » a table of contents; an index;
- » a role and mission statement;
- » links to the Act and the regulations;
- » links to facts sheets.

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How will this guidebook be updated?

Residential Tenancies Branch staff will review and revise the guidebook as necessary. Changes will be highlighted with yellow highlighting.



»	Our Vision
---	-------------------

A rental marketplace which serves tenants and landlords fairly.

»	Our Mission
---	--------------------

We give information to tenants and landlords and offer educational opportunities in order to help them solve rental problems and make well-informed, responsible decisions. We help settle disagreements between tenants and landlord with investigation, mediation, information, orders and adjudication.

»	Our Values & Beliefs
---	---------------------------------

Â

■ **Responsibility**

Guided by The Residential Tenancies Act, we respond to the needs and interests of both landlords and tenants in a balanced, efficient and effective way.

■ **Integrity**

Our activities are based on a foundation of integrity and justice.

■ **Excellence**

Excellence must characterize our activities in working with landlords, tenants, staff and the community.

■ **Development**

We are committed to developing, reinforcing and recognizing the skills of all staff, landlords and tenants, and in acknowledging their contributions.

- » **Residential Tenancies Branch**
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